CHAPTER XVI: PROHIBITIONS, PENALTIES AND PERMITS

Section

16-A1 LICENSE AND PERMIT DENIAL, REVOCATION OR SUSPENSION

16-A1.1 Failure and/or Refusal to Pay Municipal Charges

16-A1.2 Safety Concerns and History

16-A2 FINGERPRINTING AND CRIMINAL HISTORY RECORDS CHECKS REQUIRED FOR CERTAIN LICENSES

16-1 HEALTH

16-1.1 Fish

16-1.2 Reserved

16-1.3 Decayed Food

16-1.4 Reserved

16-1.4A Bakery—Food Products, Retail Sale of

16-1.5 Reserved

16-1.6 Reserved

16-1.7 Permit for Catered Functions

16-1.8 Reserved

16-1.8A Live Fowl, Farm Animals

16-1.9 Restraining Dogs

16-1.9A Fines for Violation

16-1.9B Dangerous Dogs

16-1.9B.1 Definitions

16-1.9B.2 Dangerous Dogs

16-1.9C Dog Registration and Licensing

16-1.9D Disposition of Fines

16-1.9E Reserved

16-1.9F Leasing of Licensed Dogs

16-1.9F.1 Purpose

16-1.9F.2 Definitions

16-1.9F.3 Prohibition

16-1.9F.4 Enforcement

16-1.9F.5 Fines

16-1.9F.6 Severability

16-1.9F.7 Effective Date

16-1.9G Sale of Animals

16-1.9G.1 Definitions

16-1.9G.2 Sale of Dogs, Cats, Guinea Pigs or Rabbits by Pet Shops Prohibited

16-1.9G.3 Penalties

16-1.9G.4 Enforcement

16-1.9G.5 Applicability

16-1.9G.6 Severability

16-1.10 Keeping of Animals

16-1.10A Dog Fouling

16-1.11 Manure

16-1.12 Removal of Manure

16-1.13 Reserved

16-1.14 Reserved

16-1.15 Reserved

16-1.16 Reserved

16-1.17 Reserved
16-1.18 Water-Closets
16-1.19 Reserved
16-1.19A Air Pollution Prohibited; Permit
16-1.20 Reserved
16-1.20A Reserved
16-1.21 Reserved
16-1.22 Reserved
16-1.23 Cesspools and Privies
16-1.24 Sewage and Waste Water
16-1.25 Drains
16-1.26 Reserved
16-1.27 Honey Bees
16-2 HAWKERS AND PEDDLERS
16-2.1 Registration
16-2.2 Crying of Wares
16-2.3 Tobacco Products, Distribution in Public Places
16-2.4 Vehicles and Receptacles
16-2.5 Sale of Propelled Novelty Substances Prohibited
16-2.6 Improper Preparation of Food
16-2.7 Hawkers, Peddlers Selling Goods, Wares or Merchandise
16-3 RESERVED
16-4 TAKING OF SHELLFISH
16-4.1 Family Use and Commercial Permits
16-4A PROHIBITED ACTS IN WETLANDS; PERMITS
16-5 FIREARMS
16-5.1 Firing of Cannons and Guns
16-5A REGULATING THE SALE AND MARKETING OF REPLICA FIREARMS IN THE CITY
16-5A.1 Definitions
16-5A.2 Regulation
16-5A.3 Exceptions
16-5A.4 Enforcement
16-5A.5 Appeal Procedure
16-5A.6 Effective Date
16-5B REGULATING REPLICA FIREARMS IN THE CITY
16-5B.1 Definition
16-5B.2 Regulation
16-5B.3 Enforcement
16-5B.4 Penalties
16-6 BONFIRES
16-6.1 Permits Required
16-7 BRICK-KILNS
16-7.1 Permits Required
16-8 INFLAMMABLE ARTICLES
16-8.1 Defined; Age and Marking Requirements
16-8.2 Sale of Certain Paints and Markers
16-8.3 Display of Certain Paints and Markers
16-8.4 Prohibiting Defacement of Property, and Possession of Certain Items

16-8.5 Graffiti Removal

16-9 OBSTRUCTION OF FIRE FIGHTERS AND FIRE APPARATUS

16-9.1 Interference Forbidden

16-10 THE MARKET LIMITS

16-10.1 Reserved

16-10.2 Obstruction to Travel

16-10.3 Sunday Regulations

16-10.4 Disorderly Conduct

16-10.5 Compliance with Directions

16-11 FANEUIL HALL MARKET LIMITS

16-11.1 Place and Hours of Sale

16-12 USE OF STREETS

16-12.1 Reserved

16-12.2 Loitering

16-12.2A Display of Permits

16-12.3 Advertising

16-12.4 Merchandise to and from Second Story

16-12.5 Sprinkling Ashes and the like on Streets; Removal of Manure

16-12.6 Reserved

16-12.7 Reserved

16-12.8 Littering

16-12.8A Implementation and Maintenance of a System to Retain all Shopping Carts within a Business Establishment

16-12.8A.1 Purpose

16-12.8A.2 Definitions

16-12.8A.3 On-Site Retention

16-12.8A.4 Removal of Shopping Carts

16-12.8A.5 Retrieval of Shopping Carts

16-12.8A.6 Fines

16-12.8A.7 Appeal

16-12.8A.8 Permits

16-12.8A.9 Stolen Property

16-12.8A.10 Regulatory Authority

16-12.8A.11 Effective Date

16-12.8A.12 Severability

16-12.9 Litter from Vehicles

16-12.10 Reserved

16-12.11 Reserved

16-12.12 Reserved

16-12.13 Reserved

16-12.14 Use of Propelled Novelty Substances Prohibited

16-12.15 Throwing or Shooting on Streets

16-12.16 Snow, Slush and Ice on Sidewalks and Curb Ramps

16-12.17 Reserved

16-12.18 Reserved

16-12.19 Cutting of Grass

16-12.20 Reserved

16-12.21 Reserved

16-12.22 Reserved

16-12.23 Reserved

16-12.24 Reserved

16-12.25 Unlawful Games

16-12.26 Protection of Trees, Lamp-Post and Hydrants

16-12.27 Abusive Language; Soliciting in Streets

16-12.28 Drinking of Alcoholic Beverages in Public

16-12.29 Procurement of Alcoholic Beverages for Underage Individuals

16-12.30 The Use of Intimidation to Obtain Alcoholic Beverages

16-12.30A The Use of False Identification to Obtain Alcoholic Beverages

16-12.31 Posting of “Warning” Notice

16-12.31A Concerning Parental Responsibility for Public Consumption of Alcoholic Beverages by Minors

16-12.32 Vaults Under Sidewalks

16-12.33 Gratings

16-12.34 Openings in Street

16-12.35 Steps

16-12.36 Street Openings

16-12.37 Prohibiting Operation of Skateboards, Roller Blades, Roller Skates and Stunt-Type Bicycles on Certain Public Property

16-12.38 Gas-Powered Vehicles: Scooters, Powerboards and Mini-Motorbikes

16-12.38A Electric Personal Assistive Mobility Devices

16-12.38A.1 Definition of Electric Personal Assistive Mobility Device or EPAMD

16-12.38A.2 Prohibition of EPAMDs

16-12.38A.3 Definition of Tour Operator

16-12.38A.4 Limited Use of EPAMDs for Tour Operations

16-12.38A.5 Limited Use of EPAMDs for Disabled Persons for Mobility Purposes

16-12.38A.6 Use of EPAMDs for Advertising

16-12.38A.7 Penalties

16-12.38A.8 Enforcement

16-12.38A.9 Regulatory Authority

16-12.38A.10 Severability

16-12.39 Pedicabs

16-12.40 Prohibiting Operation of Party Bikes

16-12.41 Parking in a Marked Bike Lane or Marked Shared Bike Lane

16-12.42 Parking or Stopping Within Any Pedestrian Safety Zone

16-12.43 Prohibiting the Selling, Leasing or Reserving of Public Ways

16-13 BRIDGES AND WHARVES

16-13.1 Rules Concerning Bridges and Wharves

16-13.2 Relative to the Licensing of Certain Bridges and Tunnels

16-14 RESERVED

16-14.1 Reserved

16-15 USE OF ROADWAY FOR VEHICLES

16-15.1 Horse-Drawn Vehicles

16-15.2 Reserved

16-15.3 Bells on Vehicles

16-15.4 Direction of Vehicles

16-15.5 Vehicles for Hire

16-15.6 Use of Protective Headgear

16-16 STREET CARS

16-16.1 Speed Limits

16-16.2 Intersections
16-16.3 Curves
16-16.4 Grades
16-16.5 Proximity to Roads
16-16.6 Joint Use of Roads
16-16.7 Safety Distances
16-16.8 Avoiding Collisions; Obeying Police Directions
16-16.9 Precautions; Warning Bells
16-16.10 Prompt Stopping
16-16.11 Stopping in Intersections
16-16.12 Spreading of Gravel, Sand and the Like
16-17 MOVING BUILDINGS AND BULKY MACHINERY
16-17.1 Moving Buildings
16-17.2 Removing Hindrances
16-18 SIDEWALKS
16-18.1 Use of Sidewalks
16-19 PUBLIC GROUNDS
16-19.1 Use of Public Grounds
16-19.2 Public Addresses, Vending and the Like
16-19.3 Permit for Use of Park Land for Demonstrations
16-19.4 Profanity and Other Offenses
16-20 WATER SUPPLY
16-20.1 Use of Water
16-21 WARD-ROOMS; FANEUIL HALL
16-21.1 Ward Meetings
16-21.2 Voter Lists
16-21.3 Decorations
16-22 NUMBERING OF BUILDINGS
16-22.1 Regulation Concerning Numbering of Buildings
16-23 NOTICES AND PLACARDS
16-23.1 Prior Consent to Post Notices
16-23.2 Removal After Elections
16-23.3 Posting in Public Places
16-23.4 Reserved
16-24 JUNK AND SECOND-HAND ARTICLES
16-24.1 Business Hours
16-25 OBSCENE AND PORNOGRAPHIC MATERIAL
16-25.1 Fine for Selling
16-26 UNREASONABLE NOISE
16-26.1 General Prohibition and Definitions
16-26.2 Unreasonable Noise-Making Automobile Safety Devices
16-26.3 Unreasonable Noise From Automobile Safety Devices
16-26.4 Regulation of Construction Hours
16-26.5 Noise Levels at Residential Lot Lines
16-26.6 Disturbing the Peace
16-26.7 Prohibition Against Certain Sound Devices in Motor Vehicles
16-26.8 Prohibition Against Loud Amplification Devices in Public Ways or Places
16-26.9 Prohibition Against Loud Amplification Devices in or on Residential Premises

16-26.10 Enforcement

16-26.11 Penalties

16-26.12 Arrest and Seizure of Property

16-26.13 Exemptions

16-26.14 Severability

16-27 NUISANCE CONTROL

16-27.1 Purpose

16-27.2 Definitions

16-27.3 Mailing of Notice to Property Owners and Others

16-27.4 Liability for a First Response to a Gathering

16-27.5 Liability for a Second or Subsequent Response to a Gathering Constituting a Public Nuisance

16-27.6 Enforcement

16-27.7 Severability

16-28 JITNEY LICENSES

16-28.1 Requirement

16-28.2 Publication and Notice

16-28.3 Route

16-28.4 Fare

16-28.5 Information to Passengers

16-28.6 Number of Passengers

16-28.7 Operation

16-28.8 Carriage of Passengers

16-28.9 Lighting and the Like

16-28.10 Conduct of Operators

16-29 OPEN-AIR THEATERS

16-29.1 Open-Air Projection

16-30 ABANDONMENT OF AUTOMOBILES

16-30.1 Abandoned, Unregistered or Uninsured Vehicles

16-31 RODENT AND INSECT PREVENTION MEASURES AT CONSTRUCTION SITES

16-32 FINES

16-32.1 Generally

16-32.2 Drinking of Alcoholic Beverages in Public, Fine

16-32.3 Alternative Noncriminal Disposition of Violations of Subsection 16-1.9, 16-1.9B, 16-12.7 and 16-32.4

16-32.4 Enforcement of Certain Sections

16-32.5 Enforcement in Accordance with Massachusetts General Law

16-32.6 Violations; Fine Established

16-32.7 Enforcement of Certain Environmental Protection Ordinances

16-33 SIGNS, AWNINGS AND THE LIKE

16-33.1 Definitions

16-33.2 Issuance of Number by Appropriate Department

16-33.3 Inspectional Services Department

16-33.4 Public Works Department

16-33.5 Parks and Recreation Commission

16-33.6 Enforcement

16-33.7 Fine

16-34 UNLAWFUL TO TAKE REPRISAL AGAINST ANY INDIVIDUAL WHO TESTIFIES BEFORE THE BOSTON CITY COUNCIL

16-34.1 Reprisal Action Against Person Who Testifies Before Boston City Council Unlawful

16-34.2 Complaint of Reprisal; Action by Chair of Committee

16-34.3 Report to Boston City Council of Reprisal; Boston City Council May Impose Disciplinary Action
16-34.4 Definition
16-34.5 Severability
16-35 WORKPLACE SMOKING POLLUTION CONTROL ORDINANCE
16-35.1 Legislative Intent
16-35.2 Title
16-35.3 Purpose
16-35.4 Definitions
16-35.5 Regulation of Smoking in the Workplace
16-35.6 Where Smoking Not Regulated
16-35.7 Penalties and Enforcement
16-36 CIGARETTE SALES BY VENDING MACHINES RESTRICTED
16-36.1 Regulations
16-36.2 Enforcement
16-36.3 Violations and Penalties
16-36.4 Severability
16-37 NON-EMERGENCY REPAIR OF VEHICLES
16-37.1 Prohibition
16-37.2 Violation
16-38 PLACEMENT AND MAINTENANCE OF NEWSRACKS
16-38.1 Definitions
16-38.2 Certificate of Compliance
16-38.3 Installation
16-38.4 Maintenance
16-38.5 Enforcement
16-38.6 Abandonment
16-38.7 Emergency Removal
16-38.8 Fees
16-38.9 Effect on Other Laws
16-38.10 Severability
16-38.11 Initial Application Acceptance Date
16-38.12 Effective Date
16-39 SALE OF DANGEROUS INSTRUMENTS
16-39.1 Prohibition of Sale of Dangerous Instruments
16-39.2 Penalty
16-39.3 Exemption
16-39.4 Licensing Requirements for Stores Selling Certain Knives
16-40 LIMITING TOBACCO ACCESS BY YOUTH
16-40.1 Definitions
16-40.2 Tobacco Sales to Minors Prohibited
16-40.3 Enforcement
16-40.4 Public Education
16-40.5 Boston Public Health Commission Authority
16-41 REGULATING MANNER AND PLACE OF SOLICITATION
16-41.1 Definitions
16-41.2 Prohibited Acts
16-41.3 Enforcement
16-41.4 Penalties

16-41.5 Severability

16-42 LASER POINTERS

16-42.1 Definitions

16-42.2 Sales to Minors Prohibited

16-42.3 Sales Restricted

16-42.4 Possession Restricted

16-42.5 Harassment by Laser Beams in Public Prohibited

16-42.6 Penalty

16-43 TRESPASSING ON PRIVATE PROPERTY

16-44 SALE OF MERCURY THERMOMETERS BANNED

16-44.1 Definitions

16-44.2 Retail Sale Prohibited

16-44.3 Manufacturing Prohibited

16-44.4 Importation Prohibited

16-44.5 Restriction on the Sale of Mercury Thermometers

16-44.6 Penalty

16-45 PROHIBITING THE CARRYING OF KNIVES OR SIMILAR WEAPONS

16-45.1 Carrying of Weapons Prohibited

16-45.2 Distribution Exception

16-45.3 Applicability

16-45.4 Penalty

16-45.5 Severability

16-46 NONCRIMINAL DISPOSITION OF ZONING VIOLATIONS IN THE CITY

16-46.1 General Penalty: Noncriminal Disposition of Zoning Violations

16-46.2 Enforcing Person and Regulatory Authority

16-46.3 Violations

16-46.4 Enforcement, Penalties and Fines

16-46.5 Severability

16-47 PROHIBITING THE SALE AND/OR INSTALLATION OF A MUFFLER CUT-OUT OR BY-PASS AND PROHIBITING CERTAIN MODIFICATIONS TO EXHAUST SYSTEMS

16-48 BOAT SLIPS AND MOORINGS

16-48.1 Purpose

16-48.2 Definitions

16-48.3 Harbormaster Authorization

16-48.4 Permits

16-48.5 Assignment

16-48.6 Fees

16-48.7 Decals

16-48.8 Application Dates

16-48.9 Use

16-48.10 Expiration

16-48.11 Changes

16-48.12 Marking on Mooring

16-48.13 Enforcement and Penalties

16-48.14 Annual Report

16-48.15 Boston Waterways Board

16-48.16 Applicability

16-48.17 Regulatory Authority

16-48.18 Severability

16-48.19 Implementation

16-49 IDENTIFYING JACKETS FOR VALET PARKERS

16-49.1 Purpose

16-49.2 Definitions

16-49.3 Prohibition

16-49.4 Enforcement and Penalties

16-49.5 Exemptions

16-49.6 Applicability

16-49.7 Regulatory Authority

16-49.8 Severability

16-49.9 Implementation

16-50 AFTER-HOURS PARTIES

16-50.1 Purpose

16-50.2 Definitions

16-50.3 Prohibitions

16-50.4 Applicability

16-50.5 Regulatory Authority

16-50.6 Severability

16-50.7 Implementation

16-51 CRACK PIPES

16-51.1 Prohibition Against Sale

16-51.2 Prohibition Against Possession

16-51.3 Penalty

16-51.4 Implementation

16-52 MAINTENANCE OF VACANT, FORECLOSING RESIDENTIAL PROPERTIES

16-52.1 Purpose

16-52.2 Definitions

16-52.3 Registration of Vacant and/or Foreclosing Residential Properties; Duty to Provide Written Notice of Vacant, Residential Property and/or Mortgage Foreclosure

16-52.4 Maintenance Requirements

16-52.5 Inspections

16.52.6 Enforcement and Penalties

16-52.7 Appeal

16-52.8 Applicability

16-52.9 Regulatory Authority

16-52.10 Severability

16-52.11 Implementation

16-52.12 Notice

16-53 CLEANING OF COMMERCIAL COOKING HOOD AND VENTILATION SYSTEMS

16-53.1 Purpose

16-53.2 Applicability

16-53.3 Procedures

16-53.4 Penalties

16-53.5 Effective Date

16-54 PROHIBITION AGAINST SALVIA DIVINORUM

16-54.1 Sale Prohibited

16-54.2 Exception

16-54.3 Fines

16-54.4 Enforcement

16-55 UNPAID MUNICIPAL FINES

16-56 PENALTIES FOR VALID COMPLAINT PROBLEM PROPERTIES

16-57 PUBLIC NUISANCE PROPERTIES

16-57.1 Purpose

16-57.2 Definitions

16-57.3 Application

16-57.4 Enforcement

16-57.5 Non-criminal Dispositions

16-57.6 Penalties

16-57.7 Remediation

16-57.8 Verifiable and Certified Inspection

16-57.9 Receivership

16-57.10 Reporting

16-58 OVER-THE-AIR DEVICES (“OTARD”)

16-58.1 Purpose

16-58.2 Definitions

16-58.3 Installations

16-58.4 Use and Maintenance

16-58.5 Removal

16-58.6 Unified Statement

16-58.7 Appropriate City Authority

16-59 PROHIBITION OF THE POSSESSION OR SALE OF SYNTHETIC CANNABINOIDS AND ILLICIT SYNTHETIC DRUGS

16-59.1 Purpose

16-59.2 Definitions

16-59.3 Prohibition of Synthetic Cannabinoids

16-59.4 Enforcement

16-59.5 Penalty

16.59.6 Severability

16-59.7 Effective Date

16-60 RECREATIONAL VEHICLES

16-60.1 Recreational Vehicles

16-61 REGULATION OF LETTER GRADING OF FOOD ESTABLISHMENTS AND FOOD TRUCKS

16-61.1 Purpose

16-61.2 Definition

16-61.3 Requirements

16-61.4 Enforcement and Penalty

16-61.5 Appeal

16-62 ORDINANCE BANNING FACE SURVEILLANCE TECHNOLOGY IN BOSTON

16-63 ORDINANCE ON SURVEILLANCE OVERSIGHT AND INFORMATION SHARING

16-63.1 Purpose

16-63.2 Definitions

16-63.3 Community Control Over Surveillance

16-63.4 Boston Public Schools and Boston Police Department Information-Sharing Policy

16-63.5 Annual Surveillance Report

16-63.6 Enforcement

16-63.7 Severability

16-63.8 Effective Date and Implementation

16-63.9 Establishment of a Surveillance, Data and Privacy Working Group

16-64 AN ORDINANCE REGARDING TARGETED RESIDENTIAL PICKETING

16-65 SAFE CONSTRUCTION AND DEMOLITION OPERATIONS IN THE CITY

16-65.1 Definitions

16-65.2 Purpose and Scope

16-65.3 Responsibility for Safety

16-65.4 Fire Prevention Code

16-65.5 Site Safety Plan Affidavit Required

16-65.6 Site Safety Monitoring Plan Required

16-65.7 Site Safety Coordinator Required

16-65.8 Enforcement

16-65.9 Regulations

16-66 UNLAWFUL CAMPING ON PUBLIC PROPERTY

16-66.1 Definitions

16-66.2 Purpose

16-66.3 Unlawful Camping on Public Property

16-66.4 Restrictions on Unlawful Camping During a Period when Shelter is Unavailable

16-66.5 Offer of Shelter

16-66.6 Storage of Property

16-66.7 Removal

16-66.8 Notice to Individuals

16-66.9 Penalty for Violations

16-66.10 Reporting to Boston City Council

16-66.11 Severability

Editor's note:

For a history of many of the Sections in this Chapter, see Rev. Ord. 1961 and 1971 Supplement. See also Ord. 1972 c. 1, c. 10, c. 15; Ord. 1973 c.4; Ord. 1975 c.2.

16-A1 LICENSE AND PERMIT DENIAL, REVOCATION OR SUSPENSION.

16-A1.1 Failure and/or Refusal to Pay Municipal Charges.

(A) The city is hereby authorized to deny any application for, or to revoke or suspend any license or permit, including renewals and transfers thereof, issued by any City Board, Officer or Department for any person, corporation or business enterprise who has neglected or refused to pay any local taxes, fees, assessments, betterments or any other municipal charges, in accordance with the following provisions.

(1) The Collector-Treasurer shall annually furnish to each City Department, Board, Commission or Division, hereinafter referred to as the licensing authority, that issues licenses or permits, including renewals and transfers thereof, a list of any person, corporation or business enterprise, hereinafter referred to as "the party", that has neglected or refused to pay any local taxes, fees, assessments, betterments or other municipal charges for not less than a 12-month period, and that has not filed in good faith a pending application for an abatement of such taxes or a pending petition before the Appellate Tax Board.

(2) The licensing authority may deny, revoke or suspend any license or permit, including renewals and transfers thereof, of any party whose name appears on said list furnished to the licensing authority from the Collector-Treasurer; provided, however, that written notice is given to the party and the Collector-Treasurer, as required by applicable provisions of law, and that the party is given a hearing by the licensing authority, to be held not earlier than 14 days after the licensing authority sends said notice by regular mail to the party. Said list shall be prima facie evidence for the denial, revocation or suspension of said license or permit to any party. The Collector-Treasurer shall have the right to intervene in any hearing conducted with respect to such license or permit denial, revocation or suspension. Any findings made by the licensing authority with respect to such license or permit denial, revocation or suspension shall be made only for the purposes of such proceeding and shall not be relevant to or introduced in any other proceeding at law, except for any appeal from such license or permit denial, revocation or suspension. Any license or permit denied, revoked or suspended under this Section shall not be reissued, renewed or transferred until the licensing authority receives a certificate issued by the Collector-Treasurer that the party is in good standing with respect to any and all local taxes, fees, assessments, betterments or other municipal charges payable to the city as of the date of issuance of said certificate.

(3) Any party shall be given an opportunity to enter into a payment agreement with the Collector-Treasurer, thereby allowing the licensing authority to issue a certificate which indicates the conditions of the agreement upon which the license or permit is granted, and the validity of said license or permit shall be conditioned upon the satisfactory compliance with said agreement. Failure to comply with said agreement shall be grounds for the revocation or suspension of said license or permit; provided, however, that the party be given notice and a hearing as required by applicable provisions of law.

(4) The licensing authority may waive the denial, revocation or suspension of a license or permit to a party if he or she finds there is no direct or indirect business interest by the property owner, its officers or stockholders, if any, or members of his or her immediate family, as defined in M.G.L. Chapter 268A, Section 1, in the business or activity conducted in or on said property.

(B) This Section shall not apply to the following licenses and permits: open burning permits, M.G.L. Chapter 48, Section 13; temporary licenses for the sale of articles for charitable purposes, M.G.L. Chapter 101, Section 33; children work permits, M.G.L. Chapter 149, Section 69; licenses for clubs, societies, associations or other organizations dispensing food or beverages, M.G.L. Chapter 140, Section 21E; dog licenses, M.G.L. Chapter 140, Section 137; fishing, hunting and trapping licenses, M.G.L. Chapter 131, Section 12; marriage licenses, M.G.L. Chapter 207, Section 28; and licenses for theatrical events, public exhibitions and the like issued pursuant to M.G.L. Chapter 140, Section 181.

(C) The city may exclude any other local license or permit from this Section by amending this Section.

(CBC 1985 16-A1.1; Ord. 1992 c. 6 § 1; Ord. 2016 c. 18 § 1)

16-A1.2 Safety Concerns and History.

Every Officer in charge of a Department issuing a permit is hereby authorized to deny any application for, or revoke or suspend any permit, including renewals, issued to any person, corporation or business entity with a history of engaging in unsafe, hazardous or dangerous practices based on work safety histories or concerns. Work safety histories or safety concerns shall include information obtained by affidavit for each permit application, Occupational Safety and Health Administration violation reports or other information presented to or documented by the permit issuing Department.

(CBC 1985 16-A1.2; Ord. 2016 c. 18 § 2)

16-A2 FINGERPRINTING AND CRIMINAL HISTORY RECORDS CHECKS REQUIRED FOR CERTAIN LICENSES

(A) The city is hereby authorized to deny any application for, or to revoke or suspend any license or permit, including renewals and transfers thereof, issued by any City Board, Officer or Department for any person who is determined unfit for the license, as determined by the licensing authority, due to information obtained pursuant to Subsection 11-1.8.

(B) The city may exclude any other local license or permit from this Section by amending this Section.

(CBC 1985 16-A2; Ord. 2011 c. 2)

16-1 HEALTH.

16-1.1 Fish.

(A) *Reserved.*

[Reserved]

(CBC 1975 Ord. T14 s. 250; CBC 1985 16-1.1; Repealed by Ord. 1991 c. 5 § 1)

(B) *Fish for sale; requirements.* No person shall have in his or her possession with intent to sell, fish of any kind, except flounders, smelts and other small fish, salmon and shad, until the same have been cleansed of their entrails and other refuse parts, or fish of any kind unless they are kept in covered stalls or fish-boxes or covered carts, which shall be clean and in good order and well secured from the rays of the sun.

(CBC 1975 Ord. T14 § 250; CBC 1985 16-1.1; Ord. 1991 c. 5 § 1)

16-1.2 Reserved.

[Reserved]

(CBC 1975 Ord. T14 § 251; CBC 1985 16-1.2; Repealed by Ord. 1991 c. 5 § 2)

16-1.3 Decayed Food.

No person shall bring into the city, or have in his or her possession with intent to sell, any decayed or damaged fruit, vegetable or animal substance, except in accordance with a permit from the Division of Health Inspections, Inspectional Services Department.

(CBC 1975 Ord. T14 § 252; CBC 1985 16-1.3; 1991 c. 5 § 3)

16-1.4 Reserved.

[Reserved]

(Ord. 1976 c. 11 § 2; CBC 1985 16-1.4; Repealed by Ord. 1991 c. 5 § 4)

16-1.4A Bakery—Food Products, Retail Sale of.

No person shall carry on the business of a bakery, nor sell at retail: meat, produce, dry groceries, dairy products, frozen foods or any other food products without a permit issued by the Division of Health Inspections, Inspectional Services Department under the authority of the commonwealth's Sanitary Code.

(CBC 1985 16-1.4A; Ord. 1991 c. 5 § 4)

16-1.5 Reserved.

[Reserved]

(Ord. 1976 c. 11 § 2; Repealed by Ord. 1991 c. 5 § 4)

16-1.6 Reserved.

[Reserved]

(Ord. 1977 c. 9; CBC 1985 16-1.6; Repealed by Ord. 1991 c. 5 § 4)

16-1.7 Permit for Catered Functions.

Caterers who provide catering services to functions within the city and whose establishments are not licensed by the Division of Health Inspections, Inspectional Services Department but who are required to register with the Division of Health Inspections, Inspectional Services Department pursuant to the commonwealth's Sanitary Code, must have a permit from the Division of Health Inspections, Inspectional Services Department for each function for which a registration is so required by said Code.

(Ord. 1981 c. 34; CBC 1985 16-1.7; Ord. 1991 c. 5 § 5)

16-1.8 Reserved.

[Reserved]

(CBC 1975 Ord. T14 § 253; CBC 1985 16-1.8; Repealed by Ord. 1991 c. 5 § 6) Penalty, see Subsection 16-32.6

16-1.8A Live Fowl, Farm Animals.

No person shall keep any live fowl or other farm animals, except in accordance with a permit from the Division of Health Inspections, Inspectional Services Department.

(CBC 1985 16-1.8A; Ord. 1991 c. 5 § 6) Penalty, see Subsection 16-32.6

16-1.9 Restraining Dogs.

No person owning or harboring a dog shall suffer or allow it to worry, wound or attack any person, nor to be so unreasonably noisy as to disturb the peace, nor shall such person suffer or allow it to go upon the premises of another without the permission of the owner or occupant of such premises. No person owning or harboring a dog shall suffer or allow it to run at large in any street or public place in the city, nor permit it to go upon any street or public place unless it is effectively restrained by a chain or leash not exceeding 10 feet in length. For the purposes of M.G.L. Chapter 140, Section 173A, this Section shall be deemed an ordinance made under the provisions of M.G.L. Chapter 140, Section 173.

(CBC 1975 Ord. T14 § 254; Ord. 1976 c. 7 § 1; CBC 1985 16-1.9) Penalty, see Subsections 16-1.9A, 16-32.6

16-1.9A Fines for Violation.

Violations of Subsection 16-1.9 shall be punished as follows:

(A) For the first offense in a calendar year: a warning notice to the dog owner;

(B) For the second offense in a calendar year: a fine of $50;

(C) For the third offense in a calendar year- a fine of $60; and

(D) For the fourth and each subsequent offense in a calendar year: a fine of $100.

(CBC 1985 16-1.9A; Ord. 1991 c. 5 § 7; Ord. 2014 c. 15 § 7)

16-1.9B Dangerous Dogs.

16-1.9B.1 Definitions.

For the purpose of this Section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

HEARING AUTHORITY OF THE ANIMAL CARE AND CONTROL UNIT. The person charged with the responsibility of handling dog complaints in the city.

OWNER OR KEEPER OF A DANGEROUS DOG. An individual who is the registered owner, as well as an individual who keeps, harbors or possesses a dangerous dog.

(CBC 1985 16-1.9B.1; Ord. 1996 c. 8 § 1; Ord. 2000 c. 4 § 1; Ord. 2014 c. 15 §§ 5, 6, 8)

16-1.9B.2 Dangerous Dogs.

(A) (1) A person may file a complaint in writing to the Hearing Authority of the Animal Care and Control Unit of the Parks and Recreation Department that a dog owned or kept in the city is a dangerous dog; provided, however that no dog shall be deemed dangerous:

(a) Solely based on growling or barking or solely growling and barking;

(b) Based upon the breed of the dog; or

(c) If the dog was reacting to another animal or to a person and the dog's reaction was not grossly disproportionate to any of the following circumstances:

1. The dog was protecting or defending itself, its offspring, another domestic animal or a person from attack or assault;

2. The person who was attacked or threatened by the dog was committing a crime upon the person or property of the owner or keeper of the

dog;

3. The person attacked or threatened by the dog was engaged in teasing, tormenting, battering, assaulting, injuring or otherwise provoking the dog; or

4. At the time of the attack or threat, the person or animal that was attacked or threatened by the dog had breached an enclosure or structure in which the dog was kept apart from the public and such person or animal was not authorized by the owner of the premises to be within such enclosure including, but not limited to, a gated fenced-in area if the gate was closed, whether locked or unlocked; provided, however that if a person is under the age of seven, it shall be a rebuttable presumption that such person was not committing a crime, provoking the dog or trespassing.

(2) The Hearing Authority of the Animal Care and Control Unit shall investigate or cause the investigation of the complaint, including an examination under oath of the complainant at a public hearing to determine whether the dog is a dangerous dog. Based on credible evidence and testimony presented at the public hearing, the hearing authority shall, if the dog is complained of as a dangerous dog:

(a) Dismiss the complaint;

(b) Deem the dog a nuisance dog; or

(c) Deem the dog a dangerous dog.

(3) If the Hearing Authority of the Animal Care and Control Unit deems a dog a dangerous dog, the hearing authority shall order one or more of the following:

(a) Spay or neutering;

(b) Microchip identification; and/or

(c) Behavior training.

(4) Pursuant to M.G.L. Chapter 140, Section 157(c), the Hearing Authority of the Animal Care and Control Unit shall neither issue an order directing that a dog deemed dangerous shall be removed from the city, nor regulate dogs in a manner that is specific to breed.

(B) (1) Once a dog has been deemed dangerous by the Hearing Authority of the Animal Care and Control Unit of the Parks and Recreation Department, while on the owner's or keeper's property, said dangerous dog must be securely confined indoors or in a securely enclosed and locked pen or structure of a type meeting standards established by the Hearing Authority of the Animal Care and Control Unit, suitable to prevent the entry of young children, and designed to prevent the animal from escaping. Such pen or structure must have a minimum dimension of 5 feet by 10 feet and must be securely enclosed. If it has no bottom secured to the sides, the sides must be imbedded in the ground no less than 2 feet. The enclosure must also provide protection from the elements for the dog.

(2) The owner or keeper shall display a sign or signs on his or her premises facing out from all sides of the premises warning that there is a dangerous dog on the property and location and design of which shall be determined by the Hearing Authority of the Animal Care and Control Unit. This sign should be visible and capable of being read from a public way or within 20 feet of its placement. In addition, the owner shall conspicuously display a sign with a symbol warning those who cannot read of the presence of a dangerous dog.

(3) The Hearing Authority of the Animal Care and Control Unit may permit a dangerous dog to be off the owner's or keeper's premises if it is muzzled and restrained by a leash or chain approved by the Hearing Authority of the Animal Care and Control Unit not exceeding 3 feet in length and is under the control of an adult, able-bodied person. The muzzle must be made in a manner that will not cause injury to the dog or interfere with its vision or respiration, but must prevent it from biting any person or animal. No dog designated as dangerous shall be permitted at public festivals, carnivals, parades or similar events, without an event specific waiver from the Hearing Authority of the Animal Care and Control Unit.

(4) The provisions of this Section regarding dangerous dogs shall not apply to animals owned by Law Enforcement Agencies and used for law enforcement purposes.

(C) The owner or keeper of any dangerous dog who fails to comply with the requirements set forth in division (B) above shall be subject to a fine of $500 for a first offense, a fine of $1,000 for any subsequent offenses and all provisions set forth in M.G.L. Chapter 140, Section 157(h).

(D) Each day there exists a violation of any of the provisions of this Section shall constitute and be punishable as a separate offense.

(E) A dog shall not be considered legally licensed, pursuant to M.G.L. Chapter 140, Sections 137 and 147, unless the owner is in full compliance with this Section.

(F) Compliance with the requirements of this Section shall not be a defense to an order to euthanize a dangerous dog pursuant to M.G.L. Chapter 140, Section 157.

(G) The city's Animal Control Officer shall be required to record the breed of any dog quarantined because of biting a human being or other animal. On October 1 of each year, the Animal Control Officer shall deliver to members of the Boston City Council a report on the breeds of dogs that have bitten human beings or other animals during the previous year.

(CBC 1985 16-1.9B.2; Ord. 1996 c. 8 § 1; Ord. 2000 c. 4 § 1; Ord. 2014 c. 15 §§ 5, 6, 8; Ord. 2019 c. 4 § 3) Penalty, see Subsection 16-32.6

16-1.9C Dog Registration and Licensing.

(A) All the powers and duties associated with dog registration and licensing in the city pursuant to M.G.L. Chapter 140 heretofore exercised by the Inspectional Services Department are hereby transferred to the Animal Care and Control Unit of the Parks and Recreation Department. All employees and positions within the Animal Care and Control Unit of the Inspectional Services Department shall be transferred to and within the Animal Care and Control Unit of the Parks and Recreation Department. Each subject employee who immediately prior to such transfer held an Office or position subject to Civil Service Laws and Rules shall be appointed without examination or registration and shall upon such appointment retain all rights to retirement with pension that shall or would have accrued, and each such employee's service shall be deemed to be continuous to the same extent as if this transfer had not taken place.

(B) Pursuant to M.G.L. Chapter 140, Section 137, all dogs six months of age and older in the city must be registered and licensed annually with the Animal Care and Control Unit as established by Section 7-9.

(CBC 1985 16-1.9C; Ord. 1996 c. 8 § 6; Ord. 2000 c. 4 § 6; Ord. 2008 c. 6 § 1; Ord. 2014 c. 15 § 9; Ord. 2019 c. 4 § 4) Penalty, see Subsection 16-32.6

16-1.9D Disposition of Fines.

Fines collected pursuant to the provisions of this Subsection and Subsection 16-1.9A and all dog registration and licensing fees collected pursuant to Subsection 18-1.4(F) through (J) shall be deposited into a revolving fund within the Animal Care and Control Unit of the Parks and Recreation

Department with disbursement at the direction of the Commissioner of Park and Recreation, pursuant to the provisions of M.G.L. Chapter 44, Section 53E½, and shall be subject to annual authorization by the Boston City Council with the approval of the Mayor. Said fund shall be utilized as follows: to reimburse for administrative costs to those City Agencies which enforce this Subsection and Subsection 16-1.9 and for costs associated with licensing and registration. The total amount which may be expended from such fund in a fiscal year shall not exceed amounts authorized under the aforesaid Section 53E½.

(CBC 1985 16-1.9D; Ord. 1996 c. 8 § 2; Ord. 2014 c. 15 § 10; Ord. 2019 c. 4 §§ 5, 6)

16-1.9E Reserved.

[Reserved]

(CBC 1985 16-1.9E; Ord. 2004 c. 4 § 1; Repealed by Ord. 2014 c. 15 § 11)

16-1.9F Leasing of Licensed Dogs.

16-1.9F.1 Purpose.

(A) The purpose of dog licensing is to foster owner accountability by ensuring that each dog is traceable to its owner. By requiring a dog to be licensed, liability for a dog's actions can easily be established and owners are responsible for ensuring the safety of the pet and others. This is especially important given that M.G.L. Chapter 140, Section 155 imposes strict liability upon the owner or keeper of a dog that causes bodily harm or property damage. Pursuant to M.G.L. Chapter 140, Section 173 and in order to advance the purposes of dog owner accountability, the city has the power to further regulate dog licensing. It is the intent of this Section to protect and preserve public health, safety and wellness by prohibiting the leasing of licensed dogs. The city has a duty to monitor and regulate dog ownership via licensure. Allowing a licensed dog to be rented would create instability and uncertainty regarding the care and treatment of the animal, presumably resulting in aggressive and vicious conduct towards the lessee and public.

(B) The Animal Care and Control Unit shall have the authority to promulgate rules and regulations necessary to enforce this Subsection.

(CBC 1985 16-1.9F.1; Ord. 2008 c. 6 § 2; Ord. 2019 c. 4 §§ 7, 8)

16-1.9F.2 Definitions.

For the purpose of this Section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

KEEPERSHIP. Harboring an animal with an assumption of custody, management and control of the animal.

LEASING. Does not include the following: temporary conveyance of Police dogs or service animals; temporary conveyance of a dog to a research institution licensed under M.G.L. Chapter 140, Section 174D for medical or scientific purposes; temporary conveyance of a dog to a veterinarian or entity licensed under M.G.L. Chapter 112, Section 55 for medical purposes; temporary conveyance of a dog to a kennel licensed under M.G.L. Chapter 140, Section 137A for the purposes of breeding, boarding, sale, training or hunting; conveyance of a dog by a pet business, as defined in Section 1, with the intent to permanently transfer title of the dog at the time of conveyance; or temporary conveyance of a dog by a pet shelter for the purposes of animal foster care or adoptions services only; or temporary conveyance of a dog to a professional trainer/handler.

LEASING/RENTING. Offering, or entering into, an agreement by which an owner or keeper of a licensed dog receives a fee in exchange for conveying the temporary right of keepership of a licensed dog.

PET BUSINESS. Anyone engaged in a business licensed under M.G.L. Chapter 129.

PET SHELTER. A public animal control facility, or any facility which is operated by any organization or individual for the purpose of protecting animals from cruelty, neglect or abuse.

POLICE DOG. Any dog owned by Police Departments or Police Agencies of the commonwealth or any of its political subdivisions when such dogs are under the direct supervision, care and control of a Police Officer.

PROFESSIONAL HANDLER/TRAINER. Any person engaged in the breeding, training and/or showing of another's dog for either of the following purposes:

(1) Entering the dog in a show or exhibition; or

(2) Employing the dog in the entertainment field.

SERVICE ANIMAL. Any guide dog, signal dog or other animal individually trained to do work or perform for the benefit of an individual with a disability, including, but not limited to, guiding individuals with impaired vision, altering individuals with impaired hearing to intruders or sounds, providing minimal protection or rescue work, pulling a wheelchair or fetching dropped items pursuant to 28 C.F.R. § 36.104.

(CBC 1985 16-1.9F.2; Ord. 2008 c. 6 § 2)

16-1.9F.3 Prohibition.

Pursuant to M.G.L. Chapter 140, Sections 137 and 173 and Subsection 16-1.9C, no licensed dog shall be leased or rented in the city.

(CBC 1985 16-1.9F.3; Ord. 2008 c. 6 § 2; Ord. 2019 c. 4 § 9)

16-1.9F.4 Enforcement.

The Boston Police Department and/or the Animal Care and Control Unit of the Parks and Recreation Department shall have the authority to enforce all violations of these Sections.

(CBC 1985 16-1.9F.4; Ord. 2008 c. 6 § 2; Ord. 2014 c. 15 § 12; Ord. 2019 c. 4 § 10)

16-1.9F.5 Fines.

Any person or entity, except as provided by law, who rents or leases a dog in violation of Subsection 16-1.9F and M.G.L. Chapter 272, Section 80I shall be fined $300 for the first violation, $500 for the second violation and $1,000 for subsequent violations. Each dog for lease or rent is a violation of Subsection 16-1.9F.3. Any dog held in violation of these Sections shall be seized or impounded by an organization or authorized agent thereof that is authorized to seize or impound an animal pursuant to the M.G.L. Any seizure or impoundment shall be governed by the general laws regulating the seizure of animals, including, but not limited to, M.G.L. Chapter 272, Section 104.

(CBC 1985 16-1.9F.5; Ord. 2008 c. 6 § 2; Ord. 2014 c. 15 § 13)

16-1.9F.6 Severability.

If any provision of these Sections or the application of these Sections to any person or circumstance shall be held invalid by a court of competent jurisdiction, the validity of the remainder of these Sections and the applicability of such Sections to other persons or circumstances shall not be affected thereby.

(CBC 1985 16-1.9F.6; Ord. 2008 c. 6 § 2)

16-1.9F.7 Effective Date.

The provisions of these Sections shall be effective upon passage.

(CBC 1985 16-1.9F.7; Ord. 2008 c. 6 § 2)

16-1.9G Sale of Animals.

For the purpose of this Subsection, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

ANIMAL RESCUE ORGANIZATION. A not-for-profit organization that is registered with the commonwealth's Department of Agricultural Resources, if required, whose mission and practice is, in whole or in significant part, the rescue and placement of dogs, cats, guinea pigs or rabbits into permanent homes, and which does not obtain animals from a breeder or broker for payment or compensation.

ANIMAL SHELTER. An animal control facility operated by a governmental entity for the purpose of impounding seized, stray, homeless, abandoned, unwanted or surrendered animals, or a facility operated by an individual or organization for the same purposes under a written contract with a governmental entity, and, if required, is registered with the commonwealth's Department of Agricultural Resources and which does not obtain animals from a breeder or broker for payment or compensation.

BREEDER. A person who maintains dogs, cats, guinea pigs or rabbits for the purposes of breeding and selling their offspring.

BROKER. A person who transfers dogs, cats, guinea pigs or rabbits at wholesale for resale by another.

FLEA MARKET. A building, structure or open area occupied by one or more vendors, other than retail stores, for sale to the public of new or used goods or products on a seasonal, limited or full schedule of operation.

PET SHOP. Has the meaning provided in M.G.L. Chapter 129, Section 1. Such definition shall not include an animal shelter or an animal rescue organization.

(CBC 1985 16-1.9G.1; Ord. 2016 c. 1; Ord. 2023 c. 13 § 1)

16-1.9G.2 Sale of Dogs, Cats, Guinea Pigs or Rabbits by Pet Shops Prohibited.

(A) No pet shop shall display, sell, deliver, offer for sale, barter, auction, give away, broker or otherwise transfer or dispose of a dog, cat, guinea pig or rabbit, except that pet shop may provide space for the display of dogs, cats, guinea pigs or rabbits available for adoption by a public animal control agency or shelter or an animal rescue organization so long as the pet shop receives no part of any fees associated with the display or adoption of the animals and has no ownership interest in any of the animals displayed or made available for adoption.

(B) (1) Division (A) above shall not apply to a pet shop that offers for sale guinea pigs as of the effective date of this Subsection until 90 days thereafter unless such a pet shop:

(a) Expands the species of animals offered for sale, beyond those offered for sale on the effective date of this Subsection, to include guinea pigs; or

(b) Changes in ownership, location or the required business licenses are transferred.

(2) A pet shop that violates the provisions outlined in divisions (B)(1)(a) and (B)(1)(b) above is thereafter immediately subject to the sales restriction in division (A) above.

(C) Each pet shop shall maintain records sufficient to document the source of each dog, cat, guinea pig or rabbit the pet shop acquires for at least one year following the date of acquisition. Such records shall be made available, immediately upon request, to any officer of the Parks and Recreation Department, its Animal Care and Control Unit, and/or the Boston Police Department.

(D) No person shall sell, exchange, trade, barter, lease or display for a commercial purpose any dog, cat, guinea pig or rabbit on or in any street, public grounds, commercial parking lot, flea market or other market, except for a dog, cat, guinea pig or rabbit displayed:

(1) By a shelter or animal rescue organization; or

(2) As part of a 4-H program or similar exhibition or educational program.

(CBC 1985 16-1.9G.2; Ord. 2016 c. 1; Ord. 2019 c. 4 § 11; Ord. 2023 c. 13 § 2)

16-1.9G.3 Penalties.

Any person or entity, except as provided by law, who sells a dog, cat, guinea pig or rabbit in violation of this Section shall be fined $300 per violation. Each animal sold or offered for sale in violation of this Section shall constitute a separate offense. Any animal being offered for sale or transfer, or displayed in violation of these Sections, may be seized or impounded.

(CBC 1985 16-1.9G.3; Ord. 2016 c. 1; Ord. 2023 c. 13 § 3)

16-1.9G.4 Enforcement.

(A) The Parks and Recreation Department, its Animal Care and Control Unit and/or the Boston Police Department shall have the authority to enforce all violations of these Sections. Any animal being offered for sale or transfer, or displayed in violation of these Sections, may be seized or impounded unless the enforcing Officer determines that failure to seize or impound will be detrimental to the safety and/or health of the animal. In such cases, the animal shall be seized.

(B) Animals seized pursuant to this Section will be held for a period of seven days. The person or entity in violation of these Sections may file for an administrative hearing to appeal the seizure within seven days of the seizure of the animals. If, after seven days, the person or entity fails to file an appeal, the animals shall be surrendered to the city's Animal Care and Control.

(CBC 1985 16-1.9G.4; Ord. 2016 c. 1; Ord. 2019 c. 4 § 12)

16-1.9G.5 Applicability.

If any provision of these Sections imposes greater restrictions or obligations than those imposed by any other general law, special law, regulations, rule, ordinance, order or policy, then the provisions of these Sections shall control.

(CBC 1985 16-1.9G.5; Ord. 2016 c. 1)

16-1.9G.6 Severability.

If any provision of these Sections shall be held to be invalid by a court of competent jurisdiction, then such provision shall be considered separately and apart from the remaining provisions, which shall remain in full force and effect.

(CBC 1985 16-1.9G.6; Ord. 2016 c. 1)

16-1.10 Keeping of Animals.

No person shall keep any animal upon any estate within the city, except in a place that is properly fitted out for the healthful and sanitary maintenance of that animal, nor shall any person keeping an animal allow any odor from such animal to escape the premises so as to disturb the peaceful enjoyment of the property of another, in addition to all other provisions set forth in M.G.L. Chapter 140, Section 174E.

(CBC 1975 Ord. T14 § 254A; Ord. 1976 c. 7, s 2; CBC 1985 16-1.10; Ord. 2014 c. 15 § 14) Penalty, see Subsection 16-32.6

16-1.10A Dog Fouling.

(A) *Duty to dispose.* It shall be the duty of each person who owns, possesses or controls a dog to remove and dispose of any feces left by his or her dog on any sidewalk, street or other public area. It shall further be the duty of each person who owns, possesses or controls a dog to remove and dispose of any feces left by his or her dog on any private property neither owned nor occupied by said person.

(B) *Duty to possess means of removal.* No person who owns, possesses or controls such dog shall appear with such dog on any sidewalk, street, park or other public area without the means of removal of any feces left by such dog. Furthermore, no person who owns, possesses or controls such dog shall appear on any private property neither owned nor occupied by said person without the means of removal of any feces left by said dog.

(C) *Method of removal and disposal.* For the purposes of this Subsection, the means of removal shall be any plastic bag, tool, implement or other device carried and used for the purpose of picking up and containing such feces, unexposed to said person and unexposed to the public. Disposal shall be accomplished by transporting such feces to a receptacle or other place suitable for the disposal of waste, trash or debris.

(D) *Fines of violation.* Violation of this regulation shall be punished by a fine of $50 for each occurrence.

(E) *Enforcement.* Violation of this regulation shall be enforced in accordance with law; provided, however, that, if simultaneously with the issuance of a complaint hereunder, a complaint is issued pursuant to M.G.L., Chapter 40, Section 21D, and that complaint is disposed of pursuant to said act and Subsection 16-32.3, the complaint issued hereunder shall be deemed disposed of.

(F) *Exemption.* This regulation shall not apply to a dog accompanying any handicapped person who, by reason of his or her handicap, is physically unable to comply with the requirements of this Subsection, or any individual over 65 years of age accompanying a licensed dog.

(G) *Severability.* The provisions of this Subsection are severable; and if any of the provisions of this Subsection shall be held unconstitutional or otherwise invalid by any court of competent jurisdiction, the decision of such court shall not affect or impair any of the remaining provisions.

(CBC 1975 Ord. T14 § 291; Ord. 1979 c. 34; CBC 1985 16-1.10A; Recodified by Ord. 1991 c. 5 § 24; Ord. 2004 c. 13 § 2) Penalty, see Subsection 16-32.6

16-1.11 Manure.

No owner or occupant of a building shall permit any manure to be therein, unless such building is used as a stable, or in that case permit more than two cords of manure to accumulate or remain therein; nor shall any person permit any manure to remain uncovered on his or her grounds outside of his or her building, or permit his or her building or any grounds connected therewith to be foul or unclean.

(CBC 1975 Ord. T14 § 255; CBC 1985 16-1.11) Penalty, see Subsection 16-32.6

16-1.12 Removal of Manure.

No person shall remove manure, or cause or suffer the same to be removed, except in accordance with a permit from the Division of Health Inspections, Inspectional Services Department and except in a tight vehicle with a canvas cover so secured to the sides and ends as to prevent the manure from dropping while being removed.

(CBC 1975 Ord. T14 § 256; CBC 1985 16-1.12; Ord. 1991 c. 5 § 8) Penalty, see Subsection 16-32.6

16-1.13 Reserved.

[Reserved]

(CBC 1975 Ord. T14 § 257; CBC 1985 16-1.13; Repealed by Ord. 1991 c. 5 § 9) Penalty, see Subsection 16-32.6

16-1.14 Reserved.

[Reserved]

(CBC 1975 Ord. T14 § 258; CBC 1985 16-1.14; Ord. 1986 c. 10 § 1; Recodified by Ord. 1991 c. 5 § 10) Penalty, see Subsection 16-32.6

16-1.15 Reserved.

[Reserved]

(CBC 1975 Ord. T14 § 259; CBC 1985 16-1.15; Repealed by Ord. 1991 c. 5 § 11) Penalty, see Subsection 16-32.6

16-1.16 Reserved.

[Reserved]

(CBC 1975 Ord. T14 § 260; CBC 1985 16-1.16; Repealed by Ord. 1991 c. 5 § 12) Penalty, see Subsection 16-32.6

16-1.17 Reserved.

[Reserved]

(CBC 1975 Ord. T14 § 261; CBC 1985 16-1.17; Repealed by Ord. 1991 c. 5 § 13) Penalty, see Subsection 16-32.6

16-1.18 Water-Closets.

No person shall maintain a water-closet, vault or privy in an unwholesome, unclean or improper place or condition.

(CBC 1975 Ord. T14 § 262; CBC 1985 16-1.18) Penalty, see Subsection 16-32.6

16-1.19 Reserved.

[Reserved]

(CBC 1975 Ord. T14 § 263; CBC 1985 16-1.19; Repealed by Ord. 1991 c. 5 § 14) Penalty, see Subsection 16-32.6

16-1.19A Air Pollution Prohibited; Permit.

No person shall cause the atmosphere to be polluted, as defined by the regulations of the Air Pollution Control Commission except pursuant to a permit issued by said Commission which permit shall be prominently displayed at the site of said pollution.

(CBC 1985 16-1.19A; Ord. 1988 c.15 § 1) Penalty, see Subsection 16-32.6

16-1.20 Reserved.

[Reserved]

(CBC 1975 Ord. T14 § 264; CBC 1985 16-1.20; Recodified in Chapter XXIII by Ord. 1991 c. 5 § 28) Penalty, see Subsection 16-32.6

16-1.20A Reserved.

[Reserved]

(CBC 1985 16-1.20A; Ord. 1986 c.15 § 2; Recodified in Chapter XXIII by Ord. 1991 c. 5 § 28) Penalty, see Subsection 16-32.6

16-1.21 Reserved.

[Reserved]

(Ord. 1976 c.13 §§ 1, 2; Ord. 1981 c. 4 § 3; Ord. 1983 c. 34 §§ 2, 3, 4; CBC 1985 16-1.12; Recodified in Chapter XXIII by Ord. 1991 c. 5 § 28)

Cross-reference:

16-1.22 Reserved.

[Reserved]

(CBC 1975 Ord. 714 § 265; CBC 1985 16-1.22; Repealed by Ord. 1991 c. 5 § 15)

16-1.23 Cesspools and Privies.

No person shall empty a cesspool, vault or privy, except in accordance with a permit from the Division of Health Inspections, Inspectional Services Department.

(CBC 1975 Ord. T14 § 266; CBC 1985 16-1.23; Ord. 1991 c. 5 § 16; Ord. 1992 c. 7 §§ 1, 2)

16-1.24 Sewage and Waste Water.

No owner or occupant of a building or of land shall suffer sewage or waste or stagnant water to remain in such building or upon such land. No owner or occupant of land abutting on a private passageway and having the right to use such passageway shall suffer any filth, waste or stagnant water to remain on that part of the passageway adjoining such land. No person shall discharge any waste water or water from a sink or water-closet, except through a drain into a sewer or cesspool or in accordance with a permit from the Division of Health Inspections, Inspectional Services Department.

(CBC 1975 Ord. T14 § 267; CBC 1985 16-1.24; Ord. 1991 c. 5 § 17) Penalty, see Subsection 16-32.6

16-1.25 Drains.

No person shall suffer any particular drain from any building or land of which he or she is the owner or occupant to leak or be out of repair; and no person shall, except in accordance with a permit from the Commission of Public Works, enter, or attempt to enter, a particular drain into a public drain or sewer.

(CBC 1975 Ord. T14 § 268; CBC 1985 16-1.25; Ord. 1991 c. 5 § 18; Ord. 1992 c. 7 § 3)

16-1.26 Reserved.

[Reserved]

(Ord. 1988 c. 17 § 1; Recodified in Chapter XXIII by Ord. 1991 c. 5 §§ 19, 28) Penalty, see Subsection 16-32.6

16-1.27 Honey Bees.

(A) *Purpose.* The purpose of this Section shall be for the regulation and enforcement of keeping honey bees.

(B) *Definitions.* For the purpose of this section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

COLONY. A natural group of honey bees having a queen or queens.

HIVE. A manufactured receptacle or container prepared for the use of honey bees that includes movable frames, combs and substances deposited into the ***HIVES*** by honey bees.

HONEY BEE. A subset of bees in the genus Apis, primarily distinguished by the production and storage of honey and the construction of perennial, colonial nests out of wax.

(C) *Registration; fee.*

(1) Keeping of honey bees shall require registration with the Inspectional Services Department pursuant to the regulations set forth in division (D) below.

(2) The application fee shall be $25 dollars.

(D) *Regulations.*

(1) The maximum number of hives on any given lot or roof shall be five.

(2) No hive shall exceed six feet in height and 24 cubic feet in size on any lot or roof. No hive will be placed on a roof that is not designed, intended and permitted by ISD for access and occupancy.

(3) Where there is a wall, fence or similar barrier between the subject property and adjacent property, no setback from the property line is required. Where there is no wall, fence or similar barrier between subject property and adjacent property, hives shall be set back five feet from the property line.

(4) Hives shall not be located in the front yard or in a side yard that abuts a street in all residential and commercial zoning districts and subdistricts.

(5) No hive shall be located closer than ten feet from a public sidewalk.

(6) For any ground level hive that is within 20 feet of the doors and/or windows of the principal building on an abutting lot, either of the following conditions must exist:

(a) The hive opening must face away from doors and/or windows; or

(b) A flyway of at least six feet in height comprising of a lattice fence, dense hedge or similar barrier must be established in front of the opening of the hive such that the honey bees fly upward and away from neighboring properties. The flyway shall be located within three feet of the entrance to the hive and shall extend at least two feet in width on either side of the hive opening.

(7) Hives shall be set back six feet from the edge of the roof.

(8) For any roof level hive that is within 20 feet of the doors and/or windows of the principal building on an abutting lot, either of the following conditions must exist:

(a) The hive opening must face away from doors and/or windows; or

(b) A flyway of at least six feet in height comprising of a lattice fence, dense hedge or similar barrier must be established in front of the opening of the hive such that the honey bees fly upward, and away from neighboring properties, and safely secured. The flyway shall be located within three feet of the entrance to the hive and shall extend

at least two feet in width on either side of the hive opening.

(9) Beekeepers shall adhere to appropriate beekeeping practices including:

(a) Maintaining bee colonies in hives that are kept in good working condition.

(b) Ensure a constant and adequate water source.

(c) Responding and taking immediate action as to any bee swarms

(d) Seeking to remediate any nuisance conditions.

(10) All beekeeping shall comply with applicable state laws and regulations. Nothing about this Subsection is intended to waive or amend the requirements of CBC Subsection 9-9.13 Regulating Access to Roof Areas of Buildings with Residential Units. To the extent the provisions of this Subsection conflict, CBC Subsection 9-9.13 shall control.

(E) *Exceptions.* Any exceptions to this Subsection must be approved by petition to the Inspectional Services Department, in a manner and form determined by the Department. Waiver or exemption to any provision of this Subsection shall be granted at the sole discretion of the Commissioner of Inspectional Services or designee.

(F) *Enforcement.*

(1) The Inspectional Services Department may promulgate rules and regulations necessary for the implementation and enforcement of this Subsection.

(2) Enforcement of this Subsection may be by written warning and/or cancellation of registration, provided that this Subsection shall not preclude the City of Boston from proceeding to restrain a violation of the terms of the permit by injunction.

(Ord. 2024 c. 1 § 1)

16-2 HAWKERS AND PEDDLERS.

16-2.1 Registration.

(A) No person shall hawk or peddle any fruits or vegetables or any of the articles enumerated in M.G.L. Chapter 101, Section 17 and acts in amendment thereof or in addition thereto, until he or she has been assigned a number by the Division of Health Inspections, Inspectional Services Department and until he or she has recorded with said Division, his or her name and residence, and until a recent photograph of said applicant shall be presented to the Division of Health Inspections, Inspectional Services Department, to be attached to his or her license (said photograph to be a passport size—viz., 2 inch by 2 inch) and if he or she hawks or peddles articles which are sold by weight or measure, a certificate from the Sealer of Weights and Measures that all weights, measures and balances to be used by him or her have been properly inspected and sealed. The presence of unsealed weights or measures on the team, cart or person of such hawker or peddler shall terminate permission to hawk or peddle under such registration.

(B) No person shall hawk or peddle any fruits or vegetables until he or she has obtained a license therefor from the Division of Health Inspections, Inspectional Services Department, unless he or she is engaged in the pursuit of agriculture or unless such articles are the product of his or her own labor or of the labor of his or her family.

(C) The Division of Health Inspections, Inspectional Services Department is hereby authorized to grant licenses to hawk or peddle fruits and vegetables to persons 16 years of age or over who have complied with the foregoing requirements, such licenses to be for the term of one year from the date of issue.

(D) The foregoing provisions shall not apply to minors licensed by the Mayor and Boston City Council.

(CBC 1975 Ord. T14 § 269; CBC 1985 16-2.1; Ord. 1991 c. 5 § 20)

16-2.2 Crying of Wares.

No person hawking, peddling, selling or exposing for sale any articles shall cry his or her wares to the disturbance of the peace and comfort of the inhabitants of the city, or in the neighborhood of school houses or of places used for divine worship.

(CBC 1975 Ord. T14 § 270; CBC 1985 16-2.2)

16-2.3 Tobacco Products, Distribution in Public Places.

No person shall, except at full retail price, in or upon any part of the streets, parks, public grounds, public buildings and other public places within the city, distribute any product containing tobacco or non-tobacco cigarette products for any commercial purpose.

(Ord. 1984 c. 22; CBC 1985 16-2.3)

16-2.4 Vehicles and Receptacles.

No hawker or peddler shall carry or convey articles enumerated in M.G.L. Chapter 101, Section 17 and acts in amendment thereof or in addition thereto, in a manner tending to injure or disturb the public health or comfort, or except in vehicles or receptacles which are neat and clean and do not leak, and which have printed on them in letters and figures at least 2 inches in height the name of the person selling and the number given him or her by the Division of Health Inspections, Inspectional Services Department and which are approved monthly by the Division of Health Inspections, Inspectional Services Department.

(CBC 1975 Ord. T14 § 271; CBC 1985 16-2.4; Ord. 1991 c. 5 § 21)

16-2.5 Sale of Propelled Novelty Substances Prohibited.

No person shall in or about any part of the streets, parks, public grounds, public buildings or other public places sell or expose for sale any toy, amusement or novelty product fitted to propel, by compressed air or gas, any substance primarily intended for amusement or decoration, in the nature of "liquid string", so-called.

(CBC 1985 16-2.5; Ord. 1994 c. 12 § 1) Penalty, see Subsection 16-32.6

16-2.6 Improper Preparation of Food.

(A) In the city, manufacturing, preparing, handling, serving and/or distributing food from any vehicle and/or pushcart and/or by any hawker, peddler or like transient vendor, as defined in M.G.L. Chapter 101, without the use of sanitary gloves, shall be considered unsanitary or unhealthful conditions in accordance with M.G.L. Chapter 94, Section 305A.

(B) This Section shall apply only to "Ready to Eat Food" as defined in the commonwealth's Sanitary Code, 105 CMR 590.00.

(C) Sanitary gloves shall be used in the following manner: a new pair shall be worn for each transaction.

(CBC 1985 16-2.6; Ord. 2000 c. 1)

16-2.7 Hawkers, Peddlers Selling Goods, Wares or Merchandise.

No hawker or peddler may sell or barter or carry for sale or barter or expose therefor any goods, wares or merchandise, except as permitted in this chapter or by M.G.L. Chapter 101, Sections 14 and 17 and Acts in amendment thereof or in addition thereto.

(CBC 1985 16-2.7; Ord. 2008 c. 4) Penalty, see Subsection 16-32.6

16-3 RESERVED.

[Reserved]

(CBC 1975 Ord. T14 § 272; CBC 1985 16-3; Repealed by Ord. 1991 c. 5 § 22)

16-4 TAKING OF SHELLFISH.

16-4.1 Family Use and Commercial Permits.

(A) *Applications; qualifications.* There shall be granted by the Boston City Council "Family Use" Shellfish Permits and "Commercial Use" Shellfish Permits. A "Family Use" Shellfish Permit may be granted upon written application by any inhabitant of the commonwealth; but a "Commercial Use" Shellfish Permit shall be granted only upon written application by an inhabitant of the city who shall have been such for not less than one year next preceding the making of such application; provided, however, that, at such times as the Boston City Council shall deem the number of "Commercial Use" Shellfish Permits so granted to be insufficient for the proper working of the shellfish areas in the city, a "Commercial Use" Shellfish Permit may be granted upon the written application by any inhabitant of the commonwealth. No application for a "Family Use", or for a "Commercial Use" Shellfish Permit shall be denied except for good cause.

(B) *Conditions of permit.* Every "Family Use", and every "Commercial Use" Shellfish Permit, shall be upon the following conditions:

(1) The permit shall not be transferable;

(2) The permit shall expire in accordance with law and, prior to such expiration, may be terminated by revocation in accordance with law;

(3) The holder thereof shall at all times conform to all applicable statutes, ordinances, rules and regulations;

(4) The holder thereof shall not take shellfish from any area determined under M.G.L. Chapter 130, Section 74 to be contaminated except in accordance with a permit granted under M.G.L. Chapter 130, Section 75; and

(5) The holder thereof shall at no time during the period in any year beginning May 15 and ending September 15 take any shellfish from a beach area.

(C) *Revocation of permit; transferability.* Any "Family Use" or "Commercial Use" Shellfish Permit may, at any time, after due notice and hearing, be revoked by the Boston City Council for any breach of condition or other good cause. No "Family Use" or "Commercial Use" Shellfish Permit shall be transferable. All such permits, unless sooner revoked, shall be valid for the calendar year in which issued.

(D) *Area permitted.* Any inhabitant of the commonwealth holding a "Family Use" Shellfish Permit granted under division (A) above may take, for his or her own family use, shellfish from the following area in the city, to wit; the flatland coastal waters lying within the territorial limits of the city and easterly of a line drawn from Wind Mill Point in the Town of Hull to the southeasterly point of Deer Island and through Deer Island to Point Shirley, except the shores of Lovell's, Gallup's and George's Island; provided, however, that no shellfish shall be taken from said area of a size or at a season prohibited by law; and provided, further, that the amount taken for any family shall not exceed in any one week one bushel of any or all kinds of shellfish; and provided, further, that no shellfish shall be taken from so much of said area as shall, from time to time, be determined under M.G.L. Chapter 130, Section 74 to be contaminated except in accordance with a permit granted under M.G.L. Chapter 130, Section 75.

(E) *Commercial use prohibited area.* Except as otherwise provided in division (D) above, no person shall take any kind of shellfish within the city unless he or she holds a "Commercial Use" Shellfish Permit granted under division (A) above. No shellfish shall be taken for commercial purposes from the area described in division (D) above.

(F) *Permits referred to Clerk of Committees.* Every application for a permit under this Section shall be referred to the Clerk of Committees of the Boston City Council who shall cause the same to be placed upon the agenda of the Council meeting next following with a report recommending that a permit be granted, unless the Clerk believes that the application contains a false statement, or that concerns of the public good require another action be taken, in either of which event he or she shall make report to the Council together with his or her recommendations.

(CBC 1975 Ord. T14 § 273; Ord. 1979 c. 5; Ord. 1981 c. 16, s. 1; CBC 1985 16-4.1)

16-4A PROHIBITED ACTS IN WETLANDS; PERMITS.

No person shall, in or near a wetland, perform any act which requires a permit under the provisions of M.G.L. Chapter 131, Section 40 and regulations issued thereunder except pursuant to a permit issued by the Conservation Commission, which permit shall be prominently displayed at the site of said activity. In addition to those persons authorized to enforce this Subsection under Subsection 16-32.4, this Subsection shall be enforced by such persons as the Conservation Commission may designate.

(CBC 1985 16-4A; Ord. 1988 c. 15 § 2) Penalty, see Subsection 16-32.6

16-5 FIREARMS.

16-5.1 Firing of Cannons and Guns.

No person shall fire or discharge a cannon, gun, fowling-piece or firearm, within the limits of the city, except at a military exercise or review authorized by the military authority of the commonwealth or by the Boston City Council or Mayor of the city, or in the lawful defense of the person, family or property of a citizen; provided, however, that this prohibition shall not apply to persons engaged in target practice on a range or other premises licensed to be used for such purpose by the Boston City Council.

(CBC 1975 Ord. T14 § 274; CBC 1985 16-5.1)

16-5A REGULATING THE SALE AND MARKETING OF REPLICA FIREARMS IN THE CITY.

16-5A.1 Definitions.

For the purpose of this Section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

COMMISSIONER. The Commissioner of the Boston Police Department, or his or her designee.

DEPARTMENT. The Boston Police Department.

MARKET. To display for sale.

REPLICA FIREARM. Any toy, imitation or facsimile pistol, revolver, shotgun, rifle, air rifle, BB gun, pellet gun, machine gun or other similar simulated weapon which because of its color, size, shape or other characteristics, can reasonably be perceived to be a real firearm from which a shot or bullet can be fired and which, pursuant to Subsection 16-5A.4, has been determined to pose a threat to public safety.

SELL. To exchange or deliver.

(1) For money or its equivalent; or

(2) As a promotion or an inducement to buy.

(Ord. 1988 c. 1 § 1 [A]; CBC 1985 16-5A.1)

16-5A.2 Regulation.

Except as provided in Subsection 16-5A.3, no person or entity shall sell or market any replica firearm in the city.

(Ord. 1988 c. 1 § 1 [B]; CBC 1985 16-5A.2) Penalty, see Subsection 16-5A.4

16-5A.3 Exceptions.

Notwithstanding the foregoing, the sale of replica firearms shall be permitted if the sale of such replica firearms is solely for purposes of or for transportation in intrastate, interstate or foreign commerce.

(CBC 1985 16-5A.3; Ord. 1988 c. 1 § 1 [C])

16-5A.4 Enforcement.

(A) The Commissioner shall identify those replica firearms which he or she deems to pose a threat to public safety and shall make a list thereof. Such list shall include, where available, the following information: the product name, the manufacturer and the model number. The Commissioner shall post the list in the Department and shall make available copies thereof to the general public. The Commissioner shall update the list, from time to time, as he or she deems warranted. Any individual may provide information to the Commissioner regarding replica firearms to be added to the list.

(B) Any person who observes the sale or marketing of a replica firearm which he or she believes to be a violation of this Section may register a written or oral complaint with the Department. A Boston Police Officer, in response to each complaint, shall investigate the complaint forthwith in person and determine whether there is such a violation.

(C) Any Boston Police Officer who observes the sale or marketing of a replica firearm which he or she believes to be a violation of this Section shall investigate forthwith and determine whether there is such a violation.

(D) (1) If a Boston Police Officer determines that there is a violation of this Section, he or she shall order the individual or entity to remove immediately from sale or marketing all the replica firearms found to be in violation. In addition, the Department shall impose the following penalties on the individual or entity violating the Section:

(a) A written citation or warning for the first violation;

(b) A $100 fine for the second violation; and

(c) A $200 fine for the second and any subsequent violations.

(2) For purposes of penalties to be imposed under this Section, if a Boston Police Officer determines that a sale or marketing of replica firearms has occurred, that determination shall constitute one violation, regardless of the number of replica firearms involved. A Boston Police Officer shall return, unannounced, to the site of the violation within the 30-day period following the determination of a violation to ensure that the individual or entity has not resumed the sale or marketing of replica firearms.

(CBC 1985 16-5A.4; Ord. 1988 c. 1 § 1 [D])

16-5A.5 Appeal Procedure.

Any individual who is aggrieved by an action taken by a Boston Police Officer under this Section may, within ten days of such action, file an appeal, in writing, to the Commissioner. After notice to such individual, the Commissioner shall hold a hearing, after which he or she shall issue a decision in which he or she affirms, annuls or modifies an action taken by a Boston Police Officer, giving his or her reasons therefor. The Commissioner shall send the decision to the individual by first class mail within ten days after the hearing. The decision shall be a final administrative decision. The individual shall have 30 days from the date of the written decision to seek judicial review in the Suffolk County Superior Court.

(CBC 1985 16-5A.5; Ord. 1988 c. 1 § 1 [E])

16-5A.6 Effective Date.

This Section shall take effect 30 days after enactment.

(CBC 1985 16-5A.6; Ord. 1988 c. 1 § 2)

Editor's note:

This Section was enacted on April 15, 1988.

16-5B REGULATING REPLICA FIREARMS IN THE CITY.

16-5B.1 Definition.

For the purpose of this Section, the following definition shall apply unless the context clearly indicates or requires a different meaning.

REPLICA FIREARM. Any toy, imitation, facsimile or replica pistol, revolver, shotgun, rifle, air rifle, B-B gun, pellet gun, machine gun or other similar simulated weapon which, because of its color, size, shape or other characteristics, can reasonably be perceived to be a real firearm capable of firing a bullet or other projectile.

(CBC 1985 16-5B.1; Ord. 2015 c. 10 § 1)

16-5B.2 Regulation.

No person shall sell, offer to sell, possess, use, display or give away, any replica firearm on a public property unless:

(A) The entire exterior surface of the imitation firearm is colored white, bright red, bright orange, bright yellow, bright blue, bright pink or bright purple, either singly or as the predominant color in combination with other colors in any pattern;

(B) The imitation firearm is constructed entirely of transparent or translucent materials which permits unmistakable observation of the imitation firearm's complete contents;

(C) The barrel of the imitation firearm, other than the barrel of a water gun, is closed with a blase orange plug, permanently affixed, of the same material of which the imitation firearm is made, for a distance of not less than ½ inch from the front end of said barrel;

(D) The imitation firearm had legibly stamped thereon, the name of the manufacturer or some trade name, mark or brand by which the manufacturer can be readily identified; and

(E) The imitation firearm does not have a laser pointer attached.

(CBC 1985 16-5B.2; Ord. 2015 c. 10 § 1)

16-5B.3 Enforcement.

(A) If any individual under 18 years of age is found with a replica firearm by a member of the Boston Police Department, the Officer shall contact his or her parent or guardian to inform them that the individual has been found with a replica firearm on public property. Parents or guardians shall be informed that they will be able to pick up the replica firearms at the district station after 24 hours. The Officer shall confiscate the replica firearm and bring it to the district station for holding.

(B) If the individual is over 18 years of age, the Officer shall confiscate the replica firearm(s) and inform the individual that they can pick the item(s) up at the district station after 24 hours.

(CBC 1985 16-5B.3; Ord. 2015 c. 10 § 1)

16-5B.4 Penalties.

Any individual found in violation of any provision of this Section in a second or subsequent instance shall forfeit the weapon, contraband or dangerous device giving rise to the violation of such Section and be subject to a fine of $50.

(CBC 1985 16-5B.4; Ord. 2015 c. 10 § 1)

16-6 BONFIRES.

16-6.1 Permits Required.

No person shall make a bonfire or other fire in the open air on any wharf or street within the city, except in accordance with a permit from the Fire Commissioner.

(CBC 1975 Ord. T14 § 275 CBC 1985 16-6.1)

16-7 BRICK-KILNS.

16-7.1 Permits Required.

No person shall erect, make or fire, or cause to be erected, made or fired, within the city, a brick-kiln or lime-kiln, except in accordance with a permit from the Fire Commissioner.

(CBC 1975 Ord. T14 § 276; CBC 1985 16-7.1)

16-8 INFLAMMABLE ARTICLES.

16-8.1 Defined; Age and Marking Requirements.

No article fabricated from cellulose nitrate or other similarly inflammable substance shall be sold to any person under age 16 nor shall any such article be sold to any person over said age unless conspicuously marked with the words “HIGHLY INFLAMMABLE - KEEP AWAY FROM FLAME” in letters of boldface type not less than inch in height.

(CBC 1975 Ord. T14 § 277; CBC 1985 16-8.1) Penalty, see Subsection 16-32.6

16-8.2 Sale of Certain Paints and Markers.

No person shall within the city sell, display, expose or keep for sale any aerosol spray paint can, nor any marker containing a fluid which is not water-soluble and which has a point, brush, applicator or other writing surface in excess of ½ inch, unless at the point of display or sale there is posted a sign with letters not less than 1½ inches in height bearing the following words: “SALE OF SPRAY PAINT AND BROAD INDELIBLE MARKERS TO PERSONS UNDER EIGHTEEN AND THE UNLAWFUL PURCHASE OR POSSESSION OF PAINTS AND SUCH MARKERS BY PERSONS UNDER EIGHTEEN IS PUNISHABLE BY A THREE HUNDRED DOLLAR FINE”, nor shall any person sell or deliver any aerosol spray paint, nor any marker containing a fluid which is not water-soluble and which has a point, brush, applicator or other writing surface in excess of ½ inch to any person under 18 years of age or to any person of whatever age who refuses to submit for inspection if requested a driver’s license, liquor purchase identification or other identification to establish the age of such person, nor shall any person being under the age of 18 purchase, conceal or remove from the premises such items; providing that nothing herein shall prevent the parent, guardian, employer or teacher of such a minor person from delivering such items to a minor intending the same to be lawfully used.

(CBC 1985 16-8.2; Ord. 1986 c. 10 § 2; Ord. 1994 c. 14 § 1)

16-8.3 Display of Certain Paints and Markers.

(A) Every person who owns, conducts, operates or manages a retail commercial establishment selling aerosol spray paint or any marker containing a fluid which is not water-soluble and which has a point, brush, applicator or other writing surface in excess of ½ inch shall store or cause such aerosol spray paint or markers to be stored in an area continuously observable by employees of said retail commercial establishment during the regular course of business.

(B) In the event a commercial retail establishment is unable to store such aerosol spray paint or markers in an area as provided in this Section, as an alternative such aerosol spray paint or markers, shall be stored in an area not accessible to the public in the regular course of business without employee assistance, pending the lawful sale or disposition of such aerosol spray paint or markers.

(CBC 1985 16-8.3; Ord. 1994 c. 14 § 3)

16-8.4 Prohibiting Defacement of Property, and Possession of Certain Items.

(A) No person shall, in or upon any public way, street, alley, park, playground, school, public building, public structure, wall, fence, post, sign, rock, monument, gravestone, tablet, public motor vehicle or other public place or property within the city nor in or upon any private estate within the city, without the permission of the owner or person in charge thereof having first been obtained, nor in any way or manner otherwise prohibited paint, mark, scratch, etch, inscribe, injure, mar, destroy, tag, affix/apply a sticker to or in any way deface such place or property. No person under 18 years of age, without such permission, shall carry or use:

(1) Paint of any type; or

(2) A non-water-soluble marker with a point, brush or applicator with a width exceeding ½ inch.

(B) Each and every painting, mark, scratch, etching, inscription, injury, mar, destruction, tag, sticker or defacement shall be considered a separate and distinct violation of this Section. Each and every violation of this Section shall be punished by a fine in the amount of $300.

(CBC 1975 Ord. T14 § 258; CBC 1985 16-8.5; Ord. 1986 c. 10 § 1; Recodified by Ord. 1991 c. 5 § 10; Ord. 1994 c. 14 § 2; Ord. 2007 c. 2 §§ 1, 2)

16-8.5 Graffiti Removal.

(A) *Purpose.* These Sections require property owners to remove graffiti from their property within 30 days of knowledge of the graffiti. The city currently provides a “Graffiti Busters” Program wherein the city, at its expense, removes graffiti from public places and privately owned properties upon written request. In order to afford some property owners an opportunity to share the costs associated with the remediation of this form of vandalism, a property owner may substitute participation in the Graffiti Busters Program for his or her removal of local graffiti in order to satisfy the requirements of this Section. This Section does not seek to punish victims of graffiti; instead, it seeks to remove the blight of tagging from the city and encourages victims of graffiti to use the city’s Graffiti Busters Program.

(B) *Definitions.* For the purpose of this Section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

CITY. The City of Boston.

GRAFFITI. The intentional painting, marking, scratching, coloring, tagging or other defacement of any public or private property without the prior written consent of the owner.

GRAFFITI BUSTERS. An initiative of the Property Management Department of the city to remove graffiti.

OWNER. Any person who owns, manages or controls any land, structure, fixture or personal property (including, but not limited to, dumpsters).

PERSON. Any individual, business or entity.

(C) *Removal of graffiti.* Each and every owner shall remove graffiti from real and personal property within 30 calendar days of the time the owner knows or reasonably should have known, either directly or through an owner’s agent, of the presence of graffiti.

(D) *Substitution and exemption.*

(1) The city currently provides a Graffiti Busters program wherein the city, at its expense, removes graffiti from public spaces and from privately owned properties upon request. An owner may satisfy the owner’s requirements under this Section through participation in Graffiti Busters; provided that the owner satisfies all of the requirements of the program.

(2) An owner may be exempt from the requirement to remove graffiti under this Section upon demonstration that:

(a) Graffiti Busters is no longer in operation; and

(b) The owner lacks the financial capacity to remove the graffiti.

(E) *Enforcement and penalties.* The Inspectional Services Department, the Public Works Department and the Boston Police Department shall have the authority to enforce the provisions of this Subsection. Unless otherwise specified in these Sections, a violation of this Subsection may be subject to a fine of $100 for the first offense and $200 for any second and/or subsequent offense. The provisions of M.G.L. Chapter 40, Section 21D may be used to enforce this Section.

(F) *Applicability.* If any provision of this Section imposes greater restrictions or obligations than those imposed by any other general law, special law, regulation, rule, ordinance, order or policy then the provisions of this Section shall control.

(G) *Regulatory authority.* The Boston Police Department, the Property Management Department and the Inspectional Services Department shall have the authority to promulgate rules and regulations necessary to implement and enforce this Section.

(H) *Severability.* If any provision of this Section shall be held to be invalid by a court of competent jurisdiction, then such provision shall be considered separately and apart from the remaining provisions, which shall remain in full force and effect.

(I) *Implementation.* The provisions of this Section shall be effective immediately upon passage and all provisions shall be enforced immediately but no monetary fine shall be imposed pursuant hereto until 30 days after passage.

(CBC 1985 16-8.5; Ord. 2005 c. 8; Ord. 2014 c. 1 § 2)

16-9 OBSTRUCTION OF FIRE FIGHTERS AND FIRE APPARATUS.

16-9.1 Interference Forbidden.

No person shall obstruct any member of the Fire Department in the discharge of his or her duties, or willfully interfere with any engine or other apparatus used by members of the Fire Department in the discharge of their duties.

(CBC 1975; Ord. T14 § 278; CBC 1985 16-9.1) Penalty, see Subsection 16-32.1

16-10 THE MARKET LIMITS.

16-10.1 Reserved.

[Reserved]

(CBC Ord. 1975 Ord. T14 §§ 279; CBC 1985 16-10.1; Repealed by Ord. 1991 c. 5 § 23; further repealed by Ord. 1992 c. 7 § 4)

16-10.2 Obstruction to Travel.

No person shall, within any market limits, so occupy or obstruct any sidewalk as not to leave a clear and direct passage for travellers thereon; or so place or stop any vehicle abreast of, or near to, any other vehicle as not to leave a clear and direct passage for vehicles.

(CBC 1975 Ord. T14 § 280; CBC 1985 16-10.2; Ord. 1991 c. 5 § 23; Ord. 1992 c. 7 § 4)

16-10.3 Sunday Regulations.

No person shall, within any market limits, permit any box, cask or other receptacle, or any vehicle, or any horse or other beast, to remain in a street or sidewalk on the Lord’s day, except in the evening and in a place assigned by the Superintendent of Markets or his or her deputies.

(CBC 1975 Ord. T14 § 281; CBC 1985 16-10.3; Ord. 1991 c. 5 § 23; Ord. 1992 c. 7 § 4)

16-10.4 Disorderly Conduct.

No person shall, within any market limits, play any game, lie down, sleep or behave in a noisy, disorderly or riotous manner, or scuffle, or throw any missile or thing whatsoever.

(CBC 1975 Ord. T14 § 282; CBC 1985 16-10.4; Ord. 1991 c. 5 § 23; Ord. 1992 c. 7 § 4)

16-10.5 Compliance with Directions.

No person shall, within any market limits, neglect or refuse to obey or comply with any reasonable direction of the Superintendent of Markets, or his or her deputies, or any Police Officer.

(CBC 1975 Ord. T14 § 283; CBC 1985 16-10.5; Ord. 1991 c. 5 § 23; Ord. 1992 c. 7 § 4)

16-11 FANEUIL HALL MARKET LIMITS.

16-11.1 Place and Hours of Sale.

No person shall, within the Faneuil Hall Market limits, sell or expose for sale goods, wares or merchandise in any place other than that assigned by the Superintendent of Markets, or his or her deputies, and except during the hours for keeping open the market prescribed by the Superintendent of Markets.

(CBC 1975 Ord. T14 § 284; CBC 1985 16-11.1)

16-12 USE OF STREETS.

16-12.1 Reserved

[Reserved]

(CBC 1975 Ord. T14 § 285; CBC 1985 16-12.1; Repealed by Ord. 1991 c. 5 § 26)

16-12.2 Loitering.

No person shall saunter or loiter in a street in such a manner as to obstruct or endanger travellers or in a manner likely to cause a breach of the peace or incite to riot; but nothing in this Section shall be construed to curtail, abridge or limit the right or opportunity of any person to exercise the right of peaceful persuasion guaranteed by M.G.L. Chapter 149, Section 24 or to curtail, abridge or limit the intendment of any statute of the commonwealth.

(CBC 1975 Ord. T14 § 286; CBC 1985 16-12.2)

16-12.2A Display of Permits.

Every person occupying any property owned by, or in control of, the city, or any Officer, Board or Agency thereof, for any purpose requiring a license or permit issued by the city shall have any and all such valid licenses and permits posted and clearly visible at all times during such occupancy. Within 24 hours following the expiration of such occupancy, the license or permit holder shall remove the license or permit from its posting.

(CBC 1985 16-12.2A; Ord. 1986 c. 8 § 1; Ord. 1988 c. 15 § 8; Ord. 2016 c. 21 § 2) Penalty, see Subsection 16-32.6

16-12.3 Advertising.

(A) *Distribution of advertising and vehicles.* Except in accordance with a permit from the Commissioner of Public Works no person shall, for the purpose of advertising goods, wards or merchandise for sale, while on foot in any street, distribute to persons in any street any handbills, cards, circulars or papers other than newspapers, nor shall any person having the control of any vehicle used principally for advertising permit such vehicle to operate in any street north and east of Massachusetts Avenue. The Commissioner of Public Works shall establish, with respect to such advertising matter, such uniform rules governing the size of showcards, placards, handbills, cards, circulars and papers other than newspapers which may be distributed in the street as shall be reasonably necessary to prevent littering or other hazard to public safety. Each permit issued hereunder shall contain a copy of the rules relating thereto and shall be limited by its terms to the authorization of conduct permitted thereby and otherwise legal. No permit shall be required nor shall this Section operate to affect, interfere with or in any way abridge the right of persons on the street to carry or distribute non-commercial handbills, cards, circulars or papers other than newspapers.

(B) *Free-standing signs.* No business establishment shall, for the purpose of advertising their own goods, wares, services or merchandise for sale, display any free-standing sign on the public walkway located outside the business unless the free-standing sign is in compliance with the following requirements:

(1) Commonwealth Architectural Access Board Regulations to ensure accessibility and prevent interference with public travel;

(2) The sign does not exceed 24 inches by 36 inches in dimension;

(3) The sign is not adhered or attached to any structures or fixtures;

(4) The sign is constructed of weather resistant material;

(5) The sign is maintained in good condition;

(6) The sign is placed on the public walkway only during the hours of operation of the related business;

(7) The sign identifies the name, address and telephone number of the business establishment and owner of the sign, if different;

(8) The sign displays content limited to the business establishment's goods, wares, services or merchandise for sale at the location of the sign; and

(9) The sign does not display advertisement of alcohol or tobacco products.

(C) *Penalties.* The Commissioner of Public Works shall be authorized to remove any free-standing signs not in compliance with Boston Code 16-12.3(b).

(D) *Effective.* This Section shall be effective upon passage in order to establish a Pilot Program relating to free-standing signs. The provisions of divisions (B) and (C) above shall expire one year after passage.

(CBC 1975 Ord. T14 § 287; CBC 1985 16-12.3; Ord. 2015 c. 11; Ord. 2016 c. 17 § 1; Ord. 2018 c. 2)

16-12.4 Merchandise to and from Second Story.

No person shall, except in accordance with a permit from the Commissioner of Public Works, raise into or lower from, the second or any higher story of a building, over any portion of a street, any article of merchandise.

(CBC 1975 Ord. T14 § 288; CBC 1985 16-12.4)

16-12.5 Sprinkling Ashes and the Like on Streets; Removal of Manure.

No person shall, except in accordance with a permit from the Commissioner of Public Works, or as provided in Subsection 16-2.16, sprinkle, scatter, put or place any ashes, cinders, earth, dirt, gravel, sawdust, salt or mixture of salt, in or upon a street, or without such permit remove any manure or dirt from any street.

(CBC 1975 Ord. T14 § 289; CBC 1985 16-12.5) Penalty, see Subsection 16-32.6

16-12.6 Reserved.

[Reserved]

(CBC 1975 Ord. T14 § 290; CBC 1985 16-12.6; Repealed by Ord. 1991 c. 5 § 27) Penalty, see Subsection 16-32.6

16-12.7 Reserved.

[Reserved]

(CBC 1975 Ord. T14 § 291; CBC 1985 16-12.7; Ord. 1979 c. 34; Recodified by Ord. 1991 c. 5 § 24) Penalty, see Subsection 16-32.6

16-12.8 Littering.

No person shall, in or upon any way, street, alley or other public place within the city, nor in or upon any estate within the city, whether such person is in or upon a vehicle or on foot, deposit, drop or throw, and suffer to remain there, any filth, rubbish, litter so-called or any other substance, without the permission of the owner or person in charge thereof, nor in any way or manner otherwise prohibited.

(CBC 1975 Ord. T14 § 292; CBC 1985 16-12.8; Ord. 1986 c. 1 § 1) Penalty, see Subsection 16-32.1, 16-32.6

16-12.8A Implementation and Maintenance of a System to Retain all Shopping Carts within a Business Establishment.

16-12.8A.1 Purpose.

These Sections require business establishments utilizing shopping carts or similar devices and having more than 20 shopping carts on-site to install and maintain a system to retain the shopping carts within the property boundaries of the business establishment. The Commissioner of the Inspectional Services Department, in accordance with the powers and duties delineated in Subsection 9-9.1, is authorized to implement and enforce these Sections, and the Commissioner of the Public Works Department, in accordance with the powers and duties delineated in Subsection 11-6.1, is authorized to implement and enforce these Sections.

(CBC 1985 16-12.8A.1; Ord. 2003 c. 24)

16-12.8A.2 Definitions.

For the purpose of this Section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

BUSINESS ESTABLISHMENT. Includes, but is not limited to, a grocery store, supermarket, drugstore, pharmacy, dry goods store, department store, discount store, variety store or other retail establishment which supplies 20 or more shopping carts for the use of its customers.

COMMISSIONER OF INSPECTIONAL SERVICES. The Commissioner of the Inspectional Services Department, or his or her designee or Agent.

COMMISSIONER OF PUBLIC WORKS. The Commissioner of the Public Works Department or his or her designee or Agent.

ISD. The Inspectional Services Department or its successor.

OWNER. The owner of a business establishment if it is owner-operated or the manager of a business establishment if it is not owner-operated.

PARKING LOT. Any parcel of land owned, leased or otherwise under the direction and control of the owner and used for parking motor vehicles related

to the daily operations of the business establishment and shall include the areas of ingress and egress.

PERMANENT IDENTITY TAG. A tag, label, plate or other form of identification that is affixed to a shopping cart and is designed to be removed/removable only by the business establishment. The ***PERMANENT IDENTITY TAG*** shall state the name of the business establishment, the address of the business establishment and the telephone number of the business establishment. The name, address and telephone number on the ***PERMANENT IDENTITY TAG*** shall be of the neighborhood business establishment rather than a state, regional or national headquarters, except that business establishments using a total of more than 350 shopping carts at more than two locations within the city may place a central telephone number on the permanent identity tag as long as that telephone number is within the 617 area code.

PWD. The Public Works Department or its successor.

SHOPPING CART or ***CART.*** Includes, but is not limited to, that type of mobile vehicle used for transportation and portage by human propulsion of goods or merchandise in and about markets, stores, shops, shopping centers, malls and other business establishments.

(CBC 1985 16-12.8A.2; Ord. 2003 c. 24)

16-12.8A.3 On-Site Retention.

(A) Each and every shopping cart utilized by a business establishment shall have affixed thereto a permanent identity tag. A first violation of this Section shall be subject to a warning, and each subsequent violation of this Section shall be subject to a fine of $20. Each cart not in compliance with this Subsection shall be considered a separate violation.

(B) Each and every business establishments shall implement and maintain a system to retain all shopping carts within the property boundaries of the business establishment including its parking lot. The business establishment shall provide signage in a conspicuous location on the premises which clearly notifies shopping cart users of the specific retention system in place and how the retention system operates.

(C) Each method included in this Subsection shall be considered to be an example of an on-site retention method complying with these Sections. If the business establishment has a method for retention that is not delineated as an example herein, then an owner may submit a plan to the Commissioner of Inspectional Services that satisfies the intent of these Sections to retain shopping carts on the premises of the business establishment and/or its parking lot or to ensure the immediate retrieval of shopping carts outside of the business establishment and/or its parking lot; no plan submitted by an owner to the Commissioner of Inspectional Services shall be valid until approved in writing by the Commissioner of Inspectional Services. Examples of methods and/or plans are as follows:

(1) A physical barrier, such as bollards, restricting shopping carts to a portion of the exterior of the business establishment, but physical barriers shall not interfere with fire lanes, handicap access or similar building features;

(2) A protruding vertical arm, or other similar or similarly-functioning device, attached to the cart which prevents the cart from being removed from the interior of the business establishment;

(3) A system, which may be mechanical in nature, requiring the cart user to remit collateral, including, but not limited to, a returnable monetary deposit to use a shopping cart; the collateral shall be reasonable in scope and shall not unreasonably deter the use of the cart but instead encourages the user’s return of the cart; the collateral shall be returned to the user upon the user’s return of the cart;

(4) A wheel-locking mechanism installed on the cart that is commonly used in conjunction with an electronic barrier along the perimeter of a business establishment and which mechanism is activated upon the cart’s approach or passing through the electronic barrier;

(5) An attendant or attendants whose sole responsibility is to manage and/or return the business establishment’s shopping carts from the exterior premises of the business establishment and areas immediately adjacent thereto to the interior premises of the business establishment or another exterior area of the business establishment dedicated to the containment of shopping carts; and

(6) Other similar methods or plans submitted by an owner for the approval of the Commissioner of Inspectional Services which would satisfy the intent of these Sections to retain shopping carts on the premises of the business establishment and/or its parking lot or to ensure the immediate retrieval of shopping carts outside of the business establishment and/or its parking lot.

(D) No business establishment shall allow shopping carts to congregate or “stack up” in such a manner as to impede ingress to or egress from the business establishment or any public or private way adjacent to the business establishment.

(E) Prior to the close of each business day, every business establishment shall collect and secure its shopping carts on its premises, including its parking lot. This action shall be commenced no sooner than 15 minutes prior to the close of each business day.

(CBC 1985 16-8A.3; Ord. 2003 c. 24)

16-12.8A.4 Removal of Shopping Carts.

(A) Any unattended shopping cart found outside the perimeter of a business establishment or its parking lot may be removed and impounded by the Department of Public Works, the Inspectional Services Department or an Agent thereof. The enforcement personnel removing the cart shall make a written report that identifies himself or herself as well as the date, time and location of the cart at the time of the removal; this report may take the form of a tag attached to the cart; a copy of the report shall be immediately forwarded to the Commissioner of Inspectional Services.

(B) Within a reasonable time but not more than three business days after removal, the Commissioner of Inspectional Services shall notify the owner of the removed cart using the information provided on the permanent identity tag attached pursuant to Subsection16-12.8A.3(A). If the cart does not have a permanent identity tag, then the Commissioner of Inspectional Services may attempt to notify the owner of the removed cart if the identity of the owner is known or reasonably discernible. Any notification of removed and impounded shopping carts shall be made in writing and shall include the date of removal, the location of removal and the process for the owner’s retrieval of the cart.

(C) Any cart that does not have the permanent identity tag attached pursuant to Subsection 16-12.8A.3(A) and which is removed pursuant to these Sections is deemed to be abandoned property and the Commissioner of Inspectional Services may sell any such cart at public auction and the proceeds shall inure to the city, or destroy or otherwise dispose of any such cart.

(D) No person shall remove a shopping cart from a business establishment without the express written authorization of the business establishment. Any person that removes a shopping cart from a business establishment without the express written authorization of the business establishment, although subject to the criminal penalties in M.G.L. Chapter 266, Section 30A, shall also be subject to a civil fine in the amount of $50. The Boston Police Department shall have non-exclusive authority to enforce this Subsection.

(CBC 1985 16-12.8A.4; Ord. 2003 c. 24)

16-12.8A.5 Retrieval of Shopping Carts.

16-12.8A.5 Retrieval of Shopping Carts.

(A) An owner or an owner's agent may retrieve a shopping cart removed pursuant to Subsection 16-12.8A.4 by appearing during normal business hours at the location in the notice required under Subsection 16-12.8A.4 and by paying:

(1) A fee for the removal of the carts in the amount of $20 for each of the first three carts and $40 for each additional cart thereafter; and

(2) A fee for the storage of the cart(s) in the amount of $5 per cart per day.

(B) The obligation of the Commissioner of Inspectional Services to release a shopping cart continues only as follows:

(1) If no hearing in accordance with Subsection 16-12.8A.7 has been timely and properly requested and the cart has not been retrieved, then the obligation of the Commissioner of Inspectional Services extends only 30 calendar days after notice of removal has been mailed; and

(2) If a hearing in accordance with Subsection 16-12.8A.7 has been timely and properly requested, then the obligation of the Commissioner of Inspectional Services extends only 15 calendar days after a notice of decision of the Commissioner of Inspectional Services has been made in accordance with Subsection 16-12.8A.7.

(C) Any shopping cart that has not been retrieved by an owner within the time periods contained in this Section shall be deemed to be permanently abandoned, and the Commissioner of Inspectional Services may, in said Commissioner's sole discretion:

(1) Continue to release such carts to the owner in accordance with Subsection 16-12.8A.5(A);

(2) Sell such carts at public auction and the proceeds shall inure to the city; or

(3) Destroy or otherwise dispose of such carts.

(D) An owner that does not retrieve a cart and that has not petitioned for a hearing may be subject to additional fines and/or fees which may include a fee to dispose of the cart of $40.

(CBC 1985 16-12.8A.5; Ord. 2003 c. 24)

16-12.8A.6 Fines.

Unless otherwise specified in these Sections, a violation of Subsection 16-12.8A shall be subject to the issuance of a warning for a first offense, a fine of $25 for a second offense and a fine of $50 for any third or subsequent offense. Any fines and/or fees that remain unpaid by an owner for more than 12 months may become liens against the real estate of the business establishment. The provisions of M.G.L. Chapter 40, Section 21D may be used to enforce these Sections.

(CBC 1985 16-12.8A.6; Ord. 2003 c. 24)

16-12.8A.7 Appeal.

(A) An owner who has incurred a shopping cart-related warning and/or fee under these Sections may obtain a hearing regarding the propriety of the warning and/or fee by making a written petition to the Commissioner of Inspectional Services for a hearing within 15 calendar days of receipt of the notice of removal pursuant to Subsection 16-12.8A.4(B). The Commissioner of Inspectional Services shall provide written notice to the owner of the date, time and location of the hearing, and the hearing shall be held within 30 calendar days from the date of the hearing request.

(B) The Commissioner of Inspectional Services shall act as the Hearing Officer and the decision resulting therefrom shall be final and subject only to judicial review under M.G.L. Chapter 30A, Section 14.

(C) The Commissioner of Inspectional Services shall notify the owner of the decision in writing within 30 calendar days of the hearing.

(D) Proceedings for review of the decision of the Commissioner of Inspectional Services may be instituted in any court of competent jurisdiction within the commonwealth within 30 calendar days of the date of the notice of decision of said Commissioner. The commencement of an action shall not operate as a stay of enforcement of said Commissioner's decision, but the Commissioner of Inspectional Services, at his or her discretion, may stay enforcement; the reviewing court may order a stay upon such terms as it considers proper as prescribed by M.G.L. Chapter 30A, Section 14.

(CBC 1985 16-12.8A.7; Ord. 2003 c. 24)

16-12.8A.8 Permits.

The Commissioner of Inspectional Services and the Commissioner of Public Works may withhold the issuance of any permit if the applicant therefor is an owner, or is acting on behalf of an owner, of a business establishment that has an uncorrected violation and/or amounts due for an unpaid fine or an unpaid fee.

(CBC 1985 16-12.8A.8; Ord. 2003 c. 24)

16-12.8A.9 Stolen Property.

In their efforts to enforce the provisions of these Sections, nothing in these Sections shall be construed to prohibit, encumber or impede PWD or ISD from reporting a discovery of stolen property to the Boston Police Department.

(CBC 1985 16-12.8A.9; Ord. 2003 c. 24)

16-12.8A.10 Regulatory Authority.

The Commissioner of Inspectional Services and/or the Commissioner of Public Works shall have the authority to promulgate rules and regulations necessary to implement and enforce these Sections.

(CBC 1985 16-12.8A.10; Ord. 2003 c. 24)

16-12.8A.11 Effective Date

16-12.8A.11 Effective Date.

The provisions of these Sections shall be effective immediately, but enforcement of fines, fees and/or other penalties shall not be authorized until July 31, 2004.

(CBC 1985 16-12.8A.11; Ord. 2003 c. 24)

16-12.8A.12 Severability.

If any provision of these Sections shall be held to be invalid by a court of competent jurisdiction, then such provision shall be considered separately and apart from the remaining provisions, which shall remain in full force and effect.

(CBC 1985 16-12.8A.12; Ord. 2003 c. 24)

16-12.9 Litter from Vehicles.

No driver of any vehicle upon any public way, public alley or other public place under the charge of the Commissioner of Public Works shall permit to drop or fall from such vehicle onto such way, alley or place or any roadway or walk thereof, and suffer to remain there, any substance except in the maintenance or repair of such way, alley or place.

(CBC 1985 16-12.9; CBC 1975 Ord. T14 § 293) Penalty, see Subsection 16-32.1, 16-32.6

16-12.10 Reserved.

[Reserved]

(Ord. 1975 c. 2; CBC 1975 Ord. T14 § 294; CBC 1985 16-12.10; Recodified in Chapter XXIII by Ord. 1991 c. 5 § 28)

Penalty, see Subsection 16-32.1, 16-32.6

16-12.11 Reserved.

[Reserved]

(CBC 1975 Ord. T14 § 295; CBC 1985 16-12.11; Recodified in Chapter XXIII by Ord. 1991 c. 5 § 28) Penalty, see Subsection 16-32.1, 16-32.6

16-12.12 Reserved.

[Reserved]

(CBC 1975 Ord. T14 § 296; CBC 1985 16-12.12; Recodified in Chapter XXIII by Ord. 1991 c. 5 § 28) Penalty, see Subsection 16-32.1, 16-32.6

16-12.13 Reserved.

[Reserved]

(CBC 1975 Ord. T14 § 297; Ord. 1985 c. 7; CBC 1985 16-12.13; Recodified in Chapter XXIII by Ord. 1991 c. 5 § 28) Penalty, see Subsection 16-32.1, 16-23.6

16-12.14 Use of Propelled Novelty Substances Prohibited.

No person shall in or about any part of the streets, parks, public grounds, public buildings or other public places discharge without permission of every person who would be struck, or the owners of property which would be struck, as the case may be, as result of such discharge any toy, amusement or novelty product fitted to propel, by compressed air or gas, any substance primarily intended for amusement or decoration, in the nature of “liquid string”, so-called.

(CBC 1985 16-12.14; Ord. 1994 c. 12 § 2) Penalty, see Subsection 16-32.6

16-12.15 Throwing or Shooting on Streets.

No person shall, in any street, play ball, throw stones, snow balls or other missiles, or shoot with or use a bow and arrow or sling.

(CBC 1975 Ord. T14 § 299; CBC 1985 16-12.15) Penalty, see Subsection 16-23.6

16-12.16 Snow, Slush and Ice on Sidewalks and Curb Ramps.

(A) *Requirements for snow and/or slush.* No owner, manager or tenant, if expressly required to remove snow under a written lease and rental agreement, of a building, estate or land abutting on a sidewalk shall place or suffer to remain in place for more than three hours after snow fall has ended between sunrise and sunset any slush or any loose, granular or packed snow upon such sidewalk. Removal of any slush or snow should be conducted along the full paved width of such sidewalk and in a manner that ensures the orderly flow and safety of pedestrian traffic upon such sidewalks. Removal of any slush or snow shall be conducted in a manner that clears a path of a minimum of 42 inches wide. Each day that a violation exists shall be considered a separate and distinct violation.

(B) *Requirements for ice.* No owner, manager or tenant, if expressly required to remove ice under a written lease or rental agreement, of a building, estate or land abutting on a sidewalk shall place or suffer to remain in place for more than three hours after snow fall has ended between sunrise and sunset any ice upon such sidewalk. Removal of any ice shall be in a manner consistent with the requirements of division (A) above, except that any such

owner, manager or tenant shall be deemed to be in compliance with this division (B) if such ice is made level and completely covered with sand, sawdust or other similar material. Each day that a violation exists shall be considered a separate and distinct violation.

(C) *Requirements for snow and/or slush on curb ramps.* No owner, manager or tenant, if expressly required to remove snow and/or slush under a written lease or rental agreement, of a building, estate or land abutting on one or more curb ramps shall place or suffer to remain in place for more than three hours after snow fall has ended between sunrise and sunset any slush or any loose, granular or packed snow upon such curb ramp(s). Removal of any slush or snow should be conducted along the full paved width of such curb ramp(s) and in a manner that ensures the orderly flow and safety of pedestrian traffic upon such curb ramp(s). Removal of any slush or snow shall be conducted in a manner that clears a path of a minimum of 42 inches wide from the sidewalk to the street. Each day that a violation exists shall be considered a separate and distinct violation.

(D) *Requirements for ice on curb ramps.* No owner, manager or tenant, if expressly required to remove ice under a written lease or rental agreement, of a building, estate or land abutting on one or more curb ramps shall place or suffer to remain in place for more than three hours after snow fall has ended between sunrise and sunset any ice upon such curb ramp(s). Removal of any ice shall be in a manner consistent with the requirements of division (A) above, except that any such owner, manager or tenant shall be deemed to be in compliance with this division (D) if such ice is made level and completely covered with sand, sawdust or other similar material. Each day that a violation exists shall be considered a separate and distinct violation.

(E) *Removal.* No person shall remove slush, snow or ice from privately owned real property and place it upon any sidewalk, curb ramp or street.

(F) *Enforcement/penalties.*

(1) Any violation of divisions (A) or (B) above occurring at a sidewalk abutting land zoned solely for residential use and that has 16 or fewer residential units shall result in a fine of $100 for each such violation.

(2) Any violation of divisions (A) or (B) above occurring at a sidewalk abutting land zoned solely for residential use and that has more than 16 residential units shall result in a fine of $150 for each such violation.

(3) Any violation of divisions (A) or (B) above occurring at a sidewalk abutting land zoned for any use other than solely residential shall result in a fine of $250 for each such violation.

(4) Any violation of divisions (C) or (D) above occurring at one or more curb ramps abutting land zoned for any use other than solely residential shall result in a fine of $250 for each such violation.

(5) Any violation of division (E) above occurring at a sidewalk, curb ramp or street abutting land zoned solely for residential use and that has 16 or fewer residential units shall result in a fine of $100 for a cubic yard or less and $150 for more than a cubic yard.

(6) Any violation of division (E) above occurring at a sidewalk, curb ramp or street abutting land zoned solely residential use and that has more than 16 residential units shall result in a fine of $150 for a cubic yard or less and $200 for more than a cubic yard.

(7) Any violation of division (E) above occurring at a sidewalk or curb ramp abutting land zoned for any use other than solely residential shall result in a fine of $300.

(CBC 1975 Ord. T14 § 300; CBC 1985 16-12.16; Ord. 1991 c. 5 § 30; Ord. 1994 c. 2 § 1; Ord. 2007 c.7 § 1; Ord. 2011 c. 13) Penalty, see Subsection 16-32.1, 16-32.6

16-12.17 Reserved.

[Reserved]

(CBC 1975 Ord. T14 § 301; Ord. 1985 c. 9 § 1; CBC 1985 16-12.17; Recodified in Chapter XXIII by Ord. 1991 c. 5 § 28) Penalty, see Subsection 16-32.1, 16-32.6

16-12.18 Reserved.

[Reserved]

(CBC 1975 Ord. T14 § 302; Ord. 1985 c. 9 § 2; CBC 1985 16-12.18; Recodified in Chapter XXIII by Ord. 1991 c. 5 § 28) Penalty, see Subsection 16-32.1, 16-32.6

16-12.19 Cutting of Grass.

No person in control of any estate abutting on a sidewalk shall knowingly suffer to remain uncut any overgrowth of grass planted therein by the city.

(CBC 1975 Ord. T14 § 303; CBC 1985 16-12.19) Penalty, see Subsection 16-32.1, 16-32.6

16-12.20 Reserved.

[Reserved]

(CBC 1975 Ord. T14 § 304; CBC 1985 16-12.20; Repealed by Ord. 1991 c. 5 § 31) Penalty, see Subsection 16-32.6

16-12.21 Reserved.

[Reserved]

(CBC 1975 Ord. T14 § 305; CBC 1985 16-12.21; Repealed by Ord. 1991 c. 5 § 32) Penalty, see Subsection 16-32.6

16-12.22 Reserved.

[Reserved]

(CBC 1975 Ord. T14 § 306; CBC 1985 16-12.22; Repealed by Ord. 1991 c. 5 § 33) Penalty, see Subsection 16-32.6

16-12.23 Reserved.

[Reserved]

(CBC 1975 Ord. T14 § 307; CBC 1985 16-12.23; Repealed by Ord. 1991 c. 5 § 34) Penalty, see Subsection 16-32.6

16-12.24 Reserved.

[Reserved]

(CBC 1975 Ord. T14 § 308; CBC 1985 16-12.24; Repealed by Ord. 2005 c. 1)

16-12.25 Unlawful Games.

No person shall expose in any street any table or device of any kind intended for playing a game of hazard or chance; and no person shall play any such game or any other unlawful game in any street.

(CBC 1975 Ord. T14 § 309; CBC 1985 16-12.25)

16-12.26 Protection of Trees, Lamp-Post and Hydrants.

No person shall climb, or tie a horse or other animal to, a tree, lamp-post or hydrant in any street; or attach a wire to a tree belonging to the city or in a street, except by bending wire around a part of the tree over blocks painted substantially the color of the tree and so placed as to protect the tree from injury.

(CBC 1975 Ord. T14 § 310; CBC 1985 16-12.26)

16-12.27 Abusive Language; Soliciting in Streets.

No person shall, in any street or other public place, accost or address another person with profane or obscene language; nor shall any person in a street solicit another person to engage in an unlawful sexual act.

(CBC 1975 Ord. T14 § 311; CBC 1985 16-12.27) Penalty, see Subsection 16-32.1

16-12.28 Drinking of Alcoholic Beverages in Public.

No person shall drink any alcoholic beverage as defined in M.G.L. Chapter 138, Section 1, or possess an open container, full or partially full, of any alcoholic beverages, while on, in or upon any public way, upon any way to which the public has right of access, in any place to which members of the public have access as invitees or licensees, in any park or playground, conservation area or recreation area, on private land or place without consent of the owner or person in control thereof.

(CBC 1975 Ord. T14 § 312; Ord. 1982 c. 21 s 1; Ord. 1982 c. 23 s 1; CBC 1985 16-12.28) Penalty, see Subsection 16-32.2

16-12.29 Procurement of Alcoholic Beverages for Underage Individuals.

No person, while in or on any public way, public alley, sidewalk, park or playground area or vehicle parking or apron pedestrian area serving mercantile establishments within the city shall agree to procure for or deliver to an individual who has not reached age 21 any alcoholic beverage, sealed or open. The burden of ascertaining that the recipient meets age eligibility shall rest upon the person delivering such container of alcoholic beverage. Violators shall be subject to penalty as established by M.G.L. Chapter 138, Section 34 imposing a fine up to $200 or up to six months imprisonment or both, upon conviction.

(CBC 1975 Ord. T14 § 312A; Ord. 1982 c. 21 s 2; CBC 1985 16-12.29; Ord. 1993 c. 2) Penalty, see Subsection 16-32.1

16-12.30 The Use of Intimidation to Obtain Alcoholic Beverages.

No individual or individuals, while in or on any public way, public alley, sidewalk, park or playground area or vehicle parking or apron pedestrian area serving any mercantile establishment within the city and who are under age 21 shall persuade, intimidate or otherwise cause any other person to purchase or obtain from a licensed establishment alcoholic beverages intended for consumption by such individual or other individuals who are below the legal drinking age in this commonwealth. Violators, including minors, shall be subject to penalty as established by M.G.L. Chapter 138, Section 34A which imposes a fine of $300 for each conviction.

(CBC 1975 Ord. T14 § 312B; Ord. 1982 c. 21 s 3; CBC 1985 16-12.30; Ord. 1993 c. 2)

16-12.30A The Use of False Identification to Obtain Alcoholic Beverages.

(A) *Prohibition.* No person shall use transferred, altered, defaced or forged identification in order to obtain alcoholic beverages.

(B) *Penalty.* In addition to any penalties delineated in M.G.L. Chapter 138, Section 34B, any person violating the prohibition of this Section may be subject to a fine of $250.

(C) *Enforcement and regulatory authority.* The Boston Police Department shall have the authority to enforce these provisions and to promulgate rules and regulations necessary to implement and enforce these provisions.

(D) *Severability.* If any provision of this Section shall be held to be invalid by a court of competent jurisdiction, then such provision shall be considered separately and apart from the remaining provisions, which shall remain in full force and effect.

(E) *Implementation.* These provisions shall be effective immediately upon passage.

(CBC 1985 16-12.30A; Ord. 2005 c. 2)

16-12.31 Posting of "Warning" Notice.

In addition to requirements of M.G.L. Chapter 138, Section 34A, the "warning" poster provided by the commonwealth's Alcoholic Beverages Control Commission shall in Boston be prominently displayed at the principal entrance of every licensed establishment which sells alcoholic beverages for off-premises consumption. Each Police Area Commander shall ascertain through inspection at least twice annually that every such establishment located in his or her jurisdiction has adequately posted such notice at the principal entrance.

(CBC 1975 Ord. T14 § 312C; Ord. 1982 c. 21 s. 4; CBC 1985 16-12.31)

16-12.31A Concerning Parental Responsibility for Public Consumption of Alcoholic Beverages by Minors.

A parent, guardian or legal custodian of an unemancipated minor child shall be liable for any willful act committed by said child in violation of the provisions of Subsections 16-12.28, 16-12.29 or 16-12.30, supra. This provision shall be enforced by all Police Officers and shall be punishable by a fine of $50. This Section shall be enforced under non-criminal disposition of violations in the manner and to the extent provided in M.G.L. Chapter 40, Section 21D.

(CBC 1985 16-12.31; Ord. 1986 c. 16 § 1)

16-12.32 Vaults Under Sidewalks.

No person shall make any permanent excavation under the surface of a street, the inner face of the wall of which extends further under the street than to a line 18 inches inside the line of the outer edge of the curbstone or sidewalk.

(CBC 1975 Ord. T14 § 313; CBC 1985 16-12.32)

16-12.33 Gratings.

No person shall place or maintain in a street any grating which extends more than 18 inches into the street, or the spaces between the bars of which are more than 1 inch in width.

(CBC 1975 Ord. T14 § 314; CBC 1985 16-12.33)

16-12.34 Openings in Street.

No person shall make a coal-hole or other opening in a street, except in accordance with a permit from the Commissioner of Public Works.

(CBC 1975 Ord. T14 § 315; CBC 1985 16-12.34)

16-12.35 Steps.

No person shall maintain an entrance to his or her estate by steps descending immediately from or near the line of a public street, unless the same is securely guarded.

(CBC 1975 Ord. T14 § 316; CBC 1985 16-12.35)

16-12.36 Street Openings.

No person shall open or occupy any portion of a street, except in accordance with a permit from the Commissioner of Public Works. Such permit shall be exhibited to a Police Officer upon his or her request.

(CBC 1975 Ord. T14 § 317; CBC 1985 16-12.36)

16-12.37 Prohibiting Operation of Skateboards, Roller Blades, Roller Skates and Stunt-Type Bicycles on Certain Public Property.

(A) *Operation of skateboards, roller blades, roller skates and stunt-type bicycles on public property prohibited.*

(1) Unless otherwise permitted by city rule or regulation, it shall be unlawful for any person to ride or operate roller blades, roller skates, a skateboard or stunt-type bicycle upon public property in the city. Public property includes, but is not limited to, stairs, fountain areas, plazas or any area under the care, custody and control of the city but, for the purpose of this Subsection, shall not include streets or sidewalks.

(2) The Transportation Commission may by regulation declare it unlawful for any person to ride or operate roller blades, roller skates, a skateboard or stunt-type bicycle upon specific streets or sidewalks within the city.

(B) *Penalties.* An individual who violates division (A) above shall be subject to a fine of $100 for a first offense and $200 for any subsequent offense, but a court may authorize community service in lieu of all or part of this fine.

(C) *Enforcement.* The provisions of M.G.L. Chapter 40, Section 21D may be utilized to enforce this Section.

(D) *Severability.* The provisions of this Section shall be severable and if any Section, part or portion hereof shall be held invalid for any purpose by any court of competent jurisdiction, the decision of the court shall not affect or impair any remaining Section, part or portion thereof.

(CBC 1985 16-12.37; Ord. 1997 c. 8 §§ 1–3; Ord. 2003 c. 1)

16-12.38 Gas-Powered Vehicles: Scooters, Powerboards and Mini-Motorbikes.

(A) *Definition.* This Section refers to scooters, powerboards and mini-motorbikes that have handlebars, that have two wheels, that are designed to be stood upon or sat upon by the operator and that are gas-powered by an engine or motor capable of propelling the vehicle with or without human thrust.

(B) *Prohibition from sidewalks.* No person may use, ride or otherwise operate a gas-powered scooter, powerboard or mini-motorbike on a sidewalk of the city.

(C) *Prohibition from streets.* No person may use, ride or otherwise operate a gas-powered scooter, powerboard or mini-motorbike on a public way, private way, street or on the grounds of any public school in the city unless that person is 16 years of age or older and is carrying a valid driver's/operator's license.

(D) *Penalties.* Any person violating the provisions of this Section shall be subject to a fine of $25 for a first offense and $50 for a second or any subsequent offense, but a court of competent jurisdiction may substitute community service for any fine monies.

(E) *Exceptions.* Nothing in these Sections shall prevent the legal use of:

(1) Any mechanical or motorized device designed and used to assist a person with a disability affecting ambulation;

(2) A moped that has been registered with the commonwealth's Registry of Motor Vehicles; and

(3) A motorized bicycle that has been registered with the commonwealth's Registry of Motor Vehicles.

(F) *Enforcement.* The Boston Transportation Department and the Boston Police Department shall have the authority to enforce this Section. The provisions of M.G.L. Chapter 40, Section 21D may be used to enforce these Sections. The Boston Police Department shall have the authority to impound any vehicle in violation of these Sections.

(G) *Regulatory authority.* The Commissioner of the Boston Transportation Department and the Commissioner of the Boston Police Department shall have the authority to promulgate rules and regulations necessary to implement and enforce these Sections.

(H) *Severability.* If any provision of these Sections are held to be invalid by a court of competent jurisdiction, then such provision shall be considered separately and apart from the remaining provisions, which shall remain in full force and effect.

(I) *Implementation.* The provisions of this Section shall be effective immediately after passage.

(CBC 1985 16-12.38; Ord. 2004 c. 6)

16-12.38A ELECTRIC PERSONAL ASSISTIVE MOBILITY DEVICES.

16-12.38A.1 Definition of Electric Personal Assistive Mobility Device or EPAMD.

An ***ELECTRICAL PERSONAL ASSISTIVE MOBILITY DEVICE ("EPAMD")*** shall mean a self-balancing device with two wheels not in tandem, designed to transport only one person by an electric propulsion system having a maximum speed on a paved level surface of less than 20 mph. For purposes of this Section, EPAMDs shall include, but shall not be limited to, the Segway® PT. For purposes of this Section, electric or motorized wheelchairs and powerchairs shall not be considered ***EPAMDs***.

(CBC 1985 16-12.38A.1; Ord. 2011 c. 8)

16-12.38A.2 Prohibition of EPAMDs.

The use of EPAMDs are hereby prohibited, based upon the interest of safety, on all public property in the city except as specifically authorized by the provisions of this chapter. Public property, includes but is not limited to, all public ways, sidewalks, parks, plazas, bicycle paths and shared use paths owned by and/or under the care, custody and control of the city.

(CBC 1985 16-12.38A.2; Ord. 2011 c.8)

16-12.38A.3 Definition of Tour Operator.

A ***TOUR OPERATOR*** is any person, corporation or other entity engaged in the business of providing tours to customers using EPAMDs and/or engaged in the business of renting EPAMDs to customers in the city.

(CBC 1985 16-12.38A.3; Ord. 2011 c. 8)

16-12.38A.4 Limited Use of EPAMDs for Tour Operations.

(A) In the city the use of EPAMDs in tour operations shall be permitted subject to licensure by the Police Commissioner for the city who shall have exclusive authority to license and promulgate regulations for the use of EPAMDs in such tour operations. Subject to such licensure and regulations, tour operators, their employees, customers and users may operate EPAMDs only on public streets in the city on routes approved by the Boston Transportation Department with a license issued by the Boston Police Department's Hackney Division to use and/or operate EPAMDs under the minimum conditions and requirements as set forth in this Section. The Police Commissioner may establish additional conditions and requirements by rule or regulation consistent with his or her authority as Police Commissioner of the city. Such licenses approved by the Police Commissioner shall be granted for a term not exceeding one year but whenever granted they shall expire annually on March 1; such licenses may be renewed annually by the Police Commissioner and may at any time be revoked or suspended for cause by said Commissioner. The Police Commissioner shall determine appropriate fees for administering such licenses. Such license is nontransferable and authorizes only the named licensee and/or its customers to use and/or operate EPAMDs in accordance with the provisions of this Section. Such license shall be prominently displayed on the front of any EPAMD used and/or operated by a licensee within the city.

(B) Such minimum conditions and requirements shall be as follows.

(1) The proposed tour route and months, days and hours of operation must be pre-approved in writing by the Boston Transportation Department. Thereafter, there shall be no deviations from the approved tour route without prior written approval from the Boston Transportation Department.

(2) The tour operator shall provide an approved site for education and instruction on the operation and use of EPAMDs by its employees and customers. For purposes of this Section, customers shall include all tour patrons and users, whether or not consideration is paid for such use.

(C) All tour users or customers must be shown a safety video and provided with “hands on” EPAMD training by an experienced operator in a controlled area prior to such user physically operating an EPAMD on any public property in the city.

(D) Tour operators shall provide to their customers and/or users of EPAMDs a fact sheet issued by the city summarizing the provisions of this Subsection 16-12.38A and any applicable regulations authorized herein regulating licensed tour operators and EPAMD users. Tour operators shall ensure that every customer and/or user of an EPAMD on its tour shall acknowledge, sign and date the fact sheet prior to his or her use of an EPAMD. Tour operators shall retain such record of acknowledgment in accordance with the rules or regulations authorized to be promulgated hereunder.

(E) The maximum number of EPAMD users that can be included in any single tour is six, and one tour leader.

(F) Tour leaders/operators must be able to communicate with each other through the use of private communication devices (two-way radios, cellular phones or similar devices) and have available the use of rearview mirrors or other mirror device approved by the Boston Police Department.

(G) No rider under 14 years of age and/or 100 pounds in weight, and/or as limited by the applicant’s insurance company requirements, and/or pursuant to the EPAMD manufacturer’s specifications, shall be allowed on any tour.

(H) Tour leaders/operators must be at least 18 years of age and must be experienced in the use and operation of EPAMDs to give tours. Tour leaders or operators shall wear safety reflector vests, or other obviously visible clothing as may be approved by the Boston Police Department.

(I) No EPAMD shall be used or operated in excess of a maximum speed of eight miles per hour.

(J) Tours shall use only the public streets or roads of the city.

(K) No tour will be conducted or operated after dusk.

(L) Tours shall not enter any private property without prior permission from the owner.

(M) Every EPAMD shall be equipped with a sounding device and all customers or users shall be trained in the use of such sounding device.

(N) An EPAMD user shall yield the right-of-way to pedestrians and shall give an audible signal with a sounding device before overtaking and passing a pedestrian.

(O) All users or customers shall wear helmets during training and at all other times during the tour or at any time while on or operating an EPAMD.

(P) Users or customers shall not be permitted to operate an EPAMD while under the apparent influence of alcohol or drugs, including prescription drugs that impair the user’s ability to operate machinery, or in the event that the tour operator or employees have actual knowledge of the fact that such user or customer is under the influence of alcohol or drugs, including prescription drugs that impair the user’s ability to operate machinery.

(Q) All of the above requirements and conditions shall be explained and specifically described by the tour operator or employees to each user or customer prior to the use of an EPAMD by such user or customer.

(CBC 1985 16-12.38A.5; Ord. 2011 c.8)

16-12.38A.5 Limited Use of EPAMDs for Disabled Persons for Mobility Purposes.

An EPAMD may be used and operated on public property in the city; provided such EPAMD is used and/or operated by a person disabled for mobility purposes in accordance with all the requirements established in this Section.

(A) *Inquiry into use of EPAMDs by persons who are disabled for mobility purposes.*

(1) The city may ask any person using or operating an EPAMD on public property in the city to provide evidence that the person’s use or operation of the EPAMD is required because of his or her mobility disability. The city shall accept one or more of the following as evidence that a person’s use or operation of an EPAMD is required because of his or her mobility disability:

(a) A valid disability parking placard or card issued by the commonwealth, presented by a person at the time of his or her use or operation of the EPAMD;

(b) Any other valid proof of disability issued by the commonwealth, presented by a person at the time of his or her use or operation of the EPAMD; and

(c) A verbal representation by the person on, using or operating the EPAMD that his or her use or operation of the EPAMD is required because of his or her mobility disability. However, the city may assess any penalty or take any other action authorized under this Subsection 16-12.38A if such person’s verbal representation that his or her use or operation of the EPAMD is required because of his or her mobility disability is contradicted by observable fact, as determined by the city.

(2) Any person on, using or operating an EPAMD on public property in the city who is unable to present the required evidence of his or her mobility disability at the time of his or her use or operation of an EPAMD as described above and as determined by the city, shall be deemed in violation of the provisions of this Section.

(B) *Groups of EPAMDs.* Under no circumstances may any individual permitted to use EPAMDs under the provisions of this Subsection travel in a group of more than two on the sidewalks, public ways, parks or pedestrian ways and areas in the city. When traveling in a group of two EPAMDs, such individuals shall travel only in single file and shall not travel side-by-side in the city.

(CBC 1985 16-12.38A.5; Ord. 2011 c. 8)

16-12.38A.6 Use of EPAMDs for Advertising.

Except for the advertisement of and dissemination of information about the tour operation, no person or tour operator shall, for the purpose of advertising goods, wares or merchandise for sale, while on and/or using an EPAMD in any street or on other public property in the city, carry and display any show card, placard or sign or distribute to persons for the purpose of advertising goods, wares or merchandise for sale, handbills, cards, circulars or papers.

(CBC 1985 16-12.38A.6; Ord. 2011 c. 8)

16-12.38A.7 Penalties.

Any person violating the provisions of this Section shall be subject to a fine of $50 for a first offense and $100 for a second or any subsequent offense. In addition to the fines stated above, any tour operator violating the provisions of this Section shall be subject to a fine of $500 for each offense. Depending on the severity of the offense, as determined by the Boston Police Department, a violation of any of the provisions of this Section may also result in suspension or revocation of a tour operator's license to use EPAMDs from the Boston Police Department's Hackney Division.

(CBC 1985 16-12.38A.7; Ord. 2011 C.8)

16-12.38A.8 Enforcement.

The Boston Transportation Department and the Boston Police Department shall have the authority to enforce this Section. The provisions of M.G.L. Chapter 40, Section 21D may be used to enforce these Sections. The Boston Police Department shall have the authority to impound any EPAMD in violation of these Sections.

(CBC 1985 16-12.38A.8; Ord. 2011 c. 8)

16-12.38A.9 Regulatory Authority.

The Commissioner of the Boston Transportation Department and the Commissioner of the Boston Police Department shall have the authority to promulgate rules and regulations necessary to implement and enforce these Sections. Pursuant to St. 1949, c. 222, the Commissioner of the Boston Police Department may charge an appropriate fee for such services attendant to the registration and licensure process.

(CBC 1985 16-12.38A.9; Ord. 2011 c. 8)

16-12.38A.10 Severability.

If any provision of these Sections is held to be invalid by a court of competent jurisdiction, then such provision shall be considered separately and apart from the remaining provisions, which shall remain in full force and effect.

(CBC 1985 16-12.38A.10; Ord. 2011 c. 8)

16-12.39 Pedicabs.

(A) *Definition of pedicabs.* For the purpose of this Subsection, the following definition shall apply unless the context clearly indicates or requires a different meaning.

PEDICAB. A bicycle-like vehicle that has at least three wheels, that transports or is capable of transporting passengers on seats attached to the bicycle, that is propelled by an individual or individuals and that is used for transporting passengers for hire.

(B) *Operation of pedicabs.*

(1) Unless otherwise permitted by city rule or regulation, it shall be unlawful for any person to ride or operate a pedicab upon public property in the city without a license for the vehicle from the Boston Police Department's Hackney Division. The vehicle's license must be renewed annually and a fee as determined by the Boston Police Commissioner shall apply. Public property includes, but is not limited to, all streets, sidewalks, parks, plazas or any area under the care, custody and control of the city. Notwithstanding the above, an additional license from the Parks Commission may be required to operate within certain public property.

(2) Unless otherwise permitted by city rule or regulation, it shall be unlawful for any person to ride or operate a pedicab upon public property in the city without a license to operate a pedicab from the Boston Police Department's Hackney Division. The operator's license must be renewed annually and a fee as determined by the Boston Police Commissioner shall apply.

(3) No person may operate a pedicab in the city unless the person possesses a valid driver's license.

(4) No person may operate a pedicab in the city unless the proposed route and times of operation have been approved by the Boston Transportation Department.

(5) No person may place into service or operate any pedicab or other like vehicle, three wheeled or otherwise, with a fixed bench or trailer, unless approved by the Police Commissioner and inspected for condition and proven to be safe and roadworthy.

(C) *Penalties.* An individual who violates division (B) above shall be subject to a fine of $500 for a first offense and $1,000 for any subsequent offense, but a court may authorize public service in lieu of all or part of this fine. Depending upon the severity of the offense, a violation of any rule or regulation regarding the operation of such a pedicab may also result in suspension or revocation of the pedicab owner's license to operate from the Boston Police Department's Hackney Division.

(D) *Enforcement.* The Boston Transportation Department and the Boston Police Department shall have the authority to enforce those Sections. The provisions of M.G.L. Chapter 40, Section 21D may be used to enforce this Section. The Boston Police Department shall have the authority to impound any vehicle in violation of these Sections.

(E) *Regulatory authority.* The Commissioner of the Boston Transportation Department and the Commissioner of the Boston Police Department shall have the authority to promulgate rules and regulations necessary to implement and enforce these Sections.

(F) *Severability.* The provisions of this Section shall be severable and if any Section, part or portion hereof shall be held invalid for any purpose by any court of competent jurisdiction, the decision of the court shall not affect or impair any remaining Section, part of portion thereof.

(CBC 1985 16-12.39; Ord. 2007 c. 6)

16-12.40 Prohibiting Operation of Party Bikes.

(A) *Definition of party bikes.* For the purpose of this Subsection, the following definition shall apply unless the context clearly indicates or requires a different meaning.

PARTY BIKE. A bicycle-like vehicle that has at least three wheels, where some seats are not facing the direction of travel, that transports, or is

capable of transporting, passengers on seats attached to the bicycle, that is propelled or is capable of being propelled, by more than one individual, that has a frame that is more than 5 feet in width, and that is used for transporting passengers for hire.

(B) *Operation of party bikes prohibited.* Unless otherwise permitted by city rule or regulation, it shall be unlawful for any person to use, ride or operate a party bike upon public property in the city. Public property includes, but is not limited to, all streets, sidewalks, parks, plazas or any area under the care, custody and control of the city.

(C) *Penalties.* An individual who violates division (B) above shall be subject to a fine of $500 for a first offense and $1,000 for any subsequent offense, but a court may authorize public service in lieu of all or part of this fine.

(D) *Enforcement.* The Boston Transportation Department and the Boston Police Department shall have the authority to enforce this Section. The provisions of M.G.L. Chapter 40, Section 21D may be used to enforce this Section. The Boston Police Department shall have the authority to impound any vehicle in violation of these Sections.

(E) *Regulation authority.* The Commissioner of the Boston Transportation Department and the Commissioner of the Boston Police Department shall have the authority to promulgate rules and regulations necessary to implement and enforce these Sections.

(F) *Severability.* The provisions of this Section shall be severable and if any Section, part or portion hereof shall be held invalid for any purpose by any court of competent jurisdiction, the decision of the court shall not affect or impair any remaining Section, part or portion thereof.

(CBC 1985 16-12.40; Ord. 2007 c. 6)

16-12.41 Parking in a Marked Bike Lane or Marked Shared Bike Lane.

(A) *Purpose.* The purpose of this Section is to establish guidelines for parking motor vehicles in marked bike lanes and shared bike lanes.

(B) *Prohibition from marked bike lanes and shared lanes.* No driver shall stand or park any motor vehicle in a marked bike or shared bike lane in the city.

(C) *Penalties.* Any person violating the provisions of this Section shall be subject to a fine of $100 for each offense. This fine shall increase by $33 if it remains unpaid at least 21 days after issuance of a notice of the violation.

(D) *Exceptions.* Nothing in these Sections shall prevent standing or parking a motor vehicle in a marked bike lane or shared bike lane:

(1) When necessary to avoid conflict with other traffic or pedestrians;

(2) In compliance with the lawful direction of a Police Officer or official traffic sign; or

(3) Unless authorized to do so under existing regulations (including, but not limited to, designated residential parking lanes or parking meters).

(E) *Enforcement.* The Boston Transportation Department and the Boston Police Department shall have the authority to enforce this Section. The provisions of M.G.L. Chapter 90, Section 20A½ may be used to enforce these Sections, and the adjudication provisions of this chapter and of Chapter 190 of the Acts of 1982 shall apply to this Section. The Boston Police Department and Boston Transportation Department shall have the authority to impound any motor vehicle in violation of these Sections.

(F) *Regulatory authority.* The Commissioner of the Boston Transportation Department and the Commissioner of the Boston Police Department shall have the authority to promulgate rules and regulations necessary to implement and enforce these Sections.

(CBC 1985 16-12.41; Ord. 2009 c. 7)

16-12.42 Parking or Stopping Within Any Pedestrian Safety Zone.

(A) *Prohibition of non-authorized vehicles in the zone.* Any vehicles stopped, standing or parked in a Pedestrian Safety Zone may be ticketed and fined $100, if not displaying a valid Pedestrian Safety Zone Permit ("Permit"). Authorized vehicles displaying a valid Permit are allowed to load/unload at designated loading zone areas within the Pedestrian Safety Zone between the hours of 6:00 p.m. and 11:00 a.m. No vehicles, regardless of valid Pedestrian Safety Zone Permit, shall be allowed to stop, stand or park in the Zone between the hours of 11:00 a.m. and 6:00 p.m. The fine shall increase by $33 if it remains unpaid at least 21 days after the issuance of a notice of the violation.

(B) *Enforcement.* The Boston Transportation Department and Boston Police Department shall have the authority to enforce this Section. The provisions of M.G.L. Chapter 90, Section 20A½ may be used to enforce these Sections, and the adjudication provisions of this chapter and of Chapter 190 of the Acts of 1982 shall apply to this Section. The Boston Police Department and Boston Transportation Department shall have the authority to impound any motor vehicle in violation of these Sections.

(C) *Regulatory authority.* The Commissioner of the Boston Transportation Department and the Commissioner of the Boston Police Department shall have the authority to promulgate rules and regulations necessary to implement and enforce these Sections.

(D) *Severability.* If any provision of these Sections is held as invalid, then such provision shall be considered separately and apart from the remaining provisions, which shall remain in full force and effect.

(CBC 1985 16-12.42; Ord. 2010 c. 2)

16-12.43 Prohibiting the Selling, Leasing or Reserving of Public Ways.

(A) No person or entity other than the city and any of its Departments, or designees, shall have the authority to sell, lease, reserve or facilitate the reserving of any street, way, highway, road or parkway, or portion thereof, under the city's control.

(B) Any violation of this Section shall result in a fine of $250 for each violation. Each day that an entity is operating in violation of this Section shall constitute a separate violation.

(CBC 1985 16-12.43; Ord. 2014 c. 11)

16-13 BRIDGES AND WHARVES.

16-13.1 Rules Concerning Bridges and Wharves.

No person shall deface or injure any public bridge or any wharf connected therewith, or unnecessarily open the draw of any such bridge, or obstruct the passage of the same; nor shall any person, without the consent of the draw-tender, make fast to any public bridge, or draw, guard or pier thereof, any vessel, scow, raft or float; nor shall any person remain inside of the draw-gates, or on any pier, wharf, fender or appurtenance of such draw, while such gates are closed; nor shall any person, having under his or her charge a vessel passing through the draw of any such bridge, refuse or neglect to comply with the directions of a draw-tender relating to such passing.

(CBC 1975 Ord. T14 § 318; CBC 1985 16-13.1)

16-13.2 Relative to the Licensing of Certain Bridges and Tunnels.

(A) No person shall undertake to construct, maintain, set up or operate, whether or not for a fee or charge, any bridge or tunnel wholly located within the city, not existing on the date of passage hereof, without first having obtained a license therefor, granted by the Mayor and Boston City Council, only upon recommendation of the Conservation Commission indicating that the same is without significant adverse environmental effect.

(B) Without further authority, the Corporation Counsel shall seek to restrain any violation of the provisions hereof.

(Ord. 1981 c. 36 §§ 1, 2; CBC 1985 16-13.2)

Editor's note:

The date of passage of this Subsection was July 14, 1982.

16-14 RESERVED.

[Reserved]

(Repealed by Ord. 1991 c. 5 § 35)

16-14.1 Reserved.

[Reserved]

(CBC 1975 Ord. T14 § 319; CBC 1985 16-14.1; Repealed by Ord. 1991 c. 5 § 35)

16-15 USE OF ROADWAY FOR VEHICLES.

16-15.1 Horse-Drawn Vehicles.

No person having charge of a horse-drawn vehicle shall allow the same without an animal harnessed thereto remain in a street for more than five minutes.

(CBC 1975 Ord. T14 § 320; CBC 1985 16-15.1)

16-15.2 Reserved.

[Reserved]

(CBC 1975 Ord. T14 § 321; CBC 1985 16-15.2; Repealed by Ord. 1991 c. 5 § 36)

16-15.3 Bells on Vehicles.

No person shall drive an animal drawing a vehicle in a street during any time that snow or ice is upon or covers the street, unless there are three or more bells attached to the shaft or pole of the vehicle or to the animal or to some part of the harness thereon.

(CBC 1975 Ord. T14 § 322; CBC 1985 16-15.3)

16-15.4 Direction of Vehicles.

No person having charge of a vehicle shall, unless otherwise directed by a Police Officer, pass along a street or public alley in a direction contrary to that designated by the sign placed on the side of such street or alley.

(CBC 1975 Ord. T14 § 323; CBC 1985 16-15.4)

16-15.5 Vehicles for Hire.

(A) In the city, no person, firm or corporation driving or having charge of a taxicab or other private vehicle shall offer the vehicle for hire for the purpose of transporting, soliciting and/or picking up a passenger or passengers unless said person is licensed as a hackney driver and said vehicle is licensed as a hackney carriage by the Police Commissioner of said city. In addition, no person, firm or corporation driving of having charge of a taxicab or other private vehicle shall operate identifiable taxi top lights for the purpose of transporting, soliciting and/or picking up a passenger or passengers unless said person is licensed as a hackney driver and said vehicle is licensed as a hackney carriage by the Police Commissioner of said city.

(B) Any Police Officer witnessing a violation of division (A) above may arrest the driver of the vehicle and seize evidence of said violation. Such evidence shall include, but is not limited to, meters, whether mechanical or electrical, for the computation of fares based on mileage or predetermined periods of time. Any Officer who seizes such items as evidence of a violation of division (A) above shall take them to a place of safety until they are produced or used as evidence in any trial or other Court proceedings. All such property seized shall be disposed of as the Court Orders, and may be forfeited, sold or destroyed in the discretion of the Court.

(C) No owner or association of owners, whose principal place of business is located in the city, and who owns a taxicab or taxicabs licensed by the city, shall be allowed to dispatch taxicabs within the city unless said taxicabs are licensed by the Boston Police Commissioner and the operators of said taxicabs possess valid hackney carriage driver licenses issued by the Boston Police Department. However, nothing herein contained shall be construed as prohibiting a driver of a taxicab licensed outside the city from driving through said city, or from accepting within the city, a passenger, passengers, packages or other merchandise if summoned by or at the request of said passenger or client by telephone, or by radio dispatch from the owner or operator's principal place of business outside the city; provided that the name, pick-up address and destination of said passenger or client are immediately supplied by the driver to any inquiring Police Officer.

(D) Anyone found in violation of this Subsection shall be punished by fine of not more than $500 for each violation.

(CBC 1975 Ord. T14 § 323; CBC 1985 16-15.5; Ord. 1986 c. 13 § 2-5; Ord. 2002 c. 8)

16-15.6 Use of Protective Headgear.

All persons operating a motorized bicycle, as defined by the Registry of Motor Vehicles of the commonwealth, or riding as a passenger on a motorized bicycle shall wear protective headgear in the city. The headgear shall conform with such minimum standards of construction and performance as the registrar may prescribe for use by motorcycle operators.

(Ord. 1985 c. 13; CBC 1985 16-15.6)

16-16 STREET CARS.

16-16.1 Speed Limits.

No person having the control of the speed of a street railway car on the surface of any street, except in spaces especially reserved for street railway cars, shall allow such car to go at a rate of speed faster than ten mph in any part of the city included within the following bounds: Charles Street, Park Square, Eliot Street, Kneeland Street, Atlantic Avenue, Commercial Street, Causeway Street and Leverett Street, including said boundary streets; or in any other part of the City Proper, so called, lying north of Massachusetts Avenue and Southampton Street, at a rate of speed faster than 12 mph; or in any other part of the city at a rate of speed faster than 15 mph; or in turning a corner in any part of the city at a rate of speed faster than four miles per hour.

(CBC 1975 Ord. T14 § 325; CBC 1985 16-16.1)

16-16.2 Intersections.

In approaching any public or private way intersecting that in which the railway is located, the speed of the car must be reduced to such a rate as will make it possible to stop immediately.

(CBC 1975 Ord. T14 § 326; CBC 1985 16-16.2)

16-16.3 Curves.

In rounding curves and in all cases where the view of the motorman is obstructed for any reason, the speed of the car must be reduced to meet the condition of limited vision of railway and highway.

(CBC 1975 Ord. T14 § 327; CBC 1985 16-16.3)

16-16.4 Grades.

Before taking any heavy descending grade, the speed of the car must be so reduced as to test the working of the brakes.

(CBC 1975 Ord. T14 § 328; CBC 1985 16-16.4)

16-16.5 Proximity to Roads.

Where the railway lies within a highway and is close to narrow travelled road, the speed of the car must be reduced to meet this condition whenever such road is in rightful use by others.

(CBC 1975 Ord. T14 § 329; CBC 1985 16-16.5)

16-16.6 Joint Use of Roads.

Where the railway occupies a portion of the travelled road, the absence of any exclusive right-of- way on the part of the car makes it necessary that its speed be, from time to time, so restricted as to permit others to safely exercise their common right to a reasonable use of the road.

(CBC 1975 Ord. T14 § 330; CBC 1985 16-16.6)

16-16.7 Safety Distances.

No person having the control of the speed of a street-railway car in any street shall, except in case of accident, or to prevent injury to persons or property, allow such a car to go within 10 feet of a car or other vehicle in front.

(CBC 1975 Ord. T14 § 331; CBC 1985 16-16.7)

16-16.8 Avoiding Collisions; Obeying Police Directions.

No person having control of the speed of a street-railway car shall allow it in any street to go against or afoul of any person, vehicle or thing whatsoever; nor shall any such person fail to stop his or her car at any place in a street when directed by a Police Officer so to do.

(CBC 1975 Ord. T14 § 332; CBC 1985 16-16.8)

16-16.9 Precautions; Warning Bells.

No person having control of the speed of a street-railway car passing in a street shall fail to keep a vigilant watch for all teams, carriages and persons, especially children, nor shall such person fail to strike a bell several times in quick succession on approaching any team, carriage or person, and no person shall, after such striking of a bell, delay or hinder the passage of the car.

(CBC 1975 Ord. T14 § 333; CBC 1985 16-16.9)

16-16.10 Prompt Stopping.

No person having control of the speed of a street-railway car passing in a street shall, on the appearance of danger to any team, carriage or person from, or on the appearance of any obstruction to, his or her car, fail to stop the car in the shortest time and space possible.

(CBC 1975 Ord. T14 § 334; CBC 1985 16-16.10)

16-16.11 Stopping in Intersections.

No person having control of the speed of a street-railway car shall stop any such car on a cross-walk or in front of an intersecting street, except to avoid collisions or danger to persons or as directed by a Police Officer.

(CBC 1975 Ord. T14 § 335; CBC 1985 16-16.11)

16-16.12 Spreading of Gravel, Sand, and the Like.

No street-railway company shall, except by permission of the Commissioner of Public Works, sprinkle any gravel or sand, or any salt or other article of a decomposing nature, on its tracks or rails in a street, or wash such tracks or rails with brine or pickle.

(CBC 1975 Ord. T14 § 336; CBC 1985 16-16.12)

16-17 MOVING BUILDINGS AND BULKY MACHINERY.

16-17.1 Moving Buildings.

No person shall move bulky machinery, cars or other merchandise, through, or place or move a building in or through, a street, except in accordance with a permit from the Commissioner of Public Works.

(CBC 1975 Ord. T14 § 337; CBC 1985 16-17.1)

16-17.2 Removing Hindrances.

No person moving a building in a street under a permit therefor shall remove any shade-tree or branch thereof in a street, except in accordance with the permission of the Parks and Recreation Commission; or interfere with any fire-alarm telegraph wire, except in accordance with the permission of the Fire Commissioner; or interfere with any street lamp or lamp-post, except in accordance with the permission of the Commissioner of Public Works.

(CBC 1975 T 14 § 338; CBC 1985 16-17.2)

16-18 SIDEWALKS.

16-18.1 Use of Sidewalks.

No person shall use a sidewalk for any purpose which subjects it to more than ordinary wear, or injures the material of which it is composed, unless such sidewalk is, by the owner of the abutting estate, constructed of granite or other stone, in a manner satisfactory to the Commissioner of Public Works, and kept in repair by such owner.

(CBC 1975 Ord. T14 § 339; CBC 1985 16-18.1)

16-19 PUBLIC GROUNDS.

16-19.1 Use of Public Grounds.

No person shall, in or upon the Common, Public Garden or other public grounds of the city, walk, stand or sit upon the grass, or upon any land planted or prepared for planting or upon a fountain, monument or statue, or a bandstand, wall, fence or other structure, or within the basin of a pond otherwise than upon ice, or stand or lie upon a bench or sleep thereon, except that the Mayor may, from time to time, by proclamation and order permit walking, standing and lying upon the grassed land of the Common or designated part thereof, or the grassed land of any other public grounds or any other designated part thereof, except the Public Garden, for such days or parts of such days as he or she shall specify; and he or she may in like manner by proclamation and order permit sleeping on such days as he or she shall specify, on any of the benches and any of the grassed lands of the Common or other public grounds, except the Public Garden. Nothing contained in this Subsection or in Subsection 16-19.4 shall be held to prohibit the doing of any act in the reasonable performance of his or her work or employment by any person acting under the authority or direction of any Board or Officer in

charge of any of the places described in this Subsection.

(CBC 1975 Ord. T14 § 340; Ord. 1977 c. 11; CBC 1985 16-19.1)

16-19.2 Public Addresses, Vending and the Like.

No person shall, in any of the public grounds, use any device intended to amplify or broadcast sound using a megaphone, loud speaker or any other amplification device, expose for sale goods, wares or merchandise, erect or maintain a booth, stand, tent or apparatus for purposes of public amusement or show, except in accordance with a permit from the Mayor, providing, however, that such permit shall be in addition to any other license or permit required by law, and that when such use is for commercial purposes, or where admission to an event, show, exhibition, amusement or the like is restricted to those making a payment of consideration, which shall include payment, donation or contribution of money or a thing of value, or surrender of a ticket, voucher, token or the like, obtained by purchase, for value or as result of a donation or contribution or the like, the fee shall be that specified in Subsection 18-1.16(KK), and provided that when the portion of the public ground to be used is within the Common, the Public Garden or more than 500 persons are expected to view or attend the same simultaneously and the same is within 1,000 feet of any dwelling house, such permit shall be invalid unless approved by the Boston City Council.

(CBC 1975 Ord. T14 § 341; Ord. 1977 c. 10; Ord. 1982 c. 40 § 2; CBC 1985 16-19.2)

16-19.3 Permit for Use of Park Land for Demonstrations.

(A) No person or organization shall hold or sponsor a demonstration, as herein defined, upon park land unless a permit therefor has first been obtained from the Commissioner of Parks and Recreation. The Commissioner shall honor all requests for such permits, except that the Commissioner may specify the time, place and manner of the demonstration in order to accommodate competing demands for public use of park land and to protect the public safety and convenience. The permit shall require that the permittee be responsible for restoration, rehabilitation and cleanup of the park land which is the subject of the permit. The term ***DEMONSTRATION*** shall include demonstrating, picketing, speechmaking, marching, holding of vigils and all other like forms of conduct which involve the communication or expression of views or grievances engaged in by one or more persons, the conduct of which has the effect, intent or propensity to attract a substantial crowd of onlookers or participants. The term ***DEMONSTRATION*** shall not include casual park land use which does not have the intent and propensity to attract a substantial crowd of onlookers or participants.

(B) As a condition of permit issuance, the Commissioner shall require in the nature of a fee the filing of a bond with a satisfactory surety payable to the Department of Parks and Recreation in an amount sufficient, as determined by the Commissioner, to cover costs of restoration, rehabilitation and cleanup of the park land which is the subject of the permit. In lieu of a bond, the permittee may elect to deposit cash equal to the amount of the required bond. Any amount not actually used to restore or rehabilitate the park land shall be returned to the permittee. Whoever violates any provision of this Section shall be punished by a fine of $300, and shall be liable for the cost of restoration, rehabilitation and cleanup of the park land used for the demonstration and the reasonable costs of collection of the fee.

(Ord. 1983 c. 26 § 1; CBC 1985 16-19.3)

16-19.4 Profanity and Other Offenses.

No person shall, in the Common, Public Garden or other public grounds of the city, annoy another person; or utter profane, threatening, abusive, obscene or indecent language or loud outcry; or do any obscene or indecent act; or have possession of, drink or be under the influence of, intoxicating liquor; or play any game of chance or have possession of any instrument of gambling; or dig up, cut, break, deface, defile, ill-use, handle, take or remove any turf, flower, plant, bush, tree, rock, sign, fence, structure or other thing or part thereof belonging to the city; or cut, break or remove the ice in or from a pond; or drive an animal, or suffer an animal in his or her charge to feed or go at large, except dogs on the Common; or propel any vehicle, except a vehicle pushed or drawn by hand and designed to convey children; or throw a stone or other missile; or injure or have possession of a fish, bird or wild animal; or injure or disturb a bird's nest or eggs; or set a trap or snare; or drop or place and suffer to remain paper or other refuse, except in receptacles designated therefor.

(CBC 1975 Ord. T14 § 342; CBC 1985 16-19.4)

16-20 WATER SUPPLY.

Editor's note:

The water works system and the sewer works system of the Department of Public Works were abolished and the duties transferred to the Boston Water and Sewer Commission by Ch. 436 of the Acts of 1977.

16-20.1 Use of Water.

No person shall, without permission of the Commissioner of Public Works, make an opening in or connection with, or turn on or off or draw off water from, a water pipe or reservoir owned by the city; or, except in accordance with a written permit from the Commissioner or in case of fire in the neighborhood, allow water to be taken from his or her premises, or use water for any purpose other than that for which he or she pays; or unscrew or open a hydrant attached to the water pipes of the city; or, except in accordance with the regulations of the Commissioner, discharge water through a hand-hose. Nor shall any person interfere with the registering apparatus of a water meter put in by the city, or damage or injure such meter.

(CBC 1975 Ord. T14 § 343; CBC 1985 16-20.1)

16-21 WARD-ROOMS; FANEUIL HALL.

16-21.1 Ward Meetings.

No persons not included in a call for a meeting held under a permit granted by the Assistant Commissioner of Real Property and no person, when objection is made by the majority of the applicants for such permit present at the meeting or by the presiding Officer at such meeting, shall mark a ballot, or vote, or remain, at such meeting.

(CBC 1975 Ord. T14 § 344; CBC 1985 16-21.1)

16-21.2 Voter Lists.

No person, other than the Assistant Commissioner of Real Property or some person by him or her duly authorized, shall carry away or interfere with a copy of a list of voters posted or hung up in a ward-room.

(CBC 1975 Ord. T14 § 345; CBC 1985 16-21.2)

16-21.3 Decorations.

No person shall put up any decoration in or on Faneuil Hall unless authorized thereto by an order of the Boston City Council; nor shall any person so authorized drive any nail or screw into the building or any part thereof in putting up any decoration.

(CBC 1975 Ord. T14 § 346; CBC 1985 16-21.3)

16-22 NUMBERING OF BUILDINGS.

16-22.1 Regulation Concerning Numbering of Buildings.

No person shall neglect or refuse to affix to or inscribe on any building owned by him or her the street number assigned to such building by the Commissioner of Inspectional Services; nor shall any person affix to or inscribe on or suffer to remain on any building owned or occupied by him or her a street number other than the one assigned to such building by the Commissioner of Inspectional Services.

(CBC 1975 Ord. T14 § 347; CBC 1985 16-22.1; Ord. 1991 c. 5 § 37) Penalty, see Subsection 16-23.6

Editor's note:

The Building Department and the Housing Inspection Department were abolished and all powers and duties transferred to the Inspectional Services Department by Ch. 19 of the Ordinances of 1981 (Section 9-9 of this Code).

16-23 NOTICES AND PLACARDS.

16-23.1 Prior Consent to Post Notices.

No person shall post up or affix in any manner, paint, print or write, or cause to be painted, printed or written, a notice, advertisement or bill, upon a post, pole, fence, wall or building in the city, unless he or she has previously obtained the consent of the person having possession of such post, pole, fence, wall or building.

(CBC 1975 Ord. 714 § 348; CBC 1985 16-23.1) Penalty, see Subsection 16-32.6

16-23.2 Removal After Elections.

No candidate for any public Office shall allow any political notice, advertisement or bill bearing his or her name to remain posted up or affixed in any manner to a post, pole, fence, tree, wall, building or other structure in the city, beyond 30 days after the election in which he or she was a candidate, without having previously obtained the written consent of the person having possession of such post, pole, fence, tree, wall, building or other structure.

(CBC 1975 Ord. T14 § 349; CBC 1985 16-23.2) Penalty, see Subsection 16-32.6

16-23.3 Posting in Public Places.

No person shall, without the consent of the Mayor, post up, or affix in any manner, or paint, print or write, or cause to be painted, printed or written, a notice, advertisement or bill, upon a curbstone, sidewalk, tree, telegraph-pole, lamp-post or hydrant, in a street or public place, or upon a walk, fence or building belonging to the city.

(CBC 1975 Ord. T14 § 350; CBC 1985 16-23.3) Penalty, see Subsection 16-32.6

16-23.4 Reserved.

[Reserved]

(CBC 1975 Ord. T14 § 351; CBC 1985 16-23.4; Recodified by Ord. 1991 c.5 § 41) Penalty, see Subsection 16-32.6

16-24 JUNK AND SECOND-HAND ARTICLES.

16-24.1 Business Hours.

No person keeping a shop for the purchase, sale or barter of junk, old metals or second-hand articles shall purchase any of the aforesaid articles or have his or her shop open for the transaction of business, except between sunrise and 9:00 p.m. of any week day except Saturday, on which day such shop may be kept open, and such articles purchased, from sunrise until 10:00 p.m.; and no such person or junk collector shall, directly or indirectly, either purchase or receive by way of barter or exchange any junk, old metals or second-hand articles from a minor or apprentice, knowing or having reason to believe him or her to be such.

(CBC 1975 Ord. T14 § 352; CBC 1985 16-24.1)

16-25 OBSCENE AND PORNOGRAPHIC MATERIAL.

16-25.1 Fine for Selling.

Whoever sells, or distributes, or imports, or loans, or possesses with the intent to sell, or exhibits, prints or publishes for the purpose of selling or distributing a book, pamphlet, ballad, printed paper, phonographic record, print, picture, figure, image or description which depicts or describes:

(A) Patently offensive representations or descriptions of ultimate sexual acts, normal or perverted, actual or simulated; or

(B) Patently offensive representations or descriptions of masturbation, excretory functions, lewd exhibition of the genitals, shall be subject to a fine of $50 for each day on which such violation occurs or during which such violation continues.

(CBC 1975 Ord. T14 § 353; CBC 1985 16-25.1)

Editor's note:

This Section was passed in 1973, under the guidelines established in Miller v. California, 441 U.S. 925, 37 L. Ed 2d 419, (June 21, 1973).

16-26 UNREASONABLE NOISE.

16-26.1 General Prohibition and Definitions.

(A) No person shall make, or cause to be made, any unreasonable or excessive noise in the city, by whatever means or from whatever means or from whatever source.

(B) For the purpose of this Section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

dBa. A-weighted sound level in decibels, as measured by a general purpose sound level meter complying with the provisions of the American National Standards Institute, "Specifications for Sound Level Meters (ANSI S1.4 1971)", properly calibrated, and operated on the "A" weighting network.

LOUD AMPLIFICATION DEVICE OR SIMILAR EQUIPMENT. A radio, television, phonograph, stereo, record player, tape player, cassette player, compact disc player, loud speaker or sound amplifier which is operated in such a manner that it creates unreasonable or excessive noise.

UNREASONABLE OR EXCESSIVE NOISE.

(1) Noise measured in excess of 50 dBa between the hours of 11:00 p.m. and 7:00 a.m., or in excess of 70 dBa at all other hours; or

(2) In the absence of an applicable noise level standard or regulation of the Air Pollution Control Commission, any noise plainly audible at a distance of 300 feet or, in the case of loud amplification devices or similar equipment, noise plainly audible at a distance of 100 feet from its source by a person of normal hearing.

(CBC 1985 16-26.1; Ord. 714 § 354; Ord. 1991 c. 4 § 1) Penalty, see Subsection 16-32.6

16-26.2 Unreasonable Noise-Making Automobile Safety Devices.

The use, maintenance, installation or keeping of any device whose purpose it is to protect an owner's vehicle from damage and/or theft through the mechanical creation of a noise of sufficient magnitude to be plainly audible at a distance of 200 feet from such device which does not automatically terminate any such noise within five minutes shall be unlawful. Penalty for violation of this Section shall be a fine of $50. This Section shall be deemed a part of the Environment Protection Ordinances, so called, and shall be enforced pursuant to the provisions of M.G.L. Chapter 40, Section 21D.

(Ord. 1984 c. 4; [354a]; CBC 1985 16-26.2) Penalty, see Subsection 16-32.6

16-26.3 Unreasonable Noise From Automobile Safety Devices.

The use of any device whose purpose it is to protect an owner's vehicle from damage and/or theft through the mechanical creation of a noise of sufficient magnitude to be plainly audible at a distance of 200 feet from such device which does not automatically terminate any such noise within five minutes shall be declared an unlawful use of a noise making instrument. The penalty for violation of this Section shall be $50 and shall be in compliance with the provisions of M.G.L. Chapter 40, Section 21D. This Section shall be deemed a part of the Environment Protection Ordinances, so called.

(Ord. 1984 c. 5 § 1 [354b]; CBC 1985 16-26.3) Penalty, see Subsection 16-32.6

16-26.4 Regulation of Construction Hours.

No erection, demolition, alteration or repair of any building and excavation in regard thereto, except between the hours of 7:00 a.m. and 6:00 p.m., on weekdays or except in the interest of public safety or welfare, upon the issuance of and pursuant to an Off Hours Permit from the Commissioner, Inspectional Services Department, which may be renewed for one or more periods of not exceeding one week each. Any person violating this Section hereof shall be punished by a fine of $300 for each offense. All fines issued under this Section may be recovered by the noncriminal disposition procedures promulgated in M.G.L. Chapter 40, Section 21D. Each day shall constitute a new offense.

(Ord. 1984 c.10 § 1 [354c]; CBC 1985 16-26.4; Ord. 1991 c. 5 § 38; Ord. 2016 c. 8 §§ 1-4)

Editor's note:

The Building Department and the Housing Inspection Department were abolished and all powers and duties transferred to the Inspectional Services Department by Ch. 19 of the Ordinances of 1981 (Section 9.9 of this Code).

16-26.5 Noise Levels at Residential Lot Lines.

It shall be unlawful for any person except in emergencies by Public Utility Companies to operate any construction device(s), including, but not limited to, impact devices, on any construction site if the operation of such device(s) emits noise, measured at the lot line of a residential lot in excess of 50 dBa between the hours of 6:00 p.m. and 7:00 a.m.

(Ord. 1985 c. 3 § 1 [354d]; CBC 1985 16-26.5) Penalty, see Subsection 16-32.6

16-26.6 Disturbing the Peace.

(A) It shall be unlawful for any person or persons in a residential area within the city to disturb the peace by causing or allowing to be made any unreasonable or excessive noise, including, but not limited to, such noise resulting from the operation of any radio, phonograph or sound related producing device or instrument, or from the playing of any band or orchestra, or from the use of any device to amplify the aforesaid noise, or from the making of excessive outcries, exclamations or loud singing or any other excessive noise by a person or group of persons, or from the use of any device to amplify such noise; provided, however, that any performance, concert, establishment, band, group or person who has received and maintains a valid license or permit from any Department, Board or Commission of the city authorized to issue such license or permit shall be exempt from the provisions of this Section. ***UNREASONABLE OR EXCESSIVE NOISE*** shall be defined as noise measured in excess of 50 dBa between the hours of 11:00 p.m. and 7:00 a.m. or in excess of 70 dBa at all other hours when measured not closer than the lot line of a residential lot or from the nearest affected dwelling unit. The term ***dBa*** shall mean the A-weighted sound level in decibels, as measured by a general purpose sound level meter complying with the provisions of the American National Standards Institute, “Specifications for Sound Level Meters (ANSI S1.4 1971)”, properly calibrated, and operated on the “A” weighting network.

(B) Any person aggrieved by such disturbance of the peace may complain to the Police about such unreasonable or excessive noise. The Police, in response to each complaint, shall verify by use of the sound level meter described herein that the noise complained of does exceed the limit described herein and if so, may thereupon arrest and/or make application in the appropriate court for issuance of a criminal complaint for violation of M.G.L. Chapter 272, Section 53, which sets forth the penalties for disturbing the peace.

(CBC 1985 16-26.6; Ord. 1986 c.19 §§ 1, 2 [354e]; Ord. 1991 c. 4 § 2) Penalty, see Subsection 16-32.6

16-26.7 Prohibition Against Certain Sound Devices in Motor Vehicles.

(A) It shall be unlawful for any person in any area of the city to operate a loud amplification device or similar equipment, as defined in Subsection 16-26.1, in or on a motor vehicle which is either moving or standing in a public way.

(B) No person shall operate or use on any public right-of-way any electronically operated or electronic sound signal device attached to, on or in a motor vehicle from which food or any other items are sold, or offered for, sale when the vehicle is stopped, standing or parked. This Subsection shall not apply to sound signal devices used as a safety device, such as, but not limited to, a car horn or back-up signal that is actually used for its intended purpose. For the purposes of this division (B), the term ***STOPPED*** means the halting of a vehicle, whether occupied or not, except when necessary to avoid conflict with other traffic or in compliance with a Police Officer or other authorized Enforcement Officer or a traffic control sign or signal. For purposes of this subdivision, the terms ***STANDING*** and ***PARKED*** shall be as defined in the city’s Traffic Rules and Regulations.

(CBC 1985 16-26.7; Ord. 1991 c. 4 § 3; Ord. 2008 c. 7) Penalty, see Subsection 16-26.11, 16-32.6

16-26.8 Prohibition Against Loud Amplification Devices in Public Ways or Places.

It shall be unlawful for any person in any area of the city to operate a loud amplification device or similar equipment, as defined in Subsection 16-26.1, in a public way or in any other public place.

(CBC 1985 16-26.8; Ord. 1991 c. 4 § 3) Penalty, see Subsection 16-26.11, 16-32.6

16-26.9 Prohibition Against Loud Amplification Devices in or on Residential Premises.

It shall be unlawful for any person in any area of the city to operate a loud amplification device or similar equipment, as defined in Subsection 16-26.1, in a dwelling house or on the land or other premises of such dwelling house.

(CBC 1985 16-26.9; Ord. 1991 c. 4 § 3) Penalty, see Subsection 16-26.11, 16-32.6

16-26.10 Enforcement.

Subsections 16-26.7, 16-26.8 or 16-26.9 may be enforced by any Police Officer, any special Police Officer designated by the Commissioner to do so, by any designee of the Air Pollution Control Commission or of the Board of Health and Hospitals or of the Commissioner of Inspectional Services. The Housing Court may enjoin violation of these Subsections.

(CBC 1985 16-26.10; Ord. 1991 c. 4 § 3; Ord. 1995 c. 5)

16-26.11 Penalties.

(A) (1) Any person who violates Subsections 16-26.7, 16-26.8 or 16-26.9 shall be fined $50 for the first violation in any 12-month period, $100 and for the second violation in any 12-month period and $200 for the third violation and each subsequent violation in any 12-month period. The enforcing person shall make a record of the complaint, such record to include the following information, to the extent that it is available:

(a) Name and address of person in violation;

(b) Name and address of landlord of person in violation, if applicable;

(c) Date of violation;

(d) Time of violation;

(e) Location of violation;

(f) Source of violation; and

(g) Motor vehicle registration number, if applicable. If the person in violation refuses to provide the above-required information or if any information provided proves to be false, then said person shall be punished by a fine of an additional $100.

(B) (1) The Air Pollution Control Commission shall keep and make available to the public and all persons authorized to enforce these provisions, and

the certification or the information there appearing by an enforcing official to a court shall establish a rebuttable presumption of the accuracy thereof.

(2) No person, being the landlord or person in charge of a residential structure shall permit, allow or suffer repeated violations of these ordinances after notice thereof and shall be fined at the time of the third such violation and at the time of every violation thereafter within 12 months of the first violation by a fine of $150 and by a fine of $300 for each violation thereafter. It shall be a defense that the landlord or person in charge of a residential structure has made and documented good faith efforts, including, but not limited to, the seeking of a court order, to prevent violations.

(3) For all other violations of these Sections, the penalties for such violations are:

(a) For the first violation in any 12-month period, $100;

(b) For the second violation in any 12-month period, $200; and

(c) For the third violation and each subsequent violation in any 12-month period, $300.

(D) (1) The enforcing person shall provide a person in violation with a written notice of the violation and fine. If applicable, a copy of each notice of violation shall be sent to the person in violation's landlord and to the school, college or university at which the person in violation is enrolled.

(2) All fines issued under these Sections may be recovered by the noncriminal disposition procedures promulgated in M.G.L. Chapter 40, Section 21D, which procedures are incorporated herein by reference; provided, however, that if a person in violation fails to follow the procedures and requirements of M.G.L. Chapter 40, Section 21D, then the fine or fines shall be recovered by indictment or by complaint pursuant to M.G.L. Chapter 40, Section 41.

(CBC 1985 16-26.12; Ord. 1991 c. 4, § 3; Ord. 1995 c. 5; Ord. 2003 c. 19 §§ 1, 2, 3)

16-26.12 Arrest and Seizure of Property.

(A) Notwithstanding the provisions of any other ordinance of the city, if a person is arrested by a Boston Police Officer under the authority of the M.G.L., including, without limitation, the provisions of M.G.L. Chapter 272, Section 54 for disturbing the peace under M.G.L. Chapter 272, Section 53, or any applicable M.G.L., the arresting Officer may, pursuant to said M.G.L., seize any loud amplification device or similar equipment, as defined in Subsection 16-26.1, as evidence. In the event of such seizure for evidence by a Boston Police Officer incident to such arrest, such amplification device or similar equipment shall be inventoried and held by the Boston Police Department or its Agents, and shall be returned to its owner according to the terms of this Section, unless a court of competent jurisdiction orders otherwise.

(B) The Arresting Officer, in addition to any other reports or procedures required of him or her, shall give the person claiming to be the owner of said loud amplification device or similar equipment a receipt indicating where, when and for what reason said device or equipment was seized, and for what purpose it is being held. Copies of said receipt shall be filed in the Boston Police Department and shall be made available to the court. No receipt shall be redeemed and no such device or equipment shall be returned to any person unless and until all judicial proceedings that may be held regarding the criminal allegations shall have been finally completed; provided, however, that if a motor vehicle shall be seized incident to an arrest, such motor vehicle may be returned to its registered owner if said loud amplification device or equipment has been duly removed therefrom with the written permission of the registered owner of said motor vehicle. In such cases, the Boston Police Department shall provide said owner with a receipt for the removed device or equipment as herein provided.

(CBC 1985 16-26.12; Ord. 1991 c. 4 § 3)

16-26.13 Exemptions.

The following are exempted from the provisions of Section 16-26 and shall not be considered unreasonable or excessive noise for purposes of this Section:

(A) Noise from law enforcement motor vehicles;

(B) Noise from emergency vehicles which is emitted during an actual emergency; or

(C) Noise which a person is making or causing to be made where such person has received and maintains a valid license or permit therefor from any Department, Board or Commission of the city authorized to issue such license or permit; provided, however, that such noise shall be permitted only to the extent allowed by the license or permit.

(CBC 1985 16-26.13; Ord. 1991 c. 4 § 3)

16-26.14 Severability.

If any provision or Subsection of this Section shall be held to be invalid by a court of competent jurisdiction, then such provision or Subsection shall be considered separately and apart from the remaining provisions or Subsections of this Section, which shall remain in full force and effect.

(CBC 1985 16-26.14; Ord. 1991 c. 4 § 4)

16-27 NUISANCE CONTROL.

16-27.1 Purpose.

In order to protect the health, safety and welfare of the inhabitants of the city, this Section shall permit the city to impose liability on property owners and other responsible persons for the nuisances and harm caused by unruly gatherings on private property and shall prohibit the consumption of alcoholic beverages by underage persons at such gatherings.

(CBC 1985 16-27.1; Ord. 2012 c. 8 § 1)

16-27.2 Definitions.

For the purpose of this Section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

EVICTION. Actively trying to evict a tenant from a premise by delivery of a notice to quit and subsequent court proceedings, if a tenant fails to vacate

the premises.

GATHERING. A party or event where two or more persons have assembled for a social occasion or social activity.

PREMISES. Any residence or other private property, place or location, including any commercial or business property.

PROPERTY OWNER. The legal owner of record of a premises as listed by the tax assessor's records.

PUBLIC NUISANCE. A gathering of persons on any premises in a manner which constitutes a violation of law or creates a substantial disturbance of the quiet enjoyment of private or public property in a neighborhood. Behavior constituting a ***PUBLIC NUISANCE*** includes, but is not limited to, excessive noise, obstruction of public ways by crowds or vehicles, illegal parking, the service of alcohol to underage persons, fights and disturbances of the peace.

(CBC 1985 16-27.1; Ord. 2012 c. 8 § 1)

16-27.3 Mailing of Notice to Property Owners and Others.

If a Police Officer or other local officials have responded to a gathering constituting a public nuisance as defined pursuant to Subsection 16-27.2, the Commissioner of the Boston Police Department, or designee, shall inform the Inspectional Services Department. The Commissioner of the Inspectional Services Department, or his or her designee, shall cause a notice of response to be made within 30 days of the gathering as follows.

(A) Notice of response shall be mailed by certified mail to the property owner(s) of the premises where the gathering occurred as listed on the property tax assessment records. The notice shall advise the property owner(s) that the second response on the same premises within a one-year period, as measured from the date of the first notice, shall result in liability of the property owner.

(B) Notice of response shall be sent by mail or other appropriate means to any person who was personally cited at the time of the offense. The notice shall be sent to the address stated on the individuals' government issued identification.

(C) Notice of response shall be sent to the president/headmaster, or his or her designee, of an educational institution if the persons who are liable under Subsections 16-27.4 and 16-27.5 are students at such educational institution. The notice shall be sent by mail or other appropriate means.

(CBC 1985 16-27.3; Ord. 2012 c. 8 § 1)

16-27.4 Liability for a First Response to a Gathering.

(A) If the Boston Police Department or other local officials have responded to a gathering constituting a public nuisance on a premises under the provisions of this Section or Subsections, the following persons shall be jointly or severally liable for fines as set forth below; provided that no previous gathering constituting a public nuisance has occurred at the premises within the previous one-year period:

(1) The person or persons residing on or otherwise in control of the premises where such gathering took place whether present or not;

(2) The person or persons who organized or sponsored such gathering; and

(3) All persons attending such gatherings who engage in any activity resulting in the public nuisance as defined pursuant to Subsection 16-27.2.

(B) In lieu of issuing a fine(s), a Police Officer may issue a written warning if the response to the complaint occurs prior to 10:00 p.m.

(CBC 1985 16-27.4; Ord. 2012 c. 8 § 1)

16-27.5 Liability for a Second or Subsequent Response to a Gathering Constituting a Public Nuisance.

If the Boston Police Department is required to respond to a gathering constituting a public nuisance pursuant to Subsection 16-27.2 more than once in any one-year period, as measured from the date of the first response, the following persons shall be jointly and severally liable for fines as set forth below.

(A) The person or persons residing on or otherwise in control of the premises where such gathering took place whether present or not.

(B) The person or persons who organized or sponsored such gathering.

(C) All persons attending such gathering who engage in any activity resulting in a public nuisance pursuant to Subsection 16-27.2.

(D) The person, persons or business entity which at the time of the gathering owned the premises where the gathering constituting the public nuisance pursuant to Subsection 16-27.2 occurred; provided that notice of the first and subsequent responses has been mailed to the property owner of the premises as set forth herein and the gathering occurs at least 14 days after the mailing of the first notice. The property owner of the premises shall not be held responsible for any violation and penalties if the property owner is employing reasonable efforts to cooperate with the Boston Police Department or other local officials. "Reasonable efforts" shall include, but not be limited to, the following: notifying the Commissioner, or his or her designee, in writing of the owner's willingness to cooperate with the Police or other local officials; returning all telephonic and written inquiries from the Boston Police Department or other local officials in a timely manner; retention of a security service or a Police detail; issuance of written warning(s) to the occupants of the owner's intention to seek eviction for further public nuisances; and, the inclusion of a security rider in a lease agreement. The property owner of the premises shall not be held responsible for any violation and penalties if the property owner is actively pursuing eviction from the premises of a tenant who controlled, organized, sponsored or attended the gathering. The one-year time period for violations for a premises shall pertain only to the same residents occupying the premises who have had prior violation(s). New residents shall start a new time cycle of one year.

(CBC 1985 16-27.5; Ord. 2012 c. 8 § 1)

16-27.6 Enforcement.

(A) The provisions of Subsections 16-27.4 and 16-27.5 may be enforced in accordance with the noncriminal disposition process of M.G.L. Chapter 40, Section 21D. The provisions of this Section may also be enforced according to M.G.L. Chapter 40U as accepted by the city, also known as the "Green Ticket" Law. The enforcing persons shall be any authorized Law Enforcement Officer of the Boston Police Department. A fine of $100 for the first response shall be imposed to such person(s) cited; and, a fine of $300 for the second and subsequent response(s) shall be imposed to such person or persons cited.

(B) Such person(s) or a business entity cited pursuant to these provisions shall have 14 days to request a hearing to contest violations of these Sections.

(C) The provisions of this Section are enforceable without reference to the provisions of Subsection 16-26.6, disturbing the peace, and without reference to the fact that the Police Officer issuing a citation has not obtained a scientific noise measurement prior to issuing the citation. No such scientific noise measurement is required under the provisions of this Section and the lack of a noise measurement shall not constitute a defense.

(CBC 1985 16-27.6; Ord. 2012 c. 8 § 1)

16-27.7 Severability.

If any provision of these Sections shall be held to be invalid by a court of competent jurisdiction, then such provision shall be considered separately and apart from the remaining provisions, which shall remain in full force and effect.

(CBC 1985 16-27.7; Ord. 2012 c. 8 § 1)

16-28 JITNEY LICENSES.

16-28.1 Requirement.

No person, firm or corporation shall, in the city, operate any motor vehicle upon any public way, for the carriage of passengers for hire, in such a manner as to afford a means of transportation similar to that afforded by a railway company, by indiscriminately receiving and discharging passengers along the route on which the vehicle is operated or may be running, or for transporting passengers for hire as a business between fixed and regular termini, without first obtaining a license therefor from the Boston City Council, and unless such license is in force according to the provisions of and subject to this and the following Subsections. Such license shall be subject to revocation at any time by order of the Boston City Council. Whenever the word ***LICENSEE*** is used in this and the following Subsections, it shall mean the person, firm or corporation licensed under this Subsection.

(CBC 1975 Ord. T14 § 356; CBC 1985 16-28.1)

16-28.2 Publication and Notice.

No person shall prosecute a petition to the Boston City Council for a license under M.G.L. Chapter 159A, Section 1 unless, at his or her own expense, he or she has caused to be published, in a newspaper of general circulation published in the city, at least seven days before the public hearing to be held by the proper committee of the Boston City Council, a notice of the time and place of such hearing, nor unless at his or her own expense he or she has also sent by registered mail not less than seven days before such hearing a copy of such notice to the Police Commissioner, the Metropolitan Transit Authority and such persons as shall file with the Clerk of Committees a written request for noticed under this Subsection.

(CBC 1975 Ord. T14 § 357; CBC 1985 16-28.2; Ord. 1991 c. 5 § 39)

16-28.3 Route.

No licensee shall so operate any such motor vehicle except between such termini and over such route and with such stopping places as shall be specified by the Boston City Council in the license granted under the provisions of Subsection 16-28.1, and except in case of emergency, the licensee shall not deviate from the specifications of said license without the approval of the Boston City Council.

(CBC 1975 Ord. T14 § 358; CBC 1985 16-28.3)

16-28.4 Fare.

No licensee shall charge, demand, collect or receive a greater, or less, or different compensation for the transportation of passengers or for any service in connection therewith, than the rates, fares and charges applicable to such transportation as specified in the license granted by the Boston City Council.

(CBC 1975 Ord. T14 § 359; CBC 1985 16-28.4)

16-28.5 Information to Passengers.

No such motor vehicle shall be used or operated without a printed sign thereon stating the termini of the route, the fare to be charged and the license number, which sign shall be so printed and attached to the motor vehicle as to be plainly visible to persons on the street, or without a printed sign thereon showing the schedule of service filed and in effect at the time, which sign shall be so printed and attached to the said motor vehicle as to be plainly visible to passengers boarding such motor vehicle.

(CBC 1975 Ord. T14 § 360; CBC 1985 16-28.5)

16-28.6 Number of Passengers.

The license issued for such motor vehicle shall designate the number of passengers, exclusive of the operator, the licensee is authorized to carry in said vehicle, and no person driving or in charge of said vehicle shall take on or suffer or permit any more persons to ride or to be carried thereon at any one time than the number designated in the license, or permit any person to stand inside or to stand or sit upon any running board, steps, fender, dash or hood thereof, or permit any person to ride on such motor vehicle outside the body thereof; provided, however, that in addition to the number of passengers which said motor vehicle by the terms of its license is permitted to carry, children under seven years of age may be carried therein, in arms, or seated on the laps of adult persons accompanying them, but no passenger with a child in arms or seated on the lap shall be permitted on any front seat of the vehicle.

(CBC 1975 Ord. T14 § 361; CBC 1985 16-28.6)

16-28.7 Operation.

The schedule of operation filed by the licensee shall provide for the regular operation of a motor vehicle between the termini and over the route designated in the license. The licensee shall regularly operate a motor vehicle in substantial accordance with the schedule of operation filed and in effect

at the time, except in cases of accident, breakdown or other controlling emergency, shall operate such motor vehicle to the terminus of the route before turning around, and shall not operate nor permit to be operated any such motor vehicle off or away from the route stated and fixed in the license for the operation of such motor vehicle except in case of controlling emergency. Nothing herein shall be construed to prohibit the operation, in addition to the service described in the schedule on file and in effect at the time, of special or extra trips over said route and between said termini during certain hours or on special occasions.

(CBC 1975 Ord. T 14 § 362; CBC 1985 16-28.7)

16-28.8 Carriage of Passengers.

No person operating any motor vehicle so licensed shall refuse to carry any person offering himself or herself at any regular stopping place for carriage, unless the seats of such vehicle are fully occupied, or unless such person is in an intoxicated condition, or conducting himself or herself in a boisterous or disorderly manner, or is using profane language.

(CBC 1975 Ord. T14 § 363; CBC 1985 16-28.8)

16-28.9 Lighting and the Like.

No motor vehicle so licensed shall be operated from one-half hour after sunset until one-half hour before sunrise, with the top and curtain of said vehicle up, or while said vehicle is otherwise enclosed, unless there be sufficient light provided to adequately light the whole of the interior of said vehicle; and all motor vehicles so licensed with a seating capacity of more than seven passengers shall come to a full stop immediately before crossing the tracks of any railroad at grade.

(CBC 1975 Ord. T14 § 364; CBC 1985 16-28.9)

16-28.10 Conduct of Operators.

No person operating any motor vehicle so licensed shall collect fares, make change or take on or discharge passengers while such vehicle is in motion; nor shall he or she have a lighted cigarette, cigar or pipe in his or her possession while any passenger is being carried therein, nor drink any intoxicating beverage or use morphine, cocaine, opium or other harmful drug of any kind, or be under the influence thereof while engaged in operating such vehicle.

(CBC 1975 Ord. T14 § 365; CBC 1985 16-28.10)

16-29 OPEN-AIR THEATERS.

16-29.1 Open-Air Projection.

No person shall project a motion picture upon any screen in the open air on any estate in the city to which admission is obtained upon the payment of money or the delivery of any valuable thing or by a ticket or voucher obtained for money or any valuable thing if such screen is open to view from a public or private way or an adjacent estate or from any part of a building or other structure in the vicinity.

(CBC 1975 Ord. T14 § 366; CBC 1985 16-29.1)

Editor's note:

Enforcement preliminary enjoined. Northeast Theatre, Inc. v. McNamara, U.S.D.C. of Mass. #72-1558-F.

16-30 ABANDONMENT OF AUTOMOBILES.

16-30.1 Abandoned, Unregistered or Uninsured Vehicles.

(A) *Abandoned cars or automotive parts prohibited.* No person shall place an automobile or any automobile parts upon public or private land for the purpose of abandonment.

(B) *Unregistered and/or uninsured vehicles.*

(1) No person shall place, store or keep more than one unregistered automobile, truck, trailer, moped and/or motorcycle that is required to be registered under the laws or regulations of the commonwealth, including, but not limited to, M.G.L. Chapter 90, upon public or private land zoned for residential purposes of six or fewer residential units.

(2) No person shall place, store or keep more than one uninsured automobile, truck, trailer, moped and/or motorcycle that is required to be insured under the laws or regulations of the commonwealth, including, but not limited to, M.G.L. Chapter 90, upon public or private land zoned for residential purposes of six or fewer residential units.

(3) This Section shall not apply to vehicles stored within a fully-enclosed building or to vehicles stored, parked or displayed on property duly licensed in accordance with M.G.L. Chapter 140, Sections 57 through 69.

(C) *Penalties.*

(1) The first violation of this Subsection in any calendar year shall be issued a warning with the instructions to remediate the violation by registering, insuring or removing the motor vehicle in violation within ten business days of the issuance of the violation.

(2) A violation of this Subsection shall be subject to a fine of $300. Each week that a violation remains uncorrected shall be a separate and distinct violation. Any fines that remain unpaid for more than 12 months may become liens against the real estate at which the violation(s) occurred.

(3) The provisions of M.G.L. Chapter 40, Section 21D may be used to enforce these Sections.

(D) *Enforcement and regulatory authority.* The Commissioner of the Inspectional Services Department, the Commissioner of the Public Works Department, the Commissioner of the Boston Police Department and the Commissioner of the Boston Transportation Department shall have the authority to enforce these Sections and to promulgate rules and regulations necessary to implement and enforce these Sections.

(E) *Applicability.* If any provision of these Sections imposes greater restrictions or obligations than those imposed by any other general law, special law, regulation, rule, ordinance, order or policy, then the provisions of these Sections shall control.

(F) *Severability.* If any provision of these Sections shall be held to be invalid by a court of competent jurisdiction, then such provision shall be considered separately and apart from the remaining provisions, which shall remain in full force and effect.

(CBC 1975 Ord. T14 § 367; CBC 1985 16-30.1; Ord. 2006 c. 8 § 1; Ord. 2014 c. 1 § 3)

16-31 RODENT AND INSECT PREVENTION MEASURES AT CONSTRUCTION SITES.

In the city, no building permit shall be issued for renovation, conversion or new construction until the applicant shows evidence the premises have been treated for, or are free from insects and rodents in compliance with the commonwealth's Sanitary Code, 105 CMR 410.550. The applicant shall be held responsible for corrective measures should his or her construction, renovation or conversion work cause infestation to immediate abutters.

(Ord. 1982 c. 38 § 1; CBC 1985 16-31)

Cross-reference:

Section 17-10

16-32 FINES.

16-32.1 Generally.

(A) Any person violating any provision of Subsections 16-9.1, 16-12.8, 16-12.9, shall, unless otherwise provided in this Chapter, be punished by a fine not exceeding $50 for each offense for a violation of any provision of this Chapter. Any person violating Subsection 16-2.3 shall be punished by a fine of $200. Any person violating any other provision of this Chapter or Chapter XVII or Chapter XVIII shall be punished by a fine not exceeding $20 for such offense, and not only the person actually doing the prohibited thing, but also his or her employer and every other person concerned in so doing shall be punished by such fine.

(B) Each day or part thereof of violation of any provision of any Section of this Chapter, whether such violation be continuous or intermittent, shall be construed as a separate and succeeding offense.

(CBC 1975 Ord. T14 § 368; Ord. 1982 c. 23 s 2; Ord. 1984 c. 22; CBC 1985 16-32.1; Ord. 1988 c. 15 § 2A, 3; Ord. 1994 c. 2 § 1; Ord. 2007 c. 7 § 2; Ord. 2008 c. 3)

16-32.2 Drinking of Alcoholic Beverages in Public, Fine.

Any person violating any provision of Subsection 16-12.28 shall be punished by a fine not exceeding $200.

(CBC 1975 Ord. T14 § 368A, Ord. 1982 c. 23 § 3; CBC 1985 16-32.2)

16-32.3 Alternative Noncriminal Disposition of Violations of Subsection 16-1.9, 16-1.9B, 16-12.7 and 16-32.4.

(A) Subsections 16-1.9, 16-1.9B and 16-12.7 shall be enforced by the Commissioner of Health and Hospitals and his or her authorized Agents, by the Commissioner of Housing Inspection and his or her authorized Agents, by all Police Officers, by all special Police Officers including parking meter supervisors, so called, appointed under the provisions of Chapter 282 of the Acts of 1898, as amended, and by the Animal Control Officer appointed under M.G.L. Chapter 140, Section 151 or the domestic charitable corporation, from time to time, performing by contract the duties of Animal Control Officer in accordance with said Section 151, and by the authorized Agents of such Animal Control Officer or such domestic charitable corporation and the Animal Care and Control Unit of the Parks and Recreation Department. If any Officer empowered to enforce Subsections 16-1.9 and 16-12.7 takes cognizance of a violation thereof, he or she may, as an alternative to instituting criminal proceedings, forthwith give to the offender a written notice to appear before the Clerk of the District Court having jurisdiction at any time during Office hours, not later than 21 days after the date of such violation. Such notice shall be in triplicate and shall contain the name and address of the offender, the specific offense charged and the time and place for his or her required appearance. Such notice shall be signed by the Officer, and shall be signed by the offender whenever practicable in acknowledgment that such notice has been received. The Officer shall if possible deliver to the offender at the time and place of the violation a copy of said notice. Whenever it is not possible to deliver a copy of said notice to the offender at the time and place of the violation said copy shall be mailed or delivered by the Officer, or by his or her Commanding Officer, or by the Head of his or her Department, or by any person authorized by such Commanding Officer or Head of Department, to the offender's last known address, or to the address of the owner of the dog as it may appear on the collar of such dog or as it may appear on the application for a license for such dog in the records of the Police Commissioner, within five days thereof, exclusive of Saturdays, Sundays and legal holidays. Such notice as so mailed shall be deemed a sufficient notice, and a certificate of the Officer or person so mailing such notice that it has been mailed in accordance with this Subsection shall be prima facie evidence thereof. At or before the completion of each tour of duty the Officer shall give to his or her Commanding Officer or Department Head those copies of each notice of such a violation he or she has taken cognizance of during such tour which have not already been delivered or mailed by him or her as aforesaid. The Commanding Officer or Department Head shall retain and safely preserve one of the copies and shall, at a time not later than the next court day after such delivery or mailing, deliver another of such copies to the Clerk of the Court before whom the offender has been notified to appear.

(B) Any person notified to appear before the Clerk of a District Court as hereinbefore provided may appear before such Clerk and confess the offense charged, either personally or through an Agent duly authorized in writing, or by mailing to such Clerk, with the notice, the sum of $50, such payment to be made only by postal note, money order or check. Payment to such Clerk of such sum shall operate as a final disposition of the case. Proceedings under this division (B) shall not be deemed criminal; and no person notified to appear before the Clerk of a District Court as provided herein shall be required to report to any Probation Officer, and no record of the case shall be entered in the probation records.

(C) If any person so notified to appear before the Clerk of a District Court fails to appear and pay the fine provided hereunder or, having appeared, desires not to avail himself or herself of the procedure hereinbefore provided for the non-criminal disposition of the case, the Clerk shall, as soon as may be, notify the Officer concerned, who shall forthwith make a complaint and follow the procedure established for violations of these Ordinances.

(D) As used in this Section the term "District Court" shall include, with the limits of its jurisdiction, the Boston Municipal Court.

(E) The notice to appear provided herein shall be printed in such form as may be satisfactory to the Chief Justice of the Boston Municipal Court and to the Administrative Committee of the District Courts as created by M.G.L. Chapter 218, Section 43A.

(F) The provisions of this Subsection are severable, and if any of the provisions of this Subsection shall be held unconstitutional or otherwise invalid by any court of competent jurisdiction, the decision of such court shall not affect or impair any of the remaining provisions.

(CBC 1975 Ord. T14 § 369; Ord. 1979 c. 35; CBC 1985 16-32.3; Ord. 1996 c. 8 § 3-5; Ord. 2000 c. 4 §§ 3-5; Ord. 2004 c.4 § 2; Ord. 2014 c. 15 §§ 15-17; Ord. 2019 c. 4 § 13)

Editor's note:

The Building Department and the Housing Inspection Department were abolished and all powers and duties transferred to the Inspectional Services Department by Ch. 19 of the Ordinances of 1981 (Section 9-9 of this Code).

16-32.4 Enforcement of Certain Sections.

City of Boston, Ordinances, Subsection 16-1.8 through Subsection 16-1.20A; Subsection 16-1.24; Subsection 16-1.26; Section 16-4A; Section 16-8A; Subsection 16-12.2A; Subsection 16-12.5 through Subsection 16-12.23; and Subsection 16-22.1 through Subsection 16-23.4 may be enforced in accordance with the provisions of M.G.L. Chapter 40, Section 21D as inserted by St. 1977, Chapter 401.

(Ord. 1977 c.16; CBC 1985 16-32.4; Ord. 1986 c. 1 § 1; Ord. 1986 c. 8 § 1; Ord. 1986 c. 10 § 1; Ord. 1988 c. 15 § 6; Ord. 1988 c. 17 § 2; Ord. 2003 c. 19 § 3)

16-32.5 Enforcement in Accordance with Massachusetts General Law.

Any person taking cognizance of a violation of the Sections of this Code set forth in Subsection 16-32.4 hereof which he or she is empowered to enforce by statute, ordinance or by appointment as special Police Officer may enforce said ordinances in accordance with M.G.L. Chapter 40, Section 21D as inserted by St. 1977, Chapter 401.

(Ord. 1977 c. 16 [371]; CBC 1985 16-32.5)

16-32.6 Violations; Fine Established.

(A) Any person violating any provision of the Sections enumerated in Subsection 16-32.4 hereof shall be punished by a fine of $10 for each offense except that the following so-enumerated Sections shall carry the following penalties for violations thereof; and not only the person actually doing the prohibited thing, but also his or her employer and every other person concerned in so doing shall be punished by such fine.

(1) Subsection 16-1.14: $300;

(2) Subsection 16-1.17: $50;

(3) Subsection 16-1.19A: For the first violation in any 12-month period: $50, for the second violation within 12 months of a prior violation: $100 and for the third or subsequent violation within 12 months of a prior violation: $200;

(4) Subsection 16-2.5: $100;

(5) Subsection 16-2.7: $200;

(6) Subsection 16-4A: For the first violation in any 12-month period: $50, for the second or consequent violation: $200;

(7) Subsection 16-8.1: $300;

(8) Subsection 16-12.2A: $50, except that for the second violation within 12 months of a prior violation: $100, and, for the third or subsequent violation within 12 months of a prior violation: $200;

(9) Subsection 16-12.7: $15;

(10) Subsection 16-12.8: $25;

(11) Subsection 16-12.14: $50;

(12) Subsection 16-12.19: $15;

(13) Subsection 16-23.1: $300; and

(14) Subsection 16-23.3: $300.

(B) Any person under the age of 30 who violates any of the foregoing provisions may, on application to, and approval by, the Judge hearing a complaint with respect to such violation, or any Judge of the Court to which the notice under M.G.L. Chapter 40, Section 21D is returnable (as the case may be) in lieu of paying such fine, perform such public service reasonably related to the violation as the Judge shall require and upon completion of such public work, the fine shall be reduced by $5 for each such hour of service, to the extent of such fine.

(Ord. 1977 c. 16; CBC 1985 16-32.6; Ord. 1986 c. 1 § 4; Ord. 1986 c. 8 § 1; Ord. 1986 c. 10 § 2; Ord. 1988 c. 15 §§ 6, 7; Ord. 1988 c. 17 § 3; Ord. 1994 c. 2 § 1; Ord. 1994 c. 12 § 3; Ord. 1999 c. 6 § 1; Ord. 2003 c. 19 § 3; Ord. 2007 c. 7 § 3; Ord. 2008 c. 3; Ord. 2008 c. 4)

16-32.7 Enforcement of Certain Environmental Protection Ordinances.

The Commissioner of Inspectional Services, and any designee, of said Commissioner, be, and hereby is, authorized pursuant to M.G.L. Chapter 40, Section 21D to enforce (in addition to those heretofore authorized to enforce) all of the Sections of the ordinances cited in Subsection 16-32.4; Boston Police Rule 401 (CBC St. Title 14, s 164); Subsection 16-12.3; Subsections 16-33.2 and 16-33.7.

(Ord. 1983 c. 22 § 1; Ord. 1983 c. 24 § 1; CBC 1985 16-32.7)

16-33 SIGNS, AWNINGS AND THE LIKE.

16-33.1 Definitions.

For the purpose of this Section, the following definition shall apply unless the context clearly indicates or requires a different meaning.

SIGN. Any sign, structure, device, light, letter, word, clock, model, banner, pennant, insignia, trade flag or representation designed to be seen from outside a building and capable of, or, in fact, advertising or announcing a use conducted, or goods, products, services or facilities, except legal displays of flags, emblems or insignia of our nation or any political subdivision thereof, and except the following if not projecting over a parkway, other way under the control of the Parks and Recreation Commission, or public way:

(1) Temporary for sale or for rent signs located on the property advertised;

(2) Temporary display posters without independent structural support, in connection with political campaigns or with noncommercial civic, health, safety or welfare campaigns, unless not removed within 30 days following the conclusion of the campaign;

(3) Temporary displays of a patriotic, religious, charitable or civic nature;

(4) Historical or scenic markers approved by a recognized historical or conservation agency; and

(5) Signs not prohibited by any other code or ordinance that identify only the occupant of a house or the name and business of a professional person.

(Ord. 1982 c. 5 s 2; CBC 1985 16-33.1)

16-33.2 Issuance of Number by Appropriate Department.

No owner or tenant of an estate within the city shall, in view of a parkway, other way under the control of the Parks and Recreation Commission or public way, erect, maintain or suffer to remain any sign, awning, canopy or marquee upon such estate unless such sign, awning, canopy or marquee bears a currently valid distinctive number issued with respect to such sign, awning, canopy or marquee by the Department empowered by this Section.

(Ord. 1982 c. 5 s 2; CBC 1985 16-33.2) Penalty, see Subsection 16-33.7

16-33.3 Inspectional Services Department.

The Inspectional Services Department shall issue distinctive numbers to all signs, awnings, canopies or marquees complying with the applicable provisions of the Boston Zoning Code, subject to the allowances and exceptions therein contained, that do not project over a parkway, other way under the control of the Parks and Recreation Commission or public way. The Commissioner of Inspectional Services shall promulgate such regulations as reasonably necessary to ensure compliance with this Section including, but not limited to, number size requirements.

(Ord. 1982 c. 5 s 2; CBC 1985 16-33.3)

16-33.4 Public Works Department.

The Public Works Department shall issue distinctive numbers upon payment of the permit fee required by Chapter XVIII to all signs, awnings, canopies or marquees projecting over a public way and complying with the applicable provisions of the Boston Zoning Code, subject to the allowances and exceptions therein contained. The Commissioner of Public Works shall promulgate such regulations as reasonably necessary to ensure compliance with this Section including, but not limited to, number size requirements.

(Ord. 1982 c. 5 s 2; CBC 1985 16-33.4)

16-33.5 Parks and Recreation Commission.

The Parks and Recreation Commission shall issue distinctive numbers upon payment of the permit fee required by Chapter XVIII to all signs, awnings, canopies or marquees projecting over a parkway or other way under its control and complying with the applicable provisions of the Boston Zoning Code, subject to the allowances and exceptions therein contained. The Commission shall promulgate such regulations as reasonably necessary to ensure compliance with this Section including, but not limited to, number size requirements.

(Ord. 1982 c. 5 s 2; CBC 1985 16-33.5)

16-33.6 Enforcement.

This Section may be enforced in accordance with the provisions of M.G.L. Chapter 40, Section 21D as inserted by St. 1977, Chapter 401.

(Ord. 1982 c. 5 s 2; CBC 1985 16-33.6)

16-33.7 Fine.

Any owner or tenant of an estate within the city who erects, maintains or suffers to remain any sign, awning, canopy or marquee upon such estate in violation of this Section shall be subject to a fine of $25 for each day such sign shall remain in violation.

(Ord. 1982 c. 5 s 2; CBC 1985 16-33.7)

16-34 UNLAWFUL TO TAKE REPRISAL AGAINST ANY INDIVIDUAL WHO TESTIFIES BEFORE THE BOSTON CITY COUNCIL.

16-34.1 Reprisal Action Against Person Who Testifies Before Boston City Council Unlawful.

It shall be unlawful for any individual employed by, under contract to or any Agent of the city, either directly or indirectly, to take or threaten to take, direct others to take, recommend or approve any personal action against any individual or employee as reprisal for making a complaint, testifying before or disclosing information to a Committee of the Boston City Council, unless the complaint was made or the information disclosed or testimony given was given with willful disregard for its truth or falsity.

(CBC 1985 16-34.1; Ord. 1989 c. 8 § 1)

16-34.2 Complaint of Reprisal; Action by Chair of Committee.

Upon information and belief that retaliatory action was unlawfully taken by an employee, contractor or any Agent of the city against an individual who makes a legitimate complaint, testifies before or discloses information relative to the activities described hereinabove to a Committee of the Boston City Council, the Chair of said Committee may upon information and belief that the complaint is bonafide, have issued a summons on said employee, contractor or Agent of the city and shall convene a Committee hearing to investigate such complaint further.

(CBC 1985 16-34.2; Ord. 1989 c. 8 § 2)

16-34.3 Report to Boston City Council of Reprisal; Boston City Council May Impose Disciplinary Action.

Upon a finding that an individual employed by, under contract to or an Agent of the city has engaged in reprisal against an individual who makes a complaint, testifies before, or discloses information to a committee of the Boston City Council, the Chair of the Boston City Council Committee shall issue a finding and shall report such finding to the full Boston City Council, a copy of which shall be forwarded to the Mayor for additional disciplinary action which may result in suspension or termination of said individual, or termination of said individual's contract with the city.

(CBC 1985 16-34.3; Ord. 1989 c 8 § 3)

16-34.4 Definition.

For the purpose of this Section, the following definition shall apply unless the context clearly indicates or requires a different meaning.

REPRISAL ACTIVITY. Any extraordinary individual or municipal activity against an individual who testifies before a Committee of the Boston City Council, occurring within six months of said testimony before said Committee, shall create a rebuttable presumption that such activity is a reprisal against the individual so testifying.

(CBC 1985 16-34.4; Ord. 1989 c. 7 § 4)

16-34.5 Severability.

This Section is severable. The ruling of a court of competent jurisdiction that any one part may be invalid shall not affect the remainder of this Section.

(CBC 1985 16-34.5; Ord. 1989 c. 8 § 5)

16-35 WORKPLACE SMOKING POLLUTION CONTROL ORDINANCE.

16-35.1 Legislative Intent.

The use of tobacco for smoking purposes is found to be increasingly dangerous and life-threatening, not only to the person smoking, but also to the nonsmoking person who is required to breathe air contaminated by environmental tobacco smoke. The most pervasive intrusion of the nonsmokers' right to a healthy, unpolluted air space is the uncontrolled smoking in the workplace. The Boston City Council's intent, by the passage of this Section, is to protect the health and welfare of the nonsmoker by regulating smoking and the discomforting effect it creates in the confined environment of the workplace.

(CBC 1985 16-35.1; Ord. 1993 c. 3)

16-35.2 Title.

This Section shall be known as the Boston Workplace Smoking Pollution Control Ordinance.

(CBC 1985 16-35.2; Ord. 1993 c. 3)

16-35.3 Purpose.

(A) Because the smoking of burning tobacco or any other weed or plant is extremely dangerous to health and is a cause of material annoyance and discomfort to those employees who are exposed to it and have, of economic necessity, to work in the confines of a workplace, the Boston City Council hereby declares that the purposes of this act are:

(1) To protect the public health and welfare by regulating smoking in the workplace; and

(2) To minimize the toxic effects of smoking in the workplace by requiring an employer to adopt a policy that reasonably accommodates insofar as possible, the preferences of nonsmokers and smokers.

(B) If an employer allows employees to smoke in the workplace, the Section requires that:

(1) The employer make reasonable accommodations for the preferences of both nonsmoking and smoking employees;

(2) The employer must give particular preference to employees who as a result of either a cardiovascular illness, pulmonary illness or any other physical condition affecting the eyes, nose and throat, are sensitive to the discomforts of tobacco smoke;

(3) The employer use without incurring additional expense to the extent possible existing architectural design and ventilation systems to separate designated smoking areas from designated nonsmoking areas;

(4) All nonsmoking areas to be designated and conspicuously marked with signs; and

(5) The employer be prohibited from terminating without due cause or discriminating against any employee because the employee exercised his or her right under this act.

(CBC 1985 16-35.3; Ord. 1993 c. 3)

16-35.4 Definitions.

For the purpose of this Section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

BOARD OF HEALTH. The municipal Department, division, unit or body of the municipality charged with regulating and/or enforcing the health laws or regulations in the Massachusetts community of Boston.

BOSTON CITY COUNCIL. The law-making body of the community of Boston in the Commonwealth of Massachusetts.

EMPLOYEE. Any person who is employed by any employer in consideration for direct or indirect monetary wage or profit.

EMPLOYER. Any person who employs the service of an individual person.

ENCLOSED. An area, other than a public lobby, which is closed in by a roof and four walls or sides or partitions, either complete or partial, with appropriate openings for ingress and egress.

OFFICE SPACE or ***OFFICE SPACES*** or ***WORK SPACE*** or ***WORK SPACES.*** Any area occupied by an employee during the course of his or her employment, including, but not limited to, hallways, waiting areas, restrooms, lounges, eating areas, as well as enclosed motor vehicles, ships, boats and airplanes.

PERSON. Any individual person, firm, partnership, association, corporation, company, organization or legal entity of any kind.

SMOKING or ***TO SMOKE*** or ***SMOKE.*** The inhaling, exhaling, burning or carrying of any lighted cigarette; cigar, pipe or other article; or paraphernalia for tobacco or any other weed or plant.

WORKPLACE. Any enclosed area of a structure or portion thereof intended for occupancy by any private or public business entities which will provide primarily, but not exclusively, clerical, professional or business services of the business entity, or which will provide primarily, but not exclusively, clerical, professional or business services to other business entities or to the public, at that location. The ***WORKPLACE*** includes, but is not limited to, office spaces or work spaces in office buildings, office spaces or work spaces in all municipal office buildings, office spaces or work spaces in all public buildings, office spaces or work spaces in all federal office buildings where other than federal employees are employed and the federal regulations restricting smoking in federal buildings are not applied, medical office waiting rooms or areas and other medical treatment facilities, all manufacturing plant office spaces or work spaces not under the control of the federal government regulations restricting smoking in federal buildings or the General Service Administration (“GSA”) regulations restricting smoking in federal buildings.

(CBC 1985 16-35.4; Ord. 1993 c. 3)

16-35.5 Regulation of Smoking in the Workplace.

(A) Each employer who operates a workplace in Boston must implement, maintain and conspicuously post, for all employees to see, a written smoking policy which will contain, at a minimum, the following provisions and requirements.

(1) Any employee may object to his or her employer about the smoke hazard or discomfort in his or her workplace. Using existing means of ventilation or separation or partition of the work space, the employer must attempt expeditiously, within 30 days of the initial date of objection, to reach a reasonable accommodation, insofar as possible, between the preferences of all the nonsmoking and smoking employees. However, an employer is not required by this Section to make any expenditures or structural changes to accommodate the preferences of nonsmoking or smoking employees.

(2) Where the employer prohibits smoking in any portion of the workplace, the area(s) in which smoking is prohibited must be clearly and conspicuously marked with signs.

(B) The employer’s smoking policy must be announced to all employees and posted conspicuously in all workplaces under the employer’s jurisdiction in Boston.

(C) Anyone who becomes an employer in Boston after the passage of this Section must, within three months of becoming an employer, adopt, implement, maintain and conspicuously post for all employees to see, a written smoking policy with all the provisions mentioned herein.

(CBC 1985 16-35.5; Ord. 1993 c. 3) Penalty, see Subsection 16-35.7

16-35.6 Where Smoking Not Regulated.

This Section is not intended to regulate smoking in the following places and under the following conditions within Boston:

(A) A private home which may serve as a workplace;

(B) Any office space leased or rented by a sole independent contractor for his or her own use;

(C) A business used exclusively for the sale of tobacco products;

(D) (1) Provided further, that no employer or Agent of any employer shall require as a condition of employment that any employee or prospective employee refrain from smoking or using tobacco products outside the course of his or her employment or otherwise discriminate against any individual with respect to his or her compensation terms, conditions or privileges of employment for smoking or using tobacco products outside the course of his or her employment. Provided, however, that any nonprofit organization or corporation whose primary purpose is to discourage use of tobacco products by the general public shall be exempt from the provisions of this statute; and provided that employers within the commonwealth which are regulated under M.G.L. Chapter 22, Section 9A; Chapter 26, Section 2; Chapter 31, Section 64; or Chapter 41, Section 101A shall be exempt from the provisions of this statute.

(2) In any civil action alleging a violation of this provision, the court may:

(a) Award punitive damages to a prevailing employee or prospective employee in addition to any award of actual damages;

(b) Award reasonable attorneys’ fees and costs to a prevailing employee or prospective employee; and

(c) Afford injunctive relief against any employer who commits or proposes to commit a violation of this provision.

(E) City Hall cafeterias.

(CBC 1985 16-35.6; Ord. 1993 c. 3)

16-35.7 Penalties and Enforcement.

(A) The Boston Board of Health, having received a written and signed letter of complaint from an employee citing a violation of this Section, must enforce, within 30 days, the entire Section against violations by either of the following actions:

(1) Serving written notice to comply to an employer, with a copy of the notice to the complaintant, requiring the employer to correct, within 30 days, any violation of any Section of this Subsection. The employer must also be sent a copy of this Section at the time notice is served. Upon receiving a second signed complaint at the Boston Board of Health for the same or continued violation by the same employer, and failing all other attempts by the Boston Board of Health to expeditiously; and

(2) Within 30 days, mediate the complaint, the complaint must be resolved by calling upon the attorney for Boston to maintain promptly an action for injunction to enforce the provisions of this act, to cause the correction of such violation of Section, and for assessment and recovery of a civil penalty for such violation.

(B) An employer who violates this act shall be liable for a civil penalty, not to be less than $50 or exceed $300, which penalty shall be assessed and recovered in a civil action brought by the attorney for Boston in any court of competent jurisdiction.

(C) In undertaking the enforcement of this Section, the city is assuming an undertaking only to promote the health and general welfare of the working public. It is not assuming, nor is it imposing on its officers and employees, an obligation for breach of which it is liable in money damages to any person who claims that such breach proximately caused injury.

(D) Any revenues accumulated from violations of this Section should be used only to increase the public awareness of this Section or for public health programs related to this issue and not reverted to the city's General Fund.

(E) If any provision of this Section is invalid or unenforceable by a court of competent jurisdiction, the other provisions of the act shall not be affected thereby, but shall continue in full force and effect.

(CBC 1985 16-35.7; Ord. 1993 c. 3)

16-36 CIGARETTE SALES BY VENDING MACHINES RESTRICTED.

16-36.1 Regulations.

All sales of cigarettes by vending machines within the city shall be prohibited unless:

(A) The vending machine is located within the immediate vicinity, plain view and control of a responsible employee, so that all purchases are observable and controllable as if cigarettes were sold over the counter;

(B) The vending machine must not be located in a coatroom, restroom, unmonitored hallway, outer waiting area or similar unmonitored area and must be inaccessible to the public when the establishment is closed;

(C) The vending machine is equipped with a lock-out device approved by the Board of Health. Said device shall lock-out sales from vending machines unless an employee releases the locking mechanism. The release mechanism must not allow continuous operation of the vending machine and must not be accessible to customers. Vending machines shall be posted with a sign stating that the machine is equipped with a lock-out device and identifying the person(s) to contact to purchase cigarettes from the machine;

(D) All cigarette vending machines must display a conspicuous sign stating that it is illegal for minors to purchase cigarettes; and/or

(E) The use of the premises is restricted to persons over the age of 18.

(CBC 1985 16-35.1; Ord. 1993 c. 9) Penalty, see Subsection 16-36.3

16-36.2 Enforcement.

The Board of Health or its Enforcement Officer(s) shall enforce these regulations.

(CBC 1985 16-36.2; Ord. 1993 c. 9)

16-36.3 Violations and Penalties.

(A) Any person or corporate entity selling tobacco to any person under age 18 shall be punished by a fine of not less than $100 for the first offense, not less than $200 for the second offense and not less than $300 for any third and subsequent offense.

(B) Any person or corporate entity selling tobacco to any person under age 18 three times within 12 months shall be cause, after public hearing, for the suspension of the license to sell tobacco. All tobacco must be removed from the premises when said license is suspended. Licenses suspended cannot be reinstated for one calendar year following the date of removal.

(CBC 1985 16-36.3; Ord. 1993 c. 9)

16-36.4 Severability.

If any of these regulations is declared invalid or unenforceable, the other provisions shall not be affected thereby but shall continue in full force and effect.

(CBC 1985 16-36.4; Ord. 1993 c. 9)

16-37 NON-EMERGENCY REPAIR OF VEHICLES.

16-37.1 Prohibition.

(A) No person shall in or on any fire lane, public way, sidewalk or other public land, nor on any land used for retail purposes not having a main use and occupancy of repair and/or servicing of motor vehicles (other than upon land leased by such person), install or remove any motor vehicle part or accessory or make any repair or servicing of a motor vehicle, nor put, place or suffer to remain on such land, any motor vehicle part, any fluid other than water used or intended for use in a motor vehicle, or any container or packaging for or from such part or fluid; provided that minor repairs of equipment required by law or essential to the operation of the vehicle not involving the draining of fluid nor the removal or installation of moving parts (other than a tire on a rim), shall not be deemed a violation hereof.

(B) No owner, lessee or person in charge of property used for retail purposes not having a main use and occupancy of repair and/or servicing of motor vehicles shall permit, allow or suffer any person to violate this Section thereon. Maintenance or repair of vehicles owned or leased by persons lawfully residing on the property, or owned or leased by, and used in connection with, a trade or business lawfully conducted on the property, shall not be deemed a violation hereof.

(CBC 1985 16-37.1; Ord. 1996 c. 2; Ord. 1996 c. 11) Penalty, see Subsection 16-37.2

16-37.2 Violation.

The penalty for violation of Subsection 16-37.1 shall be $250 which may be enforced criminally, or noncriminally as a part of the Environmental Ordinances.

(CBC 1985 16-37.2; Ord. 1996 c. 2)

16-38 PLACEMENT AND MAINTENANCE OF NEWSRACKS.

16-38.1 Definitions.

For the purpose of this Section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

CERTIFICATE HOLDER. The holder of a Certificate of Compliance issued by the Commissioner in accordance with the provisions of this Section.

CERTIFICATE OF COMPLIANCE. The certificate issued by the Commissioner on a yearly basis to the certificate holder upon successful completion of the application process each year.

COMMISSIONER. The Commissioner of Public Works of the city, or such person as said Commissioner may delegate.

CORRAL. A structure which allows for the appropriate placement of newsracks within designated high traffic areas.

NEWSRACK. Any type of unmanned device for the vending or free distribution of newspapers, periodicals or printed material of whatever nature located in or on a public way.

NEWSRACK STICKER. A sequentially numbered sticker issued by the Commissioner for placement on individual newsracks in accordance with the provisions of this Section.

OPERATOR. Any natural person or other legal entity including, but not limited to, corporations, partnerships, joint ventures and the like who either own, operate or are otherwise in control of a newsrack located in or on a public way in the city.

PUBLIC WAY. Any public highway, private way laid out under authority of statute, way dedicated to public use or way under control of the Park Commissioner or other body having like power.

(CBC 1985 16-38.1; Ord. 2013 c. 4)

16-38.2 Certificate of Compliance.

(A) *Requirement.* No person shall place, affix, erect, construct or maintain a newsrack in or on any part of a public way without first obtaining a yearly Certificate of Compliance from the Commissioner in accordance with the provisions of this Section. Only one annual Certificate of Compliance per operator shall be required.

(B) *Application process.* Each operator of newsracks who intends to place newsracks in any part of the public way must complete an application on a yearly basis via the means required by the Commissioner. Any person with fees owed to the city shall not be eligible to apply for a Certificate of Compliance until outstanding debts are paid.

(C) *Application.* The application shall describe in detail the location of each proposed newsrack, including the side of the street and/or corner at which each newsrack is planned to be placed and indicating the distance, in feet, of the newsrack from curbs, crosswalks, fire hydrants, street lights, trash receptacles, traffic signal equipment, bike racks and mail boxes within a 20-foot radius of the newsrack. The application must also certify that the placement of the newsrack is in compliance with the regulations of the commonwealth's Architectural Access Board, 521 CMR, and will not reduce the clear space for the passage of pedestrians to less than 4 feet. The application shall also include:

(1) The name, address, telephone number and email address of the applicant who is the operator of the newsrack(s);

(2) The name, address, telephone number and email address of a natural person (if different from the applicant) who the city may notify and/or contact at any time concerning the operator/applicant's newsrack(s). The Commissioner may use the email address to provide official notice to the person pursuant to this Section, including notices of violation and removal of newsracks;

(3) A certificate of insurance naming the city as an additional insured to indemnify the city and hold it harmless from any and all claims or judgments for personal injury, including death, or property damage and from costs and expenses to which the city may be subjected or which it may suffer or incur by reason of the design, placement, installation, operation or maintenance of any of the applicant/operator's newsrack(s). The amount of insurance coverage shall be at least $300,000 for operators with between one and 99 newsracks and at least $1,000,000 for operators with 100 or more newsracks;

(4) A signed statement holding the city harmless for any damage to the newsracks as the result of routine city maintenance, including, but not limited to, snow plowing and street cleaning, or as the result of reasonable enforcement of these provisions;

(5) A signed statement acknowledging the certificate holder's agreement to pay a per-newsrack removal fee in the case for all boxes left on the street in the case of an emergency declared by the city; and

(6) A schedule for quarterly inspections by the operator of permitted newsracks condition and placement compliance.

(D) *Issuance of Certificate of Compliance.* Each year, within 30 days of the submission of a completed application, upon a finding that the applicant is in compliance with the provisions of the Section, the Commissioner shall issue a Certificate of Compliance. Included with the Certificate of Compliance shall be an appropriate number of sequentially numbered newsrack stickers. Each sticker shall be color-coded to indicate year of applicability and indicate the permitted location. Only those newsrack(s) that have been issued a newsrack sticker in conjunction with the issuance of a Certificate of Compliance shall be deemed approved. The Commissioner shall approve proposed locations subject to the conditions and restrictions set forth in Subsection 16-38.3(C) on a first come, first serve basis. No preference shall be given to operators who may have had newsracks in a particular location prior to the effective date of this Section. No publication shall be approved for more than one newsrack at any particular location. Certificates of Compliance are nontransferable, unless allowed by written permission of the Commissioner.

(E) *Denial of Certificate of Compliance.* If an application for a Certificate of Compliance is denied in whole or in part, the Commissioner shall state the specific reasons for denial. The Commissioner shall assist the applicant in determining reasonable alternative locations to those which were denied. Any applicant who has been denied a Certificate of Compliance may appeal such denial to the Public Improvement Commission ("PIC") by submitting a written request for such a hearing to the Commissioner. Such hearing shall be heard at the next regularly scheduled hearing or within 30 days. The PIC shall issue a decision within ten days and any decision shall be subject to M.G.L. Chapter 30A.

(F) *Fees for Certificate of Compliance.* The nonrefundable application fee for each yearly Certificate of Compliance shall be $100 to cover the administrative costs of processing the application plus an annual nonrefundable fee of $25 per newsrack to cover the administrative costs of monitoring compliance with these provisions.

(G) *Amending Certificate of Compliance.* If, within the applicable year after the Commissioner has issued a Certificate of Compliance, the certificate holder wishes to install additional newsracks, beyond those which have been approved under division (D) above, the certificate holder must submit an application to amend the Certificate of Compliance. Only the $25 per newsrack nonrefundable fee shall apply to such amendments.

(CBC 1985 16-38.2; Ord. 2013 c. 4)

16-38.3 Installation.

(A) *Stickers.* Each newsrack shall prominently display the newsrack sticker issued by the Commissioner pursuant to the provisions of Subsection 16-38.2(D). The sticker must be adhered in a clearly visible location on the upper right-hand corner of the street-facing side of the newsrack. The Commissioner will give the certificate holder until the expiration of 30 days of issuance of stickers to affix stickers to permitted newsracks.

(B) *Standards.* Any newsrack placed in any part of the public way shall be:

(1) Made of metal, plastic or an equivalent sturdy material approved by the Commissioner, with a clear plastic window through which the printed material is dispensed, and shall not be more than 50 inches in height and not more than 32 inches in length and width;

(2) Sufficiently weighted and secure so as not to be easily moved or tipped over; and

(3) Completely enclosed, with a self-closing door that is either self-latching or otherwise requires manual or mechanical release at each use.

(C) *Placement.*

(1) Placement of any newsracks must be done in accordance with Subsections 16-38.2(C) and (D) and division (D) below, the regulations of the Architectural Access Board, 521 CMR and subject to the following prohibitions. Newsracks shall be placed parallel to and not less than 18 inches nor more than 24 inches from the edge of the curb. No newsrack shall be placed within 150 feet of another newsrack containing the same newspaper or periodical unless approved by the Commissioner after a demonstration that the placement of two such newsracks would not impair traffic, affect accessibility or otherwise create a hazardous situation. Newsracks placed near a building or structure must be placed parallel to and not more than 6 inches from the wall and shall not be placed:

(a) At any location whereby the clear space for pedestrian passage is reduced to less than 4 feet;

(b) Within 5 feet of any marked or unmarked crosswalk;

(c) Within 5 feet of any fire hydrant, fire lane, fire call box or other emergency facility;

(d) Within 5 feet of any traffic control signal or traffic sign;

(e) Within 5 feet of any mailbox, bicycle rack, city trash receptacle, telephone booth or stand;

(f) Within 5 feet of any part of a curb return of a curb ramp or driveway, or in the case of a curb ramp or driveway without a curb return, within 5 feet of the point where the curb edgestone or edging begins a change in grade toward the driveway or ramp on each side thereof, or in the case of a termination of the curb, edgestone or edging without a change in grade or a turn, within 5 feet of the point of the same terminates on each side of the ramp or driveway;

(g) Within 5 feet ahead or 15 feet to the rear of any designated bus stop, taxi stand, valet parking area, loading zone or fire lane; and

(h) Which in any way protrudes onto a street or interferes or hinders city removal of snow, ice and debris from the streets and sidewalks.

(2) Should circumstances require relief from a placement provision set forth above, the Commissioner shall have the discretion to grant relief upon a demonstration of actual hardship and of non-interference with the safe and efficient operation of the public way by the certificate holder. The Commissioner shall have the sole discretion to determine whether a proposed location interferes with the safe and efficient operation of the public way, and the presumption shall be that proposed locations that do not conform to the standards of divisions (C)(1)(a) through (C)(1)(h) above interfere.

(D) *Placement at designated high traffic areas.* In the interest of maintaining safe, accessible and unobstructed pedestrian flow, the Commissioner may designate certain areas of the city as high pedestrian traffic areas. Freestanding newsracks shall not be allowed in such designated areas. The Commissioner shall determine the appropriate placement of newsracks, through the use of corrals or other similar devices as the Commissioner deems necessary. The Commissioner is authorized to establish high pedestrian traffic areas subject to the following requirements:

(1) The Commissioner shall determine the location of the corrals or other similar devices consistent with the purpose and intent of this Section based on the following criteria:

(a) Whether the area has a large amount of pedestrian traffic;

(b) Whether limited space is available for freestanding newsracks; and

(c) Whether said designation is consistent with the goal of eliminating pedestrian congestion and enhancing pedestrian safety in the area.

(2) (a) Within five days of designating a high pedestrian traffic area, the Commissioner shall send notice to all operators. The notice shall contain the following information:

1. The precise area being designated;

2. The date the designated area regulations will go into effect, which shall be at least 30 days after sending the notice; and

3. The procedure for obtaining a slot in the area corral or other similar device.

(b) The Commissioner shall approve placement of newsboxes in designated devices within high traffic area locations on a first come, first serve basis. No preference shall be given to operators who may have had newsracks in a particular location prior to the effective date of this Section. No publication shall be approved for more than one location at any particular high traffic area.

(E) *Attachment to property.* No operator shall chain or otherwise attach any newsrack to any other newsrack, tree, street light post, traffic signal of sign or other city infrastructure in the public way.

(F) *Groupings of newsracks.* Newsracks may be grouped together side-by-side; provided that no group of newsracks extends beyond four newsracks placed side-by-side along a curb and an open space of not less than 5 feet unimpeded by any commonwealth- or city owned infrastructure components or any piece of street furniture separates each group of newsracks. Notwithstanding this permissible grouping, no newsrack may be grouped with any other newsrack unless such location has been approved pursuant to Subsections 16-38.2(C) and (D).

(G) *Advertising prohibited.* It shall be unlawful for any person to use a newsrack for advertising or publicity purposes other than dealing with the display, sale or purchase of the publications dispensed therein.

(CBC 1985 16-38.3; Ord. 2013 c. 4)

16-38.4 Maintenance.

(A) *Condition.* Each newsrack shall be maintained in a state of good repair and in a neat and clean condition, and free of accumulations of outdated printed materials, trash, rubbish or debris.

(B) *Service.* Each newsrack shall be regularly serviced so that:

(1) It is kept reasonably free of graffiti;

(2) It is kept reasonably free of chipped, faded, peeling and cracked paint or rust and corrosion;

(3) The clear plastic window through which the printed material is dispensed is not broken and is kept reasonably free of tears, peeling or fading;

(4) The structural parts of the newsrack are not broken or unduly misshapen; and

(5) The immediate area surrounding and underneath the newsrack is kept reasonably free of dirt and debris.

(CBC 1985 16-38.4; Ord. 2013 c.4)

16-38.5 Enforcement.

(A) *Nonconforming newsracks.* Any newsrack found not to be in compliance with this Section shall be subject to the enforcement provisions contained herein.

(B) *Enforcement.* The Commissioner shall enforce the provisions of this chapter and shall have the authority to issue regulations for the purpose of enforcement.

(1) If a newsrack is placed in the public way without a newsrack sticker as required by Subsection 16-38.3(A), the Commissioner may remove it from the public way immediately and may dispose of such newsrack immediately.

(2) Upon a determination that a newsrack permitted pursuant to Subsection 16-38.2(D) placed in any part of a public way is damaged in a manner which poses an immediate threat to public safety, or has profane, racist or sexually-explicit graffiti present on it, the Commissioner may remove such newsrack immediately. The Commissioner shall send notice to the individual provided pursuant to Subsection 16-38.2(C)(1) or (C)(2), informing the certificate holder that the newsrack has been removed, the location of the facility where the newsrack has been stored and that it will be disposed of in ten days, unless the certificate holder retrieves the newsrack.

(3) Upon a determination by the Commissioner that a newsrack permitted pursuant to Subsection 16-38.2(D) is in violation of 16-38.3 or 16-38.4, excluding those violations stipulated in divisions (B)(1) and (B)(2) above, the certificate holder shall have five days to correct the violation. Upon a determination of such a violation, the Commissioner shall send notice of the violation to the individual provided pursuant to Subsection 16-38.2(C)(1) or (C)(2). Such notice shall include:

(a) The newsrack sticker number and location;

(b) The date of the incident, inspection or other cause giving rise to the violation;

(c) A brief and concise statement of the facts causing the violation; and

(d) A statement informing the individual that at the expiration of five days from the date of notice the Commissioner shall be free to remove the newsrack from the street if the violation has not been corrected and that at the expiration of 15 days from the date of notice the Commissioner shall be free to dispose of the newsrack unless the newsrack is retrieved and the violation is corrected.

(4) A certificate holder may comply with its obligation under Subsection 16-38.5(3) to correct the violation by permanently replacing the newsrack with a properly-stickered newsrack, or by temporarily positioning another newsrack in place of the offending newsrack while the violation is corrected. In the event that the certificate holder elects to use a temporary replacement, it shall:

(a) Give the Commissioner written notice of the location including the side of the street and/or corner at which the newsrack is temporarily placed and the date and time by which a properly stickered newsrack will be returned to the position; and

(b) Return a properly-stickered newsrack to the position by the date specified in the notice of temporary replacement.

(5) Any person aggrieved by Subsection 16-38.5(3) may appeal such action to the Public Improvement Commission by submitting a written request for such a hearing to the Commissioner before the expiration of ten days from the date of notice. Such hearing shall be heard at the next regularly scheduled hearing. The Public Improvement Commission shall issue a decision within ten days and any decision shall be subject to M.G.L. Chapter 30A.

(CBC 1985 16-38.5; Ord. 2013 c. 4)

16-38.6 Abandonment.

(A) *Abandonment.* Newsracks properly installed pursuant to this Section shall be deemed abandoned if no printed material is found for a period of more than ten days.

(B) *Notice and removal.* Upon a determination that a newsrack is abandoned, the Commissioner shall remove the newsrack and send notice to the individual provided pursuant to Subsection 16-38.2(C)(1) or (C)(2), informing the certificate holder that the newsrack has been removed, the location of the facility where the newsrack has been stored and that it will be disposed in ten days, unless the certificate holder retrieves the newsrack.

(C) *Voluntary abandonment.* In the event that a certificate holder voluntarily abandons a newsrack location, the certificate holder shall notify the Commissioner, completely remove the newsrack and restore the public way to a safe condition.

(CBC 1985 16-38.6; Ord. 2013 c. 4)

16-38.7 Emergency Removal.

(A) The placement of any newsrack in the public way pursuant to the issuance of a Certificate of Compliance shall be subject to an agreement by the certificate holder that the certificate holder agrees to remove the newsrack, and agrees to pay to the city the reasonable cost of removing the newsrack, whenever the Commissioner determines that removal by the certificate holder or removal by the city is required to prevent an imminent threat to public safety.

(B) When the Commissioner determines that removal of a newsrack is required to prevent an imminent threat to public safety, the Commissioner shall endeavor to provide reasonable notice to the individual provided pursuant to Subsection 16-38.2(C)(1) or (C)(2) instructing them to remove newsracks in the time and fashion deemed necessary by the Commissioner. When reasonable notice is not possible, or newsrack removal has not occurred prior to the date and time stipulated in emergency removal notices, the city shall have the right to remove newsracks immediately through any public Officer, employee, contractor or other authorized representative of the city at the lowest reasonable cost and shall notify the certificate holder of such removal, the sticker numbers of the newsracks removed, and the total cost of removal for the certificate holder's newsracks as soon as practicable. The certificate holder shall pay the city the removal costs indicated.

(CBC 1985 16-38.7; Ord. 2013 c. 4)

16-38.8 Fees.

(A) A newsrack removed pursuant to the regulations set forth in Subsections 16-38.5 or 16-38.6 may be retrieved by the certificate holder within 15 days of its removal upon payment of a removal fee of $50 plus a storage fee often $10 per day, to a maximum combined removal and storage fee of $200 per newsrack.

(B) After 15 days, any newsracks removed by the Commissioner pursuant to this Section shall be deemed "abandoned property" and shall be disposed of.

(C) Failure of a certificate holder to retrieve a newsrack within the specified 15-day period shall not operate to dismiss any fees owed to the city for removal and storage of such newsrack. Unpaid fees accrued pursuant to this Subsection shall be considered a debt payable to the city.

(CBC 1985 16-38.8; Ord. 2013 c. 4)

16-38.9 Effect on Other Laws.

Nothing in this Section shall affect the adoption of regulations affecting newsracks by other government bodies, such as historic district commissions, to the extent such bodies are authorized to adopt such regulations.

(CBC 1985 16-38.9; Ord. 2013 c. 4)

16-38.10 Severability.

The provisions of this Section shall be severable and if any Section, part or portion hereof shall be held invalid for any purpose by any court of competent jurisdiction, the decision of such court shall not affect or impair any remaining Section, part or portion thereof.

(CBC 1985 16-38.10; Ord. 2013 c. 4)

16-38.11 Initial Application Acceptance Date.

The Commissioner shall send written notice to all operators affected by this Section informing them of the date when the Commissioner will accept the first applications for Certificates of Compliance. The Commissioner shall send said notice at least 30 days prior to the initial application acceptance date.

(CBC 1985 16-38.11; Ord. 2013 c. 4)

16-38.12 Effective Date.

This Section shall take effect 90 days from the date of approval.

(CBC 1985 16-38.12; Ord. 2013 c. 4)

16-39 SALE OF DANGEROUS INSTRUMENTS.

16-39.1 Prohibition of Sale of Dangerous Instruments.

(A) No person shall sell, give or deliver to any person under 18 years of age (hereinafter referred to as "minor") any of the following:

(1) Knife having a blade with a length of 2 inches or more;

(2) Ice pick or similar implement having a metal pointed shaft and handle; or

(3) Straight edged razor or razor blade fitted with a handle.

(B) Transient vendors, peddlers or hawkers, as defined in M.G.L. Chapter 101 (licensed or unlicensed) are prohibited from selling the above listed dangerous instruments in the city.

(CBC 1985 16-39.1; Ord. 1997 c. 9 § 1; Ord. 2001 c. 1) Penalty, see Subsection 16-39.2

16-39.2 Penalty.

Any person found to be in violation of this Section shall be fined $300 per offense. Enforcement of this Section shall be by non-criminal disposition as provided by in M.G.L. Chapter 40, Section 21D or by the filing of a criminal complaint at the appropriate venue.

(CBC 1985 16-39.2; Ord. 1997 c. 9 § 2)

16-39.3 Exemption.

The sale, gift, loan or delivery of any of the instruments detailed in Subsection 16-39.1 by a parent or an adult who is an immediate family member of the minor, to include siblings and grandparents, shall not be a violation of this Section.

(CBC 1985 16-39.3; Ord. 1997 c. 9 § 3)

16-39.4 Licensing Requirements for Stores Selling Certain Knives.

(A) Any store, except as provided in divisions (A)(1) and (A)(2) below, which sells knives having a fixed or locking blade of 2 inches or more but not cutlery, shall obtain a license from the Licensing Unit of the Boston Police Department, hereinafter referred to as the Licensing Unit. For purposes of this Section, the term ***CUTLERY*** shall mean utensils used as tableware or used for cutting and eating foods. The following stores shall have the following meanings for the purpose of this Section and are exempt from the licensing provisions of this Section.

(1) ***DEPARTMENT STORE.*** A large retail store offering a variety of merchandise and services organized into separate Departments and commonly part of a chain.

(2) ***HARDWARE STORE.*** A store in the business of selling metal goods and utensils, such as locks and tools.

(B) A convenience store, as defined herein, shall not be considered a department store as defined pursuant to division (A)(1) above. For purposes of this Section, a ***CONVENIENCE STORE*** shall mean a retail business with a primary emphasis placed on providing the public with a convenient location to quickly purchase a limited variety of consumable products. A convenience store shall be subject to the licensing provisions of this Section.

(C) The Licensing Unit shall issue a license only if the applicant's license is not currently in a term of revocation or the applicant is not currently in violation of these Sections or any regulations with any violations left unremedied or any fines left unpaid. An applicant must be free from violations of the provisions of these Sections and Subsections for one year before application for a license. In determining suitability for a license, the Licensing Unit shall consider previous violations of city ordinances and if the applicant has previous violations of ordinances, the license shall be denied. A license issued under the provisions of this Section shall be renewed automatically as provided by the regulations promulgated by the Boston Police Department.

(D) Upon denial of a license the licensing unit shall notify the applicant in writing. The notice shall state the reasons for denial of the license and establish a date and time for a hearing. The hearing date shall be no earlier than seven days after the date of said notice. The applicant shall have the opportunity to be heard at such hearing and shall be notified of the licensing unit's decision and reasons in writing.

(E) Stores licensed to sell knives under the provisions of this Section shall be prohibited from selling machetes and other knives as defined in M.G.L. Chapter 269, Section 12.

(F) The Licensing Unit shall promulgate rules and regulations relating to the licensing of the stores under the provisions of this Section. The Licensing Unit shall revoke a license issued pursuant to this Section for a violation of Subsection 16-39.1.

(G) Any fine imposed for violations of this Section shall be subject to the provisions of M.G.L. Chapter 40U and Section 16-55 relating to the collection of municipal fines.

(H) Any person violating the provisions of Subsection 16-39.4 shall be punished by a fine not exceeding $300.

(CBC 1985 16-39.4; Ord. 2011 c. 15; Ord. 2013 c. 2)

16-40 LIMITING TOBACCO ACCESS BY YOUTH.

16-40.1 Definitions.

For the purpose of this Section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

EMPLOYEE. Any individual who performs services for an employer in return for wages or profit.

EMPLOYER. Any individual, partnership, association, corporation, trust or other organized group of individuals, including the city or any Agency thereof, which regularly uses the services of two or more employees.

INDIVIDUAL. Any employee, volunteer or any other person who patronizes an area where tobacco products are sold.

RETAIL STORE. Any establishment selling goods or articles or personal services to the public.

SELF SERVICE DISPLAY. (Also known as ***FREE-STANDING DISPLAY***). A display from which individual packs or cartons of tobacco products may be selected by a customer.

TOBACCO VENDING MACHINE. Any machine or device designated for or used for the vending of cigarettes, cigars, tobacco or tobacco products upon the insertion of coins, trade checks, swipe cards, slips or any other form of payment.

(CBC 1985 16-40.1; Ord. 1997 c. 1 § I)

16-40.2 Tobacco Sales to Minors Prohibited.

(A) *Sale to minors.* In conformance with M.G.L. Chapter 270, Section 6, whoever sells a cigarette, chewing tobacco, snuff or any tobacco in any of its forms to any person under the age of 18 or, not being his or her parent or guardian, gives a cigarette, chewing tobacco, snuff or tobacco in any of its forms to any person under the age of 18, shall be punished according to the fine schedule set forth in division (H) below.

(B) *Posting commonwealth law.*

(1) In conformance with M.G.L. Chapter 270, Section 7, a copy of M.G.L. Chapter 270, Section 6, shall be posted conspicuously by the owner or other person in charge thereof in the shop or other place used to sell cigarettes at retail.

(2) The notice to be posted shall be provided by the commonwealth's Department of Public Health and made available from the Boston Public Health Commission. Such notice shall be at least 48 square inches and shall be posted at the cash register which receives the greatest volume of single cigarette package sales in such a manner so that it may be readily seen by a person standing at or approaching the cash register. Such notice shall directly face the purchaser and shall not be obstructed from view or placed at a height of less than 4 feet or greater than 9 feet from the floor. For all other cash registers that sell cigarettes, a notice shall be attached which is no smaller than 9 square inches, which is the size of the sign provided by the commonwealth's Department of Public Health. Such notice must be posted in a manner so that it may be readily seen by a person standing at or approaching the cash register. Such notice shall directly face the purchaser and shall not be obstructed from view or placed at a height of no less than 4 feet or more than 9 feet from the floor.

(C) *Permit for location and sales of tobacco.*

(1) After the effective date of this Section, the Public Health Commission of the city will issue a "Permit for Location and Sales" only if:

(a) The applicant's permit is not currently in a term of suspension; and

(b) The applicant is not currently in violation of these Sections or any regulations with any violations left unremedied or any fines left unpaid and such permit will specify the name, address and approved location per the Public Health Commission of the city or their designated Agent(s) for retailers who sell tobacco products.

(2) After the effective date of this Section, all retailers who are required to hold a commonwealth license to sell cigarettes or other tobacco products, will be required to hold and maintain a valid "Permit for Location and Sales" from the city for each location at which tobacco products are sold.

(3) (a) Subsequent to receipt of the permit, the Boston Public Health Commission shall make available and the successful applicant/retailer shall obtain and post in a clear and conspicuous manner signage that states "Sale of cigarettes or any tobacco products to persons under the age 18 is illegal, M.G.L. Chapter 270, Sections 6 and 7. The Boston Public Health Commission shall make available and the successful applicant/retailer shall obtain and post in a clear and conspicuous manner signage that discloses:

1. Current information for reporting violations of the provisions of this Section; and

2. Current referral information about smoking cessation. The Boston Public Health Commission may provide updated signage to retailers during the term of the permit.

(b) Any merchant that does not post the signage required under this Section shall be deemed to be in non-compliance of these provisions and shall be subject to penalties promulgated by the Boston Public Health Commission.

(4) The term of the permit shall be one year.

(5) The fee for a one-year tobacco retailer's "Permit for Location and Sales" is $100 for each tobacco retail location.

(6) A "Permit for Location and Sales" is nontransferable, except a new permit will be issued to a tobacco retailer who changes locations.

(7) During such time that a "Permit for Location and Sales" of tobacco products has been suspended for violations of this Section, all tobacco products must be removed from the premises. Any person or entity selling any tobacco products without said permit shall be fined according to division (H) below until said permit is reinstated by the Public Health Commission of the city or its designated Agent(s).

(D) *Tobacco vending machines.* After the effective date of this Section, it shall be unlawful to sell or distribute any tobacco product through a cigarette vending machine or any other device used in the sale or distribution of tobacco products within the city unless said machine:

(1) Is located in a private club or bar licensed by the Licensing Board of the city to sell or serve alcoholic beverages; and

(2) Is equipped with a lock out device, installed in view of the attendant operating such device and posted with a sign not less than 6 inches by 16 inches reading "Attention! This machine is equipped with a lockout device, to purchase a tobacco product, you must first see the person in charge".

(E) *Out-of-package sales prohibited.* No person or entity may sell or cause to be sold, or distribute or cause to be distributed, any cigarette package that contains fewer than 20 cigarettes.

(F) *Self-service display restrictions.* No retailer shall sell or offer for sale tobacco products by means of a self-service display (also known as "free-standing display") unless such display is in strict compliance with the regulations promulgated by the Office of the Attorney General, specifically including, but not limited to, 940 CMR 21.04.

(G) *Sales by employees.*

(1) In the event of a prospective purchase of cigarettes or other tobacco products at retail by a person age 26 years old or younger, the employee responsible for completion of the sale shall request and examine photographic identification establishing the purchaser's age as 18 years or greater as long as such is not in conflict with federal law.

(2) No commercial entity selling tobacco products at retail shall allow any employee to sell cigarettes or other tobacco products until such employee reads the Boston Tobacco Control Ordinance and commonwealth laws regarding the sale of tobacco and signs a statement, a copy of which will be placed on file in the Office of the employer that he or she understands the Section.

(H) *Penalties, fines, suspension and/or suspension hearings of permit.* It shall be the responsibility of the permit holder and/or individual in charge of the area where tobacco products are being sold to ensure compliance with all Sections of this Section pertaining to their place of business. The permit holder and/or individual in charge of the area permitted for tobacco sales, or persons involved in violation of any of the provisions of this Section may receive.

(1) In the case of a first violation, the permit holder and/or individual in charge of the area permitted for tobacco sales, or persons not in compliance with the provisions of this Section shall receive a fine of $100.

(2) In the case of two violations within 24 months, the permit holder and/or individual in charge of the area permitted for tobacco sales, or persons not in compliance with the provisions of this Section, shall receive a fine of $200 and the permit shall be suspended for seven consecutive business days.

(3) In the case of three violations within 24 months, the permit holder and/or individual in charge of the area permitted for tobacco sales, or persons not in compliance with the provisions of this Section, shall receive a fine of $300 and the permit shall be suspended for 30 consecutive business days.

(4) In the case of four or more violations within 24 months, the permit holder and/or individual in charge of the area permitted for tobacco sales, or person not in compliance with the provisions of the Section shall receive a fine of $400 and the permit shall be suspended for 60 consecutive business days and, upon public notice and comment, the permit may be permanently revoked at the sole discretion of the Public Health Commission.

(5) The Public Health Commission of the city shall provide written notice to the permittee of the intent to suspend a Permit for Location and Sales of Tobacco. The notice shall contain the reasons for the suspension and establish a date and time for a hearing. The date of the hearing shall be no earlier than seven days after the date of said notice. The permittee shall have an opportunity to be heard at such hearing and shall be notified of the Commission's decision and reasons in writing.

(6) Any permit fees and fines collected under this Section shall be used for enforcement of these regulations or for educational programs on the harmful effects of tobacco products.

(I) *Non-criminal disposition.*

(1) Whoever violates any provision of this Section, the violation of which is subject to a specific penalty, may be penalized by the noncriminal method of a disposition as provided in M.G.L. Chapter 40, Section 21D or by filing a criminal complaint at the appropriate venue.

(2) Each day on which any violation exists shall be deemed to be a separate offense:

(a) Penalty of $100 for the first offense;

(b) Penalty of $200 for second offense;

(c) Penalty of $300 for third offense; and

(d) Penalty of $300 for the fourth offense in addition to the provisions of division (H) above.

(CBC 1985 16-40.2; Ord. 1997 c. 1 § II; Ord. 1997 c. 6; Ord. 2004 c. 10; Ord. 2011 c. 11)

16-40.3 Enforcement.

(A) Enforcement of this Section shall be implemented by the Public Health Commission of the city or its designated Agent(s).

(B) Any citizen who desires to register a complaint of noncompliance under the Section may do so by contacting the Public Health Commission of the city or its designated Agent(s).

(CBC 1985 16-40.3; Ord. 1997 c. 1 § III)

16-40.4 Public Education.

The Public Health Commission of the city shall engage in a continuing program to explain and clarify the purposes and requirements of the Section to citizens affected by it, and to guide owners, operators and managers in their compliance with it. Such program may include publication of a brochure for affected business and individuals explaining the provisions of this Section. The Public Health Commission of the city shall respond to any requests from tobacco retailers for assistance in training sales personnel.

(CBC 1985 16-40.4; Ord. 1997 c. 1 § V)

16-40.5 Boston Public Health Commission Authority.

(A) Pursuant to M.G.L. Chapter 111, Section 31 and M.G.L. Chapter 111, Section 2-8A, the Boston Public Health Commission of the city is authorized to fix, revise, determine and collect any fees set forth in this Section.

(B) Pursuant to M.G.L. Chapter111, Section 31 and M.G.L. Chapter 111, Sections 2-6B, 2-7(a)(1) and 2-7(a)(15), the Boston Public Health Commission of the city is further authorized to adopt, amend and repeal reasonable health regulations not inconsistent with any public health regulation of the commonwealth's Department of Public Health or with any other provision of law and to prescribe a penalty for any violation of said regulations according to the nature of the offense.

(C) To the extent this Section conflicts with or is inconsistent with any Boston Public Health Commission regulation, penalty or fee, the Boston Public Health Commission regulation, penalty or fee shall prevail.

(CBC 1985 16-40.5; Ord. 2011 c. 11)

16-41 REGULATING MANNER AND PLACE OF SOLICITATION.

16-41.1 Definitions.

For the purpose of this Section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

AGGRESSIVE MANNER.

(1) Approaching the person being solicited in a manner that is:

(a) Intended to, or is likely to, cause a reasonable person to fear imminent bodily harm or the commission of a criminal act upon property in the person's possession; or

(b) Intended to or is likely to intimidate the person being solicited into responding affirmatively to the solicitation.

(2) Conduct during soliciting that includes:

(a) Intentionally or recklessly making any physical contact with or touching another person in the course of the solicitation, or approaching within an arm's length of the person, except with the person's consent;

(b) Using violent or threatening gestures or profane, offensive or abusive language; or

(c) Intentionally or recklessly blocking or interfering with the safe or free passage of a pedestrian or vehicle.

(3) Closely following or continuing to solicit a person who has been solicited and who has informed the solicitor by words or conduct that such person declines the solicitor's request.

AUTOMATED TELLER MACHINE. A device, linked to a financial institution's account records, which is able to carry out transactions, including, but not limited to: account transfers, deposits, cash withdrawals, balance inquiries and mortgage and loan payments.

AUTOMATED TELLER MACHINE FACILITY. The area comprised of one or more automated teller machines, and any adjacent space which is made available to banking customers after regular banking hours.

BANK. Any association or corporation chartered by the commonwealth under M.G.L. Chapter 168, 170, 171 or 172, or an individual, association, partnership or corporation incorporated or doing a banking business in the commonwealth subject to the supervision of the Commissioner of Banks.

BUS SHELTER. A covered structure at a bus stop providing protection against the weather for people waiting for a bus.

BUS STOP. A place on a bus route, usually marked by a sign, at which buses stop for passengers to alight and board.

CHECK CASHING BUSINESS. A location that houses a person or entity engaged in cashing checks, drafts or money orders for a consideration licensed under M.G.L. Chapter 169A.

PARKING GARAGE. A building designed specifically to be for automobile parking.

PARKING LOT. A cleared area dedicated and intended for parking vehicles.

PUBLIC PLACE. Any area or building owned, leased, operated or controlled by or on behalf of any government, municipality, public authority or public corporation in the city which is generally accessible by the public, including, but not limited to, any city street, sidewalk, bridge, tunnel, park, playground, recreation area, cemetery, school or school grounds, building, facility, driveway, parking lot or parking garage and the doorways and entrances to buildings and dwellings.

SIDEWALK CAFÉ. The portion of the public right-of-way kept, used, maintained and held out to the public as a place where food or drink are served for consumption on the premises, or which is used directly in conjunction with a pedestrian pick-up window.

SOLICIT. To request an immediate donation of money or other thing of value from another person, regardless of the solicitor's purpose or intended use of the item requested. The ***SOLICITATION*** may be, without limitation, by the spoken, written or printed word, bodily gestures, signs, performing or offering to perform any service or by other means of communication.

(CBC 1985 16-41.1; Ord. 2013 c.1)

16-41.2 Prohibited Acts.

(A) No person shall solicit in an aggressive manner in a public place.

(B) No person shall solicit when the person being solicited is:

(1) In a bus shelter or at a bus stop;

(2) In a parking garage or parking lot;

(3) In a sidewalk café;

(4) In a line and waiting to be admitted into a commercial establishment; or

(5) In a crosswalk.

(C) No person shall solicit within 10 feet of:

(1) An automated teller machine or an entrance or exit of an automated teller machine facility during the time it is available for customers' use; or

(2) An entrance or exit to a bank or check cashing business during business hours.

(D) No person shall solicit while walking on, standing on or going into any street or highway used for motor vehicle travel, or any area appurtenant thereto (including medians, shoulder areas, bicycle lanes, turning lanes, ramps and exit ramps).

(CBC 1985 16-41.2; Ord. 2013 c. 1)

16-41.3 Enforcement.

The provisions of this Section may be enforced by the Boston Police Department.

(CBC 1985 16-41.3; Ord. 2013 c. 1)

16-41.4 Penalties.

(A) Any person who violates Subsection 16-41.2 shall be punished by a fine of not more than $100 or by a judicial order of community service in lieu of a fine or some combination thereof.

(B) Any person who continues to violate any Subsection of 16-41.2 after being ordered to stop by a member of the Boston Police Department may be arrested and kept in custody in accordance with M.G.L. Chapter 272, Section 59.

(CBC 1985 16-41.4; Ord. 2013 c. 1)

16-41.5 Severability

16-41.5 Severability.

If any provision in this Section shall be held to be invalid by a court of competent jurisdiction, then such provision shall be considered separately and apart from the remaining provisions, which shall remain in full force and effect.

(CBC 1985 16-41.5; Ord. 2013 c. 1)

16-42 LASER POINTERS.

16-42.1 Definitions.

For the purpose of this Section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

LASER POINTER. Any device that emits light amplified by the stimulated emission of radiation that is visible to the human eye.

PERSON. Any natural person, corporation, partnership, firm, organization or other legal entity.

PUBLIC SPACE. A place to which the public has a right of access, and includes, but is not limited to, any street, highway, parking lot, plaza, transportation facility, place of amusement, park or playground.

SCHOOL PREMISES. The buildings, grounds or facilities, or any portion thereof, owned, occupied or under the custody or control of public or private institutions for the primary purpose of providing educational and recreational instruction to students.

STUDENT. Any person enrolled to attend a public, private or parochial elementary or secondary school in the city.

(CBC 1985 16-42.1; Ord. 1999 c. 2 § 1)

16-42.2 Sales to Minors Prohibited.

It shall be unlawful for any person to give, sell or offer for sale, or cause any person to give, sell or offer to sell a laser pointer to any individual 18 years of age and younger.

(CBC 1985 16-42.2; Ord. 1999 c. 2 § 2) Penalty, see Subsection 16-42.6

16-42.3 Sales Restricted.

(A) No person shall sell or offer for sale laser pointers by means of a self-service display unless such display is located within 10 feet of the checkout counter and in plain view of the cashier or person on duty and in charge of the establishment.

(B) No person shall display laser pointers in any manner or post a sign advertising the availability of laser pointers unless a notice has been posted to it indicating that the sale or giving of laser pointers to persons 18 years of age and younger is a violation of this Section.

(CBC 1985 16-42.3; Ord. 1999 c. 2 § 3) Penalty, see Subsection 16-42.6

16-42.4 Possession Restricted.

(A) No student shall possess a laser pointer on school premises.

(B) No person 18 years of age and younger shall possess a laser pointer while in a public space; provided however, that nothing in this Section shall preclude:

(1) The possession on school premises of a laser pointer by a student 18 years of age or younger for a valid instructional, school-related or employment purpose, where such laser pointer is used under the supervision of a school staff person, other authorized instructor or parent; or

(2) The possession in a public place of a laser pointer by a person 18 years of age and younger, during such person's hours of employment, for a valid employment purpose where such laser pointer is used under the supervision of the employer or its agent.

(CBC 1985 16-42.4; Ord. 1999 c. 2 § 4) Penalty, see Subsection 16-42.6

16-42.5 Harassment by Laser Beams in Public Prohibited.

No person, regardless of age, shall focus, point or shine a laser beam directly or indirectly on another person in a public place or in a moving vehicle in such a manner as is intended to harass or annoy said person or any person operating a moving vehicle.

(CBC 1985 16-42.5; Ord. 1999 c. 2 § 5) Penalty, see Subsection 16-42.6

16-42.6 Penalty.

Any person found to be in violation of this Section shall be fined $300 per offense. Enforcement of this Section shall be by noncriminal disposition as provided by in M.G.L. Chapter 40, Section 21D or by filing a criminal complaint at the appropriate venue.

(CBC 1985 16-42.6; Ord. 1999 c. 2 § 6)

16-43 TRESPASSING ON PRIVATE PROPERTY.

In the city, all delivery personnel, including letter carriers, whether employed by a private firm, a government Agency or government-supported corporation, shall use sidewalks and accepted and approved walkways when accessing private property, and, excepting for necessity or emergency, shall refrain from traversing lawns or other private property not normally used as a walkway by the general public in order to effect delivery.

(CBC 1985 16-43; Ord. 2000 c. 3)

16-44 SALE OF MERCURY THERMOMETERS BANNED.

16-44.1 Definitions.

For the purpose of this Section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

CITY. The City of Boston.

HEALTH CARE FACILITY. Any hospital, nursing home, extended care facility, long-term facility, clinic or medical laboratory, commonwealth or private health or mental institution, clinic, physician's office or health maintenance organization.

MANUFACTURER. Any person, firm, association, partnership, corporation, governmental entity, organization, combination or joint venture that produces a mercury fever thermometer. If the mercury thermometer is produced in a foreign county, the ***MANUFACTURER*** is the importer of domestic distributor.

MERCURY THERMOMETER. A mercury-containing product that is used to measure body temperature. A ***MERCURY-CONTAINING PRODUCT*** is a product, device, instrument or equipment into which elemental mercury or mercury compounds are intentionally added during its formulation or manufacture and in which the continued presence of mercury is desired to provide a specific characteristic or permit a specific function.

(CBC 1985 16-44.1; Ord. 2000 c. 5 § 2.1)

16-44.2 Retail Sale Prohibited.

A person shall not sell or supply (including online retail) mercury fever thermometers to consumers and patients, except by prescription. The manufacturers of mercury fever thermometers shall supply clear instructions on the careful handling of the thermometer to avoid breakage and proper cleanup should a breakage occur with all mercury fever thermometers sold through prescriptions.

(CBC 1985 16-44.2; Ord. 2000 c. 5 § 2.2) Penalty, see Subsection 16-44.6

16-44.3 Manufacturing Prohibited.

It shall be unlawful for any person to manufacture a mercury thermometer in the city.

(CBC 1985 16-44.3; Ord. 2000 c. 5 § 2.3) Penalty, see Subsection 16-44.6

16-44.4 Importation Prohibited.

It shall be unlawful for any facility to import, purchase or distribute a mercury thermometer in the city, except in the case of a medical necessity as determined by a licensed physician.

(CBC 1985 16-44.4; Ord. 2000 c. 5 § 2.4) Penalty, see Subsection 16-44.6

16-44.5 Restriction on the Sale of Mercury Thermometers.

Six months after the adoption of this Section, a person may not sell or supply mercury fever thermometers to consumers and patients.

(CBC 1985 16-44.5; Ord. 2000 c. 5 § 2.5) Penalty, see Subsection 16-44.6

16-44.6 Penalty.

Any person who violates this Section shall be subject to a fine of not more than $700 per unit sold. The Public Health Commission shall have jurisdiction over outreach and enforcement of this Section.

(CBC 1985 16-44.6; Ord. 2000 c. 5 § 2.6)

16-45 PROHIBITING THE CARRYING OF KNIVES OR SIMILAR WEAPONS.

16-45.1 Carrying of Weapons Prohibited.

(A) No person, except as provided by law, shall carry on his or her person, or carry under his or her control in a vehicle, any knife having any type of blade in excess of 2½ inches, ice picks, dirks or similar weapons that are likely to penetrate through Police Officer's ballistic vests, or other object or tool so redesigned, fashioned, prepared or treated that the same may be used to inflict bodily harm or injury to another, except:

(1) When actually engaged in hunting or fishing or any employment, trade or lawful recreational or culinary activity which customarily involves the carrying or use of any type of knife;

(2) In going directly to and/or returning directly from such activities; or

(3) If the knife is being transported directly to or from a place of purchase, sharpening or repair, and if packaged in such a manner as not to allow easy access to the knife while it is being transported.

(B) No person, except as provided by law, shall carry on his or her person, or carry under his or her control in a vehicle, a machete. For purposes of this Section, ***MACHETE*** means a heavy knife at least 18 inches in length and having a blade at least 1½ inches wide at its broadest measurement. This Subsection shall not apply to carrying a machete on one's person or in a vehicle if the machete is carried for the purpose of cutting vegetation or if the machete is being transported for the purpose of cutting vegetation.

(CBC 1985 16-45.1; Ord. 2001 c. 10; Ord. 2008 c. 13 § 1) Penalty, see Subsection 16-45.4

16-45.2 Distribution Exception.

This Section shall not apply to persons who, through entities or establishments engaged in a recognized retail or wholesale business, are involved in the sale, purchase or repair of machetes or knives for trade, sport, hobby or recreation, including without limitation, persons engaged in the transportation to or from such entities or establishments.

(CBC 1985 16-45.2; Ord. 2001 c. 10; Ord. 2008 c. 13 § 2)

16-45.3 Applicability.

Nothing in this Section shall be construed to enhance or diminish any duties of persons described in Subsection 16-45.2, and this Section shall not be introduced or cited in any proceeding as evidence of negligence, recklessness or similar state of mind of such persons.

(CBC 1985 16-45.3; Ord. 2001 c. 10)

16-45.4 Penalty.

Violators of any provision of this Section shall be subject to a fine of not more than $300 for each offense.

(CBC 1985 16-45.4; Ord. 2001 c. 10)

16-45.5 Severability.

The provisions of this Section shall be severable and if any Section, part or portion hereof shall be held invalid for any purpose by any court of competent jurisdiction, the decision of such court shall not affect or impair any remaining Section, part or portion thereof.

(CBC 1985 16-45.5; Ord. 2001 c. 10)

16-46 NONCRIMINAL DISPOSITION OF ZONING VIOLATIONS IN THE CITY.

16-46.1 General Penalty: Noncriminal Disposition of Zoning Violations.

Any person who violates any Section of the Boston Zoning Code, as it may be amended, through the use or occupancy of land, buildings or structures in the city in a manner designated by the Commissioner of the Inspectional Services Department, or the designee or successor thereto (hereinafter "Commissioner" for the purposes of this Section) in Subsection 16-46.3 shall be liable for a specific penalty set forth in Subsection 16-46.4 and may also be penalized by a non-criminal disposition as provided in M.G.L. Chapter 40, Section 21D.

(CBC 1985 16-46.1; Ord. 2003 c. 17 § 1)

16-46.2 Enforcing Person and Regulatory Authority.

The Commissioner shall be the enforcing person for violations under this Section and shall have the authority to promulgate rules and regulations necessary to implement and enforce these Sections.

(CBC 1985 16-46.2; Ord. 2003 c. 17 § 1)

16-46.3 Violations.

Violations under this Section shall include, but not be limited to, the following:

(A) *Auto repair.* Any person who violates any Section of the Boston Zoning Code, as it may be amended, through the use and occupancy of land, buildings or structures in a residential zoning district as defined by the Boston Zoning Code for the purposes described in use items 35A (sale within a building of automotive parts), 36 (sale of automobiles and trucks), 51 (outdoor sale or display of automobiles for sale), 55 (outdoor storage of contractor equipment and materials), 57 (outdoor storage of junk scrap, wrecking or dismantling of motor vehicles), 57A (outdoor storage of damaged motor vehicles), 60 (repair garage), 60A (sale or installation indoors of automotive parts) of Boston Zoning Code Article 8, Section 2 shall be in violation of this Section 16-46. Each day a violation occurs or remains unremedied shall be considered a separate violation.

(B) *Yard parking.* Any person who violates any Section of the Boston Zoning Code, as it may be amended, through the use and occupancy of land, buildings or structures in a residential zoning district as defined in the Boston Zoning Code for the purpose of parking motor vehicles on any front yard, side yard or rear yard as defined in Boston Zoning Code Article 2A shall be in violation of this Section. Each day a violation occurs or remains unremedied shall be considered a separate violation.

(C) *Work without a building permit.* Any person who violates any Section of the Boston Zoning Code, including, but not limited to, Article 4, Section 3, as it may be amended, by performing work on any land, building or structure without the approval of the Commissioner, shall be in violation of this Section. Each day a violation occurs or remains unremedied shall be considered a separate violation.

(D) *Signs.* Any person who violates any Section of the Boston Zoning Code, including, but not limited to, Article 11, as it may be amended, by failing to comply with any sign requirement shall be in violation of this Section. Each day a violation occurs or remains unremedied shall be considered a separate violation.

(CBC 1985 16-46.3; Ord. 2003 c. 17 § 1; Ord. 2009 c. 6)

16-46.4 Enforcement, Penalties and Fines.

(A) A person in violation of this Section, unless otherwise provided, shall incur a civil fine of $150 for the first offense and a civil fine of $300 for the second offense and all subsequent offenses. A person in violation of Subsection 16-46.3 shall incur a civil fine of $50 for the first offense and a civil fine of $100 for the second and all subsequent offenses. Each day a violation occurs or remains unremedied shall be considered a separate violation. The

Commissioner may, at the Commissioner's discretion, issue a written warning for a first offense in lieu of a fine.

(B) A person in violation of this Section may also be subject to enforcement under any other laws in the commonwealth or the city applicable to the same conduct constituting a violation under this Section including a higher penalty whenever a higher penalty is permitted under the M.G.L.; provided, however, that such higher penalty shall be the maximum penalty for each offense. The city shall not be precluded by any enforcement under this Section from concurrently seeking an injunction to restrain a violation.

(C) A person in violation of this Section may appeal enforcement action hereunder pursuant to Boston Zoning Code Article 5, Section 2, and the filing of a timely appeal under Boston Zoning Code Article 5, Section 2 shall not stay further enforcement under any other rule, regulation, ordinance or by-law.

(D) All fines and penalties paid hereunder shall inure to the city.

(CBC 1985 16-46.4; Ord. 2003 c. 17 § 1; Ord. 2009 c. 6)

16-46.5 Severability.

If any provision of these Sections shall be held to be invalid by a court of competent jurisdiction, then such provision shall be considered separately and apart from the remaining provisions, which shall remain in full force and effect.

(CBC 1985 16-46.5; Ord. 2003 c. 17 § 1)

16-47 PROHIBITING THE SALE AND/OR INSTALLATION OF A MUFFLER CUT-OUT OR BY-PASS AND PROHIBITING CERTAIN MODIFICATIONS TO EXHAUST SYSTEMS.

(A) (1) No person shall sell, offer for sale or install on or in any motor vehicle or trailer:

(a) A muffler from which the baffle plates, screens or other original internal parts have been removed and not replaced;

(b) An exhaust system which has been modified in a manner which will result in an amplification or an increase in the noise emitted by the exhaust system; or

(c) A muffler cut-out or by-pass.

(2) A first violation of this Section shall be punishable by a fine of not less than $100 and not more than $250. A second violation of this Section shall be punishable by a fine of not less than $250 and not more than $500. A third and all subsequent violations shall be punishable by a fine of not less than $500 and not more than $1,000.

(B) (1) No person shall park, use or operate a motorcycle, within the city, manufactured subsequent to December 31, 1982 that does not bear the required applicable Federal EPA exhaust system label pursuant to the 40 C.F.R. Volume 24, Part 205, Subparts D and Subpart E.

(2) All violations of division (B)(1) above shall be punishable by a fine of $300.

(3) Commissioner of the Boston Police Department, or his or her designee, shall have the authority to enforce this division (B).

(CBC 1985 16-47; Ord. 2003 c. 18 § 1; Ord. 2009 c. 4)

16-48 BOAT SLIPS AND MOORINGS.

16-48.1 Purpose.

(A) In recent years, there has been a dramatic increase in the use of recreational boats in Boston Harbor. Simultaneously, the city has undertaken increased security measures, and the effectiveness of these security measures requires attentiveness from the Harbormaster and cooperation from the boating community. The boating community plays a unique and valuable role in self-policing itself and insisting on high community standards throughout the waterways, but the security of the Boston Harbor depends on the vigilance of the uniformed and civilian personnel of the Harbormaster.

(B) The city expends considerable funds annually to provide an Office of the Harbormaster and Harbor Patrol craft to enhance and protect public safety, public health and the public welfare. Appropriately, other cities and towns along the commonwealth's coastline have collected user fees that at least partially defray the expense in providing a Harbormaster and a mooring program, and security, however critical it may be, is only a portion of the Harbormaster's duties.

(C) The city, in deference to the history of the recreational boating community and in order to encourage the recreational use of the Boston Harbor, has delayed its demand and collection of such user fees. In fact, Boston Harbor is among the last of the commonwealth's harbors to implement some form of municipal-level harbor-centered user fee. Increased boater population, augmented security requirements and other amplified programmatic demands have combined to make it impossible for the Harbormaster to maintain a responsible and adequate level of service and attention to the boating community without administering a small annual fee to the recipients of the service and attention: boaters that moor or dock their boats in Boston Harbor.

(D) Finally, the city will establish a Waterways Board comprised of persons and organizations with the knowledge and expertise to provide a public forum to ensure the most effective, safe, fair and equitable use of the waterways.

(CBC 1985 16-48.1; Ord. 2004 c. 1 § 1)

16-48.2 Definitions.

For the purpose of this Section, the following definitions shall apply unless the context clearly indicates or requires a different meaning. The terms ***BOAT*** and ***VESSEL*** are not defined terms and are used interchangeably.

BOSTON CITY COUNCIL. The City Council of the City of Boston.

CITY. The City of Boston.

CITY CLERK. The City Clerk of the City of Boston.

CITY WATERWAYS. All waterways within the boundaries of the city, including, but not limited to, harbors, bays and coves, whether publicly or privately owned or controlled, over which the Harbormaster has public safety and/or public health jurisdiction.

COMMERCIAL GROUP MOORING COMPANY. An entity in the business of providing berthing or mooring of boats on a seasonal or transient basis to the general public and that qualifies as a public recreational boating facility.

COMMODORE. The Commodore of a private yacht club in the city that qualifies as a public recreational boating facility.

HARBORMASTER. The Harbormaster of the city.

MAYOR. The Mayor of the city.

PERMIT HOLDER. A person that has applied for and received a permit from the Harbormaster under Subsection 16-48.4 or that has paid the fees and received the decal from the Harbormaster under Subsection 16-48.7.

PERMITTED BOAT. The boat owned by a Permit Holder for which the permit holder received a permit from the Harbormaster under Subsection 16-48.4 or for which the permit holder received a decal from the Harbormaster under Subsection 16-48.7.

PERMITTED MOORING. The mooring for which a permit holder received a permit from the Harbormaster.

PUBLIC RECREATIONAL BOATING FACILITY. A facility for berthing of recreational vessels at which all berths and accessory uses thereto are available for patronage by the general public on a seasonal or transient basis; such facility may be either publicly or privately owned, and may include town piers, commercial rental marinas or community sailing centers or yacht clubs offering open membership to the public; nothing in this definition shall be construed as prohibiting the adoption of minimum eligibility criteria of broad, objective applicability, such as basic knowledge of boating safety or a willingness to make regular work commitments; nor as prohibiting the reservation of a berth for the operator of said facility. This definition is promulgated by the commonwealth's Department of Environmental Protection in its waterways regulations found at 310 CMR 9.00 et seq.

TRANSIENT BOAT. A boat that is in city waterways, including, but not limited to, being moored at a permitted mooring, for no more than 14 successive calendar days nor more than 28 total calendar days in a calendar year.

TRANSIENT MOORING. A permitted mooring that is not dedicated to a permitted boat.

WATERWAYS BOARD. The Boston Waterways Board established pursuant to Subsection 16-48.15.

(CBC 1985 16-48.2; Ord. 2004 c. 1 § 1)

16-48.3 Harbormaster Authorization.

No boat in any city waterway, other than a transient boat, may be moored, docked or anchored at any private dock, marina, boat club, boatyard, yacht club, commercial group mooring company and/or any other public recreational boating facility, without obtaining authorization from the Harbormaster.

(CBC 1985 16-48.3; Ord. 2004 c. 1 § 1)

16-48.4 Permits.

(A) No mooring may be placed in city waterways without a permit, and a permit may be issued only by the Harbormaster upon a written application in accordance with the dates in Subsection 16-48.9. The Harbormaster shall publish and supply a standard form of permit application which shall include, but not be limited to, applicant's complete name, applicant's complete address of primary residence, applicant's residential telephone number, applicant's office telephone number or alternative emergency telephone number, the name of the boat, a description of the boat (name, make, model, year, color, type, draft, length and use), the city/town of the prior year's mooring and the registration or documentation of the boat.

(B) The Harbormaster may not issue a mooring permit under these Sections unless the permit applicant has successfully and timely completed and executed an application for mooring permit, has successfully and timely completed all required forms and/or other applications, and has successfully and timely submitted proof of payment of all applicable taxes (including, if applicable, penalties and interest) and fees. In accordance with 310 CMR 9.07, the Harbormaster shall act on the application within 15 calendar days. The Harbormaster must delineate in writing the reason(s) for a rejection, and if such reasons may be remedied/corrected then such rejected applicant shall be granted 15 calendar days to remedy/correct the reason(s) for rejection, and upon the applicant's satisfactory and timely proffer of written evidence of complete remedy/correction then the Harbormaster shall approve the application and issue the permit within seven calendar days.

(C) If the applicant for renewal of a mooring permit successfully and timely completes and executes an application for mooring permit, successfully and timely completes all required forms and/or other applications, and timely submits proof of payment of all applicable taxes (including, if applicable, penalties and interest) and fees then, absent documented cause for rejection, the Harbormaster shall approve the application and issue the permit within seven calendar days.

(D) Any mooring existing without a permit shall be deemed to be a public nuisance and shall be deemed to be in violation of these Sections and may be removed at the expense of the mooring owner and delivered to the possession of the Harbormaster to a storage area designated by the Harbormaster. The removed mooring:

(1) May be claimed by the mooring owner subject to payment of removal fees, storage fees and any fines that may have accrued; or

(2) May be disposed of pursuant to M.G.L. Chapter 91.

(CBC 1985 16-48.4; Ord. 2004 c. 1 § 1)

16-48.5 Assignment.

(A) (1) In accordance with 310 CMR 9.07(2)(a), the Harbormaster shall provide a written procedure for the fair and equitable assignment from a waiting list for use of vacant or new moorings held by bottom-anchor and ramps associated thereto. Methods for mooring assignment which are appropriate include, but are not limited to, one or more of the following:

(a) Date of application;

(b) Physical characteristics of boats (i.e., size and type); and/or

(c) Purpose of boat (i.e., commercial/recreational or public/private).

(2) The Harbormaster may allow the previous permit holder of a specific mooring to renew, on an annual basis, that specific mooring another

mooring within the control of the Harbormaster.

(B) As noted in Subsection 16-48.9, pursuant to 310 CMR 9.07(2)(d), nothing in these Sections shall be construed to prevent moorings for which permits are issued to a public recreational boating facility from being assigned to individual patrons or members of such facility.

(C) The Waterways Board shall annually review the written procedures, policies and practices of the Harbormaster and the public recreational boating facilities in accordance with Subsection 16-48.15.

(CBC 1985 16-48.5; Ord. 2004 c. 1 § 1)

16-48.6 Fees.

All boats that are moored in city waterways, tied at slips or seasonally rack-stored on waterfront property with launching capacity, shall be assessed an annual fee as recommended by the Waterways Board and approved by the Boston City Council and the Mayor. Until such time as the Waterways Board, Boston City Council and Mayor revise the fee, the fee shall be assessed at the rate of $1 per foot of boat length for residents of the city and $5 per foot of boat length for non-residents. Transient boats, boats exempt from the excise tax pursuant to M.G.L. Chapter 60B, Section 3 and all boat tenders or dinghies less than 12 feet long that belong to or are attached to a permitted boat shall be exempt from this fee.

(CBC 1985 16-48.6; Ord. 2004 c. 1 § 1)

16-48.7 Decals.

In order to evidence payment of the fees assessed in these Sections, the Harbormaster shall issue decals that shall not exceed 3 inches in length by 3 inches in height which shall be affixed to the port side of a permitted boat near the transom. Nothing in this Section requires a permit decal to be affixed to any boat exempt from Subsection 16-48.6. Nothing in this Section prohibits the decal for the current year from being placed over the decal for a previous year. The permit holder shall ensure that the decal remains visible to casual inspection, clear of debris and obstruction.

(CBC 1985 16-48.7; Ord. 2004 c. 1 § 1)

16-48.8 Application Dates.

(A) Applications for mooring permits, including applications for renewal of mooring permits, shall be accepted after January 1 but must be postmarked or submitted to the Harbormaster by April 1 of each calendar year. Applications for renewal of mooring permits that are postmarked or received by the Harbormaster after April 1 but before June 1 shall be assessed a late fee of $25.

(B) Any mooring existing without a permit shall be deemed to be a public nuisance and shall be deemed to be in violation of these Sections and may be removed at the expense of the mooring owner and delivered to the possession of the Harbormaster to a storage area designated by the Harbormaster. The removed mooring:

(1) May be claimed by the mooring owner subject to payment of removal fees, storage fees and any fines that may have accrued; or

(2) May be disposed of pursuant to M.G.L. Chapter 91.

(CBC 1985 16-48.8; Ord. 2004 c. 1 § 1)

16-48.9 Use.

(A) (1) A permitted mooring shall be non-transferable except to a person within the immediate family of the permit holder upon the written approval of the Harbormaster. The Harbormaster may authorize in writing the temporary use of a permitted mooring by a boat other than the permitted boat upon written application of the permit holder. Pursuant to 310 CMR 9.07(2)(d):

(a) Commodores may assign vessels of its individual patrons or members to its permitted moorings and shall notify the Harbormaster of any such assignment but such notification is not required if such assignment is made to a transient boat; and

(b) Commercial group mooring companies may assign vessels of its individual patrons or members to its permitted moorings and shall notify the Harbormaster of any such assignment but such notification is not required if such assignment is made to a transient boat.

(2) Commodores may assign guest vessels to guest moorings or to permitted moorings of its individual patrons or members upon written permission from the permit holder and shall notify the Harbormaster of any such assignment but such notification is not required if such assignment is made to a transient boat.

(B) In accordance with Cooper v. Eisenman, C.A. No. 86-2571-C (D. Mass. March 9, 1988), affirmed 867 F.2d 606 (1st Cir. (Mass.) Dec. 9, 1988), cert. denied 491 U.S. 907 (1989), nothing in this Section shall be construed to prohibit the transfer of a group of permitted moorings pursuant to the sale of a commercial enterprise including, but not limited to, a boatyard, a yacht club, a marina, a boat club, a commercial group mooring company and/or any other public recreational boating facility.

(CBC 1985 16-28.9; Ord. 2004 c. 1 § 1)

16-48.10 Expiration.

All mooring permits expire on February 15 of the calendar year following the issuance but may be renewed pursuant to the provisions of Subsection 16-48.4. A permit holder that sells or transfers ownership of a permitted boat shall notify the Harbormaster immediately upon such sale or transfer, and if the new owner intends to moor the permitted boat at the permitted mooring, then the new owner shall contact the Harbormaster and satisfy the requirements of Subsection 16-48.4.

(CBC 1985 16-48.10; Ord. 2004 c. 1 § 1)

16-48.11 Changes.

(A) No person may move, remove or relocate a mooring without the prior written authorization of the Harbormaster except for normal servicing of moorings and minor realignment of moorings to prevent adverse contact with nearby boats on moorings wherein the mooring is moved:

(1) To its original location; or

(2) No more than 10 feet.

(B) A permit holder shall notify the Harbormaster immediately upon any change in the information provided on the application for a mooring permit.

(CBC 1985 16-48.11; Ord. 2004 c. 1 § 1)

16-48.12 Marking on Mooring.

All permitted moorings shall be visibly marked with the corresponding assigned permit number in font no smaller than 1 inch. The permit holder shall ensure that the marking remains legible to casual inspection, reasonably clear of debris and reasonably unobstructed.

(CBC 1985 16-48.12; Ord. 2004 c. 1 § 1)

16-48.13 Enforcement and Penalties.

(A) The Harbormaster shall enforce the provisions of these Sections. Unless otherwise delineated in these Sections, any violation of these Sections shall subject the person in violation to a fine of $25 for each day the violation persists. As specifically delineated in these Sections, certain violations may subject the applicable mooring to immediate removal.

(B) The Harbormaster may require owners of moorings to provide evidence/documentation of satisfactory periodic inspection of their moorings for fitness and structural integrity.

(CBC 1985 16-48.13; Ord. 2004 c. 1 § 1)

16-48.14 Annual Report.

(A) In an effort to assist the evaluation of the effectiveness of the mooring programs of the city, the Harbormaster, with the cooperation of the Assessor of the city and the Collector-Treasurer of the city, shall annually prepare a report relevant to the city's waterways usage and mooring programs for the calendar year commencing on January 1 and ending on December 31. The annual report shall include, but not be limited to:

(1) The number of boats moored/docked in city waterways;

(2) The number of permitted moorings in city waterways;

(3) The number of applications received for permits

(4) The number of permit holders;

(5) The number of permit holders that are residents of the city;

(6) The number of permit holders that are non-residents of the city;

(7) The number of violations issued by the Harbormaster;

(8) The top three most numerous types of violations issued by the Harbormaster;

(9) A narrative summary of the most significant public safety incidents;

(10) The aggregate amount of fees collected under these Sections;

(11) The aggregate amount of excise taxes collected; and

(12) The aggregate amount of fines collected under these Sections.

(B) Originals of this annual report shall be forwarded to the Waterways Board and filed with the City Clerk no later than January 31 of each calendar year, and the City Clerk shall forthwith forward this annual report to the Mayor and the Boston City Council. The Waterways Board shall file written comments and/or recommendations to the annual report with the City Clerk no later than March 1 of each calendar year, and the City Clerk shall forthwith forward this annual report to the Mayor and the Boston City Council.

(CBC 1985 16-48.14; Ord. 2004 c.1 § 1)

16-48.15 Boston Waterways Board.

(A) Pursuant to these Sections, the Boston Waterways Board shall be established. The Waterways Board is intended and designed to provide a regular forum dedicated to guiding the development and use of the city waterways and the sound implementation of, among others, M.G.L. Chapter 91, M.G.L. Chapter 60B, and the regulations promulgated thereunder.

(B) The Waterways Board shall be comprised of nine volunteer members appointed by the Mayor with the approval of the Boston City Council, and shall include the Harbormaster and representatives from a variety of classes of users of city waterways. The term of all appointees shall be three years, except that the initial terms shall be staggered so that the terms of no more than three appointees terminate in any single year.

(C) The Waterways Board shall annually review:

(1) The written procedures, policies and practices of the Harbormaster and, upon such review, shall make written recommendations to the Harbormaster and shall forward such recommendations to the City Clerk who shall forward them to the Mayor and the Boston City Council;

(2) The written procedures, policies and practices of the Public Recreational Boating Facilities and, upon such review, shall make written recommendations to the Public Recreational Boating Facilities and shall forward such recommendations to the Harbormaster and the City Clerk who shall forward them to the Mayor and the Boston City Council;

(3) The amount of the fees assessed under these Sections and, upon such review, shall make written recommendations to the Harbormaster and shall forward such recommendations to the City Clerk who shall forward them to the Mayor and the Boston City Council; and

(4) The annual report required pursuant to Subsection 16-48.14.

(D) Without compromising public safety and public health, the Waterways Board shall recommend fees, policies, rules and regulations to promote the greatest public access to and public use of the city waterways by residents, visitors, businesses and other interested persons. The policy recommendations of the Waterways Board shall be in writing and shall be filed with the City Clerk who shall forward them to the Mayor and the Boston City Council, and the policy recommendations may include, but not be limited to, appeals processes to mitigate the number of appeals made to the commonwealth's Department of Environmental Protection, inspection requirements for moorings and waterways fees. The Waterways Board may cooperate with any Municipal Harbor Plan Advisory Committees to promote implementation of waterways usage elements of Municipal Harbor Plans in the city. The Mayor with the approval of the Boston City Council, may direct the Harbormaster to adopt or implement specific recommendations made by the Waterways Board, and, to the extent required, shall amend this Code to effect such recommendations. All meetings of the Waterways Board shall be open to the general public with opportunity for public participation.

(CBC 1985 16-48.15; Ord. 2004 c. 1 § 1)

16-48.16 Applicability.

If any provision of these Sections imposes greater restrictions or obligations than those imposed by any other general law, special law, regulation, rule, ordinance, order or policy, then the provisions of these Sections shall control.

(CBC 1985 16-48.16; Ord. 2004 c. 1 § 1)

16-48.17 Regulatory Authority.

In consultation with the Waterways Board, the Harbormaster shall have the authority to promulgate rules and regulations necessary to implement and enforce these Sections. To the extent that the regulations impact the excise tax and the Municipal Waterways Improvement and Maintenance Fund, the Harbormaster shall consult with the Assessor of the city and the Collector-Treasurer of the city.

(CBC 1985 16-48.17; Ord. 2004 c. 1 § 1)

16-48.18 Severability.

If any provision of these Sections shall be held to be invalid by a court of competent jurisdiction, then such provision shall be considered separately and apart from the remaining provisions, which shall remain in full force and effect.

(CBC 1985 16-48.18; Ord. 2004 c. 1 § 1)

16-48.19 Implementation.

The provisions of these Sections shall be effective immediately upon passage, but no fees may be charged until January 1, 2005 and no fines may be assessed until June 1, 2005.

(CBC 1985 16-48.19; Ord. 2004 c. 1 § 1)

16-49 IDENTIFYING JACKETS FOR VALET PARKERS.

16-49.1 Purpose.

The Boston Transportation Department has established different parking regulations to divide the city's limited parking among residential and commercial uses. Regulations on parking include the use of meters and the issuance of permits, such as the residential parking permit and valet parking permit. The Boston Transportation Department's Traffic Rules and Regulations govern valet parking operations and the issuance of valet parking permits, and Article IVA, Section 2 of these regulations require valet parking personnel to use only designated valet parking zones for the discharge and receiving of passengers while Article IVA, Section 7.2 prohibits valet parking of a car in any space that is not in an approved off-street parking facility. These regulations seek to ensure that valet parking personnel do not park cars in spaces that would otherwise be available to visitors and residents in a neighborhood. City personnel face difficulty enforcing these provisions, however, because valet parking personnel are not easily distinguished from the public. Valet parking personnel are able to evade the restrictions and park illegally at meters, in resident parking spaces and other inappropriate locations. Enhancing the means of enforcing these parking regulations will help ensure the proper use of on-street parking as delineated in the regulations of the Boston Transportation Department. If able to distinguish between valet parking personnel and the general public, the city personnel enforcing parking restrictions and Valet Parking Permits could more easily identify violations of these regulations.

(CBC 1985 16-49.1; Ord. 2004 c. 9)

16-49.2 Definitions.

For the purpose of this Section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

BOSTON TRANSPORTATION DEPARTMENT. The Boston Transportation Department or its successor.

CBC. The City of Boston Code of Ordinances.

CITY. The City of Boston.

VALET PARKING OPERATOR. Any employee or agent of a person, business, establishment or corporation granted a valet parking permit pursuant to Article IVA of the Traffic Rules and Regulations of the Boston Transportation Department who is engaged in receiving or discharging passengers or loading or unloading baggage from a vehicle, making arrangements to remove a vehicle to a designated off-street parking facility, parking a vehicle or otherwise in control of a vehicle subject to valet parking requirements pursuant to Article IVA of the Traffic Rules and Regulations of the Boston Transportation Department.

VALET PARKING PERMIT. A permit issued to a person, business, establishment or corporation pursuant to Article IVA of the Traffic Rules and Regulations of the Boston Transportation Department.

(CBC 1985 16-49.2; Ord. 2004 c. 9)

16-49.3 Prohibition.

(A) No valet parking operator who is engaged in providing valet services, including, but not limited to, receiving or discharging passengers or loading or unloading baggage from a vehicle, making arrangements to remove the vehicle to a designated off-street parking facility, parking a vehicle or otherwise in control of a vehicle subject to valet parking requirements, may engage in such activities unless the valet parking operator is wearing a jacket or shirt clearly marked “VALET” across the back in reflective lettering that shall be highly contrasting with the background/field/screen (i.e., dark-colored reflective lettering on light-colored background or light-colored reflective lettering on dark-colored background); each individual letter of the word “VALET” shall be no smaller than 3 inches in height. The front of the jacket or shirt worn by the valet parking operator shall include the name of the person, business, establishment or corporation granted a valet parking permit.

(B) Compliance with these Sections shall require the jacket or shirt required in this Section to be the outermost garment worn by the valet parking operator.

(CBC 1985 16-49.3; Ord. 2004 c. 9)

16-49.4 Enforcement and Penalties.

(A) The Boston Transportation Department, including, but not limited to, the Parking Clerk, or his or her designee or agent, and the Boston Police Department shall have the authority to enforce the provisions of this Section pursuant to Section 6-6 and to Article IVA of the Traffic Rules and Regulations of the Boston Transportation Department.

(B) Any violation of this Section may be subject to a fine of $100, as well as any other parking violation fines and penalties as set forth in Section 6-6 and in the Traffic Rules and Regulations of the Boston Transportation Department. A penalty of $33 shall be assessed if the fine remains unpaid 21 days after issuance of a notice of such violation.

(C) Two or more violations of this Section in a calendar year by a valet parking operator may result in the suspension or revocation of the valet parking permit according to the regulations set forth in Section 9 of Article IVA of the Traffic Rules and Regulations of the Boston Transportation Department.

(D) No valet parking permit may be renewed, be removed from suspension, or be reinstated following revocation until all fines issued thereunder have been fully satisfied.

(CBC 1985 16-49.4; Ord. 2004 c. 9)

16-49.5 Exemptions.

Hotels with uniformed door and valet services shall be exempt from the requirements of these Sections. Addresses/buildings that are wholly residential with uniformed door and valet services shall be exempt from the requirements of these Sections.

(CBC 1985 16-49.5; Ord. 2004 c. 9)

16-49.6 Applicability.

If any provision of these Sections imposes greater restrictions or obligations than those imposed by any other general law, special law, regulation, rule, ordinance, order or policy then the provisions of these Sections shall control.

(CBC 1985 16-49.6; Ord. 2004 c. 9)

16-49.7 Regulatory Authority.

The Boston Transportation Department shall have the authority to promulgate rules and regulations necessary to implement and enforce these Sections.

(CBC 1985 16-49.7; Ord. 2004 c. 9)

16-49.8 Severability.

If any provision of these Sections shall be held to be invalid by a court of competent jurisdiction, then such provision shall be considered separately and apart from the remaining provisions, which shall remain in full force and effect.

(CBC 1985 16-49.8; Ord. 2004 c. 9)

16-49.9 Implementation.

The provisions of these Sections shall be effective immediately, but no penalties are authorized until the sooner of:

(A) Boston Transportation Department’s approval of a valet parking permitholder’s application for or renewal of a valet parking permit; or

(B) July 1, 2005.

(CBC 1985 16-49.9; Ord. 2004 c. 9)

16-50 AFTER-HOURS PARTIES.

16-50.1 Purpose.

The incidences of gatherings known as “house parties” or “after-hours parties” which typically occur in the late-night and early-morning hours have a history of disturbing residents of the city, but they have recently begun to attract violence into neighborhoods. The Boston Police Department has instituted “Operation Party Time” and other programs as direct responses to these disturbances and acts of violence. These Sections are intended to

provide the authorities with some legislative tools including civil penalties and fines, to assist the Boston Police Department with its efforts to stop such parties in progress and prevent future occurrences of them to enhance the public safety of the city and to improve the quality of life in the neighborhoods of the city.

(CBC 1985 16-50.1; Ord. 2005 c. 5)

16-50.2 Definitions.

For the purpose of this Section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

AFTER-HOURS PARTY. An unpermitted or unlicensed gathering of individuals at a residential dwelling unit after 11:00 p.m. at which money is collected as an admission charge and at which alcohol is served.

BPD. The Boston Police Department.

CITY. The City of Boston.

OCCUPANT. Any invitee, licensee, lessee or tenant in a residential dwelling unit, including, but not limited to, a house, a condominium or an apartment.

OWNER. Any person or entity that owns a residential dwelling unit, including, but not limited to, a house, a condominium or an apartment.

(CBC 1985 16-50.2; Ord. 2005 c. 5)

16-50.3 Prohibitions.

The prohibitions and fines in this Section shall supplement any and all other civil and/or criminal penalties allowed by law, ordinance, code or regulation, specifically including, but not limited to, Section 16-26.

(A) No occupant of a residential dwelling unit shall organize, host, manage, promote, facilitate, suffer or allow the occurrence of an after-hours party. Each and every violation of this provision shall be subject to a fine of $300.

(B) No owner of a residential dwelling unit shall organize, host, manage, promote, facilitate, suffer or allow the occurrence of an after-hours party. Each and every violation of this provision shall be subject to a fine of $300 except in the event of an off-site owner/landlord in which case the off-site owner/landlord shall be issued a written notice of violation/warning for a first incident and shall be subject to the fine in this Subsection for the second such violation and for each and every violation thereafter.

(C) No person shall serve alcohol or otherwise act as a bartender during or at an after-hours party. Each and every violation of this provision shall be subject to a fine of $300.

(D) No owner or occupant shall hire, employ, encourage, manage, facilitate, suffer or allow a person to serve alcohol or otherwise act as a bartender during or at an after-hours party. Each and every violation of this provision shall be subject to a fine of $300 except in the event of an off-site owner/landlord in which case the off-site owner/landlord shall be issued a written notice of violation/warning for a first incident and shall be subject to the fine in this Subsection for the second such violation and for each and every violation thereafter.

(E) No person shall collect money in advance of, during or at an after-hours party for admission to an after-hours party. Each and every violation of this provision shall be subject to a fine of $300.

(F) No owner or occupant shall hire, employ, encourage, manage, facilitate, suffer or allow a person to collect money in advance of, during or at an after-hours party for admission to an after-hours party. Each and every violation of this provision shall be subject to a fine of $300 except in the event of an off-site owner/landlord in which case the off-site owner/landlord shall be issued a written notice of violation/warning for a first incident and shall be subject to the fine in this Subsection for the second such violation and for each and every violation thereafter.

(G) No person, commonly referred to as a “DJ”, shall deploy or use any electric, electronic, technical, computer or other audio equipment to provide musical entertainment at an after-hours party in a manner that violates the unreasonable noise ordinances of the city. Each and every violation of this provision shall be subject to a fine of $300. Any electric, electronic, technical, computer or other audio equipment to provide musical entertainment at an after-hours party may be confiscated by the Boston Police Department and may be retrieved only upon the full payment of any fine issued pursuant to this Subsection and upon the full payment of a storage fee in the amount of $20 per day or portion thereof that the equipment is stored.

(H) No owner or occupant shall hire, employ, encourage, manage, facilitate, suffer or allow a person, commonly referred to as a “DJ”, to deploy or use any electric, electronic, technical, computer or other amplified audio equipment to provide musical entertainment at an after-hours party in a manner that violates the unreasonable noise ordinances of the city. Each and every violation of this provision shall be subject to a fine of $300 except in the event of an off-site owner/landlord in which case the off-site owner/landlord shall be issued a written notice of violation/warning for a first incident and shall be subject to the fine in this Subsection for the second such violation and for each and every violation thereafter.

(I) No person shall purchase or procure alcohol for service or sale at an after-hours party. Each and every violation of this provision shall be subject to a fine of $300.

(CBC 1985 16-50.3; Ord. 2005 c. 5)

16-50.4 Applicability.

If any provision of these Sections imposes greater restrictions or obligations than those imposed by any other general law, special law, regulation, rule, ordinance, order or policy, then the provisions of these Sections shall control.

(CBC 1985 16-50.4; Ord. 2005 c. 5)

16-50.5 Regulatory Authority.

The Commissioner of the Boston Police Department shall have the authority to promulgate rules and regulations necessary to implement and enforce these Sections.

(CBC 1985 16-50.5; Ord. 2005 c. 5)

16-50.6 Severability.

If any provision of these Sections shall be held to be invalid by a court of competent jurisdiction, then such provision shall be considered separately and apart from the remaining provisions, which shall remain in full force and effect.

(CBC 1985 16-50.6; Ord. 2005 c. 5)

16-50.7 Implementation.

The provisions of these Sections shall be effective immediately upon passage and all provisions shall be enforced immediately but no monetary fine shall be imposed pursuant hereto until 30 days after passage.

(CBC 1985 16-50.7; Ord. 2005 c. 5)

16-51 CRACK PIPES.

16-51.1 Prohibition Against Sale.

No person shall sell or display for sale a device used to smoke freebase or crack cocaine known as a “crack pipe”. A crack pipe is generally made from a small glass tube that is on average, 4 inches to 5 inches long and approximately ¼ inch in diameter and is sometimes referred to as a “stem”, “horn”, “blaster” or “straight shooter”. Crack pipes sometimes contain a small paper flower and may be promoted as a romantic gift with the buyers usually requesting a “rose” or a “flower”.

(CBC 1985 16-51.1; Ord. 2007 c. 4)

16-51.2 Prohibition Against Possession.

No person shall possess a device used to smoke freebase or crack cocaine known as a “crack pipe”. A crack pipe is generally made from a small glass tube that is on average, 4 inches to 5 inches long and approximately ¼ inch in diameter and is sometimes referred to as a “stem”, “horn”, “blaster” or “straight shooter”. Crack pipes sometimes contain a small paper flower and may be promoted as a romantic gift with the buyers usually requesting a “rose” or a “flower”.

(CBC 1985 16-51.2; Ord. 2007 c. 4)

16-51.3 Penalty.

A violation of these Sections shall be punished by a fine in the amount of $300. Each and every crack pipe shall be considered to be a separate and distinct violation.

(CBC 1985 16-51.3; Ord. 2007 c. 4)

16-51.4 Implementation.

The provisions of these Sections shall be effective immediately upon passage.

(CBC 1985 16-51.4; Ord. 2007 c. 4)

16-52 MAINTENANCE OF VACANT, FORECLOSING RESIDENTIAL PROPERTIES.

16-52.1 Purpose.

(A) It is the intent of this Section to protect and preserve public safety, security and quiet enjoyment of occupants, abutters and neighborhoods by:

(1) Requiring all residential property owners, including lenders, trustees and service companies, to properly maintain vacant and/or foreclosing properties; and

(2) Regulating the maintenance of vacant and/or foreclosing residential properties to prevent blighted and unsecure residences.

(B) The Commissioner of the Inspectional Services Department has enforcement authority pursuant to, inter alia, M.G.L. Chapter 143, Section 3, the commonwealth’s Building Code and the city’s Zoning Code.

(C) Delegation of authority: The Commissioner of the Inspectional Services Department may delegate enforcement of this Section to any City Department authorized to enforce public safety, health or environmental laws and regulations.

(CBC 1985 16-52.1; Ord. 2008 c. 1; Ord. 2014 c. 1 § 4)

16-52.2 Definitions.

For the purpose of this Section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

CITY. The City of Boston.

COMMISSIONER. The Commissioner of the Inspectional Services Department.

DAYS. Consecutive calendar days.

FORECLOSING. The process by which a property, placed as security for a real estate loan, is prepared for sale to satisfy the debt if the borrower defaults.

INITIATION OF THE FORECLOSURE PROCESS. Taking any of the following actions:

(1) Taking possession of a residential property pursuant to M.G.L. Chapter 244, Section 1;

(2) Delivering the mortgagee's notice of intention to foreclose to the borrower pursuant to M.G.L. Chapter 244, Section 17B; or

(3) Commencing a foreclosure action on a property in either the Land Court or Suffolk Superior Court.

LOCAL. Within 20 driving miles distance of the property in question.

MORTGAGEE. The creditor, including, but not limited to, service companies, lenders in a mortgage agreement and any agent, servant or employee of the mortgagee, or any successor in interest and/or assignee of the mortgagee's rights, interests or obligations under the mortgage agreement.

OWNER.

(1) Every person, entity, service company, property manager or real estate broker, who alone or severally with others:

(a) Has legal or equitable title to any dwelling, dwelling unit, mobile dwelling unit or parcel of land, vacant or otherwise, including a mobile home park;

(b) Has care, charge or control of any dwelling, dwelling unit, mobile dwelling unit or parcel of land, vacant or otherwise, including a mobile home park, in any capacity including, but not limited to, agent, executor, executrix, administrator, administratix, trustee or guardian of the estate of the holder of legal title;

(c) Is a mortgagee in possession of any such property;

(d) Is an agent, trustee or other person appointed by the courts and vested with possession or control of any such property; or

(e) Is an officer or trustee of the association of unit owners of a condominium. Each such person is bound to comply with the provisions of these minimum standards as if he or she were the owner. However, this Section shall not apply to a Condominium Association created pursuant to M.G.L. Chapter 183A to the extent that such Association forecloses on or initiates the foreclosure process for unpaid assessments due or owing to the Association.

(2) ***OWNER*** also means every person who operates a rooming house; or is a trustee who holds, owns or controls mortgage loans for mortgage backed securities transactions and has initiated the foreclosure process.

PROPERTY. Any real, residential property, or portion thereof, located in the city, including building or structures situated on the property. For purposes of this Section only, ***PROPERTY*** does not include property owned or subject to the control of the city or any of its' governmental bodies. Such property includes, but is not limited to, property owned or controlled by the Boston Redevelopment Authority, Boston Housing Authority and Department of Neighborhood Development.

RESIDENTIAL PROPERTY. Any property that contains one or more dwelling units used, intended or designed to be occupied for living purposes.

SECURING. Measures that assist in making the property inaccessible to unauthorized persons.

VACANT. Any property not currently legally occupied and not properly maintained or secured.

(CBC 1985 16-52.2; Ord. 2008 c. 1)

16-52.3 Registration of Vacant and/or Foreclosing Residential Properties; Duty to Provide Written Notice of Vacant, Residential Property and/or Mortgage Foreclosure.

(A) All owners must register vacant and/or foreclosing residential properties with the Commissioner of the Inspectional Services Department on forms provided by the Commissioner. All registrations must state the individual owner's or Agent's phone number and mailing address located within the commonwealth as required by M.G.L. Chapter 59, Section 57D, M.G.L. Chapter 156D, Section 5.02 and 950 CMR 113.20. The mailing address may not be a post office box. This registration must also certify that the property was inspected and identify whether the property is vacant at the time of filing. If the property is vacant, the owner and/or registrant must designate and retain a local individual or local property management company responsible for the security and maintenance of the property. This designation must state the individual or company's name, phone number and local mailing address. The mailing address may not be a post office box. If the property is in the process of foreclosure, then the registration must be received within seven days of the initiation of the foreclosure process as defined in Subsection 16-52.2. If the Commissioner determines that the property is vacant and that foreclosure proceedings have not been initiated, the registration must be received within 14 days of the Commissioner's first citation for improper maintenance.

(B) All property registrations are valid for one calendar year. An annual registration fee of $100 must accompany the registration form. Subsequent annual registrations and fees are due within 30 days of the expiration of the previous registration and must certify whether the foreclosing and/or foreclosed property remains vacant or not.

(C) Once the property is no longer vacant or is sold, the owner must provide proof of sale or written notice and proof of occupancy to the Commissioner of the Inspectional Services Department.

(D) The Inspectional Services Department shall maintain a list of properties registered pursuant to this Section and make it available to the public upon request. The list of registered properties shall also be made accessible through the city's website and updated as practicable.

(CBC 1985 16-52.3; Ord. 2008 c. 1; Ord. 2010 c. 7)

16-52.4 Maintenance Requirements.

(A) Properties subject to this Section must be maintained in accordance with the relevant Sanitary Codes, Building Codes and local regulations concerning external and/or visible maintenance. The owner, local individual or local property management company must inspect and maintain the property on a monthly basis for the duration of the vacancy.

(B) The property must contain a posting with the name and 24-hour contact phone number of the local individual or property management company responsible for the maintenance. The sign must also indicate the name, address and telephone number of the property owner and the owner's authorized Agent for the purpose of service of process. This sign must be posted on the front of the property so it is clearly visible.

(C) When a building is vacant, unguarded and open to unauthorized entry, all building openings must be closed, secured and protected as follows.

(1) When a building is vacant, all building openings shall be closed and secured to prevent entry by unauthorized persons in a manner not inconsistent with rules and regulations issued by the Inspectional Services Department for securing vacant buildings.

(2) For a building that is determined by the Inspectional Services Department to be chronically or habitually violated or upon any renewal of the registration statement required in Subsection 16-52.3, the property owner must implement and provide proof satisfactory to the Inspectional Services Department that, in addition to complying with the security standards set forth elsewhere in this Section, said building either: contains all of the security features set forth in division (C)(2)(a) below, or is unviolated, as described in division (C)(2)(b) below.

(a) Every opening larger than one square foot in area that is located less than 8 feet above the ground or that is accessible from ground level or within 8 feet in any direction of an exterior stairway, fire escape or other means of access shall be secured using practices and materials approved by the Inspectional Services Department and the Office of the City Fire Marshal, including, but not limited to, stainless steel plates or shutters, steel mesh grates, lexan panels and concrete blocks.

(b) 1. For purposes of this Section only, the term ***UNVIOLATED*** shall refer to a building that:

a. Has a permanent door or window, as applicable, in each appropriate building opening and that has each such door or window secured to prevent unauthorized entry; and

b. Has all its door and window components, including, without limitation, frames, jambs, rails, stiles, muntins, mullions, panels, sashes, lights and panes, intact and unbroken.

2. A building that does not meet the definition of “unviolated” shall be deemed “violated”.

(c) It shall be a violation of this Section for a vacant building to become violated, if the owner has otherwise represented proof to the Inspectional Services Department that such building is unviolated. With respect to a vacant building represented by the owner as unviolated, if the Commissioner determines, based on an inspection by the Inspectional Services Department or a report prepared by another City Agency and provided to the Inspectional Services Department, that such building is violated, the Commissioner shall send by certified mail a written notice of violation to the person responsible for the day-to-day supervision and management of the building or to the authorized agent for service of process as identified on the sign required by division (B) above, or if there is no such sign, then sent by certified mail to the owner of record. Within 30 days of the mailing of such notice of violation, the owner shall be required to comply with this division (C).

(D) Adherence to this Section does not relieve the owner of any applicable obligations set forth in Code regulations, Covenant Conditions and Restrictions and/or Home Owners Association rules and regulations.

(CBC 1985 16-52.4; Ord. 2008 c. 1; Ord. 2010 c. 7)

16-52.5 Inspections.

The Inspectional Services Department shall have the authority and the duty to inspect properties subject to this Section for compliance and to issue citations for any violations. The Inspectional Services Department shall have the discretion to determine when and how such inspections are to be made; provided that their policies are reasonably calculated to ensure that this Section is enforced.

(CBC 1985 16-52.5; Ord. 2008 c. 1)

16.52.6 Enforcement and Penalties.

(A) Failure to initially register with the Commissioner is punishable by a fine of $300.

(B) If applicable, failure to properly identify the name of the local individual or local property management company is punishable by a fine of $300.

(C) Failure to maintain the property is punishable by a fine up to $300 for each week the property is not maintained.

(D) All monies collected pursuant to this Section shall be directed to a specific Inspectional Services Department Enforcement Fund.

(CBC 1985 16-52.6; Ord. 2008 c. 1)

16-52.7 Appeal.

Any person aggrieved by the requirements of this Section may seek an administrative appeal to the Inspectional Service Department. Any person aggrieved by a final decision issued under this Section by the Inspectional Services Department, may seek relief in any court of competent jurisdiction as provided by the laws of the commonwealth.

(CBC 1985 16-52.7; Ord. 2008 c. 1)

16-52.8 Applicability.

If any provision of this Section imposes greater restrictions or obligations than those imposed by any other general law, special law, regulation, rule, ordinance, by-law, order or policy then the provisions of this Section control.

(CBC 1985 16-52.8; Ord. 2008 c. 1)

16-52.9 Regulatory Authority.

The Commissioner of the Inspectional Services Department has the authority to promulgate rules and regulations necessary to implement and enforce this Section. These rules may allow for additional materials which may be used to secure a building, pursuant to the requirements set forth in Subsection 16-52.4, if proof is provided, satisfactory to the Commissioner, that such materials will perform in a manner equivalent to, or better than, the materials specified herein.

(CBC 1985 16-52.9; Ord. 2008 c. 1; Ord. 2010 c. 7)

16-52.10 Severability.

If any provision of this Section is held to be invalid by a court of competent jurisdiction, then such provision shall be considered separately and apart from the remaining provisions, which shall remain in full force and effect.

(CBC 1985 16-52.10; Ord. 2008 c. 1)

16-52.11 Implementation.

The provisions of this Section are effective immediately upon passage and all provisions shall be enforced immediately but no monetary fine shall be imposed pursuant hereto until 90 days after passage.

(CBC 1985 16-52.11; Ord. 2008 c. 1)

16-52.12 Notice.

A copy of this Section is to be mailed to all owners of residential property located in the city. In addition, a copy of this Section is to be mailed to all loan institutions, banks, real estate offices and management companies located in and/or having legal or equitable interest in residential property located in the city.

(CBC 1985 16-52.12; Ord. 2008 c. 1)

16-53 CLEANING OF COMMERCIAL COOKING HOOD AND VENTILATION SYSTEMS.

16-53.1 Purpose.

The purpose of this Section is to establish requirements for the inspection of grease buildup and for the cleaning of hoods, grease removal devices, fans, ducts and cooking equipment by commercial contractors for said services.

(CBC 1985 16-53.1; Ord. 2008 c. 2)

16-53.2 Applicability.

This Section shall apply to all existing structures subject to inspection and review by the city's Inspectional Services and Fire Departments. The Commissioners of the Boston Fire Department and the Inspectional Services Department may promulgate any additional rules and/or regulations under the scope of this Section as needed.

(CBC 1985 16-53.2; Ord. 2008 c. 2)

16-53.3 Procedures.

(A) *Certification and registration.*

(1) Any person offering their services to inspect for grease buildup or to clean commercial cooking hood and ventilation systems, whether as an outside contractor or as a business providing the service to itself, shall be certified as a qualified inspector or commercial cooking hood and ventilation system cleaner respectively. Each individual of a company engaged in the cleaning or inspecting for grease buildup of commercial cooking hood and ventilation systems must obtain certification prior to engaging in cleaning or inspection services. Each company engaged in the cleaning or inspecting for grease buildup of commercial cooking hood and ventilation systems must employ enough certified technicians to maintain a minimum of one certified technician during cleaning operations at each cleaning site. For purposes of this Section only, ***CERTIFIED*** shall mean that a person has met all of the requirements of a Boston Fire Department approved certifying agency's training program and/or certification exam.

(2) The Boston Fire Department shall publish a list of accepted certifying agencies. In addition to registration requirements in division (A)(3) below obtaining certification from one of these agencies will meet the requirements of this Section. Only those individuals registered and certified as being qualified to inspect for grease buildup or to clean commercial cooking hood and ventilation systems will be authorized to perform those respective services regulated under this Section within the city.

(3) Each individual offering to provide services within the city to inspect for grease buildup or to clean commercial cooking hood and ventilation systems shall also register with the Boston Fire Department, Fire Prevention Division upon obtaining their certification. An annual application for registration authorizing inspection and/or cleaning services within the city must be accompanied by the proof of certification, and an annual application fee of $25. Upon approval of the application by the Boston Fire Department, an individual and/or company will be considered authorized to conduct cleaning and/or inspection services within the city. Registration will expire at the end of each calendar year and shall require annual renewal.

(4) It is the responsibility of the individual to keep his or her certification active.

(5) Any loss or expiration of certification must be reported to the Boston Fire Department within five days of loss of said certification.

(6) After registration, any changes in employment, as well as other application data must be reported to the Boston Fire Department within five days of the change.

(7) Each year the Fire Department will publish a roll of registered cleaners and inspectors on February 1.

(8) Failure to follow the requirements of this Section, failure to maintain certification, failure to renew registration or if inspecting and/or cleaning is deemed not in accordance with NFPA 96 as referenced by 527 CMR 11.00, may result in fines and/or the revocation of registration to inspect for grease buildup or to clean commercial cooking hood and ventilation systems within the city.

(B) *Inspection and cleaning of commercial cooking hood and ventilation systems.*

(1) *Inspection frequency.* Commercial cooking hood and ventilation systems and cooking equipment shall be inspected by a certified inspector or cleaner for grease buildup in accordance with the inspection schedule of NFPA 96 as referenced by 527 CMR 11.00.

(2) *Cleaning frequency.* A certified person shall clean to bare metal, hoods, grease-removal devices, fans, ducts, cooking equipment and other appurtenances. The person to perform the actual cleaning shall be certified in the cleaning of commercial cooking hood and ventilation systems. The

cleaning schedule shall be at the same interval as the inspection schedule prescribed in NFPA 96 as referenced by 527 CMR 11.00.

(3) *Signage.* Following inspection and/or cleaning, the certified person providing such services shall place or display within the kitchen area, a label indicating the date inspected and/or cleaned, the name of the servicing company (company certification number and individual's name and certification number) and their Fire Department registration number. It shall also indicate areas not inspected and/or cleaned and the reason why the service could not be performed, and if it is scheduled to be performed at another date. The label shall be attached to the exterior of the hood in a visible location. The schedule for the inspecting and/or cleaning frequency shall be maintained on site and available for viewing upon request of Fire Department and Inspectional Services inspectors.

(4) *Reports.* Reports associated with the inspection and/or cleaning of the hood and vent system shall be maintained on site by the business owner. These reports shall be available for viewing upon request of an inspector from the Inspectional Services or Boston Fire Departments.

(C) *Inspection and cleaning for solid-fuel cooking.*

(1) Solid-fuel cooking appliances shall be inspected, cleaned and maintained in accordance with the procedures outlined in NFPA 96, Standard for Ventilation Control and Fire Protection of Commercial Cooking Operations as referenced by 527 CMR 11.00.

(D) *Deficiency reports.* In addition to any requirements outlined in NFPA 96, as referenced by 527 CMR 11.00, if any required cleaning or inspection is incomplete or unable to be performed for any reason, the certified person providing such services shall provide a written report to the Boston Fire Department within five days of said failure to clean and/or inspect. Said report shall provide the following information:

(1) The physical address at which inspection and/or cleaning were unable to occur;

(2) The name of the owner of said premises;

(3) The date on which the certified person attempted to inspect and/or clean the premises; and

(4) The specific reason why the service could not be performed pursuant to NFPA 96 standards.

(CBC 1985 16-53.3; Ord. 2008 c. 2)

16-53.4 Penalties.

(A) Violation of the conditions of this Section whether by the proprietor of the establishment, property owner or the hood cleaning/inspecting company shall subject the violator to a fine of $200 per day payable to the Boston Fire Department. Each day of violation shall constitute a separate and distinct offense. Revenues collected from said fines shall be used to educate and train Boston Fire Department and Building Inspectors on NFPA 96.

(B) Notwithstanding the above, the Commissioner of ISD, upon a determination that any violation constitutes an immediate and severe threat to the public health and safety, may order the immediate closure of any premises, without prior notice and hearing but otherwise with subsequent notice and hearing.

(CBC 1985 16-53.4; Ord. 2008 c. 2)

16-53.5 Effective Date.

The provisions of these Sections shall become effective within 365 days of its passage.

(CBC 1985 16-53.5; Ord. 2008 c. 2)

16-54 PROHIBITION AGAINST SALVIA DIVINORUM.

16-54.1 Sale Prohibited.

No person shall sell, offer for sale or possess Salvia Divinorum or Salvinorin A within the city.

(CBC 1985 16-54.1; Ord. 2009 c. 1)

16-54.2 Exception.

The provisions of this Section shall not apply to any drug product approved by the United States Food and Drug Administration that contains Salvia Divinorum or Salvinorin A.

(CBC 1985 16-54.2; Ord. 2009 c. 1)

16-54.3 Fines.

A violation of these Sections shall be punished by a fine in the amount of $300.

(CBC 1985 16-54.3; Ord. 2009 c. 1)

16-54.4 Enforcement.

The Boston Police Department shall have the authority to enforce these provisions and shall have the authority to promulgate rules and regulations necessary to implement and enforce these Sections.

(CBC 1985 16-54.4; Ord. 2009 c. 1)

16-55 UNPAID MUNICIPAL FINES.

In accordance with M.G.L. Chapter 40U, adopted by the Boston City Council on May 14, 2010.

(A) The procedures for the collection of unpaid municipal fines, as set out by M.G.L. Chapter 40U, are hereby adopted.

(B) This Section covers the enforcement of ordinances designated for enforcement under the provisions of M.G.L. Chapter 40, Section 21D by the Commissioner of the Inspectional Services Department.

(C) The city shall assess an additional $10 processing fee on any fine which remains unpaid and unappealed at the expiration of 21 days following the issuance of the citation.

(D) Any fine which remains unpaid for 30 days after the second notice as required by M.G.L. Chapter 40U shall be subject to an additional penalty of $10.

(E) Thereafter, any fine and additional penalties may become an additional assessment on the property owner's tax bill and a lien on the property to which the violation relates.

(CBC 1985 16-55; Ord. 2010 c. 8)

16-56 PENALTIES FOR VALID COMPLAINT PROBLEM PROPERTIES.

(A) *Definitions.* For the purpose of this Section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

POLICE RESPONSE. Any and all Police action deemed appropriate by the Police Commissioner to protect the health, safety and welfare of inhabitants of a property or location where valid complaints have been documented. Coordination of Police action shall be subject to the rules and regulations of the Boston Police Department.

PROBLEM PROPERTY. Shall have the same meaning as set forth in Subsection 16-57.2.

VALID COMPLAINT. An investigated finding, documented by on-duty Boston Police Department personnel dispatched or caused to respond to an incident, that a criminal offense has taken place in a dwelling unit within a property, on a particular property or at a specific location which disturbs the health, safety and welfare of other inhabitants of said property or location. The term shall not include incidents involving an occupant of the premises as the victim of the crime.

(B) *Police response.* The Police Commissioner, as deemed appropriate to protect the health, safety and welfare of other inhabitants of a property or location where a valid complaint has been made, is hereby authorized and empowered to assign a member or members of the Boston Police Department to staff as Police response on said property or location:

(1) Upon being dispatched or caused to respond to an incident, in a dwelling unit within a property, on a particular property or at a specific location, involving a criminal offense, Boston Police Department personnel shall investigate the complaint to determine whether it is a valid complaint;

(2) Upon finding a valid complaint, Boston Police Department personnel shall make a record of the incident and shall keep, within the Department's control, a record of the number of incidents which occur in said dwelling unit within a property, particular property or location; and

(3) After four valid complaint incidents have occurred in a 12-month period relating to the occupancy of a dwelling unit within a property, on a particular property or at a specific location, the Police Commissioner, or his or her designee, may notify the Chair of the Mayor's Task Force on Problem Properties and shall submit to the Chair the all-calls report relating to Police response at said dwelling, particular property or location.

(C) *Duties of the Task Force.*

(1) The Chair shall create a master file of all information received from the Commissioner pertaining to that dwelling unit, particular property or location and shall discuss said information with the members of the Task Force at a monthly meeting held at City Hall.

(2) If a specific address falls within the definition of a problem property, the Chair of the Task Force shall notify, in writing, the property owner by regular and certified mail, return receipt requested, sent to the property owner's residence or usual place of business that is on record at the Assessor's Office. The Task Force notification shall identify:

(a) The property owner and list the specific address that has been designated a problem property;

(b) The number of valid complaint incidents which have occurred on said property within a 12-month period;

(c) The Boston Police District Captain the property owner may contact to coordinate a plan to resolve the incidents at the particular property or location, and/or inform the Boston Police of problem occupant(s); and

(d) Where and to whom the property owner must address a letter of appeal of the Task Force's decision.

(3) In making a final designation of a property as a problem property, the Chair of the Task Force shall take into consideration the nature of the complaints, the number of dwelling units at the property and the nature of the use of said property.

(4) Upon receipt of confirmation from the Police Commissioner, or his or her designee, that the owner of a particular property deemed problematic has cooperated with the Boston Police Department in addressing each specified valid complaint, the Task Force shall remove said property from designation as a problem property.

(D) *Cost of Police response assigned to problem properties.*

(1) The Police Commissioner, or his or her designee, shall keep an accurate record of the cost of Police response to a dwelling unit within a property, a particular property or a specific location and such record shall include the number of Officers who are part of the determined response.

(2) The Police Commissioner shall forward such record to the Collector-Treasurer.

(3) After eight valid complaint incidents in a 12-month period relating to occupants of a dwelling unit within a property, a particular property or a specific location, the Police Commissioner, at his or her discretion, shall determine whether the cost of a Police response should be assessed to the property owner and shall notify and submit said determination to the Chair of the Task Force.

(4) The Chair of the Task Force shall notify, in writing, the property owner of the Commissioner's decision to assess the cost of the Police response. The Task Force notification shall:

(a) Be delivered by regular and certified mail, return receipt requested, sent to the property owner's residence or usual place of business that is on record at the Assessor's Office;

(b) Identify the number of valid complaint incidents that have occurred since the first notification;

(c) Where appropriate, inform the property owner of his or her failure to contact the Boston Police District Captain to coordinate a plan to resolve

the incidents at a dwelling unit within a property, particular property or location and/or inform the Boston Police of problem occupant(s);

(d) Inform the property owner that he or she shall be subject to the penalties addressed in division (E) below;

(e) Indicate where and to whom the property owner must address a letter of appeal of Police response costs assigned to him or her; and

(f) Inform the property owner he or she has seven days to file an appeal.

(5) The Police Commissioner should consider the following factors in making his or her decision to assess costs:

(a) The nature, scope and seriousness of the incident(s);

(b) Whether the incident(s) resulted in an arrest;

(c) A history of criminal activity taking place at the property or location;

(d) The property owner's, and occupant's, willingness to cooperate with Police; and

(e) The total number of properties owned by the property owner relative to the number of said properties deemed problematic.

(6) Nothing in this Section shall limit the statutory authority of the Police Commissioner to investigate crimes, allocate Police resources and enforce the laws of the commonwealth and the city.

(E) *Penalties.*

(1) The Collector-Treasurer is hereby authorized and empowered to bill the property owner for the costs the city incurred for its Police response in addition to any incidental costs during the period of Police response to the particular property or location. The property owner is responsible for payment of the bill in full within 30 days of receiving the bill. All amounts collected by the Collector-Treasurer shall be deposited into the General Fund of the city.

(2) Any unpaid bill for Police response, including interest and/or collection costs, shall be added to the real estate tax on the property and collected as part of that tax. Failure to pay real estate taxes will render the property owner delinquent and the Collector-Treasurer shall commence foreclosure proceedings.

(F) *Property owner's rights.*

(1) The property owner may, within seven days of receipt of the Task Force's notification, appeal the Commissioner's decision to assess costs by requesting, in writing, a hearing before a three person panel appointed by the Mayor.

(2) A three person panel appointed by the Mayor shall be assembled as follows:

(a) At least one member shall be a nominee of the Greater Boston Real Estate Board;

(b) One seat on the panel shall be appointed to a member of a neighborhood crimewatch, a member of a neighborhood association and a member of a community development corporation, who shall rotate in their service on the panel; and

(c) The third member shall be a resident of the city.

(3) Once the panel makes a decision, it must be in writing. If the panel finds in favor of the property owner, the cost of the penalty shall be abated.

(G) *Eviction.* In the event the property owner has, in good faith, commenced eviction proceedings against the tenant(s) responsible for the incidents at the property, then the application of this Section shall be stayed until the eviction process is concluded. The Police Commissioner of the Department may continue Police response at the particular property or location, at his or her discretion, at all times after the eviction proceeding has been completed; provided, however, that such costs shall not be assessed to the property owner if the eviction proceedings conclude in favor of the property owner.

(H) *Charges to constitute municipal lien pursuant to M.G.L. Chapter 40, Section 58.* All charges to recover costs imposed in this Section shall constitute a municipal lien on the property so charged in accordance with M.G.L. Chapter 40, Section 58.

(I) *Report.* The Chair of the Task Force shall submit a report to the Mayor and Boston City Council no later than three months after the one-year anniversary of the enactment date of this Section. This report shall include the total cost of administration of this Section, as well as an accounting of all revenues collected in association with it. Said report shall also contain data regarding all dwellings within a property, particular properties or locations which remain problem properties and those that are no longer designated as problem properties. The report shall also include the general impact, if any, that the implementation of this order has had on the health, safety and welfare of residents of the city.

(CBC 1985 16-56; Ord. 2011 c. 9)

16-57 PUBLIC NUISANCE PROPERTIES.

16-57.1 Purpose.

The purpose of this Section is to empower the city to Police properties that have become a public nuisance by exhibiting a notorious atmosphere of criminal and other disturbing activity so elevated as to endanger the common good and general welfare of a specific neighborhood or the city in general.

(CBC 1985 16-57.1; Ord. 2011 c. 10)

16-57.2 Definitions.

For the purpose of this Section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

PROBLEM PROPERTY. Meets the following criteria:

(1) The Boston Police Department has been called to the property not fewer than four times within the preceding 12-month period for any incident involving any criminal offense including, but not limited to, disturbing the peace, trespassing, underage drinking or assault;

(2) The Air Pollution Control Commission has received not fewer than four sustained complaints for noise within the preceding 12-month period; or

(3) The Inspectional Services Department or the Public Health Commission have received not fewer than four sustained and upheld complaints within the preceding 12-month period for noxious, noisome or unsanitary conditions. Provided, however, that in making a final designation of a property as a ***PROBLEM PROPERTY***, the Chair of the Task Force shall take into consideration the nature of the complaints, the number of dwelling units at the

property and the nature of the use of said property.

PUBLIC NUISANCE. An unreasonable interference with a right common to the general public, such as a condition dangerous to health, offensive to community moral standards or that otherwise threatens the general welfare of a neighborhood or the city in general through documented pervasive criminal activity, code violations or other causes precipitating the deployment of any city resource.

(CBC 1985 16-57.2; Ord. 2011 c. 10)

16-57.3 Application.

Any property in the city that is found by the Mayor's Problem Properties Task Force to be a problem property as defined in Subsection 16-57.2 shall constitute a public nuisance. The Chair of the Task Force shall formally communicate to the Mayor, and the Council President, that a property falling within the definition of problem property is a public nuisance. The Chair of the Task Force shall designate the appropriate member of the Task Force to notify the owner of the property by regular and certified mail and the tenants by affixing a notice of the violation to the front door.

(CBC 1985 16-57.3; Ord. 2011 c. 10)

16-57.4 Enforcement.

After declaring the problem property a public nuisance, the members of the Task Force heading the originating Department or the designee of the Chair of the Task Force shall issue a citation to any or all of the tenants and the owner of the property immediately for perpetuating the public nuisance at the time of any incident requiring the deployment of any City resources or personnel following the property being placed on the problem properties list.

(CBC 1985 16-57.4; Ord. 2011 c. 10)

16-57.5 Non-Criminal Dispositions.

In accordance with M.G.L. Chapter 40, Section 21D, the city may pursue a non-criminal disposition of any citation issued for violations under this chapter.

(CBC 1985 16-57.5; Ord. 2011 c. 10)

16-57.6 Penalties.

Any tenant residing within or owner of a problem property declared to be a public nuisance cited under this chapter with violations prescribed by the commonwealth's Sanitary Code or the commonwealth's Building Code shall be fined up to $300 for each criminal or non-criminal citation authorized by said codes caused by their acts or omissions subsequent to the property being added to the problem property list. If the violation is ongoing, each day that the violation persists will constitute a separate violation for which an additional $300 fine will be imposed.

(CBC 1985 16-57.6; Ord. 2011 c. 10)

16-57.7 Remediation.

Any owner of a property determined to be a problem property shall file a management plan with the Inspectional Services Department, within 30 days of having been deemed a problem property that outlines and verifies the owner's strategy and steps devised to bring the property up to code.

(CBC 1985 16-57.7; Ord. 2011 c. 10)

16-57.8 Verifiable and Certified Inspection.

(A) (1) In order for a property to be removed from the problem properties list by the Problem Properties Task Force, an owner must file with the Inspectional Services Department a sworn statement following an inspection certifying that the property is in compliance with the minimum standards of human habitability for a residential dwelling as set forth in the commonwealth's Sanitary Code, being 105 CMR 400 and 410, as it may be adopted or amended from time to time. The inspection shall be performed and the sworn statement shall be signed by an Authorized Inspector which shall be defined as a person who:

(a) Is a commonwealth-registered Sanitarian or a commonwealth-certified Health Officer or a commonwealth-certified Home Inspector;

(b) Has demonstrated a proficiency in the application of the commonwealth's Sanitary Code by satisfactorily completing the ISD certificate program for qualifying authorized professionals to perform inspections under Subsection 9-1.3; and

(c) Has been issued a certificate of completion upon payment to ISD of $125.

(2) An authorized inspector shall be prohibited from charging more than 133% of the fee charged by the city for an inspection performed under this Section.

(B) This Section shall not apply to problem properties which have been designated due to valid Police complaints.

(CBC 1985 16-57.8; Ord. 2011 c. 10)

16-57.9 Receivership.

Should the owner of a property placed on the problem properties list not respond to the Problem Properties Task Force notification within 60 days, the Inspectional Services Department is authorized to petition the Housing Court for the appointment of a receiver to rehabilitate that property.

(CBC 1985 16-57.9; Ord. 2011 c. 10)

16-57.10 Reporting.

The Inspectional Services Department shall, no later than three months after the one-year anniversary of the enactment date of this Section, dispatch to the Mayor and Boston City Council's Committee on Government Operations, a report on all problem properties that were on the problem properties list during the preceding year.

(CBC 1985 16-57.10; Ord. 2011 c. 10)

16-58 OVER-THE-AIR DEVICES ("OTARD").

16-58.1 Purpose.

This Section is applicable to the installation, maintenance, use or removal of over-the-air reception devices ("OTARD"), for residential and non-residential properties within the city.

(CBC 1985 16-58.1; Ord. 2012 c. 3)

16-58.2 Definitions.

(A) (1) For purposes of this Section, the terms ***SATELLITE DISH*** and ***ANTENNA*** have the same meaning as that provided for by the Federal Communications Commission's rules at 47 C.F.R. § 1.4000. ***SATELLITE DISH*** and ***ANTENNA*** shall mean such device that is one meter or less in diameter, and is designed to receive broadcast satellite service, including direct-to-home satellite services or to receive or transmit fixed wireless signals via satellite; or receive video programming services via wireless cable or to receive or transmit fixed wireless signals other than satellite; or to receive television broadcast signals. Hereinafter, the terms ***SATELLITE DISH*** and ***ANTENNA*** shall be referred to collectively as eligible devices.

(2) It is further defined that eligible devices are those actively subscribed or used by OTARD users, and such use and subscription are not effectively terminated or expired.

(B) (1) An ***OTARD USER*** is defined as any person who requested the installation of eligible devices or actively subscribed the services via the eligible devices defined in division (A) above. The OTARD users, either an individual or legal person, or any combination of both, must have certain leasehold or a proprietary interest in the properties where the eligible devices are installed or used.

(2) The other responsible parties are anyone other than OTARD users, who can be either an individual or legal person, or any combination of both, and who are responsible for maintenance and removal of OTARD devices.

(C) An ***OTARD INSTALLER*** is defined as any person who installed eligible devices upon request of OTARD user defined in division (B) above The ***OTARD INSTALLER*** can be individuals or legal persons or any combination of both. The installers include their affiliate service providers.

(D) ***NON-USE DEVICES*** are not eligible devices, and they are not actively subscribed or used by the OTARD users or their use and subscription are effectively terminated or expired.

(E) The ***DEPARTMENT*** means the Inspectional Services Department of the city.

(F) A ***UNIFIED STATEMENT*** means a written form approved by the Department, which includes, but not limited to, the following:

(1) The name, address and contact information of OTARD user(s), including the valid contact information of the property owner if the user is not the owner;

(2) The name, address and valid contact information of OTARD installers;

(3) The street address of the property where the OTARD is installed and approximate location of installation;

(4) The statement that the eligible devices installed are actively subscribed and used by OTARD users, and maintained or removed, if use and subscription are effectively terminated or expired by such user(s) or other responsible party, and their valid contact information;

(5) If applicable, a statement by OTARD installers or users that there is no alternative location available within the properties without unreasonable increase of cost of installation, use or maintenance or lack of installation will impair the OTARD users ability to receive acceptable quality signals;

(6) If applicable, legitimate safety hazard being appropriately addressed; and

(7) If applicable, any information on existing non-use devices, and their removal status.

(CBC 1985 16-58.2; Ord. 2012 c. 3)

16-58.3 Installations.

Effective on or after the effective date of this Section, no eligible devices can be installed without applicable approval if such installation:

(A) Interferes with historic preservation;

(B) Constitutes a legitimate safety hazard, including, but not limited to, placing eligible devices within the roofs, hallways, walkways or the exterior walls unless such safety hazard is appropriately addressed. Legitimate safety hazards also include, but are not limited to, installations around fire escapes, windows, emergency exits or critical utilities infrastructures, which may cause personal injury, death or property damages;

(C) Are not located within the exclusive use or control of OTARD users, including, but not limited to, roofs, hallways, walkways or exterior walls; and

(D) Is between the exterior walls of properties and streets of public travel unless an alternative location(s) impairs or imposes reception of acceptable quality of signal or imposes unreasonable increase of expense or delay.

(CBC 1985 16-58.3; Ord. 2012 c. 3)

16-58.4 Use and Maintenance.

Effective on or after the effective date of this Section, the OTARD user and installers must notify the Department, within 30 days of installation of eligible devices in the unified statement of the party responsible for the maintenance and removal of such devices.

(CBC 1985 16-58.4; Ord. 2012 c. 3)

16-58.5 Removal.

(A) The installer must use its best efforts to notify the users or other responsible parties about effective expiration or termination of active use or subscription.

(B) For any eligible device, installed or already in active use or subscription on or after the effective date of this Section, the OTARD installer, user or other responsible party must, within 60 days upon expiration or termination of active use or subscription, remove, at their own cost and expense, the non-use devices from the properties. The removal deadlines in divisions (D) and (F) below shall not be applicable to this Subsection.

(C) (1) For properties with existing non-use devices, no new eligible devices shall be installed after effective date of this Section, unless and until such existing devices are removed, or caused to be removed, at installers own cost and expenses. If lack of new installation impairs the ability of the OTARD user to receive an acceptable quality signal or imposes an unreasonable increase of expense or delay, the installer must remove the existing non-use devices within ten days of new installation. The deadlines in division (B) above and divisions (D) and (F) below shall not be applicable to this Subsection.

(2) The user or/and other responsible parties, and installer must work cooperatively, to the best of their ability, to identify and remove such non-use devices.

(D) Excluding those described in divisions (B) and (C) above, if the existing non-use devices can be reasonably identified by and/or with a particular installer, such installer must remove such devices at their own cost and expenses no later than January 1, 2014.

(E) The installers must use the resources available, such as billing, account information and installation and maintenance record, in good faith to make such identification, and must relate such information to users or other responsible parties, and the Department in reasonable fashion.

(F) Excluding those described in divisions (B), (C) and (D) above, if the existing non-use devices cannot be reasonably identified by and/or with a particular installer as described in division (D) above, the users or other responsible parties of the properties must remove them at their own cost and expenses no later than January 1, 2015.

(CBC 1985 16-58.5; Ord. 2012 c. 3)

16-58.6 Unified Statement.

(A) The OTARD user, other responsible parties and installer must file or notify the Department in unified statement for activities outlined in Subsections 16-58.3,16-58.4 and 16-58.5.

(B) The copies of signed unified statements for installation, maintenance and removal must be provided to the OTARD users, the other responsible parties and the Department. The OTARD installer must maintain a record of such statement at its Office with regular business no less than two years after the effective termination or expiration of use or subscription.

(CBC 1985 16-58.6; Ord. 2012 c. 3)

16-58.7 Appropriate City Authority.

(A) The Department will assume primary jurisdiction to ensure, among others, legitimate safety objectives in association with installation, use, maintenance and removal of the OTARD devices. The Department shall promulgate rules and regulations if necessary to implement the provisions of this Section.

(B) Non-compliance with Subsections 16-58.3 and 16-58.5 may constitute violations of applicable commonwealth and city building regulations and requirements, and result in applicable enforcement actions.

(CBC 1985 16-58.7; Ord. 2012 c. 3)

16-59 PROHIBITION OF THE POSSESSION OR SALE OF SYNTHETIC CANNABINOIDS AND ILLICIT SYNTHETIC DRUGS.

16-59.1 Purpose.

The purpose of this chapter is to protect the public health and safety of the residents of Boston from the dangers and ill effects of synthetic cannabinoids (commonly known as “Spice” or “K2”), and other synthetic drugs. Without the prohibitions enacted by this chapter, these synthetic drugs can be possessed by individuals without the city’s ability to control the negative effects to the health, safety and welfare of the residents of Boston. These negative effects include, but are not limited to, psychoactive behavior and reactions, serious injury and death caused by its consumption.

(CBC 1985 16-59.1; Ord. 2015 c. 6 § 1)

16-59.2 Definitions.

For the purpose of this Section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

COMMISSIONER. The Commissioner of the Boston Police Department, or his or her designee.

PERSON. An individual, corporation, limited liability company, partnership, wholesaler, retailer and any license or unlicensed business, including clerk, manager or owner of business.

SYNTHETIC CANNABINOIDS. Any chemical compound chemically synthesized and either:

(1) Has been demonstrated to have binding activity at one or more cannabinoid receptors; or

(2) Is a chemical analog or isomer of a compound that has been demonstrated to have binding activity at one or more cannabinoid receptors. Includes, but is not limited to: HU-210; HU-211/dexanabinol; JWH-018; JWH-073; JWH-081; JWH-200; JWH-250; CP 47,497; and homologues.

(CBC 1985 16-59.2; Ord. 2015 c. 6 § 2)

16-59.3 Prohibition of Synthetic Cannabinoids.

It shall be unlawful for any person to possess, provide, sell, barter, produce, manufacture, distribute or to offer, display, market or advertise for sale, or purchase with the intent to provide, sell, barter, produce, manufacture or distribute, or to offer, display, market or advertise for sale any synthetic cannabinoid as defined in the provisions of this chapter.

(CBC 1985 16-59.3; Ord. 2015 c. 6 § 3)

16-59.4 Enforcement.

The Commissioner, or designee, shall have the authority to implement and enforce the provisions of these Sections. The Commissioner, or designee, shall promulgate rules and regulations necessary to implement the provisions of these Sections, pursuant to M.G.L. Chapter 30A.

(CBC 1985 16-59.4; Ord. 2015 c. 6 § 4)

16-59.5 Penalty.

(A) Any person found to be in violation of this Section will be assessed a fine of $300. Each incident of a violation will constitute a separate offense.

(B) In addition to any penalty provided under this Section, if any of the aforementioned substances or combination thereof listed under the provisions of these Sections are found in the possession of any person, the substances will be forfeited by seizure by the Officers of the Boston Police Department, or other Law Enforcement Officers, and may be destroyed by such law enforcement officials in a method consistent with law.

(C) The provisions of these Sections may be enforced in accordance with the non-criminal disposition process of M.G.L. Chapter 40, Section 21D; provided that this Section shall not preclude the city from proceeding to restrain a violation by injunction.

(CBC 1985 16-59.5; Ord. 2015 c. 6 § 5)

16.59.6 Severability

If any provision of these Sections shall be held to be invalid by a court of competent jurisdictions, then such provision shall be considered separately and apart from the remaining provisions, which shall remain in full force and effect.

(CBC 1985 16-59.6; Ord. 2015 c. 6 § 6)

16-59.7 Effective Date.

The provisions of these Sections shall be effective immediately upon passage.

(CBC 1985 16-59.7; Ord. 2015 c. 6 § 7)

16-60 RECREATIONAL VEHICLES.

16-60.1 Recreational Vehicles.

(A) *Definitions.* For the purpose of this Section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

MOTORIZED CONVEYANCE. Any wheel device used to carry persons or property which is powered by any means other than muscular power alone.

RECREATIONAL VEHICLE. Any motor vehicle designed or modified for use over unimproved terrain for recreation or pleasure including, but not limited to, all-terrain vehicles, off-highway motorcycles, dirt bikes and recreation utility vehicles.

(B) *Recreational vehicle registration.* Pursuant to M.G.L. Chapter 90B, Section 22, no recreational vehicle, as defined by M.G.L. Chapter 90B, Section 20 as “recreation vehicle”, may be operated unless it is registered with the Boat, Recreation Vehicle and Snowmobile Registration Bureau and a valid registration number is displayed on the vehicle.

(C) *Unregistered vehicles.*

(1) No person shall place, store or keep more than one unregistered motorized conveyance that, in order to be operated, is required to be registered under the laws or regulations of the commonwealth, including, but not limited to, M.G.L. Chapter 90B, upon public or private land zoned for residential purposes of six or fewer residential units.

(2) This Section shall not apply to vehicles stored within a fully-enclosed building or to vehicles stored, parked or displayed on property duly licensed in accordance with M.G.L. Chapter 140, Sections 57 through 69.

(D) *Property of another.* No person shall operate, maintain or possess a recreational vehicle upon the property of another without written permission of the land owner on their person.

(E) *Hazardous operation.* No person shall engage in trick or stunt riding upon any public space in the city upon any motorized conveyance, including recreational vehicles.

(1) An operator of any motorized conveyance, including a recreational vehicle, shall not cause such vehicle to ride with its front wheel or wheels raise from the surface of the road or ground while operated in any public space.

(2) An operator of any motorized conveyance, including a recreational vehicle, shall not cause such vehicle to ride with its rear wheels raised from the surface of the road or ground while operated in any public space.

(3) An operator of any motorized conveyance, including a recreational vehicle, shall not cause any side wheels of such vehicle to raise from the

surface of the road or ground while operated in any public space.

(4) An operator of any motorized conveyance, including a recreational vehicle, shall not ride such vehicles with his or her feet or knees planted on the seat while operating in any public space.

(5) An operator of any motorized conveyance, including a recreational vehicle, shall not operate such vehicle in a manner commonly associated with trick or stunt riding.

(6) An operator of any motorized conveyance, including a recreational vehicle, shall not operate such vehicle with a passenger if designed for a single rider.

(7) No passenger shall ride upon any motorized conveyance, including a recreational vehicle, that is designed for a single rider.

(8) An operator of any motorized conveyance, including a recreational vehicle, shall not operate such vehicle with a passenger sitting or riding upon the handle bars or forward of the operator.

(F) *Penalties.* A violation of Boston Code 16-60.1 shall be subject to a fine of $250 for the first violation and for a second or subsequent offense, by a fine of $300.

(G) *Enforcement and regulatory authority.* The Commissioner of the Boston Police Department shall have the authority to enforce these Sections and to promulgate rules and regulations necessary to implement and enforce these Sections. Additionally, the Commissioners of the Inspectional Services Department, the Public Works Department and the Boston Transportation Department shall also have authority to enforce divisions (C) and (D) above. The provisions of M.G.L. Chapter 40, Section 21D may be used to enforce this Section. The Boston Police Department shall have the authority to impound any vehicle in violation of these Sections. The Boston Police Department shall have the authority to enter upon and pass through or over private lands and property whether or not covered by water, to enforce this Code.

(H) *Applicability.* If any provision of these Sections imposes greater restrictions or obligations than those imposed by any other general law, special law, regulation, rule, ordinance, order or policy, then the provisions of these Sections shall control.

(I) *Severability.* If any provision of these Sections shall be held to be invalid by a court of competent jurisdiction, then such provision shall be considered separately and apart from the remaining provisions, which shall remain in full force and effect.

(CBC 1985 16-60.1; Ord. 2015 c. 8 § 1)

Editor's note:

Ord. 2015 c. 8 designated this Section as 16-59; however an earlier ordinance, Ord. 2015 c. 6, created a new Section on synthetic cannabinoids which was designated 16-59. Therefore, Ord. 2015 c. 8 has been designated Section 16-60.

16-61 REGULATION OF LETTER GRADING OF FOOD ESTABLISHMENTS AND FOOD TRUCKS.

16-61.1 Purpose.

This Section is applicable to the Boston Inspectional Services Department letter grading system of health inspections of food establishments and food trucks within the city.

(CBC 1985 16-61.1; Ord. 2016 c. 14 § 1)

16-61.2 Definition.

For the purpose of this Section, the following definition shall apply unless the context clearly indicates or requires a different meaning.

LETTER GRADE. An Inspectional Services Department Health Division issued designation to display a letter grade corresponding to a food establishments' and/or food trucks' health inspection.

(CBC 1985 16-61.2; Ord. 2016 c. 14 § 1)

16-61.3 Requirements.

(A) A person operating a food establishment or food truck and subject to food code health inspections pursuant to the F.D.A. 2013 Food Code 8-1 through 8-5 and as adopted by reference in 105 CMR 590 must post its Inspectional Services Department issued letter grade immediately after receipt, unobstructed, at eye-level, facing outward on an exterior-facing wall or window within 5 feet of the main entrance in the interior of the restaurant.

(B) During the first year of implementation and passage of this Section, the health inspection grade will be optional to be posted in the food establishment or food truck. The letter grade shall be available on the city's Mayor's Food Court website.

(CBC 1985 16-61.3; Ord. 2016 c. 14 § 1)

16-61.4 Enforcement and Penalty.

A person or entity operating a food establishment or food truck that fails to post the letter grade designation or alters the designation shall be punished by a fine of $300 for each offense. Each day shall constitute a new offense.

(CBC 1985 16-61.4; Ord. 2016 c. 14 § 1)

16-61.5 Appeal.

A person aggrieved by the requirements of this Section may seek an administrative appeal to the Inspectional Services Department. Any person aggrieved by a final decision under this Section by the Inspectional Services Department, may seek relief in any court of competent jurisdiction as provided by the laws of the commonwealth.

(CBC 1985 16-61.5; Ord. 2016 c. 14 § 1)

16-62 ORDINANCE BANNING FACE SURVEILLANCE TECHNOLOGY IN BOSTON.

(A) *Definitions.* For the purpose of this Section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

BOSTON. Any Department, Agency, Bureau and/or subordinate division of the city.

BOSTON OFFICIAL. Any person or entity acting on behalf of the city, including any officer, employee, agent, contractor, subcontractor or vendor.

FACE SURVEILLANCE. An automated or semi-automated process that assists in identifying or verifying an individual, or in capturing information about an individual, based on the physical characteristics of an individual's face.

FACE SURVEILLANCE SYSTEM. Any computer software or application that performs face surveillance.

(B) *Ban on city use of face surveillance.*

(1) It shall be unlawful for Boston or any Boston official to:

(a) Obtain, retain, possess, access or use:

1. Any face surveillance system; or

2. Information derived from a face surveillance system.

(b) Enter into an agreement with any third party for the purpose of obtaining, retaining, possessing, accessing or using, by or on behalf of Boston or any Boston official any face surveillance system; or

(c) Issue any permit or enter into any other agreement that authorizes any third party, on behalf of Boston or any Boston official, to obtain, retain, possess, access or use:

1. Any face surveillance system; or

2. Information derived from a face surveillance system.

(2) Nothing in division (B)(1) shall prohibit Boston or any Boston official from:

(a) Using evidence relating to the investigation of a specific crime that may have been generated from a face surveillance system, so long as such evidence was not generated by or at the request of Boston or any Boston official;

(b) Obtaining or possessing:

1. An electronic device, such as a cell phone or computer, for evidentiary purposes; or

2. An electronic device, such as a cell phone or tablet, that performs face surveillance for the sole purpose of user authentication.

(c) Using face recognition on an electronic device, such as a cell phone or tablet, owned by Boston or by any Boston official, for the sole purpose of user authentication;

(d) Using social media or communications software or applications for communicating with the public; provided such use does not include the affirmative use of any face surveillance;

(e) Using automated redaction software; provided such software does not have the capability of performing face surveillance; or

(f) Complying with the National Child Search Assistance Act of 1990, being 34 U.S.C. §§ 41307 et seq.

(C) *Enforcement.*

(1) Face surveillance data collected or derived in violation of this Section shall be considered unlawfully obtained and shall be deleted upon discovery, subject to applicable law.

(2) No data collected or derived from any use of face surveillance in violation of this Section and no evidence derived therefrom may be received in evidence in any proceeding in or before any Department, Officer, Agency, regulatory body, legislative committee or authority subject to the jurisdiction of the city.

(3) Any violation of this Section constitutes an injury and any person may institute proceedings for injunctive relief, declaratory relief or writ of mandate in any court of competent jurisdiction to enforce this Section. A court shall award costs and reasonable attorneys' fees to a plaintiff who is the prevailing party in such proceedings. An action instituted under this division (C)(3) shall be brought against the respective City Department, and the city and, if necessary to effectuate compliance with this Section, any other governmental Agency with possession, custody or control of data subject to this Section.

(4) Violations of this Section by a city employee shall result in consequences that may include retraining, suspension or termination, subject to due process requirements and provisions of collective bargaining agreements.

(5) Nothing in this Section shall be construed to limit any individual's rights under commonwealth or federal law.

(D) *Severability.*

(1) If any provision of this Section shall be held to be invalid by a court of competent jurisdiction, then such provision shall be considered separately and apart from the remaining provisions, which shall remain in full force and effect.

(E) *Effective date.* The provisions of this Section shall be effective immediately upon passage.

(CBC 1985 16-62; Ord. 2020 c. 2)

16-63 ORDINANCE ON SURVEILLANCE OVERSIGHT AND INFORMATION SHARING

16-63.1 Purpose.

The purpose of this Section is to provide accountability, transparency and oversight regarding the acquisition and use of surveillance technology and surveillance data by the city and its Agencies and Officers, and to protect privacy, civil rights and racial and immigrant justice while allowing for appropriate use to assist in the charge of improving delivery of services and public safety.

(CBC 1985 16-63.1; Ord. 2021 c. 14)

16-63.2 Definitions.

For the purpose of this Section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

ANNUAL SURVEILLANCE REPORT. A written report submitted by the Mayor's Office on an annual basis concerning specific surveillance technology used during the previous year and containing the information set forth in this Section by the following City Departments and Agencies: the Boston Police Department, the Boston Parks Department Park Rangers, Boston Public Schools, Boston Public Health Commission, Boston Housing Authority, Boston Municipal Protection Services and the Office of Emergency Management.

BPD. The Boston Police Department.

BPS. The Boston Public Schools.

BPS PERSONNEL. Any employee or Agent of the Boston Public Schools, excluding School Safety Specialists.

EXIGENT CIRCUMSTANCES. The Police Commissioner, the Police Commissioner's designee, the head of BHA's Police or the head of the BPHC Police's good faith and reasonable belief that an emergency involving danger of death, physical injury or significant property damage or loss, similar to those that would render it impracticable to obtain a warrant, requires the use of the surveillance technology or the surveillance data it provides. The use of surveillance technology in ***EXIGENT CIRCUMSTANCES*** shall not infringe upon an individual's right to peacefully protest or exercise other lawful and protected constitutional rights.

HISTORIC STUDENT REPORTS. Student reports that they have created or produced prior to the effective date of this Section.

IDENTIFIABLE INDIVIDUAL. An individual whose identity can be revealed by data, including surveillance data, or revealed by data when it is analyzed and/or combined with any other type of record.

SCHOOL SAFETY SPECIALISTS. Any officials or employees that belong to the Boston Public Schools Department of Safety Services or any other security and enforcement personnel, and that may or may not be licensed by the Boston Police Department as special Police Officers.

SERIOUS BODILY HARM. Bodily injury that results in permanent disfigurement, loss or impairment of a bodily function, limb or organ, or substantial risk of death.

STUDENT REPORT. A written record that is not an educational record protected under FERPA and that is created by School Safety Specialists or by BPS personnel and that pertains to a student. ***STUDENT REPORTS*** include but are not limited to School Safety Reports, BPD Form 1.1 Incident Reports, Field Interrogation and Observation Reports, Intelligence Reports and Face Sheets. ***STUDENT REPORTS*** also include informal emails, texts and other electronic messages that describe or contain details pertaining to student activity.

SURVEILLANCE. The act of observing or analyzing the movements, behavior or actions of Identifiable Individuals.

SURVEILLANCE DATA. Any electronic data collected, captured, recorded, retained, processed, intercepted or analyzed by surveillance technology acquired by the city or operated at the direction of the city.

SURVEILLANCE OVERSIGHT ADVISORY BOARD. A group comprised of five individuals, one representative to be chosen by each of the following: the president of the Boston City Council, the commonwealth's American Civil Liberties Union and the Boston Police Commissioner; and two representatives chosen by the Mayor, at least one of whom shall be an academic representative with expertise in technology and public policy issues. The Board shall serve as an advisory body to host further discussion and provide recommendations on surveillance issues to the Mayor.

SURVEILLANCE TECHNOLOGY. Any device, hardware or software that is capable of collecting, capturing, recording, retaining, processing, intercepting, analyzing, monitoring or sharing audio, visual, digital, location, thermal, biometric, associational or similar information specifically associated with, or capable of being associated with, any identifiable individual or group; or any system, device or vehicle that is equipped with an electronic surveillance device, hardware or software. Examples of ***SURVEILLANCE TECHNOLOGY*** include, but are not limited to:

(1) International mobile subscriber identity ("IMSI") catchers and other cell-site simulators;

(2) Automatic license plate readers;

(3) Electronic toll readers;

(4) Closed-circuit television cameras except as otherwise provided herein;

(5) Biometric surveillance technology, including facial, voice, iris and gait-recognition software and databases;

(6) Mobile DNA capture technology;

(7) Gunshot detection and location hardware and services;

(8) X-ray vans;

(9) Video and audio monitoring and/or recording technology, such as surveillance cameras;

(10) Surveillance enabled or capable light bulbs or light fixtures;

(11) Tools, including software and hardware, used to gain unauthorized access to a computer, computer service or computer network;

(12) Social media monitoring software;

(13) Through-the-wall radar or similar imaging technology;

(14) Passive scanners of radio networks;

(15) Long-range Bluetooth and other wireless-scanning devices;

(16) Thermal imaging or "forward-looking infrared" devices or cameras;

(17) Electronic database systems containing surveillance data about identifiable individuals;

(18) Radio-frequency identification ("RFID") scanners; and

(19) Software designed to integrate or analyze data from Surveillance Technology, including surveillance target tracking and predictive policing software.

SURVEILLANCE TECHNOLOGY IMPACT REPORT. A written report submitted by the Mayor's Office with a request for approval of acquisition or use of surveillance technology, and which includes, at a minimum, the requirements set forth in this Section.

SURVEILLANCE USE POLICY. A policy for the city's use of surveillance technology, approved by the Corporation Counsel and the Mayor's Office, and submitted by the Mayor's Office to and approved by the Boston City Council. The ***SURVEILLANCE USE POLICY*** shall at a minimum satisfy the requirements set forth in this Section.

TECHNOLOGY-SPECIFIC SURVEILLANCE USE POLICY. A policy governing the city's use of a specific surveillance technology not already covered under the City's Surveillance Use Policy, approved by the Corporation Counsel and the Mayor, and submitted by the Mayor to the Boston City Council with a Surveillance Technology Impact Report under this Section.

(CBC 1985 16-63.2; Ord. 2021 c. 14)

16-63.3 Community Control Over Surveillance.

(A) *Applicability.*

(1) This Section shall apply to the following City Departments and Agencies: the Boston Police Department, Boston Public Schools, Boston Public Health Commission, the Boston Parks Department Park Rangers, Boston Housing Authority, Boston Municipal Protection Services and the Office of Emergency Management.

(2) For the purpose of this Section, the word ***CITY*** shall mean the City Departments and Agencies listed above.

(B) *Exceptions and exemptions.* The following situations are exceptions and exemptions from this Section.

(1) The following do not constitute Surveillance Data and are exempted from the requirements of this Section:

(a) Surveillance Data acquired where the individual knowingly and voluntarily consented to provide the information, such as submitting personal information for the receipt of city services; and

(b) Surveillance Data acquired where the individual was presented with a clear and conspicuous opportunity to opt-out of providing the information.

(2) Surveillance Technology does not include the following devices, software or hardware, which are exempt from the requirements of this Section, unless the devices, hardware or software are modified to include additional surveillance capabilities:

(a) Routine office hardware, such as televisions, computers and printers, that are in widespread public use and will not be used for any surveillance or surveillance-related functions;

(b) Parking ticket devices ("PTDs") and related databases;

(c) Manually-operated, non-wearable, handheld digital cameras, audio recorders and video recorders that are not designed to be used surreptitiously, that are used for non-law enforcement and non-investigatory purposes and whose functionality is used for manually capturing and manually downloading video and/or audio recordings;

(d) Cameras installed in or on a Police vehicle;

(e) Cameras installed pursuant to commonwealth law authorization in or on any vehicle or along a public right-of-way solely to record traffic violations or traffic patterns; provided that the surveillance data gathered is used only for that purpose;

(f) Surveillance devices that cannot record or transmit audio or video or be remotely accessed, such as image stabilizing binoculars or night vision goggles;

(g) City databases that do not and will not contain any surveillance data or other information collected, captured, recorded, retained, processed, intercepted or analyzed by surveillance technology;

(h) Manually-operated technological devices that are used primarily for internal city communications and are not designed to surreptitiously collect surveillance data, such as radios and email systems;

(i) Parking access and revenue control systems, including proximity card readers and transponder readers at city owned or controlled parking garages;

(j) Card readers and key fobs used by city employees and other authorized persons for access to city owned or controlled buildings and property;

(k) Cameras installed on city property solely for security purposes, including closed-circuit television cameras installed by the city, to monitor entryways and outdoor areas of city owned or controlled buildings and property for the purpose of controlling access, maintaining the safety of city employees and visitors to city buildings and protecting city property;

(l) Security cameras including closed-circuit television cameras installed by the city to monitor cashiers' windows and other cash-handling operations and to maintain the safety of city employees and visitors to such areas;

(m) Cameras installed solely to protect the physical integrity of city infrastructure;

(n) Technology that monitors only city employees in response to complaints of wrongdoing or in order to prevent waste, fraud or abuse of city resources;

(o) Devices exclusively capable of detecting radiation;

(p) Radio-frequency identification scanners ("RFIDs") used for disaster patient tracking by the Boston Public Health Commission; and

(q) BPHC technology used to track BPHC owned or leased equipment and vehicles.

(3) Notwithstanding the provisions of this Section, BPD, BHA Police or BPHC Police may temporarily acquire or temporarily use surveillance technology in exigent circumstances for a period not to exceed 30 days without following the provisions of this chapter before that acquisition or use. However, if these bodies acquire or use surveillance technology in exigent circumstances under this Section, the BPD Commissioner, BHA Head of Police or BPHC Head of Police must:

(a) Report that acquisition or use to the Boston City Council in writing within 30 days following the end of those exigent circumstances;

(b) Submit a surveillance technology impact report, and, if necessary, a technology-specific Surveillance Use Policy to the Boston City Council regarding that surveillance technology within 30 days following the end of those exigent circumstances;

(c) Include that surveillance technology in the Department or Agency's next annual surveillance report to the Boston City Council following the end of those exigent circumstances;

(d) If the Department or Agency is unable to meet the 30-day timeline to submit a Surveillance Technology Impact Report and, if necessary, a technology-specific Surveillance Use Policy to the Boston City Council, the Department or Agency must notify the Boston City Council in writing requesting to extend this period. The Boston City Council may grant extensions beyond the original 30-day timeline to submit a surveillance technology impact report, and, if necessary, a technology-specific Surveillance Use Policy;

(e) Any surveillance technology impact report, and, if necessary, any Technology-Specific Surveillance Use Policy submitted to the Boston City Council under this Subsection shall be made publicly available on the city's website upon submission to the Boston City Council; and

(f) Any surveillance technology impact report and, if necessary, technology-specific Surveillance Use Policy submitted to the Boston City Council under this Section may be redacted to the extent required to comply with an order by a court of competent jurisdiction, or to exclude information that, in the reasonable discretion of the Commissioner of Police, if disclosed, would materially jeopardize an ongoing investigation or otherwise represent a significant risk to public safety and security provided, however, that any information redacted pursuant to this division (B)(3)(f) will be released in the next annual surveillance report following the point at which the reason for such redaction no longer exists.

(4) A City Department head may apply a technical patch or upgrade that is necessary to mitigate threats to the city's environment. The Department shall not use the new surveillance capabilities of the technology until the requirements of this Section are met, unless the Mayor, or their designee, determines that the use is unavoidable; in that case, the Mayor shall request Boston City Council approval as soon as possible. The request shall include a report to the Boston City Council of how the altered surveillance capabilities were used since the time of the upgrade. If the Boston City Council does not approve the use of the proposed new surveillance capabilities, the request shall be sent to the Surveillance Oversight Advisory Board who will make recommendations to the Mayor. Subsequent to receiving the recommendations from the Surveillance Oversight Advisory Board, the Mayor may at their discretion resubmit a modified request to the Boston City Council for approval.

(C) *Surveillance Use Policy.*

(1) The Mayor shall submit to the Boston City Council for its review and approval a proposed Surveillance Use Policy applicable to each applicable City Department that possesses or uses surveillance technology before the effective date of this Section. If the Boston City Council does not approve the use of the proposed new surveillance capabilities, the request shall be sent to the Surveillance Oversight Advisory Board who will make recommendations to the Mayor. Subsequent to receiving the recommendations from the Surveillance Oversight Advisory Board, the Mayor may, at his or her discretion, resubmit a modified request to the Boston City Council for approval. Notwithstanding the previous sentences, in municipal year 2022, the Boston City Council shall approve and review the surveillance use policy no later than December 14, 2022 before such policy is sent to the Surveillance Oversight Advisory Board.

(2) Any Surveillance Use Policy submitted under this Section shall be made publicly available upon submission to the Boston City Council.

(3) A Surveillance Use Policy shall, at a minimum, specify the following:

(a) *Purpose.* The specific purpose(s) for the surveillance technology;

(b) *Authorized use.* The uses that are authorized, the rules and processes required before that use, and the uses that are prohibited;

(c) *Data collection.* The surveillance data that can be collected by the surveillance technology;

(d) *Data access.* The individuals who can access or use the collected surveillance data, and the rules and processes required before access or use of the information;

(e) *Data protection.* The safeguards that protect information from unauthorized access, including, but not limited to, encryption, access- control and access-oversight mechanisms;

(f) *Data retention.* The time period, if any, for which information collected by the surveillance technology will be routinely retained, the reason that retention period is appropriate to further the purpose(s), the process by which the information is regularly deleted after that period has elapsed and the conditions that must be met to retain information beyond that period;

(g) *Public access.* If and how collected surveillance data can be accessed by members of the public, including criminal defendants;

(h) *Information and data-sharing.* If and how other city or non-city entities can access or use the surveillance data, how information is shared among City Agencies or between City Agencies and non-city entities and organizations, including any required justification and legal standard necessary to do so, and any obligation(s) imposed on the recipient of the surveillance data;

(i) *Training.* The training, if any, required for any individual authorized to use the surveillance data or technology or to access information collected by the surveillance technology, including whether there are training materials;

(j) *Oversight.* The mechanisms to ensure that the Surveillance Use Policy is followed, including, but not limited to, identifying personnel assigned to ensure compliance with the policy, internal record keeping of the use of the technology or access to information collected by the surveillance technology, audit requirements or procedures, technical measures to monitor for misuse, any independent person or entity with oversight authority and the sanctions for violations of the policy;

(k) *Legal authority.* The statutes, regulations or legal precedents, if any, that control the collection, capturing, recording, retaining, processing, interception, analysis, release or disclosure of surveillance data and technology; and

(l) *Child rights.* Special considerations specific to surveillance technology and surveillance data pertaining to minor children.

(4) The Boston City Council shall vote to approve or deny the Surveillance Use Policy by a vote of a simple majority within 60 days of submission. If the Boston City Council does not approve the Surveillance Use Policy, the Policy shall be sent to the Surveillance Oversight Advisory Board who will make recommendations of improvement to the Mayor. Subsequent to receiving the recommendations from the Surveillance Oversight Advisory Board, the Mayor may at their discretion resubmit a modified request to the Boston City Council for approval.

(D) *Surveillance technology impact report and Technology-Specific Surveillance Use Policy.*

(1) (a) The Mayor's Office must seek and obtain approval from the Boston City Council as set forth in this Section prior to the city acquiring, using or entering into an agreement to acquire, share or otherwise use, unapproved surveillance technology or surveillance data as defined in this Section.

(b) The city may seek, but not accept, funds for surveillance technology without approval from the Boston City Council; provided that the city shall notify the Boston City Council of the funding application at the time it is submitted, and include in this notification the deadline of the funding opportunity and details regarding the nature of the surveillance technology for which funding is sought. If the Boston City Council declines to accept funds for

surveillance technology, the request to accept the funds shall be sent to the Surveillance Oversight Advisory Board who will make recommendations to the Mayor. Subsequent to receiving the recommendations from the Surveillance Oversight Advisory Board, the Mayor may at their discretion resubmit a modified request to the Boston City Council for approval.

(2) *Acquisition of surveillance technology by applicable City Departments.* Unless exempted or excepted from the requirements of this Section, any applicable City Department intending to acquire new surveillance technology or surveillance data, including, but not limited to, procuring that surveillance technology without the exchange of monies or other consideration, or use surveillance technology or surveillance data for a purpose or in a manner not previously approved, shall, prior to acquisition or use, obtain Council approval of the acquisition or use. The process for obtaining approval shall be as follows.

(a) The City Department shall submit a surveillance technology impact report, and, if necessary, a Technology-Specific Surveillance Use Policy, as described below, to the Mayor's Office for review and approval.

(b) If the request is approved by the Mayor's Office, the Mayor's Office shall submit the request, including copies of the City Department's surveillance technology impact report and, if applicable, Technology-Specific Surveillance Use Policy, to the Boston City Council for review.

(c) The Boston City Council shall have 60 days from the date of submission to approve or deny a request by majority vote for the acquisition or use of surveillance technology. If the Boston City Council does not approve the acquisition or use of surveillance technology, the request shall be sent to the Surveillance Oversight Advisory Board who will make recommendations to the Mayor. Subsequent to receiving the recommendations from the Surveillance Oversight Advisory Board, the Mayor may, at his or her discretion resubmit a modified request to the Boston City Council for approval.

(d) A surveillance technology impact report submitted shall include all of the following:

(e) Information describing the surveillance technology and how it works;

(f) Information on the proposed purpose(s) for the surveillance technology;

(g) Information describing the kind of surveillance the surveillance technology will conduct and what surveillance data will be gathered, including a detailed accounting of which entities may have access to any surveillance data, under what circumstances (e.g., ongoing automated access, subject to an informal request, subject to subpoena, subject to a warrant and the like);

(h) The location(s) the surveillance technology may be deployed and when;

(i) A description of the privacy and anonymity rights affected and a mitigation plan describing how the Department's use of the equipment will be regulated to protect privacy and anonymity, and to limit the risk of abuse;

(j) The potential impact(s) on privacy in the city; the potential impact on the civil rights and liberties of any individuals, communities or groups, including, but not limited to, communities of color or other marginalized communities in the city; and a description of a plan to address these impact(s);

(k) An estimate of the fiscal costs for the surveillance technology, including initial purchase, personnel and other ongoing costs and any current or potential sources of funding; and

(l) An explanation of how the Surveillance Use Policy will apply to this surveillance technology and, if it is not sufficiently applicable, a Technology-Specific Surveillance Use Policy.

(3) A Technology-Specific Surveillance Use Policy shall be required if the purpose, authorized use, data collection, data access, data protection, data retention, public access, third-party data sharing, training or oversight of the requested surveillance technology differ from the standards in the Surveillance Use Policy submitted under division (C) above and this division (D).

(a) A Technology-Specific Surveillance Use Policy shall not conflict with any provision of the city's Surveillance Use Policy.

(b) To the extent a conflict arises between the provisions of the City's Surveillance Use Policy and a Technology-Specific Surveillance Use Policy, the city's Surveillance Use Policy shall govern. A Technology-Specific Surveillance Use Policy shall include all of the elements of the Surveillance Use Policy as outlined in division (B) above.

(4) Any surveillance technology impact report, and, if necessary, Technology-Specific Surveillance Use Policy submitted to the Boston City Council under division (C) above and this division (D) shall be made publicly available on the city's website upon submission to the Council.

(CBC 1985 16-63.3; Ord. 2021 c. 14; Ord. 2022 c. 7)

16-63.4 Boston Public Schools and Boston Police Department Information-Sharing Policy.

(A) School Safety Specialists shall not collect, store or share information pertaining to students except by creating and sharing student reports in accordance with this Section.

(1) Student reports shall only be created when:

(a) Serious bodily harm to an individual has occurred as a result of willful conduct by a student;

(b) A credible threat to the safety of the school arises that would amount to criminal conduct;

(c) A student is in possession of firearms as defined in M.G.L. Chapter 269, Section 10(j), ammunition, or a dangerous weapon as described in M.G.L. Chapter 269, Section 10(b); or

(d) A student unlawfully possesses or uses controlled substances; provided those substances are not marijuana, nicotine or alcohol, and further provided, however, that School Safety Specialists may collect, store and share information pertaining to unlawful distribution of alcohol or marijuana when a student has unlawfully distributed marijuana or alcohol on school grounds in excess of the following amounts: 30 grams for marijuana and one liter for alcohol.

(2) School Safety Specialists may not create a student report relating to matters that are not described above.

(3) Student reports shall not contain information pertaining to:

(a) Immigration status;

(b) Citizenship;

(c) Address and/or neighborhood of residence;

(d) Religion;

(e) National origin;

(f) Students' native or spoken language;

(g) Suspected, alleged or confirmed gang involvement, affiliation, association or membership;

(h) Participation in school activities, extracurricular activities outside of school, sports teams or school clubs or organizations;

(i) Degrees, honors or awards; or

(j) Post-high school plans.

(4) (a) Before creating the student report, the School Safety Specialists must discuss the writing of the report with the principal(s) or head(s) of school of:

1. The school(s) where the subject(s) of the report is/are enrolled; and

2. The school where the School Safety Specialists writing the report is assigned to work.

(b) The required principals or heads of school must document in writing that the incident at hand merits a report under the criteria in this division (A).

(5) Principals and heads of school of the school(s) where the subject(s) of the report is/are enrolled and the school where the School Safety Specialists writing the report is assigned to work must receive copies of all student reports written under this Section immediately upon writing.

(a) Within 24 hours of the writing of a student report under this Section, the relevant principals and/or heads of school must provide a copy of the report, with any necessary redactions to protect student privacy, to every student referenced by name in the report, as well as to those students' families. Reports which involve allegations of parental/ household abuse may also be withheld from students' families if disclosure of the report is not in the best interest of the student. In cases of allegations of parental/household abuse, a copy of the report shall be provided to the student or a trusted adult of their choosing.

(B) *Rules for student information sharing.* School Safety Specialists and BPS personnel shall not transmit to or share with BPD or any other outside entities any information about students, including, but not limited to, Student Reports, through any official or unofficial channels, including, but not limited to, text, phone, email, database and in-person communication, except if the transmission or sharing is done:

(1) Pursuant to division (C) below; or

(2) In exigent circumstances pursuant to division (D) below.

(C) *Transmitting information to the BPD and other entities outside the Boston Public Schools.*

(1) BPS personnel and School Safety Specialists may not send information relating to Boston Public Schools students to the Boston Regional Intelligence Center ("BRIC"), Federal Immigration Authorities, Federal Law Enforcement Agencies or any law enforcement fusion center under any circumstances, except where required by commonwealth or federal law.

(2) BPS personnel may not transmit to the BPD any student information, including, but not limited to, a student report, unless in response to a judicial warrant issued upon a finding of probable cause, as required under M.G.L. Chapter 269, Section 10(j) and M.G.L. Chapter 71, Section 37L, or as otherwise required by commonwealth or federal law. Nothing in this Section shall limit the ability of Boston Public Schools to release information as required by commonwealth or federal laws and regulations.

(3) Before BPS personnel or a School Safety Specialist transmits a student report created pursuant to division (A) above or any other information relating to a student to BPD or to any other entity outside of the Boston Public Schools in accordance with divisions (C)(1) and (2) above, the following must take place.

(a) Any student named in a Student Report or other record, and their parent or guardian, must be notified in writing that the Student Report they received pursuant to Section division (A)(5) above will be transmitted to BPD or to the outside Agency and receive an explanation of why the information reflected in the report is prompting the communication. All written materials must be provided in both English and the language spoken by the relevant student's parent or guardian.

(b) The Boston Public Schools must schedule a meeting with the student and the student's parent or guardian as soon as practicable, and an interpreter of the family's choosing must be present for any party that requires one. The interpreter cannot be the student or other individual who is participating in the meeting in another capacity. If the family does not have a preferred interpreter, BPS must provide a qualified translator.

(c) The Principals and heads of school mentioned in division (A)(5) above, the Superintendent and the Legal Advisor for the School Department must review the Student Report and the Legal Advisor for BPS must verify that at least one of the criteria in division (A)(1) above is present. If the Legal Advisor finds that the incident did not meet the criteria in division (A)(1) above, he or she must place a note in the record attesting to this fact, and the student report may not be transmitted to the BPD or any entity outside of BPS.

(d) The student and family may have an attorney and/or advocate present at the meeting. At the moment the meeting is scheduled and requested, BPS must provide the family with a list of available legal services vetted by the Mayor's Office of Immigrant Advancement.

(e) Students and families may amend a student's record by placing a note with information relating to any student report in which the student is named in the student's file.

(D) *Transmission of information pursuant to exigent circumstances.*

(1) Within 12 hours after a School Safety Specialist transmits a Student Report created pursuant to division (A) above or any other information relating to a student to the BPD pursuant to the existence of exigent circumstances: the School Safety Specialists must notify the relevant principal or head of school that student information was shared with the BPD, and provide the relevant principal or head of school with a copy of the information shared;

(2) Within 24 hours after the conclusion of the exigent circumstance or within 24 hours after BPS Personnel or a School Safety Specialist transmits a student report created pursuant to division (A) above or any other information relating to a student to the BPD pursuant to the existence of exigent circumstances, the relevant principal or head of school shall:

(a) Notify in writing any student whose information or student report was shared and their parent or guardian that the student information was shared, and share a copy of the information transmitted and an explanation of the incident prompting the communication to BPD after the information was transmitted. All written materials must be provided in both English and the language spoken by the parent or guardian;

(b) The relevant principal or head of school must schedule a meeting with the student and the student's parent or guardian as soon as practicable, and an interpreter/translator of the parent or guardian's choosing must be present for any party that requires one. The interpreter/translator cannot be the student or other individual who is participating in the meeting in another capacity. If the family does not have a preferred translator, BPS must provide a

qualified translator. The student and parent or guardian may have an attorney and/or advocate present at the meeting. At the moment the meeting is scheduled and requested, BPS must provide the family with a list of available legal services vetted by the Mayor's Office of Immigrant Advancement;

(c) If the information shared was a student report, the principals and/or heads of school mentioned in division (A)(5) above, the Superintendent and the Legal Advisor for the School Department must review the student report and the Legal Advisor for BPS must verify that at least one of the criteria in division (A)(1) above is present. If the Legal Advisor finds that the incident did not meet the criteria in Section division (A)(1) above, he or she must place a note in the record attesting to this fact, and the BPD must be notified to the same within three business hours.

(E) *Meetings where ICE is present.* School Safety Specialists shall not attend any meetings where Officers or employees from United States Immigrations and Customs Enforcement are present, either in person or virtually.

(F) *Transparency and communication.* Students, families, school administrators, teachers and counselors must be made aware of this Section by including a copy of the ordinance in the Guide to Boston Public Schools.

(G) *Community Information-Sharing Oversight Board.*

(1) A Community Oversight Board shall be created to provide oversight regarding the implementation of this Section.

(2) The Board must include at least one representative from each of the following groups: a student chosen by the Boston Student Advisory Council, a parent or guardian chosen by the city-wide Parent Council, a parent or guardian chosen by the Boston Special Education Parent Advisory Council, a representative chosen by the Code of Conduct Advisory Council, a representative of the District English Learner Advisory Committee, a teacher chosen by the Boston Teachers Union, a local immigration advocate chosen by the Student Immigrant Movement ("SIM"), a civil rights advocate chosen by Lawyers for Civil Rights and an immigration attorney familiar with the immigration consequences of criminal proceedings chosen by the Political Asylum/Immigration Representation Project.

(3) The Superintendent shall report monthly to the Board:

(a) The number of student reports created, disaggregated by school;

(b) The number of student reports shared with any outside entity, disaggregated by school and receiving entity;

(c) The number of student reports reviewed by the Legal Advisor for the School Department that did not meet the criteria specified in division (A)(1) above, disaggregated by school, and including the date of each incident, a description of each incident, the race, ethnicity, gender, age and grade level of each student who is named in the report, the location of the incident and whether the report was transmitted to BPD or to any other outside entity; and

(d) The number of student reports written under division (A) above, disaggregated by school, including the date of the incident, a description of the incident including the justification for the creation of the report per division (A)(1) above, the type of report, the race, ethnicity, gender, age and grade of each student who is named in the report, the location of the incident and whether the report was transmitted to BPD or to any other outside entities.

(4) The Board will review the information provided under division (G)(3) above and may request that School Safety Specialists or District personnel respond to questions, either in writing or at a public meeting, relating to the information provided.

(5) The Board shall review the information for patterns and compliance with this Section. It shall issue findings and report such findings to the Boston City Council and School Committee on a quarterly basis.

(H) *Accountability and training.*

(1) All School Safety Specialists and school administrators must receive training on this policy, and the training will be designed in collaboration with the Student Immigrant Movement and Boston Teachers Union's Unafraid Educators. The training will also be provided by the Central Office and not by individual schools. Training materials will be made publicly available.

(2) All School Safety Specialists and BPS personnel, including school administrators, will sign an acknowledgment of responsibility for safeguarding student information under this Subsection; the Family Educational Rights and Privacy Act ("FERPA"), being 20 U.S.C. § 1232g; 34 C.F.R. Part 99; the commonwealth's Student Records Law, being M.G.L. Chapter 71, Sections 34D, 34E, 34G and 34H; and 603 CMR 23 and 603 CMR 49.

(3) All new School Safety Specialists will receive training on the requirements of this Subsection as part of their orientation.

(4) All School Safety Specialists must be trained every three years or at the discretion of the Community Oversight Board.

(5) Any transfer of information about students in violation of this Subsection shall result in appropriate disciplinary action, up to and including dismissal, in accordance with the rules of collective bargaining.

(6) Should any School Safety Specialist be found to have violated this policy, the Superintendent will instruct the Chief of Safety Services to suspend all authorization of School Safety Specialists report submissions to BPD pending a full investigation of such violation.

(I) Nothing in this Section shall be construed to prevent or restrict reporting requirements around sexual assault, sexual abuse and child abuse in accordance with the M.G.L.

(CBC 1985 16-63.4; Ord. 2021 c. 14)

16-63.5 Annual Surveillance Report.

(A) (1) This Section shall apply to the following City Departments and Agencies: the Boston Police Department, Boston Parks Department Park Rangers, Boston Public Schools, Boston Public Health Commission, Boston Housing Authority, Boston Municipal Protection Services and the Office of Emergency Management.

(2) For the purpose of this Section, the word ***CITY*** shall mean the City Departments and Agencies listed above.

(B) Within 18 months of the effective date, and annually thereafter, all applicable City Departments shall submit to the Mayor an Annual Surveillance Report pertaining to each City Department for which approval for the use of surveillance technology or surveillance data has been obtained under Subsection 16-63.3(C) and (D). Upon receipt of such reports, the Mayor shall promptly submit them to the Boston City Council. Any Annual Surveillance Report submitted under this Section shall be made publicly available on the city's website upon submission to the Council.

(C) The Annual Surveillance Report submitted pursuant to this Section shall include all of the following:

(1) A description of how surveillance technology has been used, including whether it captured images, sound or other information regarding members of the public who are not suspected of engaging in unlawful conduct;

(2) Whether and how often data acquired through the use of the surveillance technology was shared with local, commonwealth and federal; the name of any recipient entity; the type(s) of data disclosed; any legal standard(s) under which the information was disclosed; and the justification for the

disclosure;

(3) A summary of community complaints or concerns about the surveillance technology, if any;

(4) The results of any internal audits, any information about violations of the Surveillance Use Policy and any actions taken in response other than to the extent that such inclusion would violate the privacy rights of an employee of the city;

(5) A detailed accounting of whether the surveillance technology has been effective at achieving its identified purpose;

(6) The number of public records requests received by the city seeking documents concerning surveillance technologies approved during the previous year;

(7) An estimate of the total annual costs for the surveillance technology, including personnel and other ongoing costs, and what source(s) of funding will fund the technology in the coming year, if known;

(8) Whether the civil rights and liberties of any communities or groups, including communities of color or other marginalized communities in the city are disproportionately impacted by the deployment of the surveillance technology; and

(9) A disclosure of any new agreements made in the past 12 months with non-city entities that may include acquiring, sharing or otherwise using surveillance technology or the surveillance data it provides.

(D) Based upon information provided in the Annual Surveillance Report, the Boston City Council shall determine whether the benefits to the applicable, impacted City Department(s) and the community of the surveillance technology outweigh the financial and operational costs and whether reasonable safeguards exist to address reasonable concerns regarding privacy, civil liberties and civil rights impacted by the deployment of the surveillance technology. If the benefits or reasonably anticipated benefits do not outweigh the financial and/or operational costs or civil liberties or civil rights are not reasonably safeguarded, the Boston City Council may recommend modifications to the Surveillance Use Policy that are designed to address the Boston City Council's concerns to the Mayor for their consideration; withdraw authorization for continued use of surveillance technology by a majority vote of the Boston City Council; and/or request a report back from the Mayor regarding steps taken to address the Boston City Council's concerns. Should the Council withdraw authorization for a previously approved surveillance technology, the Mayor may request that the Surveillance Oversight Advisory Board meet to discuss the Boston City Council's concerns and provide recommendations to the Mayor. The Mayor at their discretion may resubmit a modified request to the Boston City Council for approval.

(E) Nothing in this Section shall prohibit the Boston City Council from enacting a separate ordinance to ban or otherwise regulate any surveillance technology, whether previously approved or not.

(F) No later than May 31 of each year, the Boston City Council shall hold a meeting to discuss the applicable City Departments' Annual Surveillance Reports, and shall publicly release a report that includes a summary of all requests for approval of surveillance technology received by the Boston City Council during the prior year, including whether the Boston City Council approved or denied the city's request for acquisition or use of the surveillance technology.

(CBC 1985 16-63.5; Ord. 2021 c. 14)

16-63.6 Enforcement.

(A) *Enforcement officials.* This Section shall be enforced by the Mayor's Office or the Mayor's designee.

(B) *Suppression.* No data collected or derived from any use of surveillance technology in violation of this Section and no evidence derived therefrom may be received in evidence in any proceeding in or before any Department, Officer, Agency, regulatory body, legislative committee or other authority subject to the jurisdiction of the city.

(C) *Cause of action.* Any violation of this Section constitutes an injury and any person may institute proceedings for injunctive relief, declaratory relief or writ of mandate in any court of competent jurisdiction to enforce this Section. An action instituted under this division (C) shall be brought against the city and, if necessary to effectuate compliance with this Section, any other Governmental Agency with possession, custody or control of data subject to this Section.

(D) *Addressing violations.* The city will address alleged violations of this Section in accordance with its usual practices, applicable law and contractual obligations.

(E) *Whistleblower protections.* Subject to the limitations and requirements set forth in M.G.L. Chapter 149, Section 185 (the "Commonwealth Whistleblower Statute" or "Section 185") as it may be amended from time to time, any city employee as defined in Section 185 who reports an alleged violation of this Section, shall be afforded protections against retaliation if applicable pursuant to Section 185, as set forth in and subject to the limitations and requirements of Section 185.

(F) Nothing in this Section shall be construed to limit or affect any individual's rights under commonwealth or federal laws.

(CBC 1985 16-63.6; Ord. 2021 c. 14)

16-63.7 Severability.

The provisions in this Section are severable. If any part or provision of this Section, or the application of this Section to any person or circumstance, is held invalid by a court of competent jurisdiction, the remainder of this Section shall not be affected by such holding and shall continue to have full force and effect.

(CBC 1985 16-63.7; Ord. 2021 c. 14)

16-63.8 Effective Date and Implementation.

The effective date and implementation of the ordinance shall be as follows.

(A) The ordinance shall take effect and be implemented in the manner and ways described in this Section.

(B) The ordinance shall take effect notwithstanding any other provision of law and shall supersede any prior law and regulation enacted by the city and/or any agreement entered into by the city or any of its Agencies that are interpreted to be in conflict with its provisions.

(C) Subsections 16-63.1, 16-63.2, 16-63.4, 16-63.6 and 16-63.7 shall take effect one month after its adoption in accordance with the following provisions.

(1) Every School Safety Specialist shall create a record of historic student reports.

(2) Within four months of the effective date:

(a) The historic student reports that do not conform with Subsection 16-63.4(A)(1) shall be destroyed, in both print and electronic form; provided that such destruction is permitted under the commonwealth law relating to retention of records;

(b) The historic student reports that conform with Subsection 16-63.4(A)(1) can be retained; provided there is a previous certification by the BPS Legal Advisor that their creation meets such requirements; and

(c) All reports created more than five years ago shall be destroyed.

(3) Within six months of the Effective Date, the Head of the School Safety Specialists and the Legal Advisor must submit a report to the Community Information-Sharing Oversight Board. Such report must contain:

(a) The number of historic student reports, including the format or file type of the report, description of each incident, disaggregated by race, ethnicity, gender, age and grade level of each student who is named in the report;

(b) The number of historic student reports retained in accordance with division (C)(2)(a) above; and

(c) The number of historic student reports destroyed in accordance with divisions (C)(2)(b) and (C)(2)(c) above.

(4) No more than one month after receiving such report, the Community Information-Sharing Oversight Board shall call a public hearing to discuss the Historic Student Reports. The Head of the School Safety Specialists as well as individual School Safety Specialists shall be present at such public hearing.

(D) Subsections 16-63.3 and 16-63.5 shall take effect nine months after their adoption.

(CBC 1985 16-63.8; Ord. 2021 c. 14)

16-63.9 Establishment of a Surveillance, Data and Privacy Working Group.

(A) The Working Group shall be tasked with identifying a set of priorities and implementable objectives to increase the transparency, accountability and engagement around the public deployment of technology and use of data within city Departments not covered by this Section.

(B) The Working Group will move forward sustainable policies to increase engagement on the topic of privacy and supply recommendations on professional development opportunities and training for city staff.

(C) The Working Group must produce recommendations for implementation within one year from the date of adoption to the Mayor and Boston City Council.

(D) The Working Group shall comprise a representative from the Mayor's Office of New Urban Mechanics, a representative from the Department of Innovation and Technology, a representative from the Boston City Council to be chosen by the Boston City Council President, a representative from the commonwealth's American Civil Liberties Union, a representative from the community-at-large to be chosen by SIM and a representative appointed by the Mayor.

(E) The Working Group will dissolve upon the publication of recommendations to the Mayor and Boston City Council.

(F) The Working Group seats shall be filled within one month of this Section's passage and the Group shall convene for its first meeting one month thereafter.

(CBC 1985 16-63.9; Ord. 2021 c. 14)

16-64 AN ORDINANCE REGARDING TARGETED RESIDENTIAL PICKETING.

(A) It shall be unlawful for any person to engage in targeted residential picketing between the hours of 9:00 p.m and 9:00 a.m.

(B) For the purpose of this Section, targeted residential picketing means picketing, protesting or demonstrating, with or without signs, that is specifically directed towards one or more occupants of a particular residence and which takes place before or about the particular targeted residence. Those engaged in targeted residential picketing between the hours of 9:00 a.m. and 9:00 p.m. remain subject to all other ordinances and commonwealth statutes, including, but not limited to, laws concerning excessive noise, disturbing the peace, harassment and blocking of streets and sidewalks.

(C) Any violation of this Section shall be punishable by a fine of $50 for the first offense in any 12-month period, $150 for the second offense in any 12-month period and $300 for any third and subsequent offense in any 12-month period. All fines issued under this Section shall be enforced pursuant to the non-criminal disposition procedures of M.G.L. Chapter 40, Section 21D, which procedures are incorporated herein by reference.

(D) This Section shall be enforced by the Boston Police Department. Any information obtained from enforcement of this Section shall not be included in any database maintained by the Boston Regional Intelligence Center.

(E) If any provision of this Section shall be held to be invalid by a court of competent jurisdiction, then such provision shall be considered separately and apart from the remaining provisions, which shall remain in full force and effect.

(CBC 1985 16-64.1; Ord. 2022 c. 2 § 1)

16-65 SAFE CONSTRUCTION AND DEMOLITION OPERATIONS IN THE CITY.

16-65.1 Definitions.

For the purpose of this Section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

COMMISSIONER. Commissioner of the Inspectional Services Department, or a designee.

DEMOLITION. Demolition is the dismantling, razing, destroying of any building or structure or any part thereof.

DEPARTMENT. The Inspectional Services Department.

INSPECTOR OF BUILDINGS. The individual charged with the administration and enforcement of the commonwealth's Building Code in accordance

with M.G.L. Chapter 143, Sections 3 and 3A.

OSHA. The Federal Occupational Safety and Health Administration. The Agency charged with ensuring safe and healthful working conditions for workers by enforcing workplace safety standards and by providing training, outreach, education and assistance to private employers.

OSHA 30-HOUR CERTIFICATION. A comprehensive safety program authorized by the Federal Occupational Safety and Health Administration ("OSHA") that trains workers and employers on recognition, avoidance, abatement and prevention of safety and health hazards in the workplace.

SITE SAFETY COORDINATOR. A site safety coordinator is a person with at least an OSHA 30-hour certification that is designated by the owner, agent, construction manager or general contractor at all construction projects larger than 50,000 square feet and all demolition projects for buildings four stories or larger to perform the duties defined in this Section.

SITE SAFETY PLAN AFFIDAVIT. A sworn statement on a form determined by the Department certifying that the permit holder, or his or her designee, has prepared and will implement a project- specific Site Safety Plan that defines planned protections from the potential hazards to people on the project site, the public and property from construction and demolition operations and meets the applicable requirements defined by the Department. As part of the ***AFFIDAVIT***, the permit holder, or his or her designee, will attest that their project will comply with all applicable OSHA health and safety regulations.

PERMIT. A permit for the construction, alteration or demolition of a structure issued by the Inspectional Services Department.

PERMIT HOLDER. An individual or entity that has secured a permit from the Inspectional Services Department for construction work and is responsible for the work conducted pursuant to that permit.

(Ord. 2023 c. 6)

16-65.2 Purpose and Scope.

(A) The purpose of this Section is to ensure that all construction and demolition operations in the city are conducted in a manner that protects the health, welfare, and safety of the general public and to protect public and private property from any potential dangers that may result from construction or demolition operations in the city. No provision of this Section requires the Inspectional Services Department, or any other city entity, to interpret or enforce any existing OSHA health and safety regulation that governs the safety of persons employed in construction or demolition operations.

(B) This Section applies to all demolition and construction operations in the city except for those permitted under a homeowner waiver as issued by the Inspectional Services Department, as it pertains to the safety of the public and property.

(Ord. 2023 c. 6)

16-65.3 Responsibility for Safety.

Nothing in this Section shall be construed to relieve persons engaged in construction or demolition operations from complying with existing OSHA safety regulations or other applicable provisions of law, nor is it intended to alter or diminish any obligation otherwise imposed by law on any party engaged in a construction or demolition operation, including, but not limited to, the owner, construction manager, general contractor, sub-contractors, material men, registered design professionals or other party to engage in sound design and engineering, safe construction or demolition practices, including, but not limited to, debris removal, and to act in a reasonable and responsible manner to maintain a safe construction or demolition site.

(Ord. 2023 c. 6)

16-65.4 Fire Prevention Code.

In addition to the requirements of this Section, construction or demolition operations shall also be conducted in conformance with the city's Fire Prevention Code.

(Ord. 2023 c. 6)

Cross-reference:

Fire Prevention Code, see § 11-5

16-65.5 Site Safety Plan Affidavit Required.

Except in instances where a permit is issued with a homeowner waiver, no permit for the construction, alteration or demolition of any structure subject to the requirements of this Section shall be issued until a Site Safety Plan affidavit, on a form as determined by the Department, has been submitted to the Commissioner or the Inspector of Buildings, or his or her designee.

(Ord. 2023 c. 6)

16-65.6 Site Safety Monitoring Plan Required.

Each permit holder shall enact and maintain a site safety monitoring program to implement the Site Safety Plan attested to in their affidavit. The Site Safety Monitoring Program shall, at a minimum, include the following.

(A) *Site safety orientation and refresher.* Each permit holder shall ensure that each construction or demolition worker employed or otherwise engaged at such site by the permit holder or performing subcontracted work for or on behalf of such permit holder receives a site safety orientation and refresher reviewing the contents of the Site Safety Plan.

(1) *Site safety orientation.* Each worker employed or otherwise engaged at such site by the permit holder or performing subcontracted work for or on behalf of such permit holder shall receive a site safety orientation on the contents of the Site Safety Plan before such worker commences any construction or demolition work at such site.

(2) *Site safety refresher.* Each worker employed or otherwise engaged at such site by the permit holder or performing subcontracted work for or on behalf of such permit holder shall receive a site safety refresher if:

(a) Such worker has performed construction or demolition work at such site for one year or more; and

(b) One year or more has elapsed since such worker received a site safety orientation or refresher with respect to such site.

(3) *Site safety orientation and refresher content.* Site safety orientations and refreshers required by this Section shall include a review of safety procedures at such site and any hazardous activities to be performed at such site. In addition, information pertaining to the site safety training shall be made available to each worker in a language that he or she understands.

(4) *Records.* A record of all orientations conducted for the site shall be maintained by the permit holder and kept at the site. Such record shall include for each such orientation or refresher:

(a) The date and time of such orientation or refresher;

(b) The name, title and company affiliations of each worker who participated; and

(c) The name, title and company affiliation of the qualified person who conducted such orientation or refresher, along with such person's signature.

(B) *Pre-shift safety meetings.* Each permit holder shall ensure that each construction or demolition worker employed or otherwise engaged at such site by the permit holder or performing subcontracted work for or on behalf of such permit holder takes part in a safety meeting at the beginning of such worker's shift, but before such worker commences any construction or demolition work in such shift.

(1) *Pre-shift safety meeting.* Pre-shift safety meetings shall be conducted at the beginning of each worker's shift, but before such worker commences any construction or demolition work in such shift, by a person designated by the permit holder, or where so authorized by the permit holder, by a person designated by the subcontractor. Such person shall have the ability to communicate with each worker who takes part in such meeting.

(2) *Pre-shift safety meeting content.* The pre-shift safety meeting shall include a review of activities and tasks to be performed during the shift, including specific safety concerns or risks associated with fulfilling such work.

(3) *Records.* The permit holder shall maintain, for each worker, a record of one pre-shift safety meeting per week. Such record shall include for each such meeting:

(a) The date and time of each such meeting;

(b) The name, title and company affiliation of each worker who participated; and

(c) The name, title and company affiliation of the competent person who conducted such meeting, along with such person's signature.

(C) *Ongoing updates to plans and briefings.* As work progresses, the permit holder will modify their briefings to address current conditions and expectations. If changed conditions render any attestations on the Site Safety Plan affidavit inaccurate, then the permit holder shall re-submit an updated version of his or her Site Safety Plan affidavit.

(Ord. 2023 c. 6)

16-65.7 Site Safety Coordinator Required.

(A) *Site safety coordinator to be designated.* A site safety coordinator shall be designated by the owner, agent, construction manager or general contractor at all construction projects larger than 50,000 square feet and all demolition projects for buildings four stories or larger. The designated site safety coordinator must have at least an OSHA 30-hour certification. Where more than one site safety coordinator is to serve at the site, all such entities shall agree to designate one such site safety coordinator as the primary site safety coordinator, or where there is only one site safety coordinator, such coordinator shall automatically be designated as the primary site safety coordinator. The primary site safety coordinator shall carry out all duties and responsibilities assigned to the site safety coordinator by this Section.

(1) *Notification to the Department of the primary site safety coordinator.* The Inspectional Services Department shall be notified of the primary site safety coordinator prior to the commencement of work. In the event that an alternate site safety coordinator will be acting in place of the primary site safety coordinator for a period longer than two consecutive weeks, the Department must be so notified. Any permanent change of the primary site safety coordinator requires immediate notification to the Inspectional Services Department.

(2) *Presence at the site.* For the construction or alteration of a building, the site safety coordinator shall be present at the site during alt times while active work is occurring and through all phases of work, beginning with excavation and continuing until the building is enclosed and all temporary protective measures are removed. For the demolition of a building, the site safety coordinator shall be present at the site during all times while active work is occurring and through all phases of work, beginning with the removal of any glass, asbestos or façade and, for a full demolition, continuing until the site has been backfilled to grade, or for a partial demolition until the building is enclosed and all temporary protective measures are removed.

(3) *Alternate site safety coordinator.* Where the primary site safety coordinator is unable to be at the site, an alternate site safety coordinator shall act in place of the primary site safety coordinator and carry out all duties and responsibilities assigned to the site safety coordinator by this Section and rules promulgated by the commissioner. Such shall be recorded in the site safety log, as defined in division (D) below, and notification shall be provided to the Inspectional Services Department.

(4) *Limitation on primary site safety coordinator serving at another site.* No site safety coordinator designated as the primary site safety coordinator at a site shall serve as a site coordinator at any other site.

(B) *Site safety coordinator's duties.* The site safety coordinator shall monitor compliance with the site safety plan and perform all other safety duties assigned by the owner or general contractor to meet legal requirements.

(1) *Weekly safety meeting.* The site safety coordinator shall lead a safety meeting with the designated representative of the general contractor, construction manager and each subcontractor to ascertain that all contractors and subcontractors are complying with the Site Safety Plan. Such meetings shall occur at least once a week while active work is occurring.

(2) *Notification of violations.* In the event the site safety coordinator discovers a violation of the site safety plan, he or she shall immediately notify supervisory personnel of the general contractor or subcontractor responsible for creating the violation and inform them of the corrective work necessary to abate any unsafe conditions. All such violations and corrective work shall be recorded in the site safety log, as defined in division (D) below. Where unsafe work or an unsafe condition relates to an item which a registered design professional or special inspection agency is responsible for implementing or verifying, the site safety coordinator must also notify the responsible registered design professional or special inspection agency of the unsafe work or condition. All such unsafe conditions, work, notices, orders and corrective action must be recorded in the site safety log, as defined in division (D) below.

(3) *Notification of conditions to the Department.* The site safety coordinator shall immediately notify the Inspectional Services Department directly, in a manner determined by the Commissioner, if he or she discovers any such hazardous or dangerous conditions or incidents as determined reportable by the Commissioner in any rules or regulations promulgated pursuant to this ordinance, including any unpermitted work or use of unpermitted equipment. The site safety coordinator shall report violations of federal workplace safety regulations to OSHA or the applicable Federal Department or Agency in the manner that those Departments and Agencies have deemed appropriate.

(4) *Spot checks.* The site safety coordinator shall personally perform spot checks of the site on a regular basis throughout the day for compliance with the Site Safety Plan.

(5) *Inspections.* The following inspections shall be performed and documented by the site safety coordinator: daily, weekly and other checks as specified in rules promulgated by the Commissioner.

(C) *Record of inspections.* A record of all such required inspections conducted pursuant to this ordinance shall be maintained by such site safety coordinator in the site safety log.

(D) *Site safety log.* The site safety coordinator shall maintain and keep a site safety log at the site. The log, or where there is more than one log, the logs in total, shall, at a minimum, contain the following information:

(1) Date and location of inspections performed in accordance with this Section;

(2) Date and names of individuals met with to satisfy the requirements of the weekly safety meeting;

(3) Any unsafe conditions, and dates and locations of said unsafe conditions;

(4) Companies and representatives notified of unsafe conditions;

(5) Dates of notification of unsafe conditions;

(6) Dates of correction of unsafe conditions and nature of correction;

(7) Any violations, stop work orders, or summonses issued by the Inspectional Services Department, including date issued and date lifted or dismissed; and

(8) Other relevant information as may be required by the Department.

(E) *Recording inspections in the site safety log.* Inspections shall be recorded by the end of the day by the site safety coordinator who performed the inspection. The site safety log, or where there is more than one log, each individual log, shall be completed and signed by the site safety coordinator.

(F) *Recording change in site safety coordinator.* If, at any point during the day, an alternate site safety coordinator acts as the primary site safety coordinator, this shall be noted in the log, and the alternate site safety coordinator shall log in. If a site safety coordinator is relieved of his or her responsibilities at the site, or a site safety coordinator leaves the site for any reason, this shall be indicated in the site safety log, and another site safety coordinator shall assume the duties of such relieved or absent site safety coordinator by signing in.

(Ord. 2023 c. 6)

16-65.8 Enforcement.

(A) The Inspectional Services Department shall have the power to issue violations, stop work, revoke permits and impose fines upon permit holders, developers, general contractors/construction managers and subcontractors found to be in non-compliance with this Section.

(B) Violations, stop work orders and the revocation of permits may be imposed by the assigned Building Inspector.

(C) Fines may be imposed by the Commissioner of the Inspectional Services Department at the recommendation of the Inspector of Buildings as follows.

(1) Fines to a maximum of $300 for each violation. A violation occurs where a general contractor/construction manager or subcontractor has not complied with this Section. Each day of non-compliance shall be considered a separate violation. The provisions of this Section may be enforced in accordance with the noncriminal disposition process of M.G.L. Chapter 40, Section 21D, and, if applicable, by seeking to restrain a violation by injunction or other court proceeding.

(2) Creation of a record of non-compliance with city policy that may be considered when awarding future construction contracts on city-funded projects and future permits.

(Ord. 2023 c. 6)

16-65.9 Regulations.

The Commissioner of Inspectional Services may promulgate rules and regulations to carry out the provisions of this Section.

(Ord. 2023 c. 6)

16-66 UNLAWFUL CAMPING ON PUBLIC PROPERTY.

16-66.1 Definitions.

For the purpose of this Section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

CAMP MATERIALS. Items used to establish or facilitate occupancy of a campsite, including tents, tarps or other temporary structures, as well as large furniture, stoves and other cooking instruments.

CAMPSITE. Any place where a tent, tarp or other temporary structure is established for the purpose of maintaining an outdoor shelter.

CITY STORAGE PROGRAM POLICY. The city's written policy for storage of eligible property.

ELIGIBLE PROPERTY. Items including, but not limited to, personal identification and documents, valuables, clothing, hygiene products and toiletries and items of basic necessities.

EMERGENCY SHELTER SPACE. A city-authorized location providing temporary shelter or alternative sleeping space practically available to persons experiencing homelessness. ***EMERGENCY SHELTER SPACE*** shall be at a shelter, housing accommodation or alternative sleeping space that maintains policies and procedures for accommodations under the Americans with Disabilities Act of 1990, being 42 U.S.C. §§ 12101 et seq.

PERIOD WHEN SHELTER IS UNAVAILABLE. A length of time in which there is no emergency shelter space available to individuals experiencing homelessness in the city.

TO CAMP. To pitch, erect or occupy a campsite or to use camp materials, or both, for the purpose of, or to facilitate, outdoor sheltering, either

temporarily or permanently.

(Ord. 2023 c. 9)

16-66.2 Purpose.

(A) It is the purpose of this Section to promote public health, public safety, general welfare and the economic health and well-being of the city, its workers, visitors and residents, including individuals experiencing homelessness, by prohibiting unsanctioned camping and the dangerous and unsafe conditions surrounding such campsites.

(B) This Section seeks to improve access to housing and recovery services by restoring access to public spaces, the public rights-of-way and curtailing the existence of campsites that shield drug trafficking, human trafficking, weapons, fire hazards, violence and other criminal activity, and that create conditions for large crowds to congregate. It is also the purpose of this Section to protect the rights of individuals related to his or her personal property and to treat such property with respect and consideration.

(C) This Section shall apply to all campsites and camping on public property, including, but not limited to, streets, sidewalks and public rights-of-way.

(Ord. 2023 c. 9)

16-66.3 Unlawful Camping on Public Property.

It is unlawful for any person to camp or maintain a campsite or camp materials in or on any public property or in the public right-of-way, including, but not limited to, any street, sidewalk, school or public park, unless specifically authorized or during a period when shelter is unavailable.

(Ord. 2023 c. 9)

16-66.4 Restrictions on Unlawful Camping During a Period when Shelter is Unavailable.

(A) The prohibition against campsites and camping shall not apply during a period when shelter is unavailable.

(B) City Officials shall maintain daily, and revise regularly, a shelter list that is communicated throughout the day to the Boston Police Department and other City Departments for the purpose of identifying available shelter space.

(C) During a period when shelter is unavailable, or when a campsite is specifically authorized, a campsite or use of camping materials must comply with existing state and local laws to ensure the public health and safety of those in and around the campsite.

(D) During any period when shelter is unavailable, the Mayor's Office of Housing, in consultation with the Boston Public Health Commission, the Boston Police Department and the Inspectional Services Department, is hereby authorized to promulgate any additional restrictions relative to the time, place and manner for camping, and density of campsites, in order to advance public health, maintain access to the public right-of-way and support the effective operation of facilities such as schools, shelters and health care institutions during such periods.

(Ord. 2023 c. 9)

16-66.5 Offer of Shelter.

(A) In the event of a violation of this Section, the city shall provide, or cause to be provided, an offer of available emergency shelter space to an individual experiencing homelessness, and must inform that individual that transportation to available emergency shelter space is available.

(B) Each emergency shelter space offered to an individual shall be at a shelter, housing accommodation or alternative sleeping space that maintains policies and procedures for accommodations under the Americans with Disabilities Act of 1990, being 42 U.S.C. §§ 12101 et seq.

(Ord. 2023 c. 9)

16-66.6 Storage of Property.

(A) In the event of a violation of this Section, the city shall offer and provide storage for personal belongings consistent with the City Storage Program Policy. The City Storage Program Policy shall provide for the storage of eligible property, further define property that is eligible for storage and provide clear instructions on how individuals may regularly access and recover his or her belongings.

(B) The City Storage Program Policy will also provide that for property at a campsite that is not claimed by any person, City Staff will assess whether the property is abandoned property or an individual's temporarily unattended property, including through inquiry to individuals in the area and a reasonable attempt to identify the property owner. Property determined to pose an immediate health or safety risk is subject to immediate disposal.

(C) The city shall store temporarily unattended eligible property under the City Storage Program Policy. For temporarily unattended property that is not eligible for city storage, the Inspectional Services Department will either post notice for 24 hours prior to removal of the unattended property not eligible for city storage or will temporarily store the unattended property and post notice as to how to recover it.

(D) City Officials shall provide a written copy of the City Storage Program Policy when providing an offer of storage, which shall be made available in each language that meets a language access need in the city as most recently determined by the Office of Language and Communications Access.

(E) In the event that an individual chooses to leave the area without his or her belongings upon learning of a violation of this Section, City Staff shall store eligible property in line with the City Storage Program Policy.

(F) The City Clerk shall maintain a feedback system on the City Storage Program through which individuals can complete a form either online or by requesting a physical form from a City Employee or Agent. These feedback forms can be used to submit general feedback or to submit a claim for reimbursement for lost property. All claim forms submitted pursuant to this Section shall be submitted to the City Clerk for appropriate routing. No fees may be charged for the processing of claims submitted pursuant to this Section.

(Ord. 2023 c. 9)

16-66.7 Removal.

Once the city has engaged an individual as described in Subsections 16-66.5 and 16-66.6, and the individual has either accepted or declined the offers, the city shall remove any campsite and/or camp materials not removed by the individual.

(Ord. 2023 c. 9)

16-66.8 Notice to Individuals.

(A) Immediately upon passage, the city shall distribute leaflets to individuals and post weather-resistant signs in locations with a concentrated number of campsites to provide additional actual notice of this Section and the effective date. The leaflet shall contain a written copy of this Section, a written copy of the City Storage Program Policy and written copies of additional resources, which shall be made available in each language that meets a language access need in the city as most recently determined by the Office of Language and Communications Access.

(B) Upon the effective date of this Section, once the city has engaged an individual as described in Subsections 16-66.5 and 16-66.6, no further notice is required to enforce this Section.

(C) In the case of a period when shelter is unavailable, when the city notifies an individual located in any campsite that a period when shelter is unavailable has ended, the individual shall have 48 hours to remove his or her camping materials.

(Ord. 2023 c. 9)

16-66.9 Penalty for Violations.

(A) Individuals in violation of this Section who refuse to remove or allow for removal of the campsite or camp materials as described in Subsection 16-66.7, or who reestablish a campsite following removal pursuant to Subsection 16-66.7, shall be subject to penalties. This Section shall be enforced by the Boston Police Department as well as any sworn law enforcement agency empowered to make an arrest within the jurisdictional boundaries of the city.

(B) Any of the following penalties may apply.

(1) All enforcement methods authorized by law, including, issuance of a warning, M.G.L. Chapter 40, Section 21, or enforcement authorized by M.G.L. Chapter 272, Section 59 (Ordinances or Regulations Relating to Streets, Reservations or Parkways; Alcoholic Beverages; Profanity; Arrest Without Warrant) if the Boston Police or other duly authorized officer on scene determines a violation of M.G.L. Chapter 272, Section 59 has occurred in their presence.

(2) This Section shall go into effect seven days after the date of passage to permit any individuals located in any campsite to remove camping materials in order to comply with this Section.

(Ord. 2023 c. 9)

16-66.10 Reporting to Boston City Council.

The city will attend a hearing hosted by the Boston City Council to present an end of year report related to the provisions of this Section every year.

(Ord. 2023 c. 9)

16-66.11 Severability.

The provisions in this Section are severable. If any part or provision of this Section is held invalid by a court of competent jurisdiction, the remainder of this Section shall not be affected by such holding and shall continue to have full force and effect.

(Ord. 2023 c. 9)